



U.S. Department
of Transportation

**Federal Highway
Administration**

REQUEST FOR PROPSAL (RFP)

Issuing Office:

United States Department of Transportation
Federal Highway Administration (FHWA)
Central Federal Lands Highway Division (CFLHD)
12300 W. Dakota Avenue
Lakewood, CO 80228

Agency Contact:

Kelly Palmer, Contract Specialist
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Email: kelly.palmer@dot.gov / CFLAcquisitions@dot.gov

Solicitation Number:

6982AF26R000002

Title:

CA FLAP SCR T5(1A) Monterey Bay Sanctuary Scenic
Trial Mitigation

Solicitation Release Date:

April 14, 2026

Technical Questions Due Date:

May 4, 2026

Proposals Due Date:

May 15, 2026

PART I

SECTION – A

RFP INFORMATION AND INSTRUCTIONS FOR PREPARATION OF PROPOSALS

RFP INFORMATION

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the format in Revolutionary Federal Acquisition Regulation Overhaul (RFO)part 12. This announcement constitutes only solicitation; proposals are being requested and a written solicitation will not be issued.

Solicitation Number 6982AF26R000002 is issued as a Request for Proposal (RFP) for the mitigation site restoration and enhancement for CA FLAP SCR T5(1A) Monterey Bay Sanctuary Scenic Trial Mitigation.

This acquisition is set aside for 100% small business concerns. the North American Industry Classification System (NAICS) code is **113210 – Forest Nurseries and Gathering Forest Product** with an industry size standard of **\$20.5M**. Prospective offerors are responsible for checking System for Award Management (SAM) to obtain any amendments or other information pertaining to the solicitation. Prospective offerors are encouraged to register for notifications.

This solicitation incorporates provision and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov and <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>

All offerors must be actively registered in the System for Award Management (www.SAM.gov) at the time of proposal submission in order to be eligible to receive an award under this RFP.

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in DOT solicitations. Examples include:

- 52.222-25, Affirmative Action Compliance, and
- 52.212-3(d), Offeror Representations and Certifications—Commercial Products and Commercial Services.

Contracting officers will not need to consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

The Government shall not award any contract if the resulting contract would not represent a "best value" to the Government using the tradeoff process procedures as required by the Revolutionary Federal Acquisition Regulation Overhaul (RFO).

To ensure timely and equitable evaluation of proposals, offerors are cautioned to strictly comply

with all instructions within this solicitation to ensure submission of a complete proposal. Offerors are required to meet all solicitation requirements, including terms and conditions, representations and certifications, and those identified as evaluation factors and sub-factors. Failure to furnish a complete proposal, at the time of submission, may result in the proposal being unacceptable to the Government and eliminated from consideration for award.

The Contracting Officer has determined there is a high probability of adequate price competition in this acquisition. Upon examination of the initial offers, the Contracting Officer will review this determination and if, in the Contracting Officer's opinion, adequate price competition exists, no additional cost information will be requested and certification under RFO 15.403-1 will not be required. However, if at any time during this competition, the Contracting Officer determines that adequate price competition no longer exists, offerors may be required to submit information to the extent necessary for the Contracting Officer to determine the reasonableness and affordability of the price.

If an offeror believes that requirements in these instructions contain an error, omission, or are otherwise flawed, the Offeror shall immediately notify the Contracting Officer in writing (email is the preferred method) with supporting rationale by the due date provided. **All concerns and questions shall be submitted to the Contracting Officer, Attention Kelly Palmer at CFLAcquisitions@dot.gov.**

This RFP does not commit the Government to any costs incurred in the preparation and submission of a proposal or for any other costs incurred by any firm submitting a proposal in response to this solicitation. Note specifically that the Offeror will **not** be participating in a sealed bid procurement process under this acquisition method. Issuance of this RFP does not constitute an award commitment on the part of the Government.

A proposal that is orderly and sufficiently documented will enable the Government to perform a thorough and fair evaluation. Proposals that fail to address any of the evaluation criteria may be deemed incomplete, and the proposal may be removed from further consideration.

Proposals must set forth full, accurate, and complete information as required by this RFP, (including attachments), if applicable. The penalty for making false statements is prescribed in 18 U.S.C. 1001.

Proposal must be valid for a **minimum of 60 days**.

Interchangeable Words: The following roles/words denote different legal terms and ramifications: contractor, offeror, firm and company, however for the purpose of this solicitation they are used interchangeably. In addition, the word "requirement" can be used interchangeably to mean one, a combination, or all of the following: 1) Specifications, and 2) Solicitation.

Alternate proposals are not authorized and will not be accepted.

Award is subject to and based on the availability of funds.

Including all other factors, to qualify for award, an offeror must be determined responsible in accordance with RFO Subpart Part 9.

The Standard Form (SF) 1449 Solicitation/Contract/Order for Commercial Items must be returned along with the SF 30 Amendment of Solicitation/Modification of Contract if any amendments are issued for the RFP to be considered responsive.

INSTRUCTIONS FOR PREPARATION OF PROPOSALS

In responding to this RFP, proposals MUST include the following:

1. **Technical Proposal:** Narrative discussion addressing the quoter's technical approach and technical merit factors identified in **Part III**, Evaluation of Proposals. A description of how the Statement of Work or Performance Work Statement requirements will be completed.
2. **Price Proposal:** Submitted pricing in the format of the Schedule of Service, Contract Line-Item Number (CLIN) Structure table shown in **Part II**.
3. **Past Performance References:** Please provide a matrix of recent relevant past performance (within the last six (6) years), which shall include the following: a short description of the work, the dates of work performance, the name of the client and a contact phone number and email address, so a reference check can be conducted. Proposals shall include at least three (3) references.
4. **Organizational Information:** Proposals shall include the following mandatory business information regarding your company **in the body of the cover email message**:
 - a. Confirmation your company accepts government purchase orders
 - b. Business Size (Small, Woman-Owned, Disadvantaged, Hub-Zone, Large, Non-Profit, etc.)
 - c. Payment Terms (Government Standard is NET 30)
 - d. Unique Entity Identifier (UEI) and Electronic Funds Transfer (EFT) Indicator (if applicable):
 - e. Federal Tax Identification Number (TIN) (9-Digits)
 - f. Correct Mailing Address for the order (include name, telephone, email address); Note: Mailing address and entity name shall match the information in www.sam.gov
 - g. Verification company information listed in the System for Award Management (SAM) current and accurate? <https://www.sam.gov/SAM/>
5. **Instructions for Preparation of Quotations:** Proposals shall be submitted electronically as Adobe (pdf) files with the technical capability, pricing, past performance and organizational information sections submitted in an email whose size shall not exceed 25 Megabyte, multiple emails are allowed, but must state if it is email 1 of 1 or 1 of 2 etc.
6. **Evaluation of Proposals:** See RFO Clause 52.212-2 Evaluation – Commercial Product Commercial Services for the Evaluation Factors and Subfactors.
7. **The Period of Performance will start upon award and will end five (5) years from the date of award.**

NOTE: Failure to furnish all information required above may result in your proposal being considered non-responsive and eliminated from further consideration.

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.						1. REQUISITION NUMBER HFLCEO260102PR		PAGE 1 OF 320					
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 6982AF26R000002		6. SOLICITATION ISSUE DATE 04/14/2026					
7. FOR SOLICITATION INFORMATION CALL:		a. NAME KELLY PALMER				b. TELEPHONE NUMBER (No collect calls) 720-963-3621		8. OFFER DUE DATE/ LOCAL TIME 05/15/2026 2:00 P.M. MDT					
9. ISSUED BY FEDERAL HIGHWAY ADMINISTRATION CENTRAL FEDERAL LANDS DIVISION 12300 WEST DAKOTA AVENUE, SUITE 167 LAKEWOOD, COLORADO 80228				CODE 69050001		10. THIS ACQUISITION IS ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ UNRESTRICTED OR ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) 8(A) ☐ SET ASIDE: 100 % FOR: NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 113210 SIZE STANDARD: \$20.5							
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ PROPOSAL (RFP)							
15. DELIVER TO FEDERAL HIGHWAY ADMINISTRATION CENTRAL FEDERAL LANDS DIVISION 12300 WEST DAKOTA AVENUE, LAKEWOOD CO 80228				CODE 690500001		16. ADMINISTERED BY FEDERAL HIGHWAY ADMINISTRATION CENTRAL FEDERAL LANDS DIVISION 12300 WEST DAKOTA AVENUE, LAKEWOOD CO 80228							
17a. CONTRACTOR/OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY PAYMENT WILL BE MADE BY FEDERAL HIGHWAY ADMINISTRATION CENTRAL FEDERAL LANDS HIGHWAY DIVISION 12300 W. DAKOTA AVENUE, SUITE 167 LAKEWOOD, COLORADO 80228									
TELEPHONE NUMBER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM									
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐													
19. ITEM NUMBER		20. SCHEDULE OF SUPPLIES/SERVICES				21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
101		SEE BID SCHEDULE (PART I, SECTION B)											
(Use Reverse and/or Attach Additional Sheets as Necessary)													
25. ACCOUNTING AND APPROPRIATION DATA								26. TOTAL AWARD AMOUNT (For Government Use Only)					
27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED													
27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED													
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED						29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:							
30a. SIGNATURE OF OFFEROR/CONTRACTOR						31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)							
30b. NAME AND TITLE OF SIGNER (Type or print)				30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)				31c. DATE SIGNED			

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL

☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (*Print*)42b. RECEIVED AT (*Location*)42c. DATE RECEIVED (*MM/DD/YYYY*)

42d. TOTAL CONTAINERS

PART I

SECTION – B

SCHEDULE OF SERVICES/BID SCHEDULE

BID SCHEDULE

Bidder/Offeror please note: Before preparing the bid, carefully read the Solicitation Provisions. Insert a unit bid price, in figures, for each pay item for which a quantity appears in the bid schedule. Unit bid prices should be quoted no more precisely than the nearest cent (2 decimal places). Unit bid prices quoted more precisely will be rounded up to the nearest cent by the Government. Multiply the unit price by the quantity for each pay item and show the amount bid. Should any mathematical check made by the Government show a mistake in the amount bid, the corrected unit price extension shall govern. When the word "LPSM" (Lump Sum) appears as a unit bid price, insert an amount for each lump sum pay item. When a sum based on a fixed rate appears for any pay item in the amount bid column, include the Government inserted amount bid for the item in the total bid amount. Total all of the amounts bid for each pay item and show the total bid amount.

BID SCHEDULE

Project No : CA FLAP SCR T5(1A)
Project Name : MONTEREY BAY SANCTUARY
 SCENIC TRAIL MITIGATION

Schedule : A
Schedule Type : Base

Contract Quantity Pay Items
No Contract Quantity Pay Items

AMD#	Line Item Number	Pay Item Number	Description	Supplemental Description	Quantity	Unit	Unit Price	Amount
	A0020	15101-0000	MOBILIZATION		ALL	LPSM		
	A0040	15201-0000	CONSTRUCTION SURVEY AND STAKING		ALL	LPSM		
	A0060	15301-0000	CONTRACTOR QUALITY CONTROL		ALL	LPSM		
	A0080	15501-0000	CONSTRUCTION SCHEDULE		ALL	LPSM		
	A0100	15701-0000	SOIL EROSION CONTROL		ALL	LPSM		
	A0120	15720-0000	STORMWATER POLLUTION PREVENTION PLAN		ALL	LPSM		
	A0140	20201-0000	SELECTIVE CLEARING	(INVASIVE EXOTIC PLANT REMOVAL)	3.500	ACRE		
	A0160	21202-0000	SITE GRADING		6,500.000	SQYD		
	A0200	61901-3400	FENCE, COMBINATION WIRE	(CATTLE EXCLUSION FENCE)	3,500.000	LNFT		
	A0240	61902-5300	GATE, COMBINATION WIRE	(CATTLE EXCLUSION GATE)	5.000	EACH		
	A0260	62201-0250	DUMP TRUCK, 10 CUBIC YARD MINIMUM CAPACITY		80.000	HOURL		
	A0280	62201-0450	BACKHOE LOADER, 4 CUBIC FOOT MINIMUM RATED CAPACITY BUCKET, 18-INCH WIDTH		80.000	HOURL		
	A0300	62201-0850	WHEEL LOADER, 1 CUBIC YARD MINIMUM RATED CAPACITY		80.000	HOURL		
	A0320	62301-0000	GENERAL LABOR		80.000	HOURL		
	A0340	62302-1000	SPECIAL LABOR, HIRED TECHNICAL SERVICES		80.000	HOURL		
	A0360	62302-1100	SPECIAL LABOR, HIRED SURVEY SERVICES		80.000	HOURL		
	A0380	62303-1010	SPECIAL LABOR, HIRED TECHNICAL SERVICES, BIOLOGICAL SERVICES	(BIOLOGICAL MONITOR)	ALL	LPSM		
	A0400	62511-1000	SEEDING, DRY METHOD		6,500.000	SQYD		
	A0420	62516-1000	MULCHING, DRY METHOD		6,500.000	SQYD		
	A0440	62542-1000	SEEDING SUPPLEMENTS, SEED	(COLLECTION AND STORAGE)	50.000	LB		
	A0460	62601-0000	PLANTINGS	(COLLECTION/PROPA GATION, BALTIC RUSH, TREE BAND)	620.000	EACH		

	A0480	62601-0000	PLANTINGS	(COLLECTION/PROPAGATION, BOG RUSH, TREE BAND)	620.000	EACH		
	A0500	62601-0000	PLANTINGS	(COLLECTION/PROPAGATION, CALIFORNIA BLACKBERRY, TREE BAND)	200.000	EACH		
	A0520	62601-0000	PLANTINGS	(COLLECTION/PROPAGATION, DENSE SEDGE, TREE BAND)	620.000	EACH		
	A0540	62601-0000	PLANTINGS	(COLLECTION/PROPAGATION, MONTEREY SEDGE, TREE BAND)	620.000	EACH		
	A0560	62601-0000	PLANTINGS	(COLLECTION/PROPAGATION, SALT MARSH BACCHARIS, TREE BAND)	620.000	EACH		
	A0580	62601-0000	PLANTINGS	(INSTALLATION, BALTIC RUSH, TREE BAND)	620.000	EACH		
	A0600	62601-0000	PLANTINGS	(INSTALLATION, BOG RUSH, TREE BAND)	620.000	EACH		
	A0620	62601-0000	PLANTINGS	(INSTALLATION, CALIFORNIA BLACKBERRY, TREE BAND)	200.000	EACH		
	A0640	62601-0000	PLANTINGS	(INSTALLATION, DENSE SEDGE, TREE BAND)	620.000	EACH		
	A0660	62601-0000	PLANTINGS	(INSTALLATION, MONTEREY SEDGE, TREE BAND)	620.000	EACH		
	A0680	62601-0000	PLANTINGS	(INSTALLATION, SALT MARSH BACCHARIS, TREE BAND)	620.000	EACH		
	A0700	62603-0000	PLANTINGS	(5-YEAR MAINTENANCE PERIOD)	ALL	LPSM		
	A0720	62604-5000	CUTTINGS, WILLOW POLE	(ARROYO WILLOW & PACIFIC WILLOW)	2,000.000	EACH		

Submitted By:

Schedule Total:

BID SCHEDULE SUMMARY

Schedule	Bid Total
Schedule A - Base	\$0.00

Total-Schedule(s) and Option(s)	Bid Total
Schedule A	\$0.00

NOTE: Unless otherwise negotiated and approved, the contractor will be paid the FFP of each CLIN upon successful completion and Government acceptance. The contractor may also request milestone payments in accordance with work completed and accepted by the Government. Satisfactory completion and acceptance will be made by the Government Representative

PART I

SECTION – C

SPECIFICATIONS

Section 101. — TERMS, FORMAT, AND DEFINITIONS

101.01 Meaning of Terms. These specifications are generally written in the imperative mood. In sentences using the imperative mood, the subject, "*the Contractor*", is implied. Also implied in this language are "*shall*", "*shall be*", or similar words and phrases. In material specifications, the subject may also be the supplier, fabricator, or manufacturer supplying material, products, or equipment for use on the project. Wherever "*directed*", "*required*", "*prescribed*", "*requested*", or "*ordered*" are used, the "*direction*", "*requirement*", "*prescription*", or "*order*" of the Contracting Officer is intended. Wherever something is to be "*submitted*" or "*submitting to*", the Contracting Officer is intended. Similarly, wherever "*approved*", "*acceptable*", "*suitable*", "*satisfactory*", or similar words are used, the words mean "*approved by*", "*acceptable to*", or "*satisfactory to*" the Contracting Officer.

The word "*will*" generally pertains to decisions or actions of the Contracting Officer.

101.02 Specifications Format. These specifications are divided into 10 Divisions. Division 100 consists of general contract requirements for which no direct payment is made. The requirements contained in Division 100 apply to all contracts.

Division 150 consists of project contract requirements that apply to all contracts. Work under Division 150 is paid for directly or indirectly according to Subsection 109.05. If there is no pay item in the bid schedule, no direct payment is made.

Divisions 200 through 600 consist of construction contract requirements for specific items of work. Work under these Divisions is paid for directly or indirectly according to Subsection 109.05. If there is no pay item in the bid schedule, no direct payment is made.

Division 700 contains the material requirements for Divisions 150 through 600. No direct payment is made in Division 700. Payment for material is included as part of the work required in Divisions 150 through 600.

The first three digits of the pay item number in the bid schedule identify the Section under which the work is performed.

101.03 Abbreviations. When these abbreviations are used, they represent the following:

(a) Acronyms.

3D — Three-Dimensional

AASHTO — American Association of State Highway and Transportation Officials

ACI — American Concrete Institute

ANSI — American National Standards Institute

ASTM — American Society for Testing and Materials (ASTM International)

AWG — American Wire Gauge

BCM – **Baseline Construction Schedule**

BMP — Best Management Practice

CFR — Code of Federal Regulations

CO — Contracting Officer and authorized representatives

CDR — Contractor’s Daily Record

CPM — Critical Path Method

CTSM — Contingent Sum

EPA — Environmental Protection Agency

FAR — Federal Acquisition Regulations (48 CFR Chapter 1)

FHWA — Federal Highway Administration

FLH — Federal Lands Highway

GPS — Global Positioning System

GSA — General Services Administration

LPSM — Lump Sum

NTP — Notice to Proceed

OSHA — Occupational Safety and Health Administration

PVC — Polyvinyl Chloride

QA — Quality Assurance

QC — Quality Control

QCM — Quality Control Manager

QCP — Quality Control Plan

RECP — Rolled Erosion Control Product

SDS — Safety Data Sheet

SF — Standard Form

SWPPP — Storm Water Pollution Prevention Plan

TAR — Transportation Acquisition Regulations (48 CFR Chapter 12)

U.S. — United States

U.S.C. — United States Code

(b) Unit abbreviations and symbols.

°F	—	degree Fahrenheit	temperature
ft	—	feet	length
ft²	—	square feet	area
ft³	—	cubic feet	volume
gal	—	gallon	volume
in	—	inches	length
in²	—	square inches	area
in³	—	cubic inches	volume
lb	—	pound	mass
mi	—	mile	length
min	—	minute	time
oz	—	ounces	mass
ppm	—	parts per million	concentration
psi	—	pounds per square inch	pressure
sec	—	second	time
yd	—	yards	length
yd²	—	square yards	area
yd³	—	cubic yards	volume

(c) Slope notation. Slopes are expressed as the ratio of vertical to horizontal (V:H).

101.04 Definitions. Unless otherwise specified, the following terms are defined as follows:

Award — The written acceptance of a bid by the CO.

Backfill — Material used to replace or the act of replacing material removed during construction. Material placed or the act of placing material adjacent to structures.

Bid — A written offer by a bidder to perform work at a quoted price.

Bidder — An individual or legal entity submitting a bid.

Bid Guarantee — A form of security assuring that the bidder will not withdraw a bid within the period specified for acceptance and will execute a written contract and provide required bonds.

Bid Schedule — The prepared schedule included with the bid forms, containing the estimated quantities of pay items for which unit bid prices are invited.

Commercial Certification — See Subsection 106.03.

Completion Date — The date by which all contract work is to be complete.

Construction Limits — The limits that establish the area disturbed by construction operations and beyond which no disturbance is allowed.

Contract — The written agreement between the Government and the Contractor setting forth the obligations of the parties for the performance of and payment for the prescribed work.

Contracting Officer — An official of the Government with the authority to execute, administer, and terminate contracts, and make related determinations and findings. The term includes authorized representatives of the CO acting within the limits of their authority as delegated by the CO.

Contract Modification — A written change in the terms of the contract. Contract modifications are of the following forms:

(a) Administrative change. A unilateral contract change, in writing, that does not affect the substantive rights of the parties (such as a change in the paying office or the appropriation data).

(b) Change order. A written order, signed by the CO, directing the Contractor to make a change that FAR Clause 52.243-1 Changes-Fixed-Price authorizes the CO to order without the Contractor's consent.

(c) Supplemental agreement. A contract modification that is accomplished by the signature of the CO (unilateral contract modification) or by the signature of the CO and the Contractor (bilateral contract modification).

Contractor — The individual or legal entity contracting with the Government for performance of prescribed work.

Contract Time — The specified time allowed for completion of the contract work.

Cross-Section — A vertical section of the ground or structure at right angles to the centerline or baseline of the roadway or other work.

Day — A calendar day starting and ending at midnight.

Drawings — Design sheets or fabrication, erection, shop drawing, or construction details submitted to the CO by the Contractor according to FAR Clause 52.236-21 Specifications and Drawings for Construction. Also refers to submissions and submittals.

Federal Land Management Agencies — Federal agencies including, but not limited to, the National Park Service, U.S. Forest Service, U.S. Fish & Wildlife Service, U.S. Army Corps of Engineers, Bureau of Land Management, and Bureau of Reclamation.

Final Acceptance — The point at which the Government formally accepts the work and relieves the Contractor of further responsibility for the maintenance of the project. This excludes warranties, which remain in effect until they expire. See FAR Clause 52.212-4 Contract Terms and Conditions – Commercial Products and Commercial Services (o) Warranty.

Government — The Government of the United States of America.

Highway, Street, or Road — A general term denoting a public way primarily designed for purposes of multimodal travel.

Masterworks — A web-based system used by the Government, Contractors, and Subcontractors on this Government contract to prepare CDRs, measurement notes (pay notes and field measurement documentation), and transmit submittals, and documents and drawings.

Material — Substances specified or necessary to complete the contract work.

Measurement — The process of identifying the dimensions, quantity, or capacity of a pay item. See Section 109 for measurement methods, terms, and definitions.

Notice to Proceed — Written notice to the Contractor to start the contract work.

Offeror — An individual or legal entity submitting a bid.

Pay Item — A specific item of work consisting of a unit, quantity, and method of measurement furnished by the Government and a price established by the contract.

Payment Bond — The security executed by the Contractor and surety or sureties and provided to the CO to ensure payments as required by law to persons supplying labor or material according to the contract.

Performance Bond — The security executed by the Contractor and surety or sureties and provided to the CO to guarantee completion of the contract work.

Plans — The contract plans furnished by the Government showing the location, type, dimensions, and details of the work.

Production Certification — See Subsection 106.03.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Professional Engineer — Engineers holding valid state licenses permitting them to offer engineering services directly to the public. Engineers that are experienced in the work for which they are responsible, take legal responsibility for their engineering designs, and are bound by a code of ethics to protect the public health.

Project — The specific section of the property on which construction is to be performed under the contract.

Right-of-Way — Real property necessary for the project, including roadway, buffer areas, access, and drainage areas.

Shop Drawings — See "Drawings"

Solicitation — The complete assembly of documents (whether attached or incorporated by reference) furnished to prospective bidders.

Specifications — The written requirements for performing work.

Standard Form — Numbered form issued by the GSA for use as contract documents.

Subcontract — The written agreement between the Contractor and an individual or legal entity setting forth the obligations of the parties for the performance of and payment for a specific portion of the work to be performed by the subcontractor.

Subcontractor — An individual or legal entity with which the Contractor sublets part of the work. This includes subcontractors and material suppliers in all tiers.

Substantial Completion — For mitigation site work, the point at which all initial construction activities, including but not limited to selective clearing, grading, planting, seeding, mulching, fencing, and gate installation are complete, and the only remaining work is the multi-year plant maintenance period.

Superintendent — The Contractor's on-site representative who has authority to act for the Contractor and is responsible for directing and supervising construction operations on behalf of the Contractor.

Surety — An individual or corporation legally liable for the debt, default, or failure of a Contractor to satisfy a contract obligation.

Work — The providing of labor, material, equipment, and other incidentals necessary to complete the project according to the contract.

Section 102. — BID, AWARD, AND EXECUTION OF CONTRACT

102.01 Acquisition Regulations. Bid, award, and execution of the contract is governed by the FAR and TAR.

102.02 Preparation of Proposal. Follow the requirements of FAR Provision 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services.

Insert a numeric unit proposal price for each pay item for which a quantity appears in the schedule. Multiply the unit price by the quantity for each pay item and show the amount proposed. If mathematical checks made by the Government show a mistake in the amount proposed, the corrected unit price extension governs.

If "*LPSM*" appears as a unit of measure in the bid schedule, insert an amount bid for each lump sum pay item.

If "*CTSM*" appears as a unit of measure in the bid schedule, include the Government inserted amount for the pay item in the total bid amount.

Total the amounts bid for each pay item and show the total bid amount.

The quantities listed in the schedule are approximate, unless designated as a contract quantity, and are used for the comparison of bids. Payment will be made for the actual quantities of work performed and accepted or material provided according to the contract. The scheduled quantities may be increased, decreased, or deleted. Bid schedule quantities are considered the original contract quantities.

102.02A Physical Data.

Data and information furnished or referred to below is for the Contractor's information. The Government is not responsible for any interpretation of, or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by:

(1) Final Hydrologic and Hydraulic Technical Memorandum.

(b) Weather conditions: Contact the National Weather Service.

102.03 Bid Guarantee. Follow the requirements of FAR Clause 52.228-1 Bid Guarantee.

102.04 Individual Surety. Follow the requirements of FAR Clause 52.228-11 Individual Surety-Pledge of Assets.

Complete and date the SF 28, *Affidavit of Individual Surety* after the solicitation date. The individual surety shall personally sign the SF 28. Bidders cannot serve as their own surety. See FAR 28.203 Individual Sureties.

After reviewing the SF 28, the CO may request the surety to submit further documentation with respect

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

to its assets, debts, or encumbrances. The information may be required to be provided under oath. Failure of the surety to respond with the requested documentation within 7 days of receipt of the request is cause for rejection of the surety.

Any material misstatement by the surety, overstatement of assets (either as to ownership or value), or understatement of liabilities is cause for rejection of the surety. Substitution of individual sureties to support a bid bond after the bid opening will not be allowed.

Provide documentary evidence as to the ownership and value of the assets pledged in support of the bond and details of the security interest in the assets by the individual sureties for the apparent low bidder within 14 days after the opening of bids. Failure to submit evidence within the time required will be grounds for declaring the surety unacceptable.

After reviewing the SF 28 and documentary information on the security interest and the assets pledged, the CO may request the surety to submit further information and documents with respect to the documents submitted. The information may be required to be provided under oath. Failure of the surety to respond with the requested information or documents within 7 days of receipt of the request is cause for rejection of the surety.

102.05 Not Used.

102.06 Performance and Payment Bonds. Follow the requirements of FAR Clause 52.228-16 Performance and Payment Bonds - Other than Construction.

Use SF 25, *Performance Bond* and SF 25A, *Payment Bond* for submitting the bonds.

Follow the requirements of Subsections 102.03 and 102.04.

Submit the documentary evidence for individual sureties at the same time as the Affidavit of Individual Surety and security interest in assets pledged. A Contractor submitting an unacceptable individual surety in satisfaction of a performance or payment bond before the issuance of the NTP will be allowed one opportunity to substitute an acceptable surety or sureties within 7 days of receipt of notification that the surety is unacceptable.

The Government's right to direct the substitution of sureties to ensure the continuing acceptability of the bonds during the performance of the contract according to FAR Clause 52.228-2 Additional Bond Security is not restricted.

The requirements of this Subsection are in addition to the requirements in FAR 28.2, except where in conflict with the requirements in the FAR, in which case the FAR supersedes the requirements of this Subsection.

The bond amounts may be reduced when the CO issues substantial completion for grading, planting, seeding, and fencing; and the only remaining work will be maintenance of the site to ensure viability of the vegetation.

Section 103. — SCOPE OF WORK

103.01 Intent of Contract. The intent of the contract is to provide for completion of the work described in the contract documents. The precise details of performing the work are not described, except as considered essential for the successful completion of the work. Provide labor, material, equipment, tools, transportation, and supplies necessary to complete the work according to the contract.

103.02 Disputes. Follow the requirements of FAR Clause 52.233-1 Disputes (Alternate I).

103.03 Not Used.

103.04 Contractor Records. Follow the requirements of FAR Clause 52.222-8 Payrolls and Basic Records.

Upon request, provide records related to the contract to the Government for up to 3 years after final payment or for longer periods as provided by law.

Include a provision in subcontracts at all tiers giving the Government the same rights as provided above with respect to the subcontractor's records.

103.05 Partnering. To facilitate the contract, the CO offers to participate in a partnership with the Contractor. This partnership draws on the strengths of each organization to identify and achieve reciprocal goals. Partnering strives to resolve problems in a timely, professional, and non-adversarial manner. If problems result in disputes, partnering encourages, but does not require, alternative dispute resolution instead of the formal claim process. The objective is effective and efficient contract performance to achieve a quality project within budget and on schedule.

Acceptance of this partnering offer by the Contractor is optional, and the partnership is bilateral.

If the partnering offer is accepted by the Contractor, mutually agree with the CO on the level of organizational involvement and the need for a professional to facilitate the partnering process. Engage the facilitator and other resources for key Contractor representatives and the CO to attend a partnership development and team-building workshop. Hold additional progress meetings upon mutual agreement.

The direct cost of partnering facilities, professional facilitation, copying fees, and other miscellaneous costs directly related to partnering meetings will be shared by the Contractor and Government. Secure and pay for facilities, professional fees, and miscellaneous requirements. Submit invoices to the CO. The Government will reimburse the Contractor for 50 percent of the agreed costs incurred for the partnering process. The Government's share will not exceed \$5,000.

Each party is responsible for making and paying for its own travel, lodging, and meal arrangements. No time extension for the completion of the project will be made for the use of partnering. No changes to the contract can result from discussions during partnering sessions.

Section 104. — CONTROL OF WORK

104.01 Authority of the Contracting Officer. As stated in FAR 1.402-1(a), the CO has authority to execute, administer, or terminate contracts and make related determinations and findings. The CO may delegate authority to representatives to decide on acceptability, progress, and suspension of work, interpretation of the contract, and acceptable fulfillment of the contract.

104.02 Authority of Contracting Officer's Representative. As stated in FAR 1.404, CORs will be designated in writing by the CO to act on behalf of the CO to administer the contract. The COR will administer the contract according to the contract documents and the FAR. The COR lacks authority to make commitments outside of the terms of the contract; issue changes that affect price, quality, quantity, delivery, or other terms and conditions of the contract; or direct the Contractor or its subcontractor to operate in conflict with the contract terms and conditions.

104.03 Authority of Inspectors. Inspectors are authorized to inspect work, including the preparation, fabrication, or manufacture of material for the project. Inspectors are not authorized to alter or waive contract requirements, issue instruction contrary to the contract, act as foreperson for the Contractor, or direct the Contractor's operations. Inspectors have the authority to identify non-conforming work until the issue can be referred to and decided by the CO. An inspector is permitted to stop work in circumstances of imminent and substantial risk of death or injury.

104.04 Electronic Documentation. Provide documents and drawings electronically using Masterworks.

Request the *Masterworks User Account Form* (Form Masterworks-001) and submission instructions. Complete and electronically submit Form Masterworks-001 for each individual requiring Masterworks access. Allow 7 days for system access.

Contact the CO to schedule a training session on the use of Masterworks. The virtual training session will be either a video presentation or live training as determined by the CO. The Contractor is responsible for training additional staff that were not present during the original training session.

Maintain active Masterworks accounts for all Contractor staff who use Masterworks. Notify the CO within 24 hours after an account holder is reassigned or no longer employed by the Contractor and submit a Form Masterworks-001 requesting their account be disabled.

Provide documents and drawings in their native file format (the format produced by the software that the document and drawing was created in) upon request.

Documents and drawings include but are not limited to correspondence, submittals, measurement notes, reports, plans, diagrams, qualifications, certifications, payrolls, schedules, invoices, notifications, requests, permits, and agreements.

Provide a resolution quality with color, text, and lines clearly discernible. Submit each document and drawing in an individual file. Name files with a unique document name.

Documents and drawings delivered after 5:00 pm local time will be considered received on the next business day.

The CO will reject documents that are unreadable, corrupted, illegible, or include malicious content.

104.05 Signatures for Electronic Documentation. Sign documents requiring a signature by electronic signature or by wet signature.

(a) Definitions.

(1) Electronic signature. A computer data compilation of symbols or series of symbols executed, adopted, or authorized by an individual to be the legally binding equivalent of the individual's handwritten signature.

(2) Wet signature. A signature of ink from pen, or a scanned copy of an actual signature of ink from pen.

(b) Electronic signature. Unless the CO requests a wet signature, an electronic signature may be provided. Assume responsibility for the validity of electronic signatures. The Government will assume that the authorized individual's electronic signature is authentic.

Provide electronic signatures in the following formats:

(1) A digital signature from an encryption application;

(2) A digitized image of a paper signature; or

(3) A unique form or individual identification that can be used as a means of authenticating a record, record entry, or document.

(c) Wet signature. After signing a document by wet signature, scan the complete document into an electronic format.

104.06 Specifications and Drawings. Follow the requirements of FAR Clause 52.236-21 Specifications and Drawings for Construction.

(a) General. Submittals include both documents and drawings required to construct the work. Review submittals for accuracy, completeness, and compliance with the contract. Submittals that do not include evidence of Contractor review and verification may be returned for resubmission.

Time for approval starts over when submittals are returned for revision or when additional information is requested. Perform work related to submitted documents or drawings only after they are approved. Obtain written approval before changing or deviating from the approved submittals.

Submit documents and drawings according to Subsection 104.04.

(1) Drawings. Drawings include:

(a) Layouts that show the relative position (vertical and horizontal as appropriate) of work to be performed;

(b) Fabrication details for manufactured items and assemblies;

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

- (c) Installation procedures;
- (d) Details of systems;
- (e) Traffic control implementation drawings;
- (f) Methods for performing work near existing structures or other areas to be protected; and
- (g) Calculations that support each drawing.

Show drawing dimensions in the same units as shown in the plans. Limit drawings to a maximum size of 24 by 36 inches. Include the project number, name, and other identification as shown in the contract on each drawing and calculation sheet.

Drawings will be reviewed in the order they are received. Allow 30 days for approval of drawings. Submit additional drawings for unique situations to clarify layout, construction details, or method if requested.

(2) Documents other than drawings. Documents other than drawings include descriptive literature, illustrations, schedules, performance and test data, certifications, and similar material submitted to certify or explain specific portions of the work required by the contract. Allow 14 days for approval unless otherwise specified.

(b) As-built drawings. Maintain a separate set of plans exclusively for as-built drawings. Use the color "red" to identify changes. Use approved methods to record changes accurately and neatly. Include details and notes on additional information discovered during construction. Note additions or revisions to the location, character, and dimensions of work. Strikeout details shown that are not applicable to the completed work.

Retain as-built drawings at the project site or an alternate location as approved.

Keep as-built drawings current and maintain a revision log of changes made. Check and initial plan sheets that were incorporated in the completed work without change. Meet with the CO to jointly review as-built drawings and log for accuracy, completeness, and legibility before submission of each monthly invoice. The CO may retain a portion of the progress payment if as-built drawings are not current.

Submit as-built drawings and revision logs before the final inspection. Correct errors and omissions found during the final inspection and resubmit as-built drawings for approval within 7 days after the final inspection.

When as-built drawings are approved, submit the final as-built drawings according to Subsection 104.04.

Include the following in the final as-built drawings:

- (1) Title sheet.**

- (a) "AS-BUILT DRAWINGS" (bold text);
- (b) Name of Contractor;
- (c) Project completion date;
- (d) Revisions to project length;
- (e) Revisions to begin and end stations of project;
- (f) Revisions to index to sheets;
- (g) Plan notes; and
- (h) A note stating, "Work was constructed as designed unless otherwise noted."

(2) Summary of quantities and tabulation sheets.

- (a) Revisions to quantities, locations, notes, remarks, including totals;
- (b) Strikeout unused pay items; and
- (c) Revisions to application rates.

(3) Planting sheets. Note additions or revisions to the location, character, and dimensions of the following items:

- (a) Fencing layout and gate locations;
- (b) Planting boundary and acreage;
- (c) Plant species and quantities; and
- (d) Construction limits.

(4) Grading sheets. Note additions or revisions to the location, character, and dimensions of the following items:

- (a) Grading limits; and
- (b) Pothole locations.

(5) Standard and detail sheets. Note the additions or revisions to the character and dimensions of details.

104.07 Coordination of Contract Documents. The FAR, TAR, Specifications, and Plans are contract documents. A requirement in one document is binding as though occurring in all the contract documents. The contract documents are intended to be complementary and to describe and provide for a complete contract. In case of discrepancy, calculated and shown dimensions govern over scaled dimensions. The

contract documents govern in the following order:

- (a) FAR;
- (b) TAR;
- (c) Specifications; and
- (d) Plans.

104.08 Load Restrictions. Follow the requirements of FAR Clause 52.236-10 Operations and Storage Areas.

Comply with legal load restrictions while hauling material and equipment on public roads and bridges to and from the project. Regardless of the legal or posted load limit, control loads to prevent damage to existing and new infrastructure within the project limits.

Obtain necessary oversize or overweight vehicle permits and escorts for moving oversized or overweight loads. Provide a copy of the permits and associated loading calculations for roads and bridges within the project limits. A special permit does not relieve the Contractor of liability for damage resulting from moving or using material or equipment to or within the job site.

Unless otherwise permitted, do not operate equipment or vehicles that exceed the legal load limits over new or existing structures, or pavements within the project. Ensure loads do not damage subgrade or utilities.

Replace or restore infrastructure damaged during operations to original condition.

104.09 Not Used.

104.10 Inspection at the Nursery. Work may be inspected at the point of propagation and growing for plant material. Nursery plants may be inspected for compliance with the project's specified growing methods and California's License to Sell Nursery Stock requirements per California Food and Agricultural Code § 6721. Material samples may be obtained for laboratory testing for compliance with genetic quality requirements. Allow entry during normal operating hours to the parts of the nursery producing the work.

104.11 Other Contracts. Follow the requirements of FAR Clause 52.236-8 Other Contracts.

Section 105. — CONTROL OF MATERIAL

105.01 Source of Supply and Quality Requirements. Follow the requirements of FAR Clause 52.236-5 Material and Workmanship. Select sources and submit acceptable material. Notify the CO of proposed sources before delivery to the project to expedite material inspection and testing. Do not incorporate material requiring submittal into the work until approved.

Material may be approved at the source of supply before delivery to the project. Provide source quality test results dated within 12 months from NTP. Approval of a material source does not constitute acceptance of material submitted from the source. If an approved source fails to supply acceptable material during the life of the project, further use of that source may be denied.

Submit samples of material for source quality verification testing for material if requested.

Certify, according to Subsection 107.10(d), that sources of rock, sand, gravel, earth, subsoil, or other natural material imported into the project construction limits are noxious weed free.

105.02 Material Sources.

(a) Government-listed sources. The Government may list possible material sources. The Government makes no representation as to the quality or quantity of materials, or rights to the availability of material from these sources. These sources are considered to be Contractor-located sources under (b) below.

The Government has acquired the rights to remove plant seeds and plant cutting material from the Bureau of Land Management (Cotoni-Coast Dairies National Monument) and California State Parks (Wilder Ranch) property identified in the contract. Do not perform work within a source until a source development plan is approved per Section 626.03. Comply with the right of entry agreement acquired by the Government for California State Parks property (see Appendix).

(b) Contractor-located sources. The Contractor is responsible for Contractor-located material sources, including established commercial material sources. Use sources that fulfill the contract quantity and quality requirements. Determine the quantity, type of equipment, and work necessary to select and produce an acceptable material. Secure permits and clearances for use of the source and submit copies of the documents to the CO. Follow the environmental requirements of Subsection 107.10(d). Submit available historical data indicating acceptable material can be produced from the source.

105.03 Material Source Management. Notify the CO at least 14 days before starting operations in the source. Develop and operate according to the approved source development plan for Government-listed sources or written agreement for Contractor-located sources.

Dispose of rejected material in an approved manner.

105.04 Handling and Storing Material. Handle and store material to preserve its quality and fitness for the work. Stored material approved before storage may again be inspected before use in the work. Locate stored material to facilitate prompt inspection.

Use only approved portions of the construction limits for storing material or equipment. Provide additional

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

space as needed. Do not use private property for storage without written permission of the owner or lessee. Submit copies of agreements and documents.

For Contractor-located, non-commercial staging, storing, and material handling areas, secure environmental clearances according to Subsection 107.10.

Provide security for stored material.

Restore Government-furnished storage sites to their original condition.

Use products according to the manufacturer's recommendations for handling, storage, and disposal. Follow the requirements of FAR Clause 52.236-10 Operations and Storage Areas and FAR Clause 52.236-12 Cleaning Up. Maintain the staging and storage areas in a clean, neat, and orderly condition.

Store construction, building and waste materials, and containers in designated areas indoors or protect with a suitable covering.

Keep the manufacturer's SDS, an inventory of the material, and emergency numbers near the storage area. Take appropriate measures to ensure that incompatible chemicals are not stored next to each other.

Store construction materials within the limits shown in the plans. Properly store materials according to the applicable permit. Check the storage areas weekly and according to the applicable permit.

Submit a site map showing the material storage and stockpile locations at least 14 days before the start of construction activities.

105.05 Not used.

105.06 Material Source Restoration. Restore ground disturbances caused by access to Government-furnished sources for willow stake harvesting. Do not measure restoration of ground disturbances for payment.

Section 106. — ACCEPTANCE OF WORK

106.01 Conformity with Contract Requirements. Follow the requirements of FAR Clause 52.212-4 Contract Terms and Conditions - Commercial Products and Commercial Services (b) Inspection/Acceptance.

References to standard documents and test methods of AASHTO, ASTM, GSA, and other recognized standard authorities refer to the documents and methods in effect on the date of the Invitation for Bids (IFB) or Request for Proposal (RFP).

Use the FLH Testing Forms for reporting materials test results unless otherwise approved. Use the FLH Test Methods in effect on the date of the IFB or RFP for testing materials, when applicable.

Use ASTM E29, Absolute Method, for test results and related calculations.

Perform work to the lines, grades, cross-sections, dimensions, and processes or material requirements shown in the contract.

Incorporate manufactured material into the work according to the manufacturer's recommendations or to these specifications, whichever is stricter.

If standard manufactured items are specified (such as fence, wire, plates, rolled shapes, and pipe conduits that are identified by gauge, density, or section dimensions) the tolerances for masses or dimensions will be established manufacturing tolerances unless otherwise noted.

Plan dimensions and contract specification values are the values to be strived for and complied with as the design values from which deviations are allowed. Perform work and provide material that is uniform in character and reasonably close to the prescribed value or within the specified tolerance range. The purpose of a tolerance range is to accommodate occasional minor variations from the median zone that are unavoidable for practical reasons.

The Government may inspect, sample, or test any work, at any time before acceptance of the entire work. If the Government tests work, copies of test reports will be provided to the Contractor upon request. Government tests may or may not be performed at the work site.

Work will be evaluated for conformance to contract requirements and will be designated as follows:

(a) Conforming work. Acceptable work conforming to the Contract will be paid for at the contract price per unit of measurement. Four methods of determining conformity and accepting work are described in Subsections 106.02 through 106.05. The primary method of acceptance is specified in the Acceptance Subsection of each Section, but work may be rejected if it is found not to comply with the contract.

(b) Nonconforming work. Remove, repair, or replace work at no additional cost to the Government that does not conform to the contract or to prevailing industry standards where no specific contract requirements are noted. Provide temporary traffic control and perform other related work to correct nonconformities at no additional cost to the Government.

As an alternative to removal and replacement, the Contractor may submit a written request for approval that includes the following:

(1) Alternatives.

- (a) Have the work accepted at a reduced price; or
- (b) Perform corrective measures to bring the work into conformity.

(2) Supporting rationale and documentation. Include references or data justifying the proposal based on an evaluation of test results, effect on service life, value of material or work, quality, aesthetics, and other tangible engineering basis.

The CO will determine disposition of the nonconforming work.

If the accuracy of Government test results is disputed, inform the CO. If the dispute is unresolved after reasonable steps are taken to resolve the dispute, further evaluation may be obtained by written request.

Where sample and testing procedures refer to AASHTO, ASTM, or other standards (designated as FLH T), use the procedure as modified in the FLH *Field Materials Manual*.

106.02 Visual Inspection. Acceptance is based on visual inspection of the work for compliance with the contract. Use prevailing industry standards in the absence of specific contract requirements or tolerances.

Material accepted by visual inspection may be sampled and tested for conformance.

106.03 Certification. For material manufactured off site, use a manufacturer with an ISO 9000 certification or an approved testing and inspection system. Require the manufacturer to clearly mark the material or packaging with a unique product identification or specification standard to which it is produced.

Other than references in or to the FAR or Federal Law, when the Standard Specifications or Special Contract Requirements reference certifications, certificates, certified documents, equipment, or individuals; the references refer to documentation of non-regulatory, peripheral contract requirements that are required to be validated by an individual or organization having unique knowledge or qualifications to perform such validation.

See Table 106-1 for schedule for full or partial acceptance by material certification. Submit certification and sample of material for testing as required.

Check certifications before incorporating the material into the work to ensure that the requirements of the contract have been met. Mark the certifications with the following information: project number and name; pay item number and description; date; and Contractor-signed certification stating “to the best of our knowledge the materials certified by the attached certification represent the materials incorporated into the work of this contract”.

Material accepted by certification may be sampled and tested for conformance.

Provide a commercial certification unless a production certification is identified in the Acceptance

Subsection.

(a) Commercial certification. A commercial certification is a manufacturer's or Contractor's representation that the material complies with the contract. The representation may be labels, catalog data, stamped specification standards, or supplier's certifications indicating the material is produced to a commercial standard or specification.

Submit one commercial certification for similar material from the same manufacturer.

(b) Production certification. A production certification is a supplier's certification that the material has been produced to a specific standard and is accompanied by test data performed within the past 12 months and other information as described below to support that the material complies with the contract.

Submit a production certification from the manufacturer for each shipment of material. Include the following:

(1) Date and place of manufacture;

(2) Lot number or other means of cross-referencing to the manufacturer's inspection and testing system; and

(3) Substantiating evidence that the material conforms to the contract as required by FAR 46.105(a)(4), including the following:

(a) Test results on material from the same lot and documentation of the inspection and testing system;

(b) A statement from the manufacturer that the material complies with the contract; and

(c) Manufacturer's signature or other means of demonstrating accountability for the certification.

Table 106-1
Schedule For Full or Partial Acceptance by Materials Certification

Section	Description	Material	Material Property Or Specification	Certification Frequency	Sample Frequency
707	Metal Pipe	As specified	As applicable	1 per shipment	–
710	Fencing and Mesh Fabrics	As specified	As applicable	1 per shipment	–
713	Roadside Improvement Material	As specified	As applicable	1 per shipment	–
725	Miscellaneous Material	As specified	As applicable	1 per shipment per material type	–

106.04 Measured or Tested Conformance. Perform necessary measurements and tests to ensure work complies with the contract.

Use prevailing industry standards in the absence of contract requirements or tolerances.

Submit measurements, tests, and supporting data for acceptance.

If Government testing is performed on work, the results may be used for acceptance purposes.

106.05 Not used.

106.06 Partial and Final Acceptance. Maintain the work during construction and until the project is accepted. Repair damage before final acceptance of the entire project at no additional cost to the Government. See FAR Clause 52.236-11 Use and Possession Prior to Completion.

(a) Partial acceptance. When a segment of the project is completed, a final inspection of that segment may be requested by the Contractor. If the segment is complete and in compliance with the contract, it may be accepted. If accepted, the CO may relieve the Contractor of further responsibility for maintenance of the completed segment.

When public traffic is accommodated through construction and starts using sections of roadway as they are completed, continue maintenance of such sections until final acceptance.

(b) Final acceptance. Notify the CO when the entire project is complete to schedule an inspection. If work is determined to be complete, the inspection will constitute the final inspection. The Contractor will be notified in writing of final acceptance as of the date of the final inspection. Final acceptance relieves the Contractor of further responsibility for the maintenance of the project.

If the inspection discloses unsatisfactory work, the CO will provide to the Contractor a list of the work that is incomplete or requires correction. Immediately complete or correct the work. Submit notification when the work has been completed.

Section 107. — LEGAL RELATIONS AND RESPONSIBILITY TO THE PUBLIC

107.01 Laws to be Observed. Follow the requirements of FAR Clause 52.236-7 Permits and Responsibilities.

Comply with applicable laws, ordinances, safety codes, regulations, orders, and decrees. Protect and indemnify the Government and its representatives against claim or liability arising from or based on the alleged violation of the same.

Comply with permits and agreements obtained by the Government for performing the work that is included in the contract. Notify CO of proposed changes, including required revisions to Government-obtained permits that are required by the Contractor's methods of operation. Obtain additional permits or agreements that are required by the Contractor's methods of operation. Submit copies of approved permits and finalized agreements upon receipt.

(a) National Pollutant Discharge Elimination System (NPDES). Comply with the requirements of the applicable Construction General Permit (CGP) as shown in Table 107-1. The applicable CGP is California.

Prepare a Stormwater Pollution Prevention Plan (SWPPP) according to Section 157. If the current CGP expires during the contract, amend the SWPPP when a new permit goes into effect to meet new permit conditions.

Obtain a separate NPDES permit associated with industrial activity for mobile asphalt and concrete plants that provide material for the project. Provide a copy of the permit and acknowledgement letter to the CO.

(1) Notice of Intent (NOI). After the SWPPP is approved, file the NOI according to the applicable CGP as shown in Table 107-1. Allow the regulatory review period, shown in Table 107-1, from submittal of NOI to receipt of authorization of coverage under the CGP. Provide a copy of the NOI and confirmation letter to the CO.

Post all project authorization numbers near the entrance to the site and on the bulletin board.

(2) Payment of permit fees. Submit the appropriate permit fees and renewal fees required for both the Contractor and Government to the regulatory agency.

(3) Notice of Termination (NOT). If applicable, file a NOT when the conditions listed in the CGP have been met or transfer the NOI to the maintaining agency after final acceptance.

Table 107-1
NPDES Permits

State / Agency	Permit Number and Link	Effective Date	Expiration Date	Regulatory Review Period
California ⁽¹⁾	2022-0057-DWQ	9/1/2023	8/31/2028	7 days

(1) Upload the SWPPP to the California Water Boards Stormwater Multiple Application and Report Tracking System (SMARTS) and complete the NOI application previously started by the Government. Notify the CO once the NOI application is complete. Do not certify the NOI.

107.02 Protection and Restoration of Property and Landscape. Follow the requirements of FAR Clause 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.

Do not disturb the area beyond the construction limits.

(a) Property. Preserve public and private property. Protect monuments established for perpetuating horizontal, vertical, cadastral, or boundary control. If necessary to destroy a monument, reestablish the monument according to applicable state statute or by the direction of the agency or individual who established the monument.

(b) Vegetation. Replace trees, shrubs, or vegetated areas damaged by construction operations as directed and at no additional cost to the Government. Remove damaged limbs of existing trees by an approved arborist.

(c) Archeological. Do not excavate, remove, damage, alter, or deface archeological or paleontological remains or specimens. Control the actions of employees and subcontractors on the project to ensure that protected sites are not disturbed or damaged. Should these items be encountered, suspend operations at the discovery site, notify the CO immediately and continue operations in other areas. The CO will inform the Contractor when operations may resume at the discovery site.

If human remains are encountered during construction, immediately suspend operations in the area and notify the CO. The CO will notify the proper authorities and agencies. If a stop work order is given for the discovery of remains, The CO will notify the Contractor when operations at the location(s) of discovery may resume.

(d) Utilities. Before starting work in an area, contact the local utility locating service to mark the utilities. Protect utilities from construction operations.

If utility services are interrupted because of damage by the construction, immediately notify the utility owner, the CO, and other proper authorities. Cooperate with them until service is restored. Repair any damage to utilities, including those that are the property of a third party.

Satisfactorily repair damage due to the fault or negligence of the Contractor at no additional cost to the Government. If the Contractor fails or refuses to repair the damage promptly, the CO may have the necessary work performed and charge the cost to the Contractor.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

The locations of the utilities shown in the plans have been certified to a Quality Level C according to the CFLHD Utility Data Quality Certification requirements available at <https://highways.dot.gov/federal-lands/rw-util/cfl>.

Table 107-1
Status of Utilities

	Utility Type	Company	Contact Name	Phone Number / Email	Status ⁽¹⁾
1	Gas & Electric	PG&E (Electric Dept.) [Gas Dept.]	Mike Jarvis (Melissa Clark) [Andrew Marchesano]	831-479-3187 MCCR@pge.com Andrew.Marchesano@pge.com	4
2	Water	City of Santa Cruz	Main Phone Neal Christen Jason Segal	831-420-5200 NChristen@santacruzca.gov jsegal@santacruzca.gov	4
3	Phone	AT&T	Terry Hamlin	831-728-3641	4
4	Sanitary Sewer	County of Santa Cruz Dept. of Public Works	Ashleigh Trujillo Bryan Wardlow	831-454-2786 Bryan.Wardlow@santacruzcountyca.gov	4
5	Farm Irrigation	Rodoni Farms	Danny Rodoni	831-246-0688	4

(1) Status is defined as follows:

- Status 1: The utilities are in conflict with the project and require relocation by others during construction.
- Status 2: The utilities are in conflict with the project and require relocation by the Contractor during construction.
- Status 3: The utilities are in conflict with the project and require relocation by others before construction.
- Status 4: The utilities are located within the project right-of-way but require no relocation.

107.03 Bulletin Board. Provide a weatherproof bulletin board of suitable size and construction for continuous display of posters and other information required by the contract. Erect and maintain the bulletin board at a conspicuously accessible location on the project and remove and dispose of it after project final acceptance.

Display the following documents on the bulletin board:

- (a) Equal Employment Opportunity Commission (EEOC), *Know Your Rights: Workplace Discrimination is Illegal* poster according to FAR Clause 52.222-26 Equal Opportunity;
- (b) Form FHWA 1022, *Notice* that the project is subject to Title 18, U.S.C., Section 1020 poster;
- (c) Department of Labor, Wage and Hour Division (WHD), WHD 1321, *Employee Rights Under The Davis-Bacon Act* poster (regarding proper pay);
- (d) Department of Labor, OSHA, *Job Safety and Health It's The Law* poster, according to CFR Title 29, Part 1903;
- (e) "General Wage Decision" contained in the contract;
- (f) Company equal employment opportunity policy, according to FAR Clause 52.222-27 Affirmative Action Compliance Requirements for Construction;

(g) OSHA, Emergency telephone numbers (in areas where 911 is not available), according to CFR Title 29, Part 1926.50(f);

(h) Department of Labor, WHD Publication, *Employee Rights and Responsibilities Under the Family and Medical Leave Act* poster according to CFR Title 29, Part 825.300(a);

(i) WHD 1462, Employee Polygraph Protection Act poster; and

(j) National Labor Relations Act (NLRA), *Employee Rights Under The National Labor Relations Act* poster according to Executive Order 13496.

107.04 Railroad Protection. Do not cross railroad tracks, with vehicles or equipment, except at existing and open public grade crossings.

Obtain a Right of Entry Permit, including payment of permit fee(s), from the Santa Cruz County Regional Transportation Commission (SCCRTC) and from Progressive Rail prior to mobilization at the Palustrine Emergent Wetland site. Comply with the terms of the permits for crossing the railroad tracks to access the site. Provide a copy of permits to the CO. Allow for 60 days review after a complete application is accepted by SCCRTC and Progressive Rail.

For permits issued by the SCCRTC, use the website portal below:

<https://scc.railprosspermitting.com/Login>

For permits issued by Progressive Rail, use the website portal below:

<https://www.progressiverail.com>

107.05 Responsibility for Damage Claims. Indemnify and hold harmless the Government, its employees, and its consultants from suits, actions, or claims brought for injuries or damage received or sustained by a person, persons, or property resulting from the construction operations or arising out of the negligent performance of the contract.

Procure and maintain until final acceptance of the contract, liability insurance of the types and limits specified below. Obtain insurance from companies authorized to do business in the appropriate state. Ensure the insurance covers operations under the contract whether performed by the Contractor or by subcontractors.

Before work starts, submit “*certificates of insurance*” certifying that the policies will not be changed or canceled until 30 days’ written notice has been given to the Government. Insurance coverage in the minimum amounts set forth below does not relieve the Contractor of liability in excess of the coverage.

Carry insurance conforming to the following minimums:

(a) **Worker’s compensation insurance.** Minimum required by law.

(b) **Comprehensive or commercial general liability insurance.**

(1) Personal injury and property damage coverage;

- (2) Contractual liability coverage;
- (3) Completed operations liability coverage;
- (4) \$2,000,000 combined single limit for each occurrence; and
- (5) \$4,000,000 general aggregate limit.

(c) Automobile liability insurance. \$1,000,000 combined single limit for each occurrence.

107.06 Contractor's Responsibility for Work. Assume responsibility for all work until final acceptance, except as provided in Subsection 106.06. This includes periods of suspended work. Protect the work against injury, loss, or damage from all causes whether arising from the execution or non-execution of the work. Maintain public traffic according to Section 156.

Rebuild, repair, restore, and make good losses, injuries, or damages to any portion of the work. This includes losses, injuries, or damages caused by vandalism, theft, accommodation of public traffic, and weather that occurs during the contract.

The Government will only be responsible for costs attributable to repairing or replacing damaged work caused by declared enemies and terrorists of the Government and cataclysmic natural phenomenon. The Government will not be responsible for delay costs, impact costs, or extended overhead costs.

107.07 Furnishing Right-of-Way. The Government will obtain right-of-way.

107.08 Sanitation, Health, and Safety. Follow the requirements of FAR Clause 52.236-13 Accident Prevention, Alternate 1. Submit an accident prevention plan.

Observe rules and regulations of Federal, state, and local health officials. Do not allow workers to work in surroundings or under conditions that are unsanitary, hazardous, or dangerous.

Admit OSHA inspectors or other legally responsible officials involved in safety and health administration to the project work site upon presentation of proper credentials.

Report accidents on forms furnished by the Government or with prior approval, on forms used to report accidents to other agencies or insurance carriers. Maintain an OSHA Form 300, *Log of Work-Related Injuries and Illnesses* and make it available for inspection.

Install a reverse signal alarm audible above the surrounding noise level on motorized vehicles having an obstructed view and on earth-moving and compaction equipment.

Institute a litter control program during construction to eliminate the accumulation of trash. Collect all trash so that wildlife is not attracted to the area. Dispose of the collected trash at least mid-week and at the end of the work week.

107.09 Legal Relationship of the Parties. In the performance of the contract, the Contractor is an independent contractor. The Contractor's independent contractor status does not limit the Government's general rights under the contract. No Government employee or a business organization owned or

substantially owned or controlled by one or more Government employees may be a contractor.

107.10 Environmental Protection. Comply with the following:

(a) Federal Water Pollution Control Act (Clean Water Act) 33 USC § 1251 et seq.

(1) Do not operate equipment or discharge material within the boundaries of wetlands and the waters of the United States as defined by the Federal and state regulatory agencies. Permits are issued by the U.S. Army Corps of Engineers according to 33 USC § 1344 and delegated by the agency having jurisdiction. If an unauthorized discharge occurs:

- (a) Prevent further contamination;
- (b) Notify appropriate authorities and the CO; and
- (c) Mitigate damages.

(2) Construct and maintain barriers in work areas and in material sources to prevent sediment, petroleum products, chemicals, and other liquids and solids from entering wetlands or waters of the United States. Remove and properly dispose of barrier collected material.

(3) Do not revise terms or conditions of permits without the approval of the issuing agency.

(4) Do not ford running streams with construction equipment. Obtain approval from the CO to use temporary bridges or other structures whenever crossings are necessary.

(5) Locate machinery servicing and refueling areas away from streambanks, wetlands, shorelines, lakes, and reservoirs to reduce the possibility and minimize the impacts of accidental spills or discharges.

(b) Oil and hazardous substances. Submit a hazardous spill plan as required by Federal, state, or local regulations at least 2 days before starting work. Where a hazardous spill plan is not required submit a "*Spill Prevention, Control, and Countermeasure (SPCC) Plan*".

Describe preventative measures including the location of refueling and storage facilities and the handling of hazardous material. Describe actions to be taken in case of a spill. Identify personnel, equipment, and resources available to address spill prevention and response.

Conduct environmental training program to communicate the risk for accidental spills, environmental concerns and appropriate work practices, including spill prevention and response measures to all field personnel prior to construction.

Do not use equipment with leaking fluids. Repair equipment leaks immediately. Keep absorbent material manufactured for containment and cleanup of hazardous material on the job site. Sand and soils are not approved absorbent materials.

Notify the CO of hazardous spills. Report the spill to the appropriate federal, state, and local authorities as required by the SPCC plan or hazardous spill plan.

Create and maintain a vehicle and equipment maintenance log for the project. Update the log monthly and provide copies to the CO.

(c) Dirt, plant, and foreign material. Remove dirt, plant, and foreign material from vehicles and equipment before mobilizing to work site. Prevent introduction of noxious weeds and non-native plant species into the work site. Follow applicable Federal land management agency and state rules and regulations. Maintain cleaning and inspection records.

All vehicles and equipment entering the project area must be clean of noxious weeds and free from oil leaks and are subject to inspection. Thoroughly wash construction equipment, including the undercarriage and any surface where soil containing exotic seeds may exist. Allow the CO to inspect each piece of equipment before entering the project. Provide the cleaning and inspection records to the CO.

(d) Clearances for Contractor-selected, noncommercial areas. Contractor-selected, noncommercial areas include material sources, disposal sites, waste areas, water sources, haul roads, and staging areas located outside project construction limits and permitted commercial areas. Allowed commercial areas include enterprises or developed areas providing same type material or use over the last 2 years with appropriate permits and agreements. Use rock, sand, gravel, earth, subsoil, or other natural materials from a Contractor-selected non-commercial materials source that has been certified free of noxious weeds. Materials imported into the project limits which do not include a noxious weed free certification may be rejected and ordered to be removed from the project limits. The CO has the discretion of requesting inspection of certified materials by a third party and rejecting the use of the source if noxious weeds or seeds thereof are found to be present.

Before using a Contractor-selected, noncommercial areas, submit the following for approval:

(1) Description, schedule, and map of area.

(2) Documentation of compliance with applicable laws, rules, and regulations.

(3) Owner approval for the area use. If use of Federal land is proposed, submit an approval letter or special use permit from the applicable Federal land management agency.

(4) Legal compliance for the area use. Submit documentation showing compliance with applicable tribal, state, and local laws including permits or other approvals issued for the area use.

(5) Any required certifications.

(e) Project-specific commitments.

(1) At the beginning of each workday or prior to using construction equipment, check for the presence of wildlife in compliance with Section 107.12 Environmental Training. If wildlife found is a listed or special status species, contact the biological monitors for assistance for each encounter. Do not move or have any contact with the encountered wildlife.

(2) Plastic safety fencing is not permitted for wildlife exclusion.

(3) Monofilament erosion control matting is not permitted for temporary or permanent installation.

(4) Equip all construction equipment with properly fitting mufflers and engine shrouds in accordance with the manufacturer's specifications. Where feasible, use electrical power to run air compressors and similar tools. Comply with California State law for idling requirements.

(5) Position stationary equipment such as motors, pumps, generators and compressors over drip pans. Position equipment parked overnight or for considerable time over drip pans or absorbent materials.

(6) Groundwater is not permitted for use in dust control.

107.11 Protection of Forests, Parks, and Public Lands. Comply with the rules and regulations of the state fire marshal, conservation commission, Federal land management agency, or other authority having jurisdiction governing the protection of land including or adjacent to the project.

Do not burn. Comply with the fire prevention plan included in the Appendix. The CO will order the emergency suspension of operations when conditions are unsafe as determined by the CO and the land management agency.

107.12 Environmental Training. Provide environmental training to employees and subcontractors working on the project. Provide training to staff prior to beginning construction related activities. A Worker Environmental Awareness Training pamphlet for archeological, cultural, and wildlife resources is provided in the Appendix. Provide the name(s) of monitors or qualified individuals conducting the training. Maintain a log of employees that have received the training and the date received. Provide a copy of the log to the CO. Provide an updated log as new staff receive the training.

107.13 Wildlife surveys, monitoring and protection

This subsection describes the requirements for surveying and monitoring during construction for various species located within the project limits. Refer to Section 623 for qualification requirements for biological monitors. The biological monitor(s) is required to lead this section of Environmental Training for on-site project staff.

California Red-legged Frog and San Francisco Garter Snake. Prior to the commencement of ground disturbing activities, prepare a construction monitoring plan for California Red-legged Frog and San Francisco Garter Snake. Develop the monitoring plan to be consistent with the USFWS protocols, including type of exclusion fencing. Include locations to be protected with exclusion fencing, locations requiring monitoring and method(s) of monitoring. Submit the plan to the CO for review. Allow 30 days for review.

Prior to ground disturbing activities, conduct surveys by a qualified biologist, in accordance with 623.03, for the California Red-legged Frog and San Francisco Garter Snake within suitable habitats and install exclusion fencing at the locations identified in the monitoring plan. Do not measure exclusion fencing for payment.

The biologist performs monitoring during all ground disturbing activities within suitable habitat for California Red-legged Frogs at locations defined in the approved monitoring plan. Immediately dispose of removed vegetation. If vegetation must be stockpiled and hauled offsite at

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

a later date, loading of vegetation into haul vehicle must be done under the supervision of a biological monitor.

Prior to the initiation of work activities each day, construction personnel will check under vehicles and equipment for California Red-legged Frogs.

If invasive aquatic species such as bullfrogs and crayfish are encountered, the biological monitor(s) will remove the aquatic species from the construction limits of the project in accordance with the approved monitoring plan.

The CO may issue a stop work order if notified by the Biological Monitor(s) that current work activities may result in an impact to special status species.

Migratory Birds. If grading operations at the Palustrine Emergent Wetland site occur between September 16 – January 31, a survey for migratory birds is not required. If grading operations at the Palustrine Emergent Wetland site occurs between February 1 – September 15, a migratory bird survey performed by a qualified biologist is required. Conduct surveys within 7 days of proposed construction activities.

If the biologist identifies breeding birds utilizing the proposed Palustrine Emergent Wetland site, soil disposal area, or surrounding area, the biologist, in coordination with the CO, will establish buffers appropriate to the observed nesting species. Conduct no work in buffer zones established by the biologist during nesting activities.

Section 108. — PROSECUTION AND PROGRESS

108.01 Commencement, Prosecution, and Completion of Work

A preconstruction conference will be held after the contract is awarded and before starting work. Seven days before the preconstruction conference, submit copies of the preliminary work plan according to Section 155.

Limit operations as follows:

- (a)** Perform environmental surveys as required by Section 107.
- (b)** Refer to Section 107 for various project permit requirements.
- (c)** See Section 105 for plant material sources, contractor staging areas, and restrictions.
- (d)** Refer to Section 156 for maintaining adjacent public access.
- (e)** Limit hours of operation to be between 8:00am – 7:00pm Monday – Friday and from 9:00am – 4:00pm Saturday – Sunday.

Perform no work except to maintain traffic control devices, erosion control devices, the roadway driving surface, and to control dust during the listed holidays and surrounding days as shown in Table 108-1.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Table 108-1
Holidays and Surrounding Days

Holiday	Time	Remarks
Birthday of Martin Luther King, Jr.	Noon Friday to 6:00 a.m. Tuesday	—
Washington's Birthday	Noon Friday to 6:00 a.m. Tuesday	—
Memorial Day	Noon Friday to 6:00 a.m. Tuesday	—
Juneteenth National Independence Day	Noon June 18 to 6:00 a.m. June 20	If June 19 falls on a Saturday, do not work the preceding Friday. If June 19 falls on a Sunday, do not work the following Monday.
Independence Day	Noon July 3 to 6:00 a.m. July 5	If July 4 falls on a weekend, Friday, or Monday, do not work the weekend. If July 4 falls on a Saturday, do not work the preceding Friday. If July 4 falls on a Sunday, do not work the following Monday.
Labor Day	Noon Friday to 6:00 a.m. Tuesday	—
Columbus Day	Noon Friday to 6:00 a.m. Tuesday	—
Veterans Day	Noon November 10 to 6:00 a.m. November 12	If November 11 falls on a Saturday, do not work the preceding Friday. If November 11 falls on a Sunday, do not work the following Monday.
Thanksgiving Day	Noon Wednesday to 6:00 a.m. Monday	—
Christmas Day / New Year's Day	Noon December 23 to 6:00 a.m. January 2	If December 23 or January 1 falls on a Monday, do not work the adjacent weekend and do not work on December 23. If January 1 falls on a Friday, do not work the weekend.

Schedule at least 2 non-workdays out of every 14 days. The selected non-workdays do not need to be consecutive, but they must be scheduled. Notify the CO at least 2 weeks before changing the scheduled days off.

The CO may grant written approval for exemptions to scheduled days off for specific project operations and for periods of limited duration.

The CO will issue the NTP before commencement of any work. The completion date is May 1, 2031 to include 5-years of monitoring and maintenance to meet plant survival requirements. See Section 108.05 for interim completion dates.

108.02 Labor. Follow the requirements of FAR Clause 52.222-6 Construction Wage Rate Requirements and 52.222-41 Service Contract Labor Standards.

Adjacent or virtually adjacent work sites are defined to be work sites within ½ mile of the project. Application of Construction Wage Rate Requirements (Davis-Bacon Act) for work sites beyond ½ mile of the project will be determined by the CO.

108.03 Subcontracting. Subcontracting does not relieve the Contractor of liability and responsibility under the contract and does not create any contractual relation between subcontractors and the Government. The Contractor is liable and responsible for actions or lack of action of subcontractors.

Within 14 days of subcontract award, submit a completed SF 1413 and 1413S. Complete Part I for each Subcontractor, and include Part II when the Subcontractor performs on-site work. Complete other forms that may be required by the Government to show the work subcontracted and the total dollar amount of the subcontract. Submit the above required information for each Subcontractor at lower tiers.

In FAR Clause 52.219-8, Utilization of Small Business Concerns and FAR Clause 52.232-27 Prompt Payment for Construction Contracts, the term "*subcontracts*" includes on-site and off-site work and supply contracts.

108.04 Determination and Extension of Contract Time. Follow the requirements of FAR Clause 52.211-13 Time Extensions.

(a) Definitions.

(1) Time impact analysis. The procedure by which the Contractor demonstrates the effect of specific time impacts on the overall construction schedule. Time impacts may result in an increase or decrease in contract time.

(2) Float. The amount of time between when an activity "*can start*" (the early start) and when an activity "*must start*" (the late start).

(b) Time impact analysis. Comply with the applicable contract clauses when requesting a time extension. Notify the CO in writing within 7 days after identifying a time impact.

Submit a time impact analysis and revised construction schedule within 14 days after the end of the time impact event for which notice has been given. Include the following:

(1) A title page or header block with:

(a) Contract number;

(b) Project number and name;

(c) Contractor name;

- (d) Current fixed completion date;
 - (e) Date of submittal; and
 - (f) Consecutive number for each analysis.
- (2) State the impact that requires a time impact analysis:
 - (a) CO proposed or directed contract modification;
 - (b) Contractor proposed contract modification;
 - (c) Weather delay; or
 - (d) Other Government caused delay.
- (3) A copy of the most current approved construction schedule existing before the impact.
- (4) A detailed narrative describing each impact event. Describe impacts to each affected activity in the construction schedule. Include the following:
 - (a) Contract clauses under which the request is being made;
 - (b) Cause of the impact;
 - (c) Start date of the impact;
 - (d) Duration of the impact; and
 - (e) Methods to be employed to re-sequence or reschedule the work to mitigate the impact. Discuss the feasibility of re-sequencing future work to mitigate delay. Re-sequencing or rescheduling of work will be at no additional cost to the Government. Include corresponding rationale and assumptions of measures which increase the cost of mitigating the impact.
- (5) A revised construction schedule to show the impact of the activities identified, including re-sequencing which would mitigate the delay.

(c) Time extensions. Only delays or modifications that affect critical activities or cause noncritical activities to become critical will be considered for time extensions.

If a CPM schedule is used, no time extension will be made for delays or modifications that use available float as shown in the most current approved construction schedule existing before the impact.

No time extension will be made for a claim that states insufficient time was provided.

For delays due to weather, demonstrate that the weather was unusually severe based on the most recent 10 years of historical data according to FAR Clause 52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

If a quantity variation described in Subsection 109.06(e) results in an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time as provided within this Subsection.

(d) Execution of the time impact analysis. Incorporate accepted logic changes or time extensions into the construction schedule update by the next monthly submittal.

108.05 Failure to Complete Work on Time. Follow the requirements of FAR Clause 52.211-11 – Liquidated Damages-Supplies, Services, or Research and Development. Liquidated damages will be assessed for each day beyond the time allowed to complete the contract.

Two interim completion dates for the project are shown in (a) and (b) below. Substantial completion of the work associated with each interim completion date will result in an incentive payment of \$500 per calendar day up to a maximum amount of \$10,000 per interim completion date. Failure to substantially complete the work within each timeframe described below will result in the assessment of disincentives at a rate of \$500 per calendar day.

(a) Bureau of Land Management Property: Complete all work required for cattle exclusion fencing, selective clearing, and initial plantings by the interim completion date of February 26, 2027.

(b) California State Park Property: Complete all work required for selective clearing, site grading, and initial plantings and seeding by the interim completion date of February 25, 2028.

108.06 Stop Work Order. Follow the requirements of FAR Clause 52.236-13 Accident Prevention and FAR Clause 52.242-14 Suspension of Work. The CO may order the performance of the work to be stopped, either in whole or in part, for such periods deemed necessary including, but not limited to, the following:

(a) Weather or soil conditions considered unsuitable for prosecution of the work; or

(b) Failure of the Contractor to:

(1) Correct conditions unsafe for the workers or the general public;

(2) Carry out written orders given by the CO; or

(3) Perform provisions of the contract.

Section 109. — MEASUREMENT AND PAYMENT

109.01 Measurement of Work. Take and record measurements and perform calculations to determine pay quantities for invoicing for work performed. Take or convert measurements of work according to U.S. Customary measures.

Unless otherwise specified, measure when the work is in-place and complete according to the contract. Measure the actual work performed, except do not measure work outside the design limits or other adjusted or specified limits (staked limits). Measure structures to the lines according to the plans or to approved lines adjusted to fit field conditions.

Take measurements as described in Subsection 109.02 unless otherwise modified by the Measurement Subsection of the Section controlling the work being performed.

Measurement of quantities for payment for the individual pay items will be based on the contract price for each pay item according to Table 109-1.

Table 109-1
Decimal Accuracy of Quantities for Payment

Contract Unit Price	Decimal Accuracy of Quantities for Payment
Less than \$1.00	0 decimal
\$1.00 to \$100.00	1 decimal
Greater than \$100.00	2 decimals

Decimal precision for measurement is one decimal beyond accuracy of quantities for payment.

Remeasure quantities if it has been determined that a portion of the work is acceptable, but has not been completed to the lines, grades, and dimensions shown in the plans or established by the CO.

Prepare, sign, and submit measurement notes and supporting field note documentation using an approved format. Unacceptable measurement notes will be rejected and returned. Correct rejected measurement notes and resubmit.

Prepare, sign, and submit electronic measurement notes (pay notes and supporting field documentation) using Masterworks. Unacceptable measurement notes will be electronically rejected and returned. Correct rejected measurement notes and resubmit electronically.

Include the following information in the measurement notes:

- (a) Project number and name;
- (b) Line item number, pay item number, and description;
- (c) Date the work was performed;
- (d) Location of the work;

- (e) Measured quantity;
- (f) Calculations made to arrive at the quantity;
- (g) Supporting sketches and details as needed to clearly define the work performed and the quantity measured;
- (h) Names of persons measuring the work;
- (i) Identification as to whether the measurement is interim or final; and
- (j) Signed certification statement by the persons taking the measurements and performing the calculations, that the measurements and calculations are correct.

109.02 Measurement Terms and Definitions. Unless otherwise specified, the following terms are defined as follows:

(a) Acre. 43,560 square feet. Make longitudinal and transverse measurements for area computations horizontally. Do not make deductions from the area computation for individual fixtures having an area of 500 square feet or less.

(b) Contingent sum. Perform only the work authorized by written order. The estimated cost of the contingent sum work is approximate and is considered the maximum cost for the required work. The quantity to be paid will be equivalent to the costs incurred. Submit paid invoice receipts as documentation.

(c) Contract quantity. The quantity to be paid is the quantity listed in the bid schedule. The contract quantity will be adjusted for authorized changes that affect the quantity or for errors made in computing this quantity. If there is evidence that a quantity specified as a contract quantity is incorrect, submit calculations, drawings, or other evidence indicating why the quantity is in error and request in writing that the quantity be adjusted.

(d) Cubic foot and cubic yard. Measure by one of the following methods:

(1) Average end area method. Take cross-sections of the original ground. Use design or staked templates to determine end areas. Do not measure work outside of the lines or slopes established by the CO.

If a portion of the work is acceptable but is not completed to the established lines and slopes, retake cross-sections or comparable measurements of that portion of the work. Use the remeasurements to calculate new end areas.

Compute the quantity using the average end areas multiplied by the horizontal distance along a centerline or reference line between the end areas. Deduct quantities outside the designed or staked limits.

(2) Finite element analysis method. Use digital terrain modeling to determine the difference between existing and constructed terrain surfaces.

(e) Day. A 24-hour period starting and ending at midnight. Round portions of a day up to the full day.

(f) Each. One entire unit. Measure the actual number of units completed and accepted.

(g) Gallon. The quantity may be measured by the following methods:

(1) Measured volume container. Use an approved container with a verified volume.

(2) Metered volume. Use an approved metering system.

(3) Commercially-packaged volumes. Use the volume as identified on the commercially-packaged product.

(4) Measured by mass. Use an approved weighing device.

When asphalt material is measured by the gallon, measure the volume at 60 °F or correct the volume to 60 °F using recognized standard correction factors.

(h) Hour. 60 minutes. Measure the actual number of hours ordered by the CO and performed by the Contractor. Round portions of an hour up to the next half hour. Measure time in excess of 40 hours per week at the same rate as the first 40 hours.

(i) Linear foot. As applicable, measure the work along its length from end-to-end, parallel to the base or foundation, along the top, along the front face, or along the invert. Do not measure overlaps.

(j) Lump sum. Do not measure directly. The bid amount is complete payment for all work described in the contract and necessary to complete the work for that pay item. The quantity is designated as "All". Estimated quantities of lump sum work shown are approximate.

(k) M-gallon. 1000 gallons. Measure according to Subsection 109.02(g).

(l) Mil. Thousandth of an inch. Use to measure thickness.

(m) Mile. 5280 linear feet. Measure horizontally along the centerline of each roadway, approach road, or ramp.

(n) Month. A month as defined by the Gregorian calendar. Measure portions of a month by prorating based on the total days worked.

(o) Pound. Measure according to Subsection 109.03 and 109.04. If sacked or packaged material is provided, the net weight as packed by the manufacturer may be used.

(p) Square foot and square yard. 1 square yard equals 9 square feet. Measurements for area computations will be made horizontally or vertically to the surface being measured. No deductions from the area computation will be made for individual fixtures having area of 9 square feet or less. Do not measure overlaps.

(q) Thousand board feet measure. 1000 board feet. Measurement equal to 1000 feet of wood that is 12 inches wide and 1 inch thick.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(r) Ton. 2000 pounds. Measure according to Subsections 109.03 and 109.04.

No adjustment in a contract price will be made for variations in quantity due to differences in the specific gravity or moisture content.

Use net-certified scale masses or masses based on certified volumes in the case of rail shipments as a basis of measurement subject to correction if asphalt material is lost from the car or the distributor, wasted, or otherwise not incorporated in the work. If asphalt material is shipped by truck or transport, net-certified masses, subject to correction for loss or foaming, may be used for computing quantities.

When emulsified asphalt is converted from volume to mass, use a factor of 240 gallons per ton regardless of temperature.

If the asphalt binder for asphalt concrete pavement is stored in tanks devoted exclusively to the project, base quantities on invoices. If asphalt binder for asphalt concrete pavement is not stored in tanks devoted exclusively to the project or if the validity of the quantity requested for payment is in question, base quantities on the asphalt content determined by testing.

(s) Week. A 7-day period starting and ending at the same designated time. Measure portions of a week by prorating based on the total days worked.

109.03 Not Used.

109.04 Not Used.

109.05 Scope of Payment. Payment for contract work is provided, either directly or indirectly, under the pay items listed in the bid schedule.

(a) Direct payment. Payment is provided directly under a pay item listed in the bid schedule when one of the following applies:

(1) The work is measured in the Measurement Subsection of the Section ordering the work and the bid schedule contains a pay item for the work from the Section ordering the work.

(2) The Section ordering the work references another Section for the work and the bid schedule contains a pay item for the work from the referenced Section.

(b) Indirect payment. Work for which direct payment is not provided is a subsidiary obligation of the Contractor. Payment for such work is indirectly included under other pay items listed in the bid schedule. This includes instances when the Section ordering the work references another Section for performing the work and the work is not referenced in the Measurement Subsection of the Section ordering the work.

Compensation provided by the pay items included in the bid schedule is full payment for performing contract work in a complete and acceptable manner. Risk, loss, damage, or expense arising out of the nature or prosecution of the work is included in the compensation provided by the pay items.

Work measured and paid for under one pay item will not be paid for under other pay items.

The quantities listed in the bid schedule are approximate unless designated as a contract quantity. Limit pay quantities to the quantities staked, ordered, or otherwise authorized before performing the work. Payment will be made for the actual quantities of work performed and accepted or material provided according to the contract. No payment will be made for work performed in excess of that staked, ordered, or otherwise authorized.

109.06 Pricing of Adjustments. Determine costs according to FAR Part 31 Contract Cost Principles and Procedures. Follow the requirements of FAR clauses providing for an equitable price adjustment.

If agreement on price and time cannot be reached, the CO may make a unilateral determination.

If the work will delay contract completion, request a contract time extension according to Subsection 108.04.

(a) Contract modification standard rates. Provide the following information to the CO with contract modification proposals.

(1) Overhead. Provide copies of the current job site and home office overhead rates for the Contractor and subcontractors that have been certified or audited by the Contractor's controller or accountant. Provide supporting data, which justifies the rates. List each cost category that is included in overhead and identify the cost pools to which overhead is applied.

(2) Equipment. Provide a complete descriptive listing of equipment to be used by the Contractor and subcontractors, including the make, model, and year of manufacturer of each piece of equipment and attachments to the base equipment. Provide the following cost information:

(a) Rented equipment. Provide current invoices to support rented or leased equipment costs.

(b) Owned equipment. Determine allowable ownership and operating costs for Contractor- and subcontractor-owned equipment using actual equipment cost data determined from the operating cost records and following the U.S. Army Corps of Engineers *Construction Equipment Ownership and Operating Expense Schedule* (CEOOES) method. If actual equipment cost data is not available, provide the CO with a statement signed by an individual that can bind the Contractor that such cost data is not available.

Provide a complete set of supporting documentation containing ownership records that are available, including purchase records, depreciation records, maintenance records, or other records that relate to the ownership and operating costs for each piece of equipment.

If actual costs cannot be determined, or are not provided at the preconstruction conference, use the rates shown in the CEOOES for the region where costs are incurred. Adjust the rates for used equipment and for other variable parameters used in the schedules. Provide the CO with supporting documentation.

Compute standby costs from approved ownership records or, if actual costs cannot be determined, according to CEOOES. Do not exceed 8 hours in a 24-hour period or 40 hours in a week. Do not include standby for periods when the equipment would have otherwise been in an idle status or for equipment that was not in operational condition.

(b) Proposal for forward priced work. Submit a written proposal, including price breakdown, for each line item of the work. Identify the major elements of the work, the quantity of the element, and its contribution to the proposed price. Submit additional information as requested to allow the CO to determine the reasonableness of the proposed price. Provide the following information:

(1) Direct costs.

(a) Material. Include estimated costs of material delivered to the work.

(b) Labor. Include a list of anticipated crew members and estimated work hours. Show basic hourly wage rates, fringe benefits, applicable payroll costs (such as FICA, FUTA, worker's compensation, insurance, and tax levies), paid subsistence, and travel costs for each labor classification and foreperson employed in the work.

(c) Equipment. Include documentation or invoices to support equipment costs according to Subsection 109.06(a)(2).

(d) Other direct costs. Include documentation to support other estimated direct costs (such as bonds, mobilization, demobilization, permits, and royalties).

(e) Production rates. Include estimated production rates for major elements of the work.

(f) Subcontract costs. Include supporting data as required.

(2) Overhead. Include overhead costs according to Subsection 109.06(a)(1). Limit Contractor overhead applied to subcontractor payments to 5 percent unless a higher percentage is justified.

(3) Profit. Include a reasonable profit, except when precluded by the FAR.

(c) Post-work pricing. When a contract modification is not forward priced, it requires a change order and a supplemental agreement reflecting the resulting equitable adjustment. When negotiating the price of a contract modification after all or most of the work has been performed, submit the following:

(1) Direct costs.

(a) Material. Include invoices showing the cost of material delivered to the work.

(b) Labor. Include a list of crew members and actual hours worked. Show actual wage rates, fringe benefits, applicable payroll costs (such as FICA, FUTA, worker's compensation, insurance, and tax levies), paid subsistence, and travel costs for each labor classification and foreperson employed in the adjusted work.

(c) Equipment. Include documentation or invoices to support equipment costs according to Subsection 109.06(a)(2).

(d) Other direct costs. Include documentation to support other estimated direct costs (such as bonds, mobilization, demobilization, permits, and royalties).

(e) *Production rates.* Include actual hours of performance daily for each labor classification and for each piece of equipment. Include production rate information reflecting the actual work occurring on an approved Contractor daily record document.

(f) *Subcontract costs.* Include supporting data as required.

(2) Overhead. Include overhead costs according to Subsection 109.06(a)(1). Limit Contractor overhead applied to subcontractor payments to 5 percent unless a higher percentage is justified.

(3) Profit. Include a reasonable profit, except when precluded by the FAR. Limit profit to 10 percent of the total cost. Due to the limited risk in post-work pricing, a lower profit percentage may be determined by a profit analysis according to FAR 15.404-4 Profit.

(d) Cost or pricing data. When the contract modification exceeds the amount indicated in FAR Clause 52.215-10 Price Reduction for Defective Certified Cost or Pricing Data, or FAR Clause 52.215-11 Price Reduction for Defective Cost or Pricing Data - Modifications, and the CO has determined that an exception does not apply, submit cost or pricing data according to Subsection 109.06(b) or (c) as applicable and as defined in FAR Subpart 2.1 Definitions, for the Contractor and each major subcontractor. See FAR Subpart 15.4 Contract Pricing and FAR Table 15-2 Instructions for Submitting Cost/Price Proposals When Certified Cost or Pricing Data Are Required for guidance.

Certify cost or pricing data according to FAR Subpart 15.4 Contract Pricing, upon completion of negotiations.

(e) Variation in estimated quantity. If the quantity of a unit-priced item is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price may be made upon request of either party. The equitable adjustment will be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity.

109.07 Eliminated Work. Follow the requirements of FAR Clause 52.243-1 Changes-Fixed-Price, Alternate II.

Work may be eliminated from the contract without invalidating the contract. The Contractor is entitled to compensation for direct costs incurred before the date of elimination of work plus profit and overhead on the direct incurred costs. Anticipated profit and overhead expense on the eliminated work will not be compensated.

109.08 Progress Payments.

(a) General. Only invoice payments will be made under this contract. Invoice payments include progress payments made monthly as work is accomplished and the final payment made upon final acceptance. Only one progress payment will be made each month. No progress payment will be made in a month in which the work accomplished results in a net payment of less than \$1,000. The CO may withhold partial progress payment according to Subsection 109.08(h) for failure to make satisfactory progress until a construction schedule or schedule update is approved.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(b) Invoice requirements. Submit the invoice to the Government's designated billing office with the following items:

- (1) The information required by FAR Clause 52.232-2 5(a)(3) Contractor's invoice.
- (2) A tabulation of total quantities and contract prices of work accomplished or completed on each pay item. Do not include quantities unless measurement notes for those quantities were submitted by the closing date. Do not include quantities of work involving material for which test reports required under Sections 153 and 154, or certifications required by Subsection 106.03 are, or will be, past due as of the closing date.
- (3) The certification required by FAR Clause 52.232-1 and if applicable, the notice required by FAR Clause 52.232-5(d).
- (4) The amount included for work performed by each subcontractor under the contract.
- (5) The total amount of each subcontract under the contract.
- (6) The amounts previously paid to each subcontractor under the contract.

(c) Government's receiving report. The Government's receiving report will be developed using the measurements and quantities from Pay Notes received by the CO in Masterworks and determined acceptable.

(d) Closing date and invoice submittal date. The closing date for progress payments will be designated by the CO. Include work performed after the closing date in the following month's invoice.

Submit invoices to the designated billing office by the 7th day following the closing date. Invoices received by the designated billing office after the 16th day following the closing date will not be accepted for payment processing that month. Include late, unprocessed invoice submittals in the following month's invoice.

No closing dates will be permitted from September 1 to October 5. Do not submit invoices between September 1 and October 5.

(e) Processing progress payment requests. No payment will be made for work unless measurement notes for the work are submitted by the closing date.

(1) Invoices received by the 7th day following the closing date.

(a) Proper invoices. If the invoice meets the requirements of Subsection 109.08(b), and the quantities and unit prices shown on the Contractor's invoice agree with the corresponding quantities and unit prices shown on the Government's receiving report, the invoice will be paid.

(b) Defective invoices. If the invoice does not meet the requirements of Subsection 109.08(b), or if any of the quantities or unit prices shown on the Contractor's invoice exceed the corresponding quantities and unit prices shown on the Government's receiving report, the invoice will be deemed defective, and the Contractor so notified according to FAR Clause 52.232-27(a)(2). Defective invoices will not be corrected by the Government and will be

returned to the Contractor within 7 days after the Government's designated billing office receives the invoice.

Revise and resubmit returned invoices by the 18th day following the closing date. The CO will evaluate the revised invoice. If the invoice is deemed proper, it will be forwarded for processing within 7 days of receipt. If the invoice still does not meet the requirements of Subsection 109.08(b), the Contractor will be so notified according to FAR Clause 52.232-27(a)(2), and no progress payment will be made that month. Correct the deficiencies and resubmit the invoice the following month.

If the revised invoice meets the requirements of Subsection 109.08(b), but still has quantities or unit prices exceeding the corresponding quantities and unit prices shown on the Government's receiving report, the Government's data for that item or work will be used. The Contractor's invoice, as revised by the Government's receiving report, will be forwarded for processing by the 23rd day following the closing date. The Contractor will be notified by the 23rd day following the closing date of the reasons for any changes to the invoice.

(2) Invoices received between the 8th and 16th day following the closing date.

(a) Proper invoices. If the invoice meets the requirements of Subsection 109.08(b), and the quantities and unit prices shown on the Contractor's invoice agree with the corresponding quantities and unit prices shown on the CO's receiving report, the invoice will be deemed proper and forwarded for processing within 7 days of receipt.

(b) Defective invoices. If the invoice does not meet the requirements of Subsection 109.08(b), the invoice will be deemed defective, the Contractor so notified according to FAR Clause 52.232-27(a)(2), and no progress payment will be made that month. Correct the deficiencies and resubmit the invoice the following month.

If the invoice meets the requirements of Subsection 109.08(b) but has quantities or unit prices exceeding the corresponding quantities and unit prices shown on the Government's receiving report, the Government's data for that item of work will be used. The Contractor's invoice, as revised by the Government's receiving report, will be forwarded for processing within 7 days of the Government's receipt of the invoice. The Contractor will be notified of the reasons for any changes to the invoice.

(f) Partial payments. Progress payments may include partial payment for material to be incorporated in the work according to FAR Clause 52.232-1 provided the material meets the requirements of the contract and is delivered on, or in the vicinity of, the project site or stored in acceptable storage places.

Partial payments for stockpiled manufactured material (aggregates) will be based on Contractor process control test results. If test results show the material to be out-of-specification, or in "reject" where statistical evaluation procedures are used, no payment for stockpiled materials will be made.

Partial payment for material does not constitute acceptance of such material for use in completing items of work. Partial payments will not be made for living or perishable material until incorporated into the project.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Individual and cumulative partial payments for preparatory work and material will not exceed the lesser of:

- (1) 80 percent of the contract bid price for the item; or
- (2) 100 percent of amount supported by copies of invoices submitted.

The quantity paid will not exceed the corresponding quantity estimated in the contract. The CO may adjust partial payments as necessary to protect the Government.

(g) Lump sum. If the basis for lump sum progress payments is not specified in the Section controlling the work, submit a price breakdown for use in making progress payments. Payments will be made based on the information in the price breakdown, and the work completed.

(h) Retainage. Follow the requirements of FAR Clause 52.232-16 Progress Payments. The CO may withhold, retain, or adjust the invoice after validation of the invoice as follows:

- (1) The CO may withhold full or partial progress payment until a construction schedule or schedule update is submitted according to Section 155, and according to FAR Clause 52.236-6 Progress Payments
- (2) The CO may withhold full or partial progress payment until certified payrolls are submitted according to FAR Clause 52.222-8 Payrolls and Basic Records.
- (3) The CO may withhold a maximum of 10 percent of the amount the progress payment until satisfactory progress has been made according to FAR Clause 52.232-1. Satisfactory progress includes performance of all work under the contract including submittals, schedules, certifications, reports, test results, and drawings.
- (4) The CO may withhold Liquidated Damages for failure to complete work according to Subsection 108.05 and FAR Clause 52.211-11 Liquidated Damages, -Supplies, Services, or Research and Development.
- (5) After substantial completion of the contract, the CO may retain an amount adequate for protection of the Government according to FAR Clause 52.232-16 Progress Payments

109.09 Final Payment. Follow the requirements of FAR Clause 52.232-1 Payments and FAR Clause 52.232-25 Prompt Payment.

Upon final acceptance and verification of final pay records, the Government will send an SF 1034, *Public Voucher for Purchases and Services other than Personal* (final voucher) and a release of claims document. Execute both the voucher and the release of claims and return the documents to the Government for payment. The date of approval by the Government of the final voucher for payment constitutes the date of final settlement of the contract.

If unresolved claims exist or claims are proposed, reserve the right to the claims by listing a description of each claim and the amount being claimed on the release of claims document.

Failure to execute and return the voucher and release of claims document within 90 days after receipt will

constitute execution of the documents and the release of claims against the Government arising by virtue of the contract. In this event, the day after 90 days from receipt constitutes the date of final settlement of the contract.

Section 151. — MOBILIZATION

Description

151.01 This work consists of moving personnel, equipment, material, and incidentals to the project and performing work necessary before starting work at the project site. This work also includes obtaining permits, insurance, and bonds.

Measurement

151.02 Measure the Section 151 pay items listed in the bid schedule according to Subsection 109.02.

Payment

151.03 The accepted quantities will be paid at the contract price per unit of measurement for the Section 151 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for mobilization by the lump sum will be paid as follows:

- (a) Bond premiums will be reimbursed from the mobilization pay item according to FAR Clause 52.232-5 Payments under Fixed-Price Construction Contracts, after receipt of the evidence of payment.
- (b) 50 percent of the pay item amount, less the amount paid under Subsection 151.03(a), will be paid after 5 percent of the original contract amount is earned from pay items (not including mobilization). The amount paid will not exceed 5 percent of the original contract amount.
- (c) 100 percent of the pay item amount, less the amount paid under Subsections 151.03(a) and 151.03(b), will be paid after 10 percent of the original contract amount is earned from pay items (not including mobilization). The amount paid will not exceed 10 percent of the original contract amount.
- (d) Any portion of the pay item amount more than 10 percent of the original contract amount will be paid after final acceptance of the interim completion date requirements in Section 108.05.

Section 152. — CONSTRUCTION SURVEY AND STAKING

Description

152.01 This work consists of surveying, staking, calculating, and recording data for the control of work (cattle exclusion fencing layout and wetland site grading). See FAR Clause 52.236-17 Layout of Work.

Construction Requirements

152.02 Qualifications. Provide technically qualified survey crews experienced in construction survey and staking. Provide personnel who can perform in a timely and accurate manner. At least 14 days before starting survey and staking work, submit a résumé for each individual.

152.03 Submittals. At the preconstruction conference, submit a price breakdown by individual tasks if construction survey and staking is paid by the lump sum for use in making progress payments.

152.04 General. Provide a crew supervisor on-site when surveying and staking is in progress. Provide survey instruments and supporting equipment that can achieve the specified tolerances.

Provide acceptable tools and supplies of the type and quality suitable for survey work. Provide stakes and hubs of sufficient length to provide a solid set in the ground with sufficient surface area above ground for necessary legible and durable markings.

Include staking activities in the construction schedule according to Section 155. Include the dates and sequence of each staking activity.

No horizontal or vertical control information will be furnished.

Record survey and measurement field data in an approved format. Submit survey and measurement data at least weekly while surveys are being conducted. Field data and supporting documentation become the property of the Government upon completion of the work.

Discuss and coordinate the following with the CO before surveying or staking:

- (a) Surveying and staking methods;
- (b) Stake marking;
- (c) Grade control for wetland site grading;
- (d) Field staking data; and
- (e) Other procedures and controls necessary for the work.

Do not start work until staking data for the affected work has been approved.

Acceptance of the construction staking does not relieve the Contractor of responsibility for correcting errors discovered during the work and for bearing additional costs associated with the error.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Maintain legibility of stake markings for the duration of the project or until notified in writing the stakes are no longer needed. Replace stakes as necessary to ensure markings are maintained.

Remove and dispose of flagging, paint, lath, stakes, and other staking material after the project is complete.

Compute and provide calculations supporting pay quantities. Measure quantities within the tolerances established by the CO according to Section 109.

152.05 Survey and Staking Requirements. Perform survey, staking, recording of data, and calculations as necessary to construct the project. Survey and set stakes to the tolerances shown in Table 152-1. Reset stakes and hubs as required and maintain in an acceptable condition for the duration of the project or until notified they can be removed. Notify the CO if errors are discovered.

(a) Control points. Set durable monuments for survey control that uniquely identify the points according to Subsection 107.02 and Section 621.

Provide the GPS localization results or total station check shot data at least 10 days before starting construction layout work. The CO may order the GPS localization calibration and associated 3D model to be broken into two or more zones to maintain the localized relationship between control points and original ground.

(b) Cattle Exclusion Fencing. Perform the following:

- (1) Set adequate reference stakes for the layout and construction of the cattle exclusion fencing shown in the plans.
- (2) Conduct site visit with CO to review reference stakes and make field adjustments approved by the CO prior to beginning fence installation.
- (3) Survey installed fence and gate locations for quantity verification and include with as-built information.

(c) Wetland Mitigation Site Grading and Soil Disposal Area. Perform the following:

- (1) Before ground disturbance occurs, set adequate reference stakes for the wetland mitigation site and soil disposal area boundaries shown in the plans. Use an approved method to verify existing ground elevations of the wetland mitigation site and soil disposal area and submit survey data as directed.
- (2) Set stakes for the pothole locations shown in the plans and record the existing ground elevation and depth to clay soil layer. Submit survey data as directed.
- (3) Set adequate stakes within the wetland mitigation site for removal of top layer of soil as shown in the plans.
- (4) After top layer of soil is removed from the wetland mitigation site, use an approved method to verify finished ground elevations and submit survey data as directed.

(d) Miscellaneous survey and staking. Survey and stake other work as directed to the proper location and required tolerances. Propose staking increments and tolerances for approval if not shown in Table 152-1.

Table 152-1
Construction Survey and Staking Tolerances⁽¹⁾

Staking Phase	Horizontal, feet (±)	Vertical, feet (±)
Control points set from existing control points	0.03	$0.01 \times \sqrt{N}^{(2)}$
Mapping & topography	0.16	0.16
Cattle Exclusion Fencing	1.00	n/a
Wetland Site Grading	0.16	0.16

(1) At statistical 95 percent confidence level. Tolerances are relative to existing Government control points.

(2) N is the number of instrument setups.

152.06 Acceptance. Construction survey and staking will be evaluated under Subsections 106.02 and 106.04.

Survey notes will be evaluated under Subsection 106.02.

Measurement

152.07 Measure the Section 152 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

When measuring survey and staking by the hour, do not measure time spent in making preparations, traveling to and from the project site, performing calculations, plotting cross-sections and other data, and processing computer data.

Do not measure re-establishing missing control points or stakes after construction operations have begun.

Payment

152.08 The accepted quantities will be paid at the contract price per unit of measurement for the Section 152 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for lump sum pay items will be prorated based on total work completed under this Section.

Section 153. — CONTRACTOR QUALITY CONTROL

Description

153.01 This work consists of planning and implementing a construction quality process to ensure work conforms to the contract. This work also includes inspection and documentation, and process control. See FAR Clauses, 52.246-2 Inspection of Supplies-Fixed Price, 52.246-4 Inspection of Services-Fixed Price and 52.246-12 Inspection of Construction.

This work also consists of using Masterworks to prepare electronic CDRs and measurement notes (pay notes and supporting field documentation), including entering labor, equipment, subcontractors, and inspection records into the system.

Construction Requirements

153.02 Qualifications. At least 14 days before starting work, submit documentation of the following for approval:

(a) **QCM.** Provide a QCM with documented authority to stop non-compliant work or work that results in non-compliance with contract requirements.

Provide a QCM with at least 3 years' experience in areas of inspection, management, supervision, and QC on mitigation planting projects of similar type and scope;

153.03 Quality Control Plan. Develop and submit a QCP for approval at least 14 days before starting a Section of work. Include the work of subcontractors, material suppliers, and technical services suppliers. Do not perform work unless the QCP for that Section is approved. Approval does not imply that the QCP will result in contract compliance.

For each Section of work, include the following:

(a) **QC personnel.** Provide the name, authority, responsibilities, and qualifications of the QCM and other personnel directly involved in inspection.

(b) **QC procedures.** Describe the inspection and other activities to be performed for each phase of work in Subsection 153.06. Include methods, schedules, and equipment.

Include the following for materials to be inspected:

(1) Pay item;

(2) Brief operational work plan including, but not limited to, the locations, crews, equipment, and proposed methods to complete the work. Describe the plan for staging, disposal, and storage areas.

Include the following in the plan for each Section of work:

(a) The process to ensure the completed work conforms to contract requirements.

- (b) The inspection frequency to ensure the process remains valid or work is being performed according to the established process.
- (3) Personnel responsible for performing the inspection; and
- (4) Proposed reporting formats.
- (c) **Records.** Describe the reporting format for inspection, certification, and daily reports.
- (d) **Subcontractors and suppliers.** Include the work of all subcontractors. If a subcontractor is to perform work under this Section, explain how the subcontractor's inspection plan will interface with the Prime Contractor first tier subcontractors and lower tier subcontractors and organizations, and the CO.

Revise the QCP if contract quality requirements are not achieved, or changes occur in the contract, work processes, or personnel.

Modifications or additions may be required to any part of the plan that is not adequately covered. Acceptance of the quality control plan will be based on the inclusion of the required information. Acceptance does not imply any warranty by the Government that the plan will result in consistent contract compliance. It remains the responsibility of the Contractor to demonstrate such compliance.

153.04 Quality Control Manager. Provide a QCM who is on site while contract work is being performed. The QCM may perform other roles on the project including managing and superintending the project. Provide a QCM with no responsibilities for performing operations on the project.

Do not use an alternate QCM for more than 3 consecutive days unless approved.

153.05 Certifications and Submittals. For materials or work accepted by certification according to Subsection 106.03, review all certifications to ensure compliance with the requirements of the contract before incorporating materials into the work and provide a signed copy of the reviewed certification to the CO. According to FAR Subpart 46.407, materials or work without proper certification will be rejected in writing, and payment for such material or work will be withheld until proper certification has been provided to the CO.

153.06 Prosecution of Work.

Address each of the subjects shown for each phase of construction:

(a) Preparatory phase.

- (1) In a preparatory phase meeting, review the contract requirements for the work; the process for constructing the work; and the plan for inspecting, measuring, and reporting the work. Include the project superintendent, QCM, work foreperson, and the CO in the meeting. Schedule and conduct a preparatory meeting for each type of work to be performed at least one week prior to beginning the work.
- (2) Review and coordinate certifications, submittals, plans, drawings, and permits.
- (3) Verify the capabilities of equipment, material, and personnel. Provide training as necessary.

(4) Review accuracy of the surveying and staking.

(b) Start-up phase.

(1) In a start-up phase meeting, review the contract requirements and the processes for constructing the work with the personnel who will be performing the work. Invite the CO, project superintendent, QCM, and inspectors of the work being performed, and the personnel directly supervising and performing the work. Review the planned inspection and reporting requirements with the quality control personnel responsible for the inspection. Explain the reporting procedures to be used if defective work is identified. Conduct a start-up meeting for each type of work to be performed upon beginning the work.

(2) Inspect and report start-up work according to the QCP and ensure the work conforms to the contract.

(c) Production phase.

(1) Inspect and report according to the QCP and evaluate the acceptability of the work produced.

(2) Identify and correct deficiencies.

(3) Request Government inspection.

(4) Provide feedback on processes and deficiencies. Identify root causes of deficiencies and make timely and effective changes to work processes to prevent repeated deficiencies.

153.07 Not used.

153.08 Records. Maintain complete inspection records by pay item number and make them accessible to the CO.

(a) QC and construction operations reports. For each day of the contract, prepare a CDR using Masterworks. Enter initial data for Labor/Equipment and Subcontractors before beginning any work. Maintain and update the Labor/Equipment and Subcontractors data to reflect ongoing changes as they occur. Report operations or items of work separately, with manpower and equipment assigned to each operation separately. Detail inspection results, including deficiencies observed and corrective actions taken. Complete a CDR for each contractor and subcontractor working that day.

Enter the following data into Masterworks:

(1) Subcontractor data.

(2) Labor/Equipment.

(a) All manpower and equipment, including contractor and subcontractors. Complete all data fields.

(b) Labor: Type/classification, move-in date, move-out date, hourly rate, the contractor or subcontractor, and name.

(c) Equipment: Type/classification, move-in date, move-out date, make, model, and year of equipment manufacture.

Certify all CDRs using the following statement:

"I certify that the information contained in this record is accurate and that work documented herein complies with the contract. Exceptions to this certification are documented as a part of this record."

Submit certified CDRs that have been signed by a person who has both responsibility for the inspection system and signature authority.

Submit the record and certification within 24 hours of the work being performed. If the CDR is incomplete, in error, or otherwise misleading, the CDR will be rejected and returned within Masterworks with corrections noted. Correct rejected CDRs and resubmit the revised CDR within 24 hours. If chronic errors or omissions occur, correct the procedures by which the records are produced.

153.09 Acceptance. The Contractor's QC process will be evaluated under Subsections 106.02 and 106.04 based on its demonstrated effectiveness to ensure work conforms to the contract. Performance of the work may be stopped according to Subsection 108.06, either in whole or in part, for failure to comply with the requirements of this Section.

The Government may charge to the Contractor the cost of any additional inspections required when the work being inspected is found not to comply with contract requirements during the initial inspection. Work stop orders, due to recurring deficiencies of work required by this Section, will be rescinded after the Contractor demonstrates to the CO that changes were made to the quality control plan and system which resulted in the correction of those deficiencies. There will be no adjustment in the contract time, or payments to the Contractor for any impacts, delays, or other costs due to any periods of work stoppage resulting from failure to comply with the requirements of this Section.

CDRs will be evaluated under Subsection 106.02.

Measurement

153.10 Measure the Section 153 pay items listed in the bid schedule according to Subsection 109.02.

Payment

153.11 The accepted quantities will be paid at the contract price per unit of measurement for the Section 153 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for Contractor quality control by the lump sum will be paid as follows:

(a) 25 percent of the pay item amount, no more than 0.5 percent of the original contract amount, will be paid after the Contractor quality control plan is accepted; qualified quality control supervisor and inspection personnel are in position to provide quality control activities; and the work being inspected has started.

(b) 65 percent of the pay item amount will be prorated for payment based on the completed portion of the total work not including the original 25 percent completed under (a) above.

CA FLAP SCR T5(1A)
MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(c) The remaining portion of the pay item amount will be paid when all inspections, submittals, and reports are complete and accepted.

Section 155. — SCHEDULES FOR CONSTRUCTION CONTRACTS

Description

155.01 This work consists of scheduling, monitoring, and reporting the progress of construction activities.

155.02 Definitions.

(a) Baseline construction schedule. The first approved construction schedule submitted after the preliminary work plan, showing the order to perform the work, and the dates for starting and completing the work. Once approved the baseline construction schedule cannot be changed.

(b) Construction schedule. Designated a Bar Chart Method (BCM).

(1) BCM schedule. A BCM schedule includes a progress bar chart, written narrative, and a submittal list.

A progress bar chart is a time-scaled graphic representation of a project displaying the overall sequencing of work. Each activity includes an activity number, description, start and finish date, and duration. BCM schedules list predecessor activities that must be finished before each activity can be started.

(c) Construction schedule update. An update to the previously approved construction schedule that shows the completed work and the remaining work necessary to complete the project and includes progressing of the schedule, changes to the schedule logic, changes to the schedule activities, changes to the activity durations, or any other modification to the schedule of planned work. A construction schedule update may show construction being completed at a date other than the contract completion date.

(d) Preliminary work plan. A narrative and schedule diagram of contract activities for the first 60 days after the NTP.

Construction Requirements

155.03 General. Follow the requirements of FAR Clause 52.236-15 Schedules for Construction Contracts.

Designate an individual who will be the authorized representative responsible for the schedule. Submit the name of the authorized representative with the preliminary work plan.

Failure to include elements of work in the schedule that are required for performance of the contract, even if approved by the Government, will not excuse the Contractor from completing the work required by the contract completion date.

Approval of the construction schedule does not relieve the Contractor of the responsibility to schedule the work to meet the contract requirements.

Do not suppress or sequester float. Do not alter planned durations and sequencing to give the appearance

that activities do not have float. Float time within the construction schedule is not for use or benefit of either the Government or the Contractor but is a jointly owned project resource available to both parties as needed to meet the contract completion date. Either party has the full use of float until it is depleted.

In case of discrepancy, the approved electronic format governs over native file format of the construction schedule.

155.04 Preliminary Work Plan. Do not start work, except mobilization, without an approved preliminary work plan. No progress payments will be made until a preliminary work plan has been approved. Include the following:

- (a) A title page stating contract number, project number, project name, Contractor name, contract completion date, date of submittal, submittal number, and "Preliminary Work Plan";
- (b) A schedule diagram showing work activities;
- (c) Description of proposed work within each activity including the type and quantity of equipment, labor, and material to be used;
- (d) Description of site mobilization;
- (e) Description of planned production rates for each applicable pay item by pay item quantities;
- (f) Description of the number of workdays per week, holidays, number of shifts per workday, and number of hours per shift. Include all calendars used in the schedule module;
- (g) Estimate of idle and partially idle periods within each activity, showing start and finish dates;
- (h) Description of expected and critical delivery dates for equipment and material that can affect completion of the project. Describe the fabrication and delivery of key and long-lead time procurement activities;
- (i) Name of vendor, supplier, or subcontractor to perform an activity. State assumptions made in scheduling their work;
- (j) A list of shop drawings, sample submittals, and review times; and
- (k) A list of drawings, permits, and other submittals by pay item number required for the entire contract period.

Submit a preliminary work plan at least 7 days before the preconstruction conference. Within 14 days of submission, the preliminary work plan will be approved or rejected. If rejected, submit a revised plan within 3 days.

155.05 Baseline Construction Schedule. Submit a construction schedule within 45 days of the NTP. Include a title page or header block for each component with the contract number, project number, project name, Contractor name, contract completion date, date of submittal, and submittal number. Show all

activities including those in the preliminary work plan.

Include activities for permit review and approval. Refer to the permitting agencies to determine an appropriate duration for permit application review, permit approval, and distribution of permits.

Prepare and submit a BCM construction schedule.

(a) BCM schedule. Include the following:

(1) Progress bar chart.

- (a)* Use a time scale to graphically show the percentage of work scheduled for completion during the contract time;
- (b)* Define and relate activities to the pay items;
- (c)* Show activities in the order the work will be performed, including submittals, submittal reviews, fabrication, and delivery;
- (d)* Highlight activities that are controlling factors in the completion of the work;
- (e)* Show the time needed to perform each activity and its relationship in time to other activities;
- (f)* Show the total time to complete work; and
- (g)* Provide enough space for each activity to allow two additional plots parallel to the original time span plot. Use one space for revision of the planned time span, and one for showing actual time span achieved.

(2) Written narrative.

- (a)* Estimate start and finish dates of each activity;
- (b)* Describe work to be done within each activity including the type and quantity of equipment, labor, and material to be used;
- (c)* Describe the location on the project where each activity occurs;
- (d)* Describe planned production rates for each applicable pay item by pay item quantities;
- (e)* Describe the number of workdays per week, holidays, number of shifts per workday, and number of hours per shift. Include all calendars used in the schedule;
- (f)* Estimate of idle and partially idle periods within each activity, showing start and finish dates;
- (g)* Describe expected and critical delivery dates for equipment or material that can affect completion of the project. Describe the fabrication and delivery of key and long-lead time procurement activities;

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(h) Identify the vendor, supplier, or subcontractor to perform the activity. State assumptions made in the scheduling their work; and

(i) Describe critical completion dates for maintaining the construction schedule.

(3) Submittal list. Submit a list of drawings and other submittals by pay item number required for the entire contract period. Include the following information for each drawing or submittal:

(a) Pay item number and description;

(b) Planned date of initial submittal; and

(c) Planned date of CO's initial response.

Submit the construction schedule according to Subsection 104.04.

Within 14 days of submission, the construction schedule will be approved or rejected. If rejected, submit a corrected schedule within 7 days. If rejected again, schedule a meeting within 3 days to discuss corrections and submit another construction schedule.

If a construction schedule is not received within 45 days after the NTP is issued, the CO will withhold the progress payment according to Subsection 109.08(h) until the construction schedule is received.

The approved construction schedule with supporting documents becomes the baseline construction schedule.

155.06 Construction Schedule Update. Submit a construction schedule update by the 15th day of each month, or on the date established by the CO.

Submit the construction schedule update according to Subsection 104.04.

Do not make changes to the schedule logic, activities, or critical path without prior approval.

Within 7 days of submission, the construction schedule update will be approved or rejected. If rejected, submit a corrected construction schedule within 7 days. If rejected again, schedule a meeting within 3 days to discuss corrections and submit another construction schedule.

If an acceptable construction schedule update is not received by the 15th day of the month, or on the date established by the CO, the CO will withhold 10 percent of each progress payment according to Subsection 109.08(h)(3), until a construction schedule update is approved. Failure to receive approval of a prior construction schedule update does not relieve the Contractor of the responsibility to meet the requirement to provide construction schedule updates each month.

Submitting a proposed construction schedule update is not considered a notification of delay or of other basis for change. Continue to submit monthly construction schedule updates until a construction schedule update is approved.

Approval of a construction schedule update showing completion past the fixed completion date will not alter the fixed completion date or affect the Government's rights under the contract.

(a) Update summary. Provide a summary of the changes and progressing made to the construction schedule since the last approved construction schedule update.

(b) Written narrative. Submit an update of the written narrative identifying adjustments made to each operation since the last update. Include the following:

- (1) Equipment added or removed from the project;
- (2) Changes to labor (such as added crews or subcontractors);
- (3) Work shift adjustments (such as extended hours or added shifts);
- (4) Changes to anticipated periods of suspension or holiday;
- (5) Changes in material delivery;
- (6) Early completion of individual work items;
- (7) Efficiency of operations;
- (8) Changes to the critical path and logic revisions;
- (9) Delays and disruptions that are ongoing as of the date of the proposed construction schedule update. If delays or disruptions have occurred, propose efforts to return the project to a schedule consistent with the contract requirements including the commitment of additional resources or other appropriate action; and
- (10) Notification that completion date or other contract requirements will not be met, if applicable.

(c) Submittal list. Provide an update to the submittal list. Include the following:

- (1) Actual dates for submittals;
- (2) Proposed dates for anticipated submittals;
- (3) CO's responses (approved, rejected, or approved as noted); and
- (4) Comments.

(d) BCM schedule updates.

(1) Progress bar chart. Update the progress bar chart. Include the following:

- (a) Actual start and planned finish dates of activities underway;
- (b) Remaining duration of uncompleted activities;

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

- (c) Actual finish dates of completed activities;
- (d) Revised construction activities affected by impacts addressed with a time impact analysis. Include a revised completion date for the total work; and
- (e) The initial time span plot adjacent to the updated time span plot for each work activity.

155.07 Progress Meetings. Schedule and facilitate a weekly progress meeting. Invite the CO, superintendent, QCM, and other personnel directly supervising or managing the project.

Provide a two-week look-ahead schedule one day before the meeting. Review actual progress as compared to the planned progress and review planned activities for the upcoming 2 weeks. Discuss the status of submittals, QC documentation, contract modifications, and requests for information.

155.08 Acceptance. Construction schedules and supporting documents will be evaluated under Subsection 106.02.

Measurement

155.09 Measure the Section 155 pay items listed in the bid schedule according to Subsection 109.02.

Payment

155.10 The accepted quantities will be paid at the contract price per unit of measurement for the Section 155 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for construction schedule by the lump sum will be paid as follows:

- (a) 25 percent of the pay item amount, no more than 0.5 percent of the original contract amount, will be paid after the baseline construction schedule is approved.
- (b) The remaining portion of the pay item amount will be prorated based on the total work completed in the contract.

Section 156. — PUBLIC TRAFFIC

Description

156.01 This work consists of controlling and protecting public traffic adjacent to the project, including public trail usage. See FAR Clause 52.236-13 Accident Prevention.

Construction Requirements

156.02 Accommodating Traffic During Work. Accommodate traffic according to the California MUTCD and this Section. Ensure the safety and convenience of the public and protect the residents and property adjacent to the project. Accommodate public traffic on roads and trails adjacent to the project until the project is accepted according to Subsection 106.06(b).

156.03 Maintaining Roadways During Work. Maintain roadways as follows:

- (a) Maintain intersections and provide access to trails, roads, parking areas, residences, farms, and other features at all times.
- (b) Provide dust control by applying water or dust palliative as ordered to maintain visibility and eliminate hazardous conditions.
- (c) Remove accumulations of soil and other material from the traveled way.

If corrective action is requested and the corrective action is not taken immediately, the condition may be corrected by the CO and the cost of the corrective action deducted from monies due the Contractor.

156.04 Nighttime Operations. Perform construction operations during the hours of daylight. Daylight hours are defined as one-half hour after sunrise to one-half hour before sunset.

156.05 Acceptance. Controlling and protecting public traffic work will be evaluated under Subsection 106.02.

Measurement and Payment

156.06 Do not measure controlling and protecting public traffic for payment. See Subsection 109.05.

Section 157. — SOIL EROSION CONTROL, SEDIMENT CONTROL, AND STORMWATER POLLUTION PREVENTION PLAN

Description

157.01 This work consists of preparing and maintaining a SWPPP including non-stormwater pollution prevention. This work also consists of implementing the SWPPP including, but not limited to, furnishing, constructing, and maintaining soil erosion and sediment control devices to eliminate or minimize pollutants in stormwater discharges from the project.

Material

157.02 Conform to the following Subsections:

Fiber rolls	713.12
Filter rock	705.08
Floating turbidity curtains	713.21
General purpose tackifier	713.11(a)
Geotextile	714.01
Gravel bags	713.13
Mulch	713.05
Nonloadbearing concrete masonry units	725.07(c)
Plastic lining	713.22
Prefabricated filter insert	713.20
Rock for riprap	705.02
Rock mulch	705.07
Rolled erosion control products	713.17
Sandbags	713.14
Sediment filter bags	713.19
Seed	713.04
Silt fence	713.16
Soil and soil-aggregate materials	704.01
Temporary culvert pipe	713.15
Temporary plastic fence	710.08
Turf reinforcement mats	713.18
Water for vegetation	725.01(b)

Construction Requirements

157.03 Qualifications. Provide a SWPPP Developer, Erosion Control Supervisor, and On-Site Stormwater Lead with experience in implementing erosion and sediment control. Provide documentation that personnel meet the qualifications in the applicable Construction General Permit (CGP) or the qualifications below, whichever is more stringent. Include certifications in those states where applicable. One person may serve in more than one role if qualified.

Do not designate the project superintendent to serve in any of these roles.

Submit the following for approval as part of the SWPPP submittal:

(a) SWPPP Developer. A résumé describing the following:

- (1) Have completed 40 hours of stormwater management training;
- (2) Have 5 years of highway or equivalent experience developing SWPPPs and designing site-specific BMPs; and
- (3) Be registered or certified in the state in which the project is located for one or more of the following:
 - (a) Professional engineer, geologist, or hydrologist;
 - (b) Licensed landscape architect; or
 - (c) Other state or nationally recognized certification program for erosion and sediment control professionals.

(b) Erosion Control Supervisor. A résumé describing the following:

- (1) Both of the following:
 - (a) Have completed 24 hours of stormwater management training; and
 - (b) Have 3 years of highway or equivalent construction experience that included oversight of erosion, sediment, and pollution control BMPs; or
- (2) One of the following:
 - (a) Meet requirements of SWPPP Developer above; or
 - (b) Be registered or certified as a stormwater inspector from a state or nationally recognized certification program for stormwater inspectors.

(c) On-Site Stormwater Lead. A résumé describing the following:

- (1) Both of the following:
 - (a) Have completed 8 hours of stormwater management training;
 - (b) Have 1 year of highway construction experience including stormwater management duties; or
- (2) One of the following:
 - (a) Meet requirements of Erosion Control Supervisor above; or
 - (b) Be registered or certified as a stormwater inspector from a state or nationally recognized certification program for stormwater inspectors.

157.04 Roles and Responsibilities.

- (a) SWPPP Developer.** Develop the SWPPP for the project based on requirements in the CGP, plans, and specifications. Show construction phasing of erosion, sediment, and pollution prevention BMPs

for all construction activities on a site plan to meet water quality regulations. Review field changes and update the SWPPP when substantial changes occur.

(b) Erosion Control Supervisor. Implement the SWPPP, which includes but is not limited to, scheduling installation and maintenance of all BMPs, job site inspections, and other activities for pollution prevention. Review all inspection reports and ensure that the SWPPP and site plan are implemented and updated.

(c) Stormwater Lead. Install and maintain BMPs, conduct site inspections, monitor water quality, and perform all on-site and reporting activities required to comply with the CGP. Inform the Erosion Control Supervisor when changes are made. The Stormwater Lead is required to be on the project site during working hours, and available during non-work hours to do inspections before, during, and after qualifying rain events.

157.05 General. Develop, submit, and manage a SWPPP according to the CGP requirements. Contract permits amend the requirements of this Section. Submit the SWPPP to the CO at or before the preconstruction conference. Allow 14 days for CO review and approval.

If soil erosion and sediment pollution control measures are not functioning as intended, take corrective action to eliminate or minimize pollutants in stormwater discharges from the project.

Provide certified weed free devices.

Do not use monofilament plastic for erosion or sediment control products.

157.06 Controls and Limitations on Work. Mark clearing limits and construct sediment perimeter control measures before ground disturbing activities. Before the start of a construction activity, implement appropriate pollution prevention measures for the activity. No soil disturbing construction activity, including clearing and grubbing, may begin on the project until the SWPPP has been reviewed and approved, the NOI has been accepted by the permitting agency and is active, and the CO has authorized on-site work to proceed.

Limit the combined grubbing and grading operations areas to 5 acres of exposed soil at one time.

157.07 Stormwater Pollution Prevention Plan. Prepare, submit, and implement a Construction SWPPP following the SWPPP template of the state in which the project is located. Include the Federal Highway Administration as an operator on the project in charge of plans and specifications. If the state does not provide a template, follow the SWPPP template provided by the Environmental Protection Agency (EPA) (<https://www.epa.gov/npdes/construction-general-permit-resources-tools-and-templates#swppp>).

Provide a SWPPP according to the CGP.

Provisions in the SWPPP are incorporated by reference into the contract. Provide an electronic copy of the SWPPP.

Based on the approved SWPPP, provide the CO a list of the planned pollution prevention devices for each of the following: erosion controls, sediment controls, and non-stormwater controls.

Implement the SWPPP as required throughout the construction period. Modify the erosion, sediment, and non-stormwater pollution control details and SWPPP plans as necessary to accommodate project site

conditions and proposed construction operations. Update the SWPPP when modifying erosion, sediment, and non-stormwater pollution controls. Provide a copy of the updated SWPPP monthly to the CO for review.

157.08 Soil Erosion Control. Apply erosion control measures to stabilize soils and to control temporary concentrated flows throughout the duration of the project. Construct and maintain measures according to the manufacturer's recommendations.

157.09 Sediment Control. Apply sediment control measures to intercept, slow, and detain the flow of stormwater throughout the duration of the project. Construct and maintain measures according to the manufacturer's recommendations.

157.10 Non-Stormwater Controls. Apply non-stormwater measures as needed and as required in the SWPPP to control non-stormwater discharges, and to prevent or limit potential pollutants at their source from contact with stormwater throughout the duration of the project. Construct and maintain measures according to the manufacturer's recommendations.

157.11 Acceptance. Material for erosion, sediment, and non-stormwater pollution control measures will be evaluated under Subsections 106.02 and 106.03.

Construction, maintenance, and removal of erosion control, sediment control, and non-stormwater controls will be evaluated under Subsections 106.02 and 106.04.

Measurement

157.12 Measure the Section 157 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

Do not measure replacement erosion, sediment, or non-stormwater pollution control measures.

Do not measure additional or changed erosion, sediment, or non-stormwater pollution control measures required when planned controls are not functioning as intended and corrective actions are taken.

Payment

157.13 The accepted quantities will be paid at the contract price per unit of measurement for the Section 157 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

(a) Progress payments for SWPPP will be paid as follows:

- (1)** 25 percent of the pay item amount will be paid on the approval of the SWPPP and upon receipt of authorization from the permitting agency that the project permit is active.
- (2)** An additional 50 percent of the pay item amount will be prorated based on total work completed in the contract.
- (3)** The remaining portion of the pay item amount will be paid when a copy of the final SWPPP and all accompanying documentation, including inspection reports, water quality sampling

results, and annual report submittals, is submitted and accepted after resolution of the final inspection punch list items.

(b) Progress payments for erosion and sediment control measures or devices will be paid as follows:

(1) 80 percent of the pay item amount will be prorated based on total work completed in the contract.

(2) 20 percent of the pay item amount will be paid at final acceptance.

Section 202. — SELECTIVE CLEARING

Description

202.01 This work consists of selective clearing to remove and control invasive exotic plants from the mitigation sites shown in the plans.

202.02 Definitions.

(a) Selective clearing. Clearing where some trees and vegetation are designated to remain.

Construction Requirements

202.03 General. Clear, grub, and dispose of invasive exotic plants and other vegetation designated to be removed.

Remove designated debris by methods that prevent damage to vegetation not designated to be removed.

Do not use herbicides for mitigation sites location on Bureau of Land Management (BLM) property.

At least 30 days before starting invasive exotic plant removal and control, submit a written plan with the following according to Subsection 104.06:

- (a)** Method of plant removal by species for each mitigation site, including time of year for initial removal and frequency of subsequent control operations over the minimum 5-year maintenance period.
- (b)** Method of transporting removed biomass and proof that the disposal site accepts invasive exotic plant waste.
- (c)** List of proposed herbicides with their application rate by species and proof of registration for use by the State of California Department of Pesticide Regulation (DPR) as safe for riparian areas, wetlands, and aquatic environments.
- (d)** Proof of valid herbicide applicator's license.

Remove invasive exotic plants prior to installing plants. Perform initial removal of both the above and below ground biomass of invasive exotic plants and dispose. Remove biomass using hand pulling, tools, or mechanical means. Do not burn to remove invasive exotic plants. Vegetation removal at Palustrine Emergent Wetland site can be performed with earthwork grading equipment. Protect native plants within and adjacent to the mitigation sites.

Control invasive exotic plants from reestablishing for a minimum of 5-years or until final acceptance. Control invasive exotic plants through subsequent removal operations. Do not use herbicides on mitigation sites within BLM property. Using herbicides on mitigation sites within State Parks property is allowable for herbicides registered for use by the State of California Department of Pesticide Regulation (DPR) as safe for riparian areas, wetlands, and aquatic environments. Apply all herbicides in accordance with regulations set by DPR, the manufacturer's labeled instructions, and under a valid herbicide applicator's license. Locate herbicide mixing sites at existing road sites outside of the stream, riparian, and wetland areas. Only spray herbicides when wind speeds are less than 10 miles per hour.

CA FLAP SCR T5(1A)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

202.04 Acceptance. Additional clearing and grubbing will be evaluated under Subsection 106.02.

Acceptance criteria for all restoration and enhancement mitigation sites is maintaining less than 5% cover of invasive exotic plants for a minimum of 5-years as documented in the Government's annual monitoring report and approved by the CO.

Measurement

202.05 Measure the Section 202 pay items listed in the bid schedule according to Subsection 109.02.

Payment

202.06 The accepted quantities will be paid at the contract price per unit of measurement for the Section 202 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments will be paid as follows:

- (a) 50 percent of the pay item amount will be paid after initial removal of invasive exotic plants.
- (b) 10 percent of the pay item amount will be paid annually, over the 5-year maintenance period (totaling 50 percent of the pay item amount), after completing each year's control of invasive exotic plants.

Section 212. — SITE GRADING

Description

212.01 This work consists of performing site grading at designated locations within specified tolerances.

212.02 Not used.

Construction Requirements

212.03 Site Preparation. Clear the area of vegetation and obstructions according to Sections 202.

212.04 Excavation and Disposal.

Prior to excavating, perform potholing shown in the Plans and submit results to CO for review and approval of excavation depths across the site.

Perform site grading to remove vegetation and soil from the proposed Palustrine Emergent Wetland site to the depths approved by the CO.

Place removed vegetation and soil in the designed disposal area shown in the Plans with depths up to 18-inches and on top of existing vegetation.

212.05 Not Used.

212.06 Acceptance. Site grading work will be evaluated under Subsections 106.02 and 106.04.

Measurement

212.07 Measure the Section 212 pay items listed in the bid schedule according to Subsection 109.02.

Payment

212.08 The accepted quantities will be paid at the contract price per unit of measurement for the Section 212 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Section 619. — FENCES AND GATES

Description

619.01 This work consists of constructing and removing and resetting cattle exclusion fences and gates.

Material

619.02 Conform to the following Section and Subsection:

Fencing	<u>710</u>
Water for cementitious materials	725.01(a)

Construction Requirements

619.03 General. Clear along the fence line. Remove and dispose of trees, brush, logs, upturned stumps, roots of downed trees, rubbish, and debris. Perform clearing with minimum disturbance to the terrain outside the fence line.

Perform survey staking per Section 152.05(b) and conduct site visit with CO to review reference stakes and make field adjustments approved by the CO prior to beginning fence installation.

Schedule the fence installation, provide temporary fence, or other adequate means to prevent livestock from entering the project work area or adjoining properties.

Construct cast-in-place concrete for corner post installation using bagged concrete mix meeting the requirements of ASTM C387 with a 28 day strength of 4,000 psi.

619.04 Cattle Exclusion Fences and Gates.

(a) Wire fences and gates.

(1) Posts. Excavate holes for posts as shown in the plans. Space posts at intervals shown for the type of fence being installed. Measure post spacing interval parallel to the existing ground slope. Set posts in a vertical position.

Metal T-posts may be driven. Set metal corner, gate, end, and pull posts in concrete.

Install corner posts at changes in alignment of 30 degrees or more. Where new fence joins an existing fence, set end or corner posts and attach as approved.

(2) Braces. Limit fence runs to no more than 650 feet between adjacent corner braces, gate braces, end braces, or line braces. Install line braces at uniform intervals so the distance between any two braces is 650 feet or less. Construct braces before placing the fence wires on posts.

(a) Metal braces. Provide corner posts and pull posts with two braces, one each direction from the post in the main fence line. Provide end posts and gate posts with one brace in the line of the fence. Attach metal braces to the metal end, corner, pull, and gate posts as shown in the plans.

(3) Barbed wire and Barbless wire. Place barbed wire and barbless wire on the side of the post facing away from the mitigation area. Tightly stretch and fasten barbed wire and barbless wire to the posts.

Apply tension according to the manufacturer's recommendations using a mechanical stretcher or other device designed for such use. Do not use a motor vehicle to stretch the wire.

Splicing of barbed wire and barbless wire between posts is allowed provided no more than two splices, spaced at least 50 feet apart, occur in a run of fence. Use wrap or telephone type splices for the barbed and barbless wire with each end wrapped around the other wire for at least six complete turns.

(4) Fastening barbed wire and barbless wire. End the barbless wire and barbed wire at each end, corner, gate, and pull post. Wrap each line of barbed wire and barbless wire around the post and then itself with at least four turns.

Fasten each strand of barbed wire and barbless wire to each line post. Use wire ties or clamps to fasten the wires to metal posts. Securely splice tie wires to the fence on both sides of the post so there are two loops behind the post and one loop in front.

At grade depressions, alignment angles, and other locations where stresses tending to pull posts from the ground or out of alignment are created, snub or guy the wire fence. Attach the guy wire to each strand of barbed wire and barbless wire to maintain the entire fence in its normal shape. Attach the guy wire to a deadman anchor buried no more than 24 inches in the ground or to an approved anchor at a point that best serves to resist the pull of the wire fence. Deadman may also be fastened to posts. Place the deadman anchors at locations as directed.

Where required, install vertical cinch stays as shown in the plans. Twist the wire to allow weaving into the horizontal fence wires to provide rigid spacing. Weave barbed wires and barbless wires as applicable, into the cinch stay.

(5) Gates.

(a) Wire gates. Construct wire gates of the same material as the fence and as shown. Provide a taut and well-aligned closure of the opening, that can be readily opened and closed by hand.

619.05 Not used.

619.06 Not used.

619.07 Temporary Fence. If necessary, construct temporary fence to keep livestock off the project. Maintain the temporary fence during construction of the project or until the fence is directed to be removed. Dispose of temporary fence.

619.08 Not used.

619.10 Acceptance. Material for fences and gates will be evaluated under Subsections 106.02 and 106.03.

Construction of fences and gates will be evaluated under Subsections 106.02 and 106.04.

Measurement

619.11 Measure the Section 619 pay items listed in the bid schedule according to Subsection 109.02.

Do not measure clearing along the fence line or disposal of material for payment.

Payment

619.12 The accepted quantities will be paid at the contract price per unit of measurement for the Section 619 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Section 622. — RENTAL EQUIPMENT

Description

622.01 This work consists of providing and operating equipment for construction work ordered and not otherwise provided for under the contract.

Construction Requirements

622.02 Rental Equipment. The CO will order in writing rental equipment for use on the project. Submit the model number and serial number for each piece of equipment before use. Make equipment available for inspection and approval before use.

Provide an operator who is skilled in running the rental equipment. Provide equipment with auxiliary attachments necessary to complete the ordered work. Maintain the equipment in good working order.

Obtain approval of the length of workday and workweek before starting work. Keep daily records of the number of operating hours for each piece of equipment. Submit records with pay notes within 24 hours of the work being performed.

622.03 Acceptance. Rental equipment work will be evaluated under Subsections 106.02 and 106.04.

Measurement

622.04 Measure the Section 622 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

Do not measure inoperable equipment or equipment dependent upon another piece of inoperable equipment.

Payment

622.05 The accepted quantities will be paid at the contract price per unit of measurement for the Section 622 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Section 623. — GENERAL LABOR

Description

623.01 This work consists of providing laborers for construction work, as well as specialized laborers for technical and professional services ordered and not otherwise provided. This work also includes providing associated equipment and hand tools needed to complete the work.

Construction Requirements

623.02 General. The CO will order in writing labor and specialized labor, excluding biological services, to complete work and services on the project. Provide competent workers to perform the work.

Perform biological services according to Subsection 107.10(e).

Obtain approval of the length of workday and workweek before starting work. Keep daily records of the number of hours worked. Submit records with pay notes within 24 hours of the work being performed.

623.03 Specialized Labor. Perform special labor services as follows:

(a) Survey services. Provide personnel, equipment, and materials, and perform work according to Section 152.

Survey services include performing both field survey and associated office work. The ordered work may consist of mapping and construction survey and staking. Work may include, but is not limited to, boundary surveys, setting permanent monuments and markers, preparing legal descriptions and exhibits, topographic mapping, taking cross-sections, setting construction stakes and finish grade stakes, or other miscellaneous survey and staking activities.

(b) Technical services. Provide qualified engineering personnel experienced in highway construction and design, that can perform in a timely and accurate manner.

Provide personnel with at least 2 years' recent job experience in the type of highway design and construction provided for under the contract. Provide the names and relevant experience of personnel. Provide supporting tools and equipment.

Technical services include both field work and associated office work. The ordered work may consist of, but is not limited to, conducting field investigations, engineering work, drafting, performing calculations, or other miscellaneous engineering activities.

Submit calculations, notes, and supporting documentation generated to complete the work.

(c) Biological services. Furnish a USFWS-approved biologist with a Bachelor's Degree in the biological or natural resources related field and previous experience performing similar surveys for USFWS listed wildlife species (including California Red-legged Frog and San Francisco Garter Snake). See Section 107 for the species and requirements. Submit the names and qualifications of the proposed monitor(s) to the CO for approval by USFWS.

623.04 Acceptance. General labor work will be evaluated under Subsection 106.02.

Technical services will be evaluated under Subsections 106.02 and 106.04.

Measurement

623.05 Measure the Section 623 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

When measuring survey services by the hour, measure survey services by the crew hour regardless of crew size. Measure time spent in performing calculations, plotting cross-sections, or processing computer or other data.

When measuring technical services by the hour, measure time spent in performing calculations, drafting, plotting cross-sections, or processing computer or other data.

Do not measure time for transportation of laborers and special laborers to and from the project site.

Payment

623.06 The accepted quantities will be paid at the contract price per unit of measurement for the Section 623 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Section 625. — TURF ESTABLISHMENT

Description

625.01 This work consists of soil preparation, watering, seeding, and mulching. This work also consists of collecting, preparing, and storing seeds.

Material

625.02 Conform to the following Subsections:

Mulch	<u>713.05</u>
Seed	<u>713.04</u>
Water for vegetation	<u>725.01(b)</u>

Construction Requirements

625.03 General. Within 14 days after completion and approval of finished grades and initial plantings within the Palustrine Emergent Wetland site, apply turf establishment to those portions of the site. Do not seed during windy weather or when the ground is excessively wet, frozen, extremely dry, cloddy, hard pan, or not friable.

Develop a written plan for seed collection per 626.03.

Collect all seeds from within the mitigation sites, Wilder Ranch State Park, or Cotoni-Coast Dairies National Monument with approval from the CO and in compliance with Section 105. Prepare and store seeds until application to the mitigation site.

Commercially sourced seeds may be substituted for contractor collected seeds with proper certification that the species are from a local genetic source. The local genetic source is defined as plant material collected from San Mateo County or northern Santa Cruz County, from the western slope of the mountains, at an elevation of 0 to 1,000 feet. Submit genetic source certifications for seed substitutions to the CO for review and approval.

625.04 Preparing Seedbed. Remove weeds, sticks, stones 2 inches in diameter and larger, and other debris detrimental to application, growth, or maintenance of the turf.

Cultivate the seeding area to a minimum depth of 4 inches and prepare a firm, but friable seedbed before seeding.

Minimize soil compaction of seedbed.

625.05 Watering. Moisten seeding areas before seeding and maintain the moisture until turf is established.

625.06 Seeding. Apply the seed with hand-operated seeding methods.

625.07 Mulching. Apply the mulch with hand operated mulching methods within 48 hours after seeding.

625.08 Protecting and Caring for Seeded Areas. Protect and care for seeded areas including watering when needed. Repair or apply supplemental applications of seed, mulch, and water as many times as needed until vegetation is established. Vegetation is considered established when a uniform perennial vegetative cover with a density of at least 70 percent is attained.

625.09 Acceptance. Material for turf establishment will be evaluated under Subsections 106.02 and 106.03.

Placing of turf establishment will be evaluated under Subsections 106.02 and 106.04.

Measurement

625.10 Measure the Section 625 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

Do not measure watering, turf establishment, or supplemental applications of seed or mulch.

Do not measure seeding to restore access routes or staging areas on BLM property.

Payment

625.11 The accepted quantities will be paid at the contract price per unit of measurement for the Section 625 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for seed collection and storage will be paid as follows:

- (a) 75 percent of the pay item amount will be paid after seed collection.
- (b) The remaining 25 percent of the pay item amount price will be paid after the initial seeding and mulching is complete.

Progress payments for seeding and mulching will be paid as follows:

- (a) 75 percent of the pay item amount will be paid after initial seeding and mulching.
- (b) The remaining 25 percent of the pay item amount price will be paid after substantial completion acceptance by the CO.

Section 626. — PLANTS

Description

626.01 This work also consists of collecting seeds and propagating plants, harvesting willow poles, and installing plants.

Material

626.02 Conform to the following Subsections:

Mulch	<u>713.05</u>
Plant material	<u>713.06</u>
Water for vegetation	<u>725.01(b)</u>

Construction Requirements

626.03 General.

Provide a botanist to supervise all field work (seed collection, willow pole harvesting, and planting) that has a California native plant Field Botanist Certification.

Develop a written plan for seed collection, plant propagation, and willow live stake harvesting and submit to CO for approval. Allow 30 days for review. Include proof of Field Botanist Certification and provisions for time of year for seed collection of each species, seed cleaning and storage, plant propagation location and expected growing durations, and willow live stake harvesting locations and storage.

Do not plant in frozen ground or when the soil is saturated, extremely dry, cloddy, hard pan, not friable, or is otherwise unsatisfactory for planting.

Provide stock with a live and fibrous root system. Do not provide container-grown stock that is pot-bound, has a top system out of proportion (larger) than the size of the container, has rooting media that does not hold together when plant is removed from the container, or has roots growing out of the container.

Dig out transplants by gently removing the root ball. Ball and burlap the root ball before moving the transplant. Ensure the attached soil root ball diameter is at least two-thirds the size of the branch spread.

Transplant shrubs and small trees after plants have gone dormant. Harvest stakes from dormant plants.

Tag each plant or groups of plants with a weatherproof tag showing species name and date of delivery.

Install plants received on site within 7 days.

Collect all plant propagules for the Riparian Forest Restoration Sites 1 through 6 from within the Cotoni-Coast Dairies National Monument with approval from the CO and in compliance with Section 105. Collect all plant propagules for the Palustine Emergent Wetland Site from within Wilder Ranch State Park with approval from the CO and in compliance with Section 105. Propagate all plant material at a nursery and implement best management practices to control or eliminate the diseases caused by Phytophthora species.

Commercially grown container plants may be substituted for contractor propagated plants with proper certification that the species are from a local genetic source. The local genetic source is defined as plant material collected from San Mateo County or northern Santa Cruz County, from the western slope of the mountains, at an elevation of 0 to 1,000 feet. Submit genetic source certifications for plant material substitutions to the CO for review and approval.

Prior to planting, perform Selective Clearing under Section 202.

Layout plants randomly as shown in the plans to mimic a more natural distribution and to avoid grid patterns.

626.04 Delivery. Notify the CO at least 30 days before delivery of material to allow the CO the opportunity to select material at the source. Submit certifications and complete written information concerning the source of supply for plant material at least 14 days before delivery of plants to the project.

626.05 Protection and Temporary Storage. Package plants to provide protection against weather and breakage during transit. Tie and cover plants to prevent wind damage and dehydration when transporting by open vehicle. Pack and ventilate plants to prevent sweating when transporting by closed vehicle. Keep bare root plants below 35 °F during transport.

Keep growing media moist. Protect bark, branches, and root systems from damage. Replace damaged plants including plants with cracked or crushed root balls.

Protect plants not scheduled for immediate planting as follows:

- (a) Keep bare root plants below 35 °F;
- (b) Protect plants from over-exposure to sunlight and keep moist;
- (c) Protect plants from animals and insects; and
- (d) Hold salvaged woody species no more than 7 days.

626.06 Excavation for Plant Pits and Beds. At least 14 days before planting, submit planting locations and methods of planting for approval. Mark planting locations with stakes or flagging. Remove sod, weeds, roots, and other unsuitable material from the planting site. Excavate plant pits as shown in the details of the plan set.

Loosen soil at the sidewalls and bottom of the plant pit to a depth of 6 inches before setting the plant.

Do not leave planting holes open overnight.

626.07 Setting Plants. Do not plant material until inspected and approved. Set plants approximately plumb and at the same level or slightly lower than the depth at which they were grown in the nursery or

collected in the field. Set plants as follows:

(a) Bare root stock. Place bare rooted plants in the center of the plant pit with the roots properly spread in a natural position. Work backfill soil around and over the roots, tamp as hole is being filled, and water thoroughly.

(b) Container-grown stock. Remove the container immediately before planting. Place plants in the prepared pits on tamped backfill soil. Backfill the remainder of the plant with backfill soil and tamp.

(c) Live stakes. Use a planting bar or other tool to plant live stakes in fine to medium textured soils. Make planting hole at least 24 inches deep and place one live stake in each hole. Place live stakes with the basal end pointed downward and in contact with the water table and with buds pointing upwards and the tip extending at least 5 to 7 inches above the soil surface. Backfill planting hole with soil and tamp soil around stake to ensure good soil to stem contact.

(d) Plugs. Plant plugs slightly beneath the level of the soil grade. Place soil around the plug, tamp, and water thoroughly.

626.08 Watering.

Water plants during and immediately after planting, and throughout the plant establishment period. Saturate the soil around each plant at each watering.

626.09 Mulching. Remove weeds and other live vegetation from pit and water basin areas around individual plants and from entire shrub beds. Place mulch within 24 hours after planting.

626.10 Plant Maintenance and Establishment Period. The plant establishment period for each mitigation site starts after all plantings have been completed. The plant establishment period for each mitigation site ends 5-years after all plantings have been completed or final inspection, whichever occurs later. Employ necessary means to preserve the plants in a healthy growing condition during the plant establishment period. Water, weed, prune, and protect from animals, insects, and disease during the plant establishment period. Continue to treat invasive species during the plant establishment period under Section 202. Plant maintenance includes replanting dead or diseased plants to meet the acceptance criteria in Section 626.11 at no additional cost to the Government.

An inspection of the plant material will be made annually by the Government to identify percent cover of living plants, as well as dead, dying, or diseased plants for removal and replacement. Prepare and submit Corrective Action Plan(s) for approval to address annual plant deficiencies and present remedial actions to meet acceptance criteria. During the following planting season, remove and replace identified plants in compliance with the approved Corrective Action Plan as part of the 5-year maintenance and at no additional cost to the Government. A final inspection by the Government of all plant material at the end of the 5-year establishment period will be the basis for final acceptance.

626.11 Acceptance. Material for plants (including mulch) will be evaluated under Subsections 106.02 and 106.03.

Planting of plants will be evaluated under Subsections 106.02 and 106.04.

Acceptance criteria for all restoration mitigation sites is maintaining at least 70% native plant cover with the ratio of plant species shown in the plans for a minimum of 5-years as documented in the Government's annual monitoring report and approved by the CO.

Measurement

626.12 Measure the Section 626 pay items listed in the bid schedule according to Subsection 109.02.

Payment

626.13 The accepted quantities will be paid at the contract price per unit of measurement for the Section 626 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for plantings (collection/propagation) will be paid as follows:

- (a) 50 percent of the pay item amount will be paid after initial plant collection.
- (b) The remaining 50 percent of the pay item amount price will be paid after delivery of the plant to the mitigation site.
- (c) If plants are procured from an approved certified commercially grown supplier per 626.03, then (a) and (b) above will not apply and instead 100% of the pay item amount will be paid after delivery of the plant to the mitigation site.

Progress payments for plantings (installation) will be paid as follows:

- (a) 75 percent of the pay item amount will be paid after initial planting.
- (b) The remaining 25 percent of the pay item amount price will be paid after the Government's initial quarterly (i.e. 3 months) inspection if plants appear to be viable and growing.

Progress payments for plantings (5-year maintenance period) will be paid as follows:

- (a) Up to 30 percent of the pay item amount will be paid in the 1st year of maintenance after initial planting.
- (b) An additional 25 percent of the pay item amount will be paid in the 2nd year of maintenance.
- (c) An additional 20 percent of the pay item amount will be paid in the 3rd year of maintenance.
- (d) An additional 15 percent of the pay item amount will be paid in the 4th year of maintenance.
- (e) The remaining 10 percent of the pay item amount price will be paid after the final acceptance.

Section 710. — FENCING

710.01 Barbed Wire. Provide galvanized wire or aluminum coated wire conforming to AASHTO M 280.

710.02 Smooth Wire. Provide smooth wire conforming to ASTM A854.

710.03 Not used.

710.04 Not used.

710.05 Fence Posts.

(a) **Steel.** Conform to AASHTO M 281.

710.06 Not used.

710.07 Not used.

710.08 Temporary Plastic Fence. Provide plastic noncorrosive fence fabricated from polyethylene and UV stabilized for outdoor weathering. Conform to the following:

- | | |
|-------------------|----------------------|
| (a) Height | 48 in minimum |
| (b) Mesh openings | 3.15 to 3.35 in |
| (c) Color | International orange |
| (d) Mass | 0.16 lb/ft minimum |

Section 713. — ROADSIDE IMPROVEMENT MATERIAL

713.01 Not used.

713.02 Not used.

713.03 Not used.

713.04 Seed. Conform to the Federal Seed Act, the Federal Plant Protection Act, and applicable state and local seed and noxious weed laws. Do not use wet, moldy, contaminated, or damaged seed. Provide each seed type in separate sealed containers. Clearly label each container with the following:

- (a) Name and type of seed;
- (b) Lot number;
- (c) Net mass;
- (d) Percent of purity, germination, and hard seed;
- (e) Percent of maximum weed seed content;
- (f) Seed origin;
- (g) Noxious weeds present;
- (h) Other crop seed;
- (i) Inert matter;
- (j) Name and address of seed distributor; and
- (k) Mixture percent of each component.

Inoculate legume seed with approved cultures according to the manufacturer's recommendations.

Use the seed mix shown in the Plans for seeding of the Palustrine Emergent Wetland.

Use the following seed mix for restoring disturbed access routes and staging areas on BLM property as directed by the CO (PLS = Pure Live Seed):

Seeding for BLM property disturbance areas		
Scientific Name	Common Name	Pounds PLS / acre
<i>Bromus sitchensis</i> var. <i>carinatus</i>	California brome	5
<i>Elymus glaucus</i>	Blue wildrye	10
<i>Stipa pulchra</i>	Purple needlegrass	10
<i>Trifolium wildinovii</i>	Tomcat clover	5
<i>Vulpia microstachys</i>	Three weeks fescue	20
Total		50 PLS / acre

713.05 Mulch.

(a) **Wood fiber.** Provide processed wood fiber from wood chips conforming to the following:

- (1) Colored with a green dye non-injurious to plant growth;
- (2) Readily dispersible in water;
- (3) Nontoxic to seed or other plant material;
- (4) Free of growth or germination inhibiting substances;
- (5) Free of weed seed;
- (6) Air dried to a moisture content of 12 ± 3 percent;
- (7) Packaged in new containers labeled with the manufacturer's name; and
- (8) Packaged in a condition appropriate for mixing in a homogeneous slurry suitable for application with power spray equipment.

(b) **Mature compost.** Provide partially decomposed organic material, (such as leaves, grass, shrubs, and yard trimmings) cured for 4 to 8 weeks. Maturity is indicated by temperature stability and soil like odor. Provide friable, dark brown, weed-free, and pathogen-free mature compost conforming to the following:

- | | |
|--|----------------------------|
| (1) Carbon/nitrogen ratio | 25/1 to 35/1 |
| (2) Carbon/phosphorus ratio | 120/1 to 240/1 |
| (3) pH | 6.0 to 7.8 |
| (4) Water content | 40 percent maximum |
| (5) Particle size | |
| (a) Seeding and sodding | $\frac{1}{2}$ inch maximum |
| (b) Erosion control | 1 inch maximum |
| (6) Organic material | 50 percent minimum |
| (7) Synthetic, plastic, metal, or glass material | 2 percent maximum |

(c) **Wood chips.** Provide wood chips from local sources including clearing. Maximum size of chips is 4 by 2 by $\frac{1}{2}$ inches.

713.06 Plant Material. Unless otherwise specified, conform to the *American Standard for Nursery Stock*.

(a) **Quality of plant material.** Provide plants that are excellent representatives of their normal species or varieties. Provide nursery grown stock that has been transplanted or root-trimmed two or more times according to the kind and size of plant. Provide plants with a normally developed branch system. Do not provide plants with disfiguring knots, sun-scald, injuries, abrasions of the bark, dead or dry wood,

broken terminal growth, or other disfigurements.

Provide trees with reasonably straight stems and well branched and symmetrical branches according to their natural habits of growth.

(b) Plant names. For scientific and common plant names, conform to the United States Department of Agriculture (USDA) PLANTS Database. Clearly tag and identify plants by name and size.

(c) Grading standards. Conform to the latest edition of the *American Standard for Nursery Stock ANSI Z60.1*.

(d) Nursery inspection and plant quarantine. Provide plants that are without plant diseases and insect pests.

Comply with nursery inspection and plant quarantine rules and regulations of the states of origin and destination including Federal rules and regulations governing interstate movement of nursery stock. Provide a valid copy of the certificate of inspection with each package, box, bale, or carload shipped or otherwise delivered.

(e) Balled and burlapped plants. Provide plants from the original and undisturbed soil in which the plants were grown. Dig balled and burlapped plants to retain as many fibrous roots as possible. Wrap, transport, and handle the plants so the soil ball and small fibrous roots remain intact.

713.07 Not used.

713.08 Not used. 713.08 Not used.

713.09 Not used.

713.10 Not used.

713.11 Not used.

713.12 Fiber Rolls.

(a) Excelsior fiber rolls. Provide fiber rolls of curled excelsior fiber rolled into a cylindrical shape and encased in a tubular netting.

(b) Straw fiber rolls. Provide straw fiber rolls that are manufactured from certified weed free straw and wrapped in a tubular netting.

(c) Coir fiber rolls. Provide coir fiber rolls that are 100 percent coconut fiber rolled into a cylindrical shape and encased in a tubular netting.

(d) Compost fiber rolls. Provide tubular netting filled with mature compost conforming to Subsection 713.05(e).

(e) Tubular netting for fiber rolls. Provide biodegradable tubular netting with openings no larger than $\frac{3}{8}$ inch. Provide tubular netting diameter according to the plans. Do not use monofilament netting or similar material.

713.13 Not Used.

713.14 Not Used.

713.15 Not Used.

713.16 Silt Fence.

(a) Geotextile. Conform to Table 7 of AASHTO M 288.

(b) Posts. Conform to the following:

(1) Wood posts. Conform to the following:

(a) 1½ inches by 1½ inches by 4 feet minimum dimensions;

(b) Untreated fir, redwood, cedar, or pine, cut from sound timber with no loose or unsound knots; and

(c) Pointed on end driven in ground.

(2) Steel posts. Conform to the following:

(a) 48 inches minimum length;

(b) Cross-section shape that can resist failure from lateral loads (T-shaped, U-shaped, or L-shaped); and

(c) 0.75 pound per foot minimum mass.

(c) Silt fence reinforcement. Provide a wire mesh consisting of 14-gauge steel with mesh spacing of 6 by 6 inches or prefabricated polymeric mesh of equivalent strength.

Section 717. — STRUCTURAL METAL**717.01 Structural Steel.**

(a) Bolts and nuts. Conform to ASTM F1554, Grade 36 or 55, or ASTM A307 as shown in the plans. Provide nuts conforming to ASTM A563 for appropriate grade and size of anchor bolt. Lubricate galvanized nuts with a lubricant containing a visible dye.

717.06 Steel Pipe. Provide galvanized steel pipe conforming to ASTM A53, Type F, standard weight class, and plain ends for the designation specified.

717.07 Galvanized Coatings. Galvanize steel according to AASHTO M 111.

Section 725. — MISCELLANEOUS MATERIAL

725.01 Water. Conform to the following:

(a) Water for cementitious materials. Provide water for mixing or curing cement, concrete, mortar, or grout that conforms to AASHTO M 157. Potable water of known quality may be used without testing according to ASTM C1602. Potable water is safe for human consumption as defined by the public health authority having jurisdiction.

(b) Water for vegetation. Provide water for the planting or care of vegetation that is free of substances injurious to plant life (such as oils, acids, alkalies, or salts).

Water for construction. Provide water for earthwork, dust control, and incidental construction that is free of substances detrimental to the work.

PART II

SECTION – D

FEDERAL ACQUISITION REGULATION (FAR), REVOLUTIONARY FAR OVERHAUL (RFO) AND DEPARTMENT OF TRANSPORTATION ACQUISITION REGULATION(TAR) CONTRACT CLAUSES

CONTRACT CLAUSES

FAR, RFO AND TAR CLAUSES INCORPORATED BY REFERENCE AND FULL TEXT

- 52.202-1 Definitions (JUN 2020)**
- 52.203-3 Gratuities. (APR 1984)**
- 52.203-5 Covenant Against Contingent Fees. (MAY 2014)**
- 52.203-6 Restrictions on Subcontractor Sales to the Government (June 2020), with *Alternate I* (Nov 2021)**
- 52.203-7 Anti-Kickback Procedures. (JUN 2020)**
- 52.203-8 Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity. (MAY 2014)**
- 52.203-10 Price or Fee Adjustment for Illegal or Improper Activity. (MAY 2014)**
- 52.203-12 Limitation on Payments to Influence Certain Federal Transactions. (JUN 2020)**
- 52.203-13 Contractor Code of Business Ethics and Conduct (NOV 2021)**
- 52.203-14 Display of Hotline Poster(s) (NOV 2021)**

(a) Definition.

United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) Display of fraud hotline poster(s). Except as provided in paragraph (c)—

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites-

(i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and

(ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

General Fraud	https://www.oig.dot.gov/sites/default/files/files/OIG-generic-2.pdf
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(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation 3.1004(b)(1) on the date of subcontract award, except when the subcontract—

(1) Is for the acquisition of a commercial product or commercial service; or

(2) Is performed entirely outside the United States.

(End of clause)

52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020)(DEVIATION SEP 2025)
52.204-13	System for Award Management – Maintenance (OCT 2018)(DEVIATION NOV 2025)
52.204-14	Service Contract Reporting Requirements (Oct 2016)(DEVIATION NOV 2025))
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025)(DEVIATION SEP 2025)
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018)(DEVIATION SEP 2025)
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)(DEVIATION SEP 2025)

- 52.212-4 Contract Terms and Conditions – Commercial Products and Commercial Services (NOV 2023)(DEVIATION SEP 2025)**
- 52.215-2 Audit and Records - Negotiation. (JUN 2020)(DEVIATION OCT 2025)**
- 52.215-10 Price Reduction for Defective Certified Cost or Pricing Data. (AUG 2011)**
- 52.215-11 Price Reduction for Defective Certified Cost or Pricing Data - Modifications. (JUN 2020)**
- 52.215-12 Subcontractor Certified Cost or Pricing Data. (JUN 2020)(DEVIATION OCT 2025)**
- 52.215-13 Subcontractor Certified Cost or Pricing Data - Modifications. (JUN 2020)(DEVIATION OCT 2025)**
- 52.215-15 Pension Adjustments and Asset Reversions. (OCT 2010)(DEVIATION OCT 2025)**
- 52.215-18 Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions. (JUL 2005)(DEVIATION OCT 2025)**
- 52.215-19 Notification of Ownership Changes. (OCT 1997)(DEVIATION OCT 2025)**
- 52.215-21 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data - Modifications (NOV 2021)(DEVIATION OCT 2025)**
- 52.217-8 Option to Extend Services (Nov 1999)**

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the task order period.

(End of clause)

- 52.219-6 Notice of Total Small Business Set-Aside (Nov 2020)(DEVIATION NOV 2025)**
- 52.219-14 Limitations on Subcontracting (Oct 2022)(DEVIATION NOV 2025)**
- 52.219-28 Postaward Small Business Program Representation (Jan 2025)(DEVIATION NOV 2025))**
- 52.219-33 Nonmanufacturer Rule (SEP 2011)(DEVIATION NOV 2025)**

52.222-1	Notice to the Government of Labor Disputes (FEB 1997)(DEVIATION OCT 2025)
52.222-3	Convict Labor (June 2003)(DEVIATION OCT 2025)
52.222-6	Construction Wage Rate Requirements (AUG 2018)(DEVIATION OCT 2025)
52.222-7	Withholding of Funds. (MAY 2014)(DEVIATION OCT 2025)
52.222-8	Payrolls and Basic Records. (JUL 2021)(DEVIATION OCT 2025)
52.222-10	Compliance with Copeland Act Requirements. (FEB 1988)(DEVIATION OCT 2025)
52.222-11	Subcontracts (Labor Standards). (MAY 2014)(DEVIATION FEB 2025)(DEVIATION OCT 2025)
52.222-12	Contract Termination - Debarment. (MAY 2014)(DEVIATION FEB 2025)
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations. (MAY 2014)
52.222-14	Disputes Concerning Labor Standards. (FEB 1988)(DEVIATION OCT 2025)
52.222-15	Certification of Eligibility. (MAY 2014)
52.222-35	Equal Opportunity for Veterans. (JUN 2020)(DEVIATION OCT 2025)
52.222-36	Equal Opportunity for Workers with Disabilities (Jun 2020)(DEVIATION OCT 2025)
52.222-37	Employment Reports on Veterans (Jun 2020)(DEVIATION OCT 2025)
52.222-40	Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)(DEVIATION OCT 2025)
52.222-41	Service Contract Labor Standards (Aug 2018)(DEVIATION OCT 2025)
52.222-42	Statement of Equivalent Rates for Federal Hires (May 2014)
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)(DEVIATION OCT 2025)
52.222-50	Combating Trafficking in Persons (Oct 2025)(DEVIATION OCT 2025)
52.222-54	Employment Eligibility Verification (Jan 2025)(DEVIATION OCT 2025)

- 52.222-55 Minimum Wages Under Executive Order 14026 (Jan 2022)(DEVIATION OCT 2025)**
- 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)(DEVIATION OCT 2025)**
- 52.223-3 Hazardous Material Identification and Material Safety Data. (FEB 2021)(DEVIATION DEC 2025)**

(a) *Definitions.* As used in this clause—

Sustainable product means—

- (1) A product that contains recovered material designated by the EPA under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).
- (2) An energy-efficient product or low standby power device (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products>, <https://www.energystar.gov/products?s=mega>, and <https://www.energy.gov/femp/low-standby-power-product-list>).
- (3) A biobased product that meets the content requirements of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR Part 4270) (<https://www.biopreferred.gov/>).
- (4) A substance identified in the EPA's Significant New Alternatives Policy (SNAP) program as a safe alternative to an ozone-depleting substance (42 U.S.C. 76711) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap/unacceptable-and-acceptable-substitutes-tables>).

(b) *Requirements.* The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are—

- (1) Delivered to the Government;
- (2) Furnished for use by the Government;
- (3) Incorporated into the construction of a public building or public work; or

(c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

(End of clause)

- 52.223-5 Pollution Prevention and Right-to-Know Information. (MAY 2024)**
- 52.223-23 Sustainable Products and Services (May 2024)(DEVIATION FEB 2025)(DEVIATION DEC 2025)**

52.223-2 Reporting of Biobased Products Under Service and Construction Contract. (MAY 2024)(DEVIATION FEB 2025)(DEVIATION DEC 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) (7 CFR 4270.2).

USDA-designated product category a generic grouping of biobased products that are listed by USDA in a procurement guideline (7 CFR part 4270) and for which USDA has provided minimum biobased content standards (see <https://www.biopreferred.gov/resources/categories.html>).

(b) *Requirement.* The Contractor shall—

- (1) Report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and
- (2) Submit this report no later than—
 - (i) October 31 of each year during contract performance; and
 - (ii) At the end of contract performance.

(End of clause)

52.224-1 Privacy Act Notification. (APR 1984)

52.224-2 Privacy Act. (APR 1984)

52.223-23 Sustainable Products and Services (MAY 2024) (DEVIATION FEB 2025)(DEVIATION DEC 2025))

52.224-3 Privacy Training (Jan 2017)

52.225-1 Buy American-Supplies (Oct 2022)(DEVIATION NOV 2025)

52.225-3 Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023)(DEVIATION NOV 2025)

52.225-9 Buy American-Construction Materials (OCT 2022)(DEVIATION NOV 2025)

(a) *Definitions.* As used in this clause—

Commercially available off-the-shelf (COTS) item—

- (1) Means any item of supply (including construction material) that is—
 - (i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” at Federal Acquisition Regulation (FAR) 2.101);
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in [46 U.S.C. 40102\(4\)](#), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both—

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if—

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel

must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements [41 U.S.C. chapter 83](#), Buy American, by providing a preference for domestic construction material. In accordance with [41 U.S.C. 1907](#), the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

_____ *[Contracting Officer to list applicable excepted materials or indicate "none"]*

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) For domestic construction material that is a critical item or contains critical components.

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a

particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute. (1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

- (A) A description of the foreign and domestic construction materials;
- (B) Unit of measure;
- (C) Quantity;
- (D) Price;
- (E) Time of delivery or availability;
- (F) Location of the construction project;
- (G) Name and address of the proposed supplier; and
- (H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute or Balance of Payments Program.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction material description	Unit of measure	Quantity	Price (dollars)*
Item 1:			
Foreign construction material.	_____	_____	_____
Domestic construction material.	_____	_____	_____
Item 2:			
Foreign construction material.	_____	_____	_____
Domestic construction material.	_____	_____	_____
[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)]. [List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.] [Include other applicable supporting information.]			

(End of clause)

52.226-7	Drug-Free Workplace (May 2024)
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
2.227-1	Authorization and Consent. (JUN 2020)
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement. (JUN 2020)
52.227-4	Patent Indemnity--Construction Contracts. (DEC 2007)
52.228-2	Additional Bond Security. (OCT 1997)
52.228-5	Insurance - Work on a Government Installation. (JAN 1997)
52.228-11	Individual Surety - Pledges of Assets. (FEB 2021)
52.228-12	Prospective Subcontractor Requests for Bonds. (DEC 2022)
52.228-14	Irrevocable Letter of Credit (Nov 2014)
52.228-16	Performance and Payment Bonds – Other Than Construction (Nov 2006)
52.229-3	Federal, State, and Local Taxes. (FEB 2013)(DEVIATION AUG 2025)
52.232-29	Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
52.232-30	Installment Payments for Commercial Products and Commercial Services (Nov 2021)
52.232-33	Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)
52.232-17	Interest. (MAY 2014)
52.232-23	Assignment of Claims. (MAY 2014)
52.232-39	Unenforceability of Unauthorized Obligations (JUN 2013)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Aug 1996) (DEVIATION SEP 2025)

- 52.233-4 Applicable Law for Breach of Contract Claim (Oct 2004) (DEVIATION SEP 2025).**
- 52.233-4 Applicable Law for Breach of Contract Claim. (OCT 2004)(DEVIATION SEP 2025)**
- 52.236-2 Differing Site Conditions. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-3 Site Investigation and Conditions Affecting the Work. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-5 Material and Workmanship. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-6 Superintendence by the Contractor. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-7 Permits and Responsibilities. (NOV 1991)(DEVIATION AUG 2025)**
- 52.236-8 Other Contracts. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-10 Operations and Storage Areas. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-11 Use and Possession Prior to Completion. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-12 Cleaning Up. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-13 Accident Prevention. (NOV 1991)(DEVIATION AUG 2025) Alternate I (NOV 1991)**
- 52.236-15 Schedules for Construction Contracts. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-17 Layout of Work. (APR 1984)(DEVIATION AUG 2025)**
- 52.236-21 Specifications and Drawings for Construction. (FEB 1997)(DEVIATION AUG 2025)**
- 52.240-91 Security Prohibitions and Exclusions (DEVIATION SEP 2025)**

(a) Definitions. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means: (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types; (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153); (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

- (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
- (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

- (1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

- (i) Of that equipment; or
 - (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
- (2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
- (3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act— covered foreign entities.*

(1) *Prohibition.* The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/speciallydesignated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-andinformation>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity’s possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product)); (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

52.242-13 Bankruptcy. (JUL 1995)

52.242-14 Suspension of Work. (APR 1984)

52.245-1 Government Property (SEP 2021) ALTERNATE I (APR 2012)

52.245-9 Use and Charges. (APR 2012)

52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021)(DEVIATION OCT 2025)

52.248-3 Value Engineering - Construction. (OCT 2025)

52.252-2 -- Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at <http://www.acquisition.gov/far>

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation [Revolutionary FAR Overhaul \(RFO\)](#) (48 CFR [All Changed Chapters](#)) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Transportation Regulation (TAR) (48 CFR, Chapter 12) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

1252.201-70 Contracting Officer's Representative (Nov 2022)

1252.222-70 Strikes or Picketing Affecting Timely Completion of the Contract Work (Nov 2022)

1252.223-70 Removal or Disposal of Hazardous Substances -- Applicable Licenses and Permits (Nov 2022)

1252.223-71 Accident and Fire Reporting (Nov 2022)

1252.223-73 Seat Belt Use Policies and Programs (Nov 2022)

1252.237-72 Prohibition on Advertising (Nov 2022)

The contractor or its representatives (including training instructors) shall not advertise or solicit business from attendees for private, non-Government training during contracted-for training sessions. This prohibition extends to unsolicited oral comments, distribution or sales of written materials, and/or sales of promotional videos or audio tapes. The contractor agrees to insert this clause in its subcontracts.

(End of clause)

1252.228-74 Notification of Payment Bond Protection (NOV 2022)

(a) The prime contract is subject to the Bonds statute (historically referred to as the Miller Act) (40 U.S.C. chapter 31, subchapter III), under which the prime contractor has obtained a payment bond. This payment bond may provide certain unpaid employees, suppliers, and subcontractors a right to sue the bonding surety under the Bonds statute for amounts owned for work performed and materials delivery under the prime contract.

(b) Persons believing that they have legal remedies under the Bonds statute should consult their legal advisor regarding the proper steps to take to obtain these remedies. This notice clause does not provide any party any rights against the Federal Government, or create any relationship, contractual or otherwise, between the Federal Government and any private party.

(c) The surety which has provided the payment bond under the prime contract is: On File with the FHWA.

(d) Subcontract flowdown requirements. This clause shall be flowed down to all subcontractors. Prime contractors shall insert this notice clause in all first-tier subcontracts and shall require the clause to be subsequently flowed down by all first-tier subcontractors to all their subcontractors, at any tier. This notice contains information pertaining to the surety that provided the payment bond under the prime contract and is required to be inserted in its entirety to include the information set forth in paragraph (c).

(End of clause)

1252.232-70 Electronic Submission of Payment Requests (NOV 2022)(DEVIATION AUG 2025)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001.

(2) *Payment request* means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices,” this clause, and the applicable Payment clause included in this contract.

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) *Invoice payment* has the meaning given in FAR 32.001.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Processing system.* The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called *iSupplier*. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform *login.gov*. Vendors submitting invoices are required to submit invoices via *iSupplier* (DELPHI) and authenticated via *www.login.gov*.

(d) *Invoice requirements.* To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in *iSupplier* (DELPHI) shall contain the following:

- (1) Invoice number and invoice date.
- (2) Period of performance covered by invoice.
- (3) Contract number and title.
- (4) Task/Delivery Order number and title (if applicable).
- (5) Amount billed (by CLIN), current and cumulative.
- (6) Total (\$) of billing.
- (7) Cumulative total billed for all contract work to date.
- (8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.
- (9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.
- (10) The following statement “The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement.

Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government’s payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023).”

(e) *Payment system registration.* All persons accessing the *iSupplier* (DELPHI) will be required to have their own unique user ID and password and be credentialed through *login.gov*.

- (1) *Electronic authentication.* See *www.login.gov* for instructions.

(2) To create a *www.login.gov* account, the user will need a valid email address and a working phone number. The user will create a password and then *www.login.gov* will reply with an email confirming the email address.

(3) *iSupplier* (DELPHI) registration instructions: New users should navigate to: <http://einvoice.esc.gov> to establish an account. Users are required to log in to *iSupplier* (DELPHI) every 45 days to keep it active.

(4) *Training on DELPHI*. To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>.

(5) *Account Management*. Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from the system.

(f) *Waivers*. For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Vendors should contact their Contracting Officer's Representative (COR) for procedures.

(g) *Exceptions and alternate payment procedures*. If, based on one of the circumstances set forth in 1232.7002(a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

(End of clause)

1252.242-72 Dissemination of Contract Information (Nov 2022)

1252.239–93 Information and Communication Technology Accessibility (NOV 2022)

POST-AWARD EVALUATION OF CONTRACTOR PERFORMANCE

Contractor Performance Evaluations

- a. Interim and final evaluations of contractor performance will be prepared on this contract in accordance with RFO 42.1102 and TAM 1242.1502. The final performance evaluations will be prepared at the time of completion of work.
- b. The Contractor can elect to review the evaluation and submit additional information or provide a rebuttal statement. The contractor will be permitted 60 calendar days to respond from the date of receipt of the evaluation. Contractor response is voluntary. If the contractor does not respond within 60 days, the Government will presume that the Contractor has no comment. Any disagreement between the parties regarding an

evaluation will be referred to an individual at a level above the Contracting Officer, whose decision is final.

- c. Copies of the evaluations, Contractor responses, and review comments, if any, will be retained as part of the contract file, and may be used to support future award decisions.

The Federal Highway Administration utilizes the Contractor Performance Assessment Reporting System (CPARS) to record and maintain past performance information. CPARS hosts a suite of web-enabled applications that are used to document contractor performance information that is required by Federal Regulations. The CPARS module assesses performance on contracts for Systems, Services, Information Technology, and Operations Support; Architect-Engineer contracts; and Construction contracts. Reference material can be accessed in CPARS.

The registration process requires the Contractor to identify an individual that will serve as a primary contact. This individual will be authorized access to the evaluation for review and comment. In addition, the Contractor is encouraged to identify a secondary contact in the event the primary contact is unavailable to process the evaluation within the required 60-day time period. After the FHWA Focal Point registers the contract in CPARS, the contractor representative will receive a system generated email notifying him/her that the contract is registered. A system generated email will also provide the Contractor with a User ID if the person does not already have a CPARS User ID. After a performance evaluation has been prepared and is ready for comment, the Contractor representative will receive a system generated email notification that the performance evaluation is electronically available for review and comment. The Contractor representative will receive an automated email whenever an assessment is completed and can subsequently retrieve the completed assessment from CPARS. Contractors may access evaluations in CPARS for review and comment.

(End of Clause)

PART II

SECTION E

WAGE DETERMINATIONS

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 1977-0727 Revision No.: 79 Date Of Last Revision: 12/03/2025

State: California
Area: California Statewide

****Fringe Benefits Required Follow the Occupational Listing****

Employed on service contracts for forestry, land management, the cleaning of public use areas and timber inventory services.

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
08010 - Brush/Precommercial Thinner		19.88
08040 - Choker Setter		20.90
08070 - Faller/Bucker		43.23
08100 - Fire Lookout		19.88
08160 - Forestry/Logging Heavy Equipment Operator		23.58
08190 - Forestry Technician		22.12
08200 - Forestry Truck Driver		23.92
08250 - General Forestry Laborer		19.49
08280 - Nursery Specialist		27.59
08310 - Slash Piler/Burner		19.88
08340 - Tree Climber		22.34
08370 - Tree Planter		17.71
08400 - Tree Planter, Mechanical		17.71

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

** NOTES APPLYING TO THIS WAGE DETERMINATION **

Under the policy and guidance contained in All Agency Memorandum No. 159, the Wage and Hour Division does not recognize, for section 4(c) purposes, prospective wage rates and fringe benefit provisions that are effective only upon such contingencies as "approval of Wage and Hour, issuance of a wage determination, incorporation of the wage determination in the contract, adjusting the contract price, etc." (The relevant CBA section) in the collective bargaining agreement between (the parties)

contains contingency language that Wage and Hour does not recognize as reflecting ""arm's length negotiation"" under section 4(c) of the Act and 29 C.F.R. 5.11(a) of the regulations. This wage determination therefore reflects the actual CBA wage rates and fringe benefits paid under the predecessor contract.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE
Standard Form 1444 (SF-1444)**

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination. Such conformed classes of employees shall be paid the monetary wages and furnished the fringe benefits as are determined (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be retroactive to the commencement date of the contract (See 29 CFR 4.6(b)(2)(iv)(C)(vi)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the Wage and Hour Division, U.S. Department of Labor, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour decision to the contractor.
- 6) The contractor informs the affected employees.

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" (the Directory) should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the

wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination."

"General Decision Number: CA20260018 01/30/2026

Superseded General Decision Number: CA20250018

State: California

Construction Types: Building, Heavy (Heavy and Dredging) and Highway

Counties: Alameda, Calaveras, Contra Costa, Fresno, Kings, Madera, Mariposa, Merced, Monterey, San Benito, San Francisco, San Joaquin, San Mateo, Santa Clara, Santa Cruz, Stanislaus and Tuolumne Counties in California.

BUILDING CONSTRUCTION PROJECTS; DREDGING PROJECTS (does not include hopper dredge work); HEAVY CONSTRUCTION PROJECTS (does not include water well drilling); HIGHWAY CONSTRUCTION PROJECTS

Modification Number	Publication Date
0	01/02/2026
1	01/09/2026
2	01/16/2026
3	01/23/2026
4	01/30/2026

ASBE0016-004 05/01/2025

AREA 1: CALAVERAS, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, MONTEREY, SAN BENITO, SAN JOAQUIN, SANTA CRUZ, STANISLAUS & TUOLUMNE COUNTIES

AREA 2: ALAMEDA, CONTRA COSTA, SAN FRANCISCO, SAN MATEO & SANTA CLARA COUNTIES

	Rates	Fringes
--	-------	---------

Asbestos Removal
worker/hazardous material
handler (Includes
preparation, wetting,
stripping, removal,
scrapping, vacuuming, bagging
and disposing of all
insulation materials from
mechanical systems, whether
they contain asbestos or not)

Area 1.....	\$ 34.56	11.40
Area 2.....	\$ 44.73	12.75

ASBE0016-008 01/01/2024

AREA 1: ALAMEDA, CONTRA COSTA, MONTEREY, SAN BENITO, SAN FRANCISCO, SAN MATEO, SANTA CLARA, & SANTA CRUZ

AREA 2: CALAVERAS, COLUSA, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, SAN JOAQUIN, STANISLAUS, & TUOLUMNE

	Rates	Fringes
--	-------	---------

Asbestos Workers/Insulator
(Includes the application of
all insulating materials,
Protective Coverings,
Coatings, and Finishes to all
types of mechanical systems)

Area 1.....	\$ 84.76	25.07
Area 2.....	\$ 64.56	25.07

BOIL0549-001 01/01/2021

AREA 1: ALAMEDA, CONTRA COSTA, SAN FRANCISCO, SAN MATEO & SANTA CLARA COUNTIES

AREA 2: REMAINING COUNTIES

	Rates	Fringes
BOILERMAKER		
Area 1.....	\$ 49.62	41.27
Area 2.....	\$ 45.60	38.99

BRCA0003-001 08/01/2024

	Rates	Fringes
MARBLE FINISHER.....	\$ 42.06	19.80

BRCA0003-003 08/01/2024

	Rates	Fringes
MARBLE MASON.....	\$ 61.72	30.31

BRCA0003-005 05/01/2024

	Rates	Fringes
BRICKLAYER		
(1) Fresno, Kings, Madera, Mariposa, Merced....	\$ 51.17	25.80
(7) San Francisco, San Mateo.....	\$ 57.02	28.50
(8) Alameda, Contra Costa, San Benito, Santa Clara.....	\$ 56.94	26.28
(9) Calaveras, San Joaquin, Stanislaus, Toulumne.....	\$ 52.76	25.01
(16) Monterey, Santa Cruz...	\$ 54.18	27.82

BRCA0003-008 07/01/2024

	Rates	Fringes
TERRAZZO FINISHER.....	\$ 44.93	20.98
TERRAZZO WORKER/SETTER.....	\$ 60.58	29.79

BRCA0003-011 04/01/2024

AREA 1: Alameda, Contra Costa, Monterey, San Benito, San Francisco, San Mateo, Santa Clara, Santa Cruz

AREA 2: Calaveras, San Joaquin, Stanislaus, Tuolumne

AREA 3: Fresno, Kings, Madera, Mariposa, Merced

	Rates	Fringes
TILE FINISHER		
Area 1.....	\$ 37.75	19.28
Area 2.....	\$ 34.76	19.22
Area 3.....	\$ 32.68	18.32
Tile Layer		
Area 1.....	\$ 59.92	22.62
Area 2.....	\$ 55.17	22.52
Area 3.....	\$ 50.28	22.05

CARP0022-001 07/01/2023		

San Francisco County

	Rates	Fringes
Carpenters		
Bridge Builder/Highway Carpenter.....	\$ 60.39	33.52
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 60.54	33.52
Journeyman Carpenter.....	\$ 60.39	33.52
Millwright.....	\$ 60.49	35.11

CARP0034-001 07/01/2021		

	Rates	Fringes
Diver		
Assistant Tender, ROV Tender/Technician.....	\$ 54.10	34.69
Diver standby.....	\$ 60.51	34.69
Diver Tender.....	\$ 59.51	34.69
Diver wet.....	\$ 103.62	34.69
Manifold Operator (mixed gas).....	\$ 64.51	34.69
Manifold Operator (Standby).\$	59.51	34.69

DEPTH PAY (Surface Diving):

050 to 100 ft	\$2.00 per foot
101 to 150 ft	\$3.00 per foot
151 to 220 ft	\$4.00 per foot
221 ft.-deeper	\$5.00 per foot

SATURATION DIVING:

The standby rate shall apply until saturation starts. The saturation diving rate applies when divers are under pressure continuously until work task and decompression are complete. The diver rate shall be paid for all saturation hours.

DIVING IN ENCLOSURES:

Where it is necessary for Divers to enter pipes or tunnels, or other enclosures where there is no vertical ascent, the following premium shall be paid: Distance traveled from entrance 26 feet to 300 feet: \$1.00 per foot. When it is necessary for a diver to enter any pipe, tunnel or other

enclosure less than 48"" in height, the premium will be \$1.00 per foot.

WORK IN COMBINATION OF CLASSIFICATIONS:

Employees working in any combination of classifications within the diving crew (except dive supervisor) in a shift are paid in the classification with the highest rate for that shift.

CARP0034-003 07/01/2021

	Rates	Fringes
Piledriver.....	\$ 54.10	34.69

CARP0035-007 07/01/2020

AREA 1: Alameda, Contra Costa, San Francisco, San Mateo, Santa Clara counties

AREA 2: Monterey, San Benito, Santa Cruz Counties

AREA 3: Calaveras, Fresno, Kings, Madera, Mariposa, Merced, San Joaquin, Stanislaus, Tuolumne Counties

	Rates	Fringes
Modular Furniture Installer		
Area 1		
Installer.....	\$ 28.76	22.53
Lead Installer.....	\$ 32.21	23.03
Master Installer.....	\$ 36.43	23.03
Area 2		
Installer.....	\$ 26.11	22.53
Lead Installer.....	\$ 29.08	23.03
Master Installer.....	\$ 32.71	23.03
Area 3		
Installer.....	\$ 25.16	22.53
Lead Installer.....	\$ 27.96	23.03
Master Installer.....	\$ 31.38	23.03

CARP0035-008 08/01/2020

AREA 1: Alameda, Contra Costa, San Francisco, San Mateo, Santa Clara counties

AREA 2: Monterey, San Benito, Santa Cruz Counties

AREA 3: San Joaquin

AREA 4: Calaveras, Fresno, Kings, Madera, Mariposa, Merced, Stanislaus, Tuolumne Counties

	Rates	Fringes
Drywall Installers/Lathers:		
Area 1.....	\$ 52.65	31.26
Area 2.....	\$ 46.77	31.26
Area 3.....	\$ 47.27	31.26
Area 4.....	\$ 45.92	31.26
Drywall Stocker/Scrapper		
Area 1.....	\$ 26.33	18.22

Area 2.....	\$ 23.39	18.22
Area 3.....	\$ 23.64	18.22
Area 4.....	\$ 22.97	18.22

CARP0152-001 07/01/2020

Contra Costa County

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 52.65	30.82
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 52.80	30.82
Journeyman Carpenter.....	\$ 52.65	30.82
Millwright.....	\$ 52.75	32.41

CARP0152-002 07/01/2020

San Joaquin County

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 52.65	30.82
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 46.92	30.82
Journeyman Carpenter.....	\$ 46.77	30.82
Millwright.....	\$ 49.27	32.41

CARP0152-004 07/01/2020

Calaveras, Mariposa, Merced, Stanislaus and Tuolumne Counties

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 52.65	30.82
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 45.57	30.82
Journeyman Carpenter.....	\$ 45.42	30.82
Millwright.....	\$ 47.92	32.41

CARP0217-001 07/01/2023

San Mateo County

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 60.39	33.52
Hardwood Floorlayer,		

Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 60.54	33.52
Journeyman Carpenter.....	\$ 60.39	33.52
Millwright.....	\$ 60.49	35.11

CARP0405-001 07/01/2021

Santa Clara County

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 54.85	31.49
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 55.00	31.49
Journeyman Carpenter.....	\$ 54.85	31.49
Millwright.....	\$ 54.95	33.08

CARP0405-002 07/01/2021

San Benito County

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 54.85	31.49
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 49.12	31.49
Journeyman Carpenter.....	\$ 48.97	31.49
Millwright.....	\$ 51.47	33.08

CARP0505-001 07/01/2021

Santa Cruz County

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 54.85	31.49
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 49.12	31.49
Journeyman Carpenter.....	\$ 48.97	31.49
Millwright.....	\$ 51.47	33.08

CARP0605-001 07/01/2021

Monterey County

	Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 54.85	31.49
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 49.12	31.49
Journeyman Carpenter.....	\$ 48.97	31.49
Millwright.....	\$ 51.47	33.08

CARP0701-001 07/01/2021

Fresno and Madera Counties

Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 54.85	31.49
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 47.77	31.49
Journeyman Carpenter.....	\$ 47.62	31.49
Millwright.....	\$ 50.12	33.08

CARP0713-001 07/01/2021

Alameda County

Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 54.85	31.49
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 55.00	31.49
Journeyman Carpenter.....	\$ 54.85	31.49
Millwright.....	\$ 54.95	33.08

CARP1109-001 07/01/2021

Kings County

Rates	Fringes
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Carpenters

Bridge Builder/Highway Carpenter.....	\$ 54.85	31.49
Hardwood Floorlayer, Shingler, Power Saw Operator, Steel Scaffold & Steel Shoring Erector, Saw Filer.....	\$ 47.77	31.49
Journeyman Carpenter.....	\$ 47.62	31.49
Millwright.....	\$ 50.12	33.08

ELEC0006-004 12/01/2025

SAN FRANCISCO COUNTY

	Rates	Fringes
Sound & Communications		
Installer.....	\$ 58.83	3%+29.75
Technician.....	\$ 67.65	3%+29.75

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC0006-007 06/01/2024

SAN FRANCISCO COUNTY

	Rates	Fringes
ELECTRICIAN.....	\$ 91.25	3%+45.315

ELEC0100-002 09/01/2025

FRESNO, KINGS, AND MADERA COUNTIES

	Rates	Fringes
ELECTRICIAN.....	\$ 50.00	30.15

ELEC0100-005 12/01/2024

FRESNO, KINGS, MADERA

	Rates	Fringes
Communications System		
Installer.....	\$ 45.28	28.01
Technician.....	\$ 52.07	28.21

SCOPE OF WORK

Includes the installation testing, service and maintenance, of the following systems which utilize the transmission and/or transference of voice, sound, vision and digital for commercial, education, security and entertainment purposes for the following: TV monitoring and surveillance, background-foreground music, intercom and telephone interconnect, inventory control systems, microwave transmission, multi-media, multiplex, nurse call system, radio page, school intercom and sound, burglar alarms, and

low voltage master clock systems.

A. SOUND AND VOICE TRANSMISSION/TRANSFERENCE SYSTEMS

Background foreground music, Intercom and telephone interconnect systems, Telephone systems Nurse call systems, Radio page systems, School intercom and sound systems, Burglar alarm systems, Low voltage, master clock systems, Multi-media/multiplex systems, Sound and musical entertainment systems, RF systems, Antennas and Wave Guide,

B. FIRE ALARM SYSTEMS Installation, wire pulling and testing

C. TELEVISION AND VIDEO SYSTEMS Television monitoring and surveillance systems Video security systems, Video entertainment systems, Video educational systems, Microwave transmission systems, CATV and CCTV

D. SECURITY SYSTEMS Perimeter security systems Vibration sensor systems Card access systems Access control systems, Sonar/infrared monitoring equipment

E. COMMUNICATIONS SYSTEMS THAT TRANSMIT OR RECEIVE INFORMATION AND/OR CONTROL SYSTEMS THAT ARE INTRINSIC TO THE ABOVE LISTED SYSTEMS SCADA (Supervisory Control and Data Acquisition) PCM (Pulse Code Modulation) Inventory Control Systems, Digital Data Systems Broadband and Baseband and Carriers Point of Sale Systems, VSAT Data Systems Data Communication Systems RF and Remote Control Systems, Fiber Optic Data Systems

WORK EXCLUDED Raceway systems are not covered (excluding Ladder-Rack for the purpose of the above listed systems). Chases and/or nipples (not to exceed 10 feet) may be installed on open wiring systems. Energy management systems. SCADA (Supervisory Control and Data Acquisition) when not intrinsic to the above listed systems (in the scope). Fire alarm systems when installed in raceways (including wire and cable pulling) shall be performed at the electrician wage rate, when either of the following two (2) conditions apply:

1. The project involves new or major remodel building trades construction.
2. The conductors for the fire alarm system are installed in conduit.

ELEC0234-001 12/30/2025

MONTEREY, SAN BENITO AND SANTA CRUZ COUNTIES

	Rates	Fringes
ELECTRICIAN		
Zone A.....	\$ 70.41	33.76
Zone B.....	\$ 77.45	33.97

Zone A: All of Santa Cruz, Monterey, and San Benito Counties within 25 air miles of Highway 1 and Dolan Road in Moss Landing, and an area extending 5 miles east and west of Highway 101 South to the San Luis Obispo County Line

Zone B: Any area outside of Zone A

ELEC0234-003 12/01/2021

MONTEREY, SAN BENITO, AND SANTA CRUZ COUNTIES

	Rates	Fringes
Sound & Communications		
Installer.....	\$ 47.93	24.09
Technician.....	\$ 55.12	24.30

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC0302-001 03/01/2025

CONTRA COSTA COUNTY

	Rates	Fringes
CABLE SPLICER.....	\$ 74.54	36.09
ELECTRICIAN.....	\$ 66.26	35.84

ELEC0302-003 12/01/2025

CONTRA COSTA COUNTY

	Rates	Fringes
Sound & Communications		
Installer.....	\$ 53.08	3%+29.25
Technician.....	\$ 61.04	3%+29.25

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC0332-001 06/01/2025

SANTA CLARA COUNTY

	Rates	Fringes
CABLE SPLICER.....	\$ 104.68	49.46
ELECTRICIAN.....	\$ 91.03	49.05

FOOTNOTES: Work under compressed air or where gas masks are required, or work on ladders, scaffolds, stacks, "'Bosun's chairs,'" or other structures and where the workers are not protected by permanent guard rails at a distance of 40 to 60 ft. from the ground or supporting structures: to be paid one and one-half times the straight-time rate of pay. Work on structures of 60 ft. or over (as described above): to be paid twice the straight-time rate of pay.

ELEC0332-003 12/01/2025

SANTA CLARA COUNTY

	Rates	Fringes
Sound & Communications		
Installer.....	\$ 58.33	31.00
Technician.....	\$ 67.08	31.26

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC0595-001 06/01/2025

ALAMEDA COUNTY

	Rates	Fringes
CABLE SPLICER.....	\$ 87.40	3%+46.79
ELECTRICIAN.....	\$ 76.00	3%+46.79

ELEC0595-002 06/01/2024

CALAVERAS AND SAN JOAQUIN COUNTIES

	Rates	Fringes
CABLE SPLICER.....	\$ 59.34	3%+30.48
ELECTRICIAN		
(1) Tunnel work.....	\$ 51.92	3%+30.48
(2) All other work.....	\$ 49.45	3%+30.48

* ELEC0595-006 12/01/2025

ALAMEDA COUNTY

	Rates	Fringes
Sound & Communications		
Installer.....	\$ 58.33	3%+29.25
Technician.....	\$ 67.08	3%+29.25

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC0595-008 12/01/2024

CALAVERAS AND SAN JOAQUIN COUNTIES

	Rates	Fringes
Communications System		
Installer.....	\$ 45.28	3%+26.65
Technician.....	\$ 52.07	3%+26.65

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed

in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC0617-001 06/01/2025

SAN MATEO COUNTY

	Rates	Fringes
ELECTRICIAN.....	\$ 86.00	51.07

ELEC0617-003 12/01/2025

SAN MATEO COUNTY

	Rates	Fringes
Sound & Communications		
Installer.....	\$ 58.33	31.00
Technician.....	\$ 67.08	31.26

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC0684-001 12/01/2024

MARIPOSA, MERCED, STANISLAUS AND TUOLUMNE COUNTIES

	Rates	Fringes
ELECTRICIAN.....	\$ 48.50	30.09

CABLE SPLICER = 110% of Journeyman Electrician

ELEC0684-004 12/01/2024

MARIPOSA, MERCED, STANISLAUS AND TUOLUMNE COUNTIES

	Rates	Fringes
Communications System		
Installer.....	\$ 45.28	28.01
Technician.....	\$ 52.07	28.21

SCOPE OF WORK: Including any data system whose only function is to transmit or receive information; excluding all other data systems or multiple systems which include control function or power supply; inclusion or exclusion of terminations and testings of conductors determined by their function; excluding fire alarm work when installed in raceways (including wire and cable pulling) and when performed on new or major remodel building projects or jobs for which the conductors for the fire alarm system are installed in conduit; excluding installation of raceway systems, line voltage work, industrial work, life-safety systems (all buildings having floors located more than 75' above the lowest floor level having building access); excluding energy management systems.

FOOTNOTE: Fire alarm work when installed in raceways (including wire and cable pulling), on projects which involve new or major remodel building construction, for which the conductors for the fire alarm system are installed in the conduit, shall be performed by the inside electrician.

ELEC1245-001 01/01/2025

	Rates	Fringes
LINE CONSTRUCTION		
(1) Lineman; Cable splicer..	\$ 70.16	24.71
(2) Equipment specialist (operates crawler tractors, commercial motor vehicles, backhoes, trenchers, cranes (50 tons and below), overhead & underground distribution line equipment).....	\$ 53.30	22.26
(3) Groundman.....	\$ 40.76	21.76
(4) Powderman.....	\$ 51.87	18.79

HOLIDAYS: New Year's Day, M.L. King Day, Memorial Day,
Independence Day, Labor Day, Veterans Day, Thanksgiving Day
and day after Thanksgiving, Christmas Day

ELEV0008-001 01/01/2025

	Rates	Fringes
ELEVATOR MECHANIC.....	\$ 84.05	38.435+a+b

FOOTNOTE:

- a. PAID VACATION: Employer contributes 8% of regular hourly rate as vacation pay credit for employees with more than 5 years of service, and 6% for 6 months to 5 years of service.
- b. PAID HOLIDAYS: New Year's Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, Friday after Thanksgiving, and Christmas Day.

 ENGI0003-001 06/30/2025

""AREA 1"" WAGE RATES ARE LISTED BELOW

""AREA 2"" RECEIVES AN ADDITIONAL \$2.00 PER HOUR ABOVE AREA 1 RATES.

SEE AREA DEFINITIONS BELOW

	Rates	Fringes
OPERATOR: Power Equipment (AREA 1:)		
GROUP 1.....	\$ 66.96	32.53
GROUP 2.....	\$ 65.43	32.53
GROUP 3.....	\$ 63.95	32.53
GROUP 4.....	\$ 62.57	32.53
GROUP 5.....	\$ 61.30	32.53
GROUP 6.....	\$ 59.98	32.53
GROUP 7.....	\$ 58.84	32.53
GROUP 8.....	\$ 57.70	32.53
GROUP 8-A.....	\$ 55.49	32.53
OPERATOR: Power Equipment (Cranes and Attachments - AREA 1:)		
GROUP 1		
Cranes.....	\$ 68.59	32.53
Oiler.....	\$ 43.79	31.15
Truck crane oiler.....	\$ 46.08	31.15
GROUP 2		
Cranes.....	\$ 66.08	32.53
Oiler.....	\$ 42.83	31.15
Truck crane oiler.....	\$ 45.07	31.15
GROUP 3		
Cranes.....	\$ 64.34	32.53
Hydraulic.....	\$ 59.98	32.53
Oiler.....	\$ 42.55	31.15
Truck crane oiler.....	\$ 44.83	31.15
GROUP 4		
Cranes.....	\$ 61.30	32.53
OPERATOR: Power Equipment (Piledriving - AREA 1:)		
GROUP 1		
Lifting devices.....	\$ 52.64	31.15
Oiler.....	\$ 43.38	31.15
Truck Crane Oiler.....	\$ 45.66	31.15
GROUP 2		
Lifting devices.....	\$ 50.82	31.15
Oiler.....	\$ 43.11	31.15
Truck Crane Oiler.....	\$ 45.41	31.15
GROUP 3		
Lifting devices.....	\$ 49.14	31.15
Oiler.....	\$ 42.89	31.15
Truck Crane Oiler.....	\$ 45.12	31.15
GROUP 4		
Lifting devices.....	\$ 47.37	31.15

GROUP 5		
Lifting devices.....	\$ 44.73	31.15
GROUP 6		
Lifting devices.....	\$ 42.50	31.15
OPERATOR: Power Equipment (Steel Erection - AREA 1:)		
GROUP 1		
Cranes.....	\$ 68.81	32.53
Oiler.....	\$ 43.72	31.15
Truck Crane Oiler.....	\$ 45.95	31.15
GROUP 2		
Cranes.....	\$ 67.04	32.53
Oiler.....	\$ 43.45	31.15
Truck Crane Oiler.....	\$ 45.73	31.15
GROUP 3		
Cranes.....	\$ 65.56	32.53
Hydraulic.....	\$ 45.07	31.15
Oiler.....	\$ 43.23	31.15
Truck Crane Oiler.....	\$ 45.46	31.15
GROUP 4		
Cranes.....	\$ 63.54	32.53
GROUP 5		
Cranes.....	\$ 62.24	32.53
OPERATOR: Power Equipment (Tunnel and Underground Work - AREA 1:)		
SHAFTS, STOPES, RAISES:		
GROUP 1.....	\$ 63.06	32.53
GROUP 1-A.....	\$ 65.53	32.53
GROUP 2.....	\$ 61.80	32.53
GROUP 3.....	\$ 60.47	32.53
GROUP 4.....	\$ 59.33	32.53
GROUP 5.....	\$ 58.19	32.53
UNDERGROUND:		
GROUP 1.....	\$ 62.96	32.53
GROUP 1-A.....	\$ 65.43	32.53
GROUP 2.....	\$ 61.70	32.53
GROUP 3.....	\$ 60.37	32.53
GROUP 4.....	\$ 59.23	32.53
GROUP 5.....	\$ 58.09	32.53

FOOTNOTE: Work suspended by ropes or cables, or work on a
Yo-Yo Cat: \$.60 per hour additional.

POWER EQUIPMENT OPERATOR CLASSIFICATIONS

GROUP 1: Operator of helicopter (when used in erection work);
Hydraulic excavator, 7 cu. yds. and over; Power shovels,
over 7 cu. yds.

GROUP 2: Highline cableway; Hydraulic excavator, 3-1/2 cu.
yds. up to 7 cu. yds.; Licensed construction work boat
operator, on site; Power blade operator (finish); Power
shovels, over 1 cu. yd. up to and including 7 cu. yds.
m.r.c.

GROUP 3: Asphalt milling machine; Cable backhoe; Combination
backhoe and loader over 3/4 cu. yds.; Continuous flight tie
back machine assistant to engineer or mechanic; Crane
mounted continuous flight tie back machine, tonnage to
apply; Crane mounted drill attachment, tonnage to apply;
Dozer, slope brd; Gradall; Hydraulic excavator, up to 3 1/2
cu. yds.; Loader 4 cu. yds. and over; Long reach excavator;
Multiple engine scraper (when used as push pull); Power

shovels, up to and including 1 cu. yd.; Pre-stress wire wrapping machine; Side boom cat, 572 or larger; Track loader 4 cu. yds. and over; Wheel excavator (up to and including 750 cu. yds. per hour)

GROUP 4: Asphalt plant engineer/box person; Chicago boom; Combination backhoe and loader up to and including 3/4 cu. yd.; Concrete batch plant (wet or dry); Dozer and/or push cat; Pull- type elevating loader; Gradesetter, grade checker (GPS, mechanical or otherwise); Grooving and grinding machine; Heading shield operator; Heavy-duty drilling equipment, Hughes, LDH, Watson 3000 or similar; Heavy-duty repairperson and/or welder; Lime spreader; Loader under 4 cu. yds.; Lubrication and service engineer (mobile and grease rack); Mechanical finishers or spreader machine (asphalt, Barber-Greene and similar); Miller Formless M-9000 slope paver or similar; Portable crushing and screening plants; Power blade support; Roller operator, asphalt; Rubber-tired scraper, self-loading (paddle-wheels, etc.); Rubber- tired earthmoving equipment (scrapers); Slip form paver (concrete); Small tractor with drag; Soil stabilizer (P & H or equal); Spider plow and spider puller; Tubex pile rig; Unlicensed constuction work boat operator, on site; Timber skidder; Track loader up to 4 yds.; Tractor-drawn scraper; Tractor, compressor drill combination; Welder; Woods-Mixer (and other similar Pugmill equipment)

GROUP 5: Cast-in-place pipe laying machine; Combination slusher and motor operator; Concrete conveyor or concrete pump, truck or equipment mounted; Concrete conveyor, building site; Concrete pump or pumpcrete gun; Drilling equipment, Watson 2000, Texoma 700 or similar; Drilling and boring machinery, horizontal (not to apply to waterliners, wagon drills or jackhammers); Concrete mixer/all; Person and/or material hoist; Mechanical finishers (concrete) (Clary, Johnson, Bidwell Bridge Deck or similar types); Mechanical burm, curb and/or curb and gutter machine, concrete or asphalt); Mine or shaft hoist; Portable crusher; Power jumbo operator (setting slip-forms, etc., in tunnels); Screed (automatic or manual); Self-propelled compactor with dozer; Tractor with boom D6 or smaller; Trenching machine, maximum digging capacity over 5 ft. depth; Vermeer T-600B rock cutter or similar

GROUP 6: Armor-Coater (or similar); Ballast jack tamper; Boom- type backfilling machine; Assistant plant engineer; Bridge and/or gantry crane; Chemical grouting machine, truck-mounted; Chip spreading machine operator; Concrete saw (self-propelled unit on streets, highways, airports and canals); Deck engineer; Drilling equipment Texoma 600, Hughes 200 Series or similar up to and including 30 ft. m.r.c.; Drill doctor; Helicopter radio operator; Hydro-hammer or similar; Line master; Skidsteer loader, Bobcat larger than 743 series or similar (with attachments); Locomotive; Lull hi-lift or similar; Oiler, truck mounted equipment; Pavement breaker, truck-mounted, with compressor combination; Paving fabric installation and/or laying machine; Pipe bending machine (pipelines only); Pipe wrapping machine (tractor propelled and supported); Screed (except asphaltic concrete paving); Self- propelled pipeline wrapping machine; Tractor; Self-loading chipper; Concrete barrier moving machine

GROUP 7: Ballast regulator; Boom truck or dual-purpose

A-frame truck, non-rotating - under 15 tons; Cary lift or similar; Combination slurry mixer and/or cleaner; Drilling equipment, 20 ft. and under m.r.c.; Firetender (hot plant); Grouting machine operator; Highline cableway signaller; Stationary belt loader (Kolman or similar); Lift slab machine (Vagtborg and similar types); Maginnes internal full slab vibrator; Material hoist (1 drum); Mechanical trench shield; Pavement breaker with or without compressor combination); Pipe cleaning machine (tractor propelled and supported); Post driver; Roller (except asphalt); Chip Seal; Self-propelled automatically applied concrete curing machine (on streets, highways, airports and canals); Self-propelled compactor (without dozer); Signaller; Slip-form pumps (lifting device for concrete forms); Tie spacer; Tower mobile; Trenching machine, maximum digging capacity up to and including 5 ft. depth; Truck- type loader

GROUP 8: Bit sharpener; Boiler tender; Box operator; Brakeperson; Combination mixer and compressor (shotcrete/gunite); Compressor operator; Deckhand; Fire tender; Forklift (under 20 ft.); Generator; Gunite/shotcrete equipment operator; Hydraulic monitor; Ken seal machine (or similar); Mixermobile; Oiler; Pump operator; Refrigeration plant; Reservoir-debris tug (self-propelled floating); Ross Carrier (construction site); Rotomist operator; Self-propelled tape machine; Shuttlecar; Self-propelled power sweeper operator (includes vacuum sweeper); Slusher operator; Surface heater; Switchperson; Tar pot firetender; Tugger hoist, single drum; Vacuum cooling plant; Welding machine (powered other than by electricity)

GROUP 8-A: Elevator operator; Skidsteer loader-Bobcat 743 series or smaller, and similar (without attachments); Mini excavator under 25 H.P. (backhoe-trencher); Tub grinder wood chipper

ALL CRANES AND ATTACHMENTS

GROUP 1: Clamshell and dragline over 7 cu. yds.; Crane, over 100 tons; Derrick, over 100 tons; Derrick barge pedestal-mounted, over 100 tons; Self-propelled boom-type lifting device, over 100 tons

GROUP 2: Clamshell and dragline over 1 cu. yd. up to and including 7 cu. yds.; Crane, over 45 tons up to and including 100 tons; Derrick barge, 100 tons and under; Self-propelled boom-type lifting device, over 45 tons; Tower crane

GROUP 3: Clamshell and dragline up to and including 1 cu. yd.; Cranes 45 tons and under; Self-propelled boom-type lifting device 45 tons and under;

GROUP 4: Boom Truck or dual purpose A-frame truck, non-rotating over 15 tons; Truck-mounted rotating telescopic boom type lifting device, Manitex or similar (boom truck) over 15 tons; Truck-mounted rotating telescopic boom type lifting device, Manitex or similar (boom truck) - under 15 tons;

PILEDRIERS

GROUP 1: Derrick barge pedestal mounted over 100 tons; Clamshell over 7 cu. yds.; Self-propelled boom-type lifting device over 100 tons; Truck crane or crawler, land or barge mounted over 100 tons

GROUP 2: Derrick barge pedestal mounted 45 tons to and including 100 tons; Clamshell up to and including 7 cu. yds.; Self-propelled boom-type lifting device over 45 tons; Truck crane or crawler, land or barge mounted, over 45 tons up to and including 100 tons; Fundex F-12 hydraulic pile rig

GROUP 3: Derrick barge pedestal mounted under 45 tons; Self-propelled boom-type lifting device 45 tons and under; Skid/scow piledriver, any tonnage; Truck crane or crawler, land or barge mounted 45 tons and under

GROUP 4: Assistant operator in lieu of assistant to engineer; Forklift, 10 tons and over; Heavy-duty repairperson/welder

GROUP 5: Deck engineer

GROUP 6: Deckhand; Fire tender

STEEL ERECTORS

GROUP 1: Crane over 100 tons; Derrick over 100 tons; Self-propelled boom-type lifting device over 100 tons

GROUP 2: Crane over 45 tons to 100 tons; Derrick under 100 tons; Self-propelled boom-type lifting device over 45 tons to 100 tons; Tower crane

GROUP 3: Crane, 45 tons and under; Self-propelled boom-type lifting device, 45 tons and under

GROUP 4: Chicago boom; Forklift, 10 tons and over; Heavy-duty repair person/welder

GROUP 5: Boom cat

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TUNNEL AND UNDERGROUND WORK

GROUP 1-A: Tunnel bore machine operator, 20' diameter or more

GROUP 1: Heading shield operator; Heavy-duty repairperson; Mucking machine (rubber tired, rail or track type); Raised bore operator (tunnels); Tunnel mole bore operator

GROUP 2: Combination slusher and motor operator; Concrete pump or pumpcrete gun; Power jumbo operator

GROUP 3: Drill doctor; Mine or shaft hoist

GROUP 4: Combination slurry mixer cleaner; Grouting Machine operator; Motorman

GROUP 5: Bit Sharpener; Brakeman; Combination mixer and

compressor (gunite); Compressor operator; Oiler; Pump
operator; Slusher operator

AREA DESCRIPTIONS:

POWER EQUIPMENT OPERATORS, CRANES AND ATTACHMENTS, TUNNEL AND
UNDERGROUND [These areas do not apply to Piledrivers and
Steel Erectors]

AREA 1: ALAMEDA, CALAVERAS, CONTRA COSTA, FRESNO, KINGS,
MADERA, MARIPOSA, MERCED, MONTEREY, SAN BENITO, SAN
FRANCISCO, SAN JOAQUIN, SAN MATEO, SANTA CLARA, SANTA CRUZ,
STANISLAUS, TUOLUMNE

AREA 2 -NOTED BELOW

THE REMAINING COUNTIES ARE SPLIT BETWEEN AREA 1 AND AREA 2 AS
NOTED BELOW:

CALAVERAS COUNTY:

Area 1: Remainder

Area 2: Eastern Part

FRESNO COUNTY:

Area 1: Remainder

Area 2: Eastern Part

MADERA COUNTY:

Area 1: Remainder

Area 2: Eastern Part

MARIPOSA COUNTY:

Area 1: Remainder

Area 2: Eastern Part

MONTEREY COUNTY:

Area 1: Remainder

Area 2: Southwestern part

TUOLUMNE COUNTY:

Area 1: Remainder

Area 2: Eastern Part

ENGI0003-008 08/01/2024

	Rates	Fringes
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Dredging: (DREDGING:
CLAMSHELL & DIPPER DREDGING;
HYDRAULIC SUCTION DREDGING:)

AREA 1:

(1) Leverman.....	\$ 60.61	39.55
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(2) Dredge Dozer; Heavy duty repairman.....	\$ 55.65	39.55
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(3) Booster Pump Operator; Deck Engineer; Deck mate; Dredge Tender; Winch Operator.....	\$ 54.53	39.55
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(4) Bargeman; Deckhand; Fireman; Leveehand; Oiler..	\$ 51.23	39.55
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AREA 2:

(1) Leverman.....	\$ 62.61	39.55
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(2) Dredge Dozer; Heavy		
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duty repairman.....\$ 57.65	39.55
(3) Booster Pump	
Operator; Deck	
Engineer; Deck mate;	
Dredge Tender; Winch	
Operator.....\$ 56.53	39.55
(4) Bargeman; Deckhand;	
Fireman; Leveehand; Oiler..\$ 53.23	39.55

AREA DESCRIPTIONS

AREA 1: ALAMEDA,BUTTE, CONTRA COSTA, KINGS, MARIN, MERCED,
NAPA, SACRAMENTO, SAN BENITO, SAN FRANCISCO, SAN JOAQUIN,
SAN MATEO, SANTA CLARA, SANTA CRUZ, SOLANO, STANISLAUS,
SUTTER, YOLO, AND YUBA COUNTIES

AREA 2: MODOC COUNTY

THE REMAINGING COUNTIES ARE SPLIT BETWEEN AREA 1 AND AREA 2
AS NOTED BELOW:

ALPINE COUNTY:

Area 1: Northernmost part

Area 2: Remainder

CALAVERAS COUNTY:

Area 1: Remainder

Area 2: Eastern part

COLUSA COUNTY:

Area 1: Eastern part

Area 2: Remainder

ELDORADO COUNTY:

Area 1: North Central part

Area 2: Remainder

FRESNO COUNTY:

Area 1: Remainder

Area 2: Eastern part

GLENN COUNTY:

Area 1: Eastern part

Area 2: Remainder

LASSEN COUNTY:

Area 1: Western part along the Southern portion of border
with Shasta County

Area 2: Remainder

MADERA COUNTY:

Area 1: Except Eastern part

Area 2: Eastern part

MARIPOSA COUNTY

Area 1: Except Eastern part

Area 2: Eastern part

MONTERREY COUNTY

Area 1: Except Southwestern part

Area 2: Southwestern part

NEVADA COUNTY:

Area 1: All but the Northern portion along the border of
Sierra County

Area 2: Remainder

PLACER COUNTY:

Area 1: All but the Central portion

Area 2: Remainder

PLUMAS COUNTY:

Area 1: Western portion

Area 2: Remainder

SHASTA COUNTY:

Area 1: All but the Northeastern corner

Area 2: Remainder

SIERRA COUNTY:

Area 1: Western part

Area 2: Remainder

SISKIYOU COUNTY:

Area 1: Central part

Area 2: Remainder

SONOMA COUNTY:

Area 1: All but the Northwestern corner

Area 2: Remainder

TEHAMA COUNTY:

Area 1: All but the Western border with Mendocino & Trinity Counties

Area 2: Remainder

TRINITY COUNTY:

Area 1: East Central part and the Northeastern border with Shasta County

Area 2: Remainder

TUOLUMNE COUNTY:

Area 1: Except Eastern part

Area 2: Eastern part

 ENGI0003-019 06/30/2025

SEE AREA DESCRIPTIONS BELOW

	Rates	Fringes
OPERATOR: Power Equipment (LANDSCAPE WORK ONLY)		
GROUP 1		
AREA 1.....	\$ 55.85	28.56
AREA 2.....	\$ 57.85	28.56
GROUP 2		
AREA 1.....	\$ 52.25	28.56
AREA 2.....	\$ 54.25	28.56
GROUP 3		
AREA 1.....	\$ 47.64	28.56
AREA 2.....	\$ 49.64	28.56

GROUP DESCRIPTIONS:

GROUP 1: Landscape Finish Grade Operator: All finish grade work regardless of equipment used, and all equipment with a rating more than 65 HP.

GROUP 2: Landscape Operator up to 65 HP: All equipment with a manufacturer's rating of 65 HP or less except equipment covered by Group 1 or Group 3. The following equipment shall be included except when used for finish work as long as manufacturer's rating is 65 HP or less: A-Frame and Winch Truck, Backhoe, Forklift, Hydragraphic Seeder Machine, Roller, Rubber-Tired and Track Earthmoving Equipment, Skiploader, Straw Blowers, and Trencher 31 HP up to 65 HP.

GROUP 3: Landscae Utility Operator: Small Rubber-Tired Tractor, Trencher Under 31 HP.

AREA DESCRIPTIONS:

AREA 1: ALAMEDA, BUTTE, CONTRA COSTA, KINGS, MARIN, MERCED, NAPA, SACRAMENTO, SAN BENITO, SAN FRANCISCO, SAN JOAQUIN, SAN MATEO, SANTA CLARA, SANTA CRUZ, SOLANO, STANISLAUS, SUTTER, YOLO, AND YUBA COUNTIES

AREA 2 - MODOC COUNTY

THE REMAINING COUNTIES ARE SPLIT BETWEEN AREA 1 AND AREA 2 AS NOTED BELOW:

ALPINE COUNTY:

Area 1: Northernmost part
Area 2: Remainder

CALAVERAS COUNTY:

Area 1: Except Eastern part
Area 2: Eastern part

COLUSA COUNTY:

Area 1: Eastern part
Area 2: Remainder

DEL NORTE COUNTY:

Area 1: Extreme Southwestern corner
Area 2: Remainder

ELDORADO COUNTY:

Area 1: North Central part
Area 2: Remainder

FRESNO COUNTY

Area 1: Except Eastern part
Area 2: Eastern part

GLENN COUNTY:

Area 1: Eastern part
Area 2: Remainder

HUMBOLDT COUNTY:

Area 1: Except Eastern and Southwestern parts
Area 2: Remainder

LAKE COUNTY:

Area 1: Southern part
Area 2: Remainder

LASSEN COUNTY:

Area 1: Western part along the Southern portion of border with Shasta County
Area 2: Remainder

MADERA COUNTY

Area 1: Remainder

Area 2: Eastern part

MARIPOSA COUNTY

Area 1: Remainder

Area 2: Eastern part

MENDOCINO COUNTY:

Area 1: Central and Southeastern parts

Area 2: Remainder

MONTEREY COUNTY

Area 1: Remainder

Area 2: Southwestern part

NEVADA COUNTY:

Area 1: All but the Northern portion along the border of
Sierra County

Area 2: Remainder

PLACER COUNTY:

Area 1: All but the Central portion

Area 2: Remainder

PLUMAS COUNTY:

Area 1: Western portion

Area 2: Remainder

SHASTA COUNTY:

Area 1: All but the Northeastern corner

Area 2: Remainder

SIERRA COUNTY:

Area 1: Western part

Area 2: Remainder

SISKIYOU COUNTY:

Area 1: Central part

Area 2: Remainder

SONOMA COUNTY:

Area 1: All but the Northwestern corner

Area 2: Remainder

TEHAMA COUNTY:

Area 1: All but the Western border with Mendocino & Trinity
Counties

Area 2: Remainder

TRINITY COUNTY:

Area 1: East Central part and the Northeast border with
Shasta County

Area 2: Remainder

TULARE COUNTY;

Area 1: Remainder

Area 2: Eastern part

TUOLUMNE COUNTY:

Area 1: Remainder

Area 2: Eastern Part

IRON0377-001 01/01/2025

ALAMEDA, CONTRA COSTA, SAN MATEO, SANTA CLARA COUNTIES

	Rates	Fringes
Ironworkers:		
Fence Erector.....	\$ 45.78	26.51
Ornamental, Reinforcing and Structural.....	\$ 55.33	35.15

PREMIUM PAY:

\$6.00 additional per hour at the following locations:

China Lake Naval Test Station, Chocolate Mountains Naval Reserve-Niland,
Edwards AFB, Fort Irwin Military Station, Fort Irwin Training Center-Goldstone, San Clemente Island, San Nicholas Island, Susanville Federal Prison, 29 Palms - Marine Corps, U.S. Marine Base - Barstow, U.S. Naval Air Facility - Sealey, Vandenberg AFB

\$4.00 additional per hour at the following locations:

Army Defense Language Institute - Monterey, Fallon Air Base, Naval Post Graduate School - Monterey, Yermo Marine Corps Logistics Center

\$2.00 additional per hour at the following locations:

Port Hueneme, Port Mugu, U.S. Coast Guard Station - Two Rock

IRON0377-003 01/01/2025

SAN FRANCISCO CITY and COUNTY

	Rates	Fringes
Ironworkers:		
Fence Erector.....	\$ 45.78	26.51
Ornamental, Reinforcing and Structural.....	\$ 55.83	35.15

PREMIUM PAY:

\$6.00 additional per hour at the following locations:

China Lake Naval Test Station, Chocolate Mountains Naval Reserve-Niland,
Edwards AFB, Fort Irwin Military Station, Fort Irwin Training Center-Goldstone, San Clemente Island, San Nicholas Island, Susanville Federal Prison, 29 Palms - Marine Corps, U.S. Marine Base - Barstow, U.S. Naval Air Facility - Sealey, Vandenberg AFB

\$4.00 additional per hour at the following locations:

Army Defense Language Institute - Monterey, Fallon Air Base, Naval Post Graduate School - Monterey, Yermo Marine Corps Logistics Center

\$2.00 additional per hour at the following locations:

Port Hueneme, Port Mugu, U.S. Coast Guard Station - Two Rock

IRON0433-005 01/01/2025

REMAINING COUNTIES

	Rates	Fringes
IRONWORKER		
Fence Erector.....	\$ 45.78	26.51
Ornamental, Reinforcing and Structural.....	\$ 50.70	35.15

PREMIUM PAY:

\$6.00 additional per hour at the following locations:

China Lake Naval Test Station, Chocolate Mountains Naval Reserve-Niland, Edwards AFB, Fort Irwin Military Station, Fort Irwin Training Center-Goldstone, San Clemente Island, San Nicholas Island, Susanville Federal Prison, 29 Palms - Marine Corps, U.S. Marine Base - Barstow, U.S. Naval Air Facility - Seale, Vandenberg AFB

\$4.00 additional per hour at the following locations:

Army Defense Language Institute - Monterey, Fallon Air Base, Naval Post Graduate School - Monterey, Yermo Marine Corps Logistics Center

\$2.00 additional per hour at the following locations:

Port Hueneme, Port Mugu, U.S. Coast Guard Station - Two Rock

LAB00067-006 06/30/2025

AREA ""1"" - ALAMEDA, CONTRA COSTA, SAN FRANCISCO, SAN MATEO AND SANTA CLARA COUNTIES

AREA ""2"" - CALAVERAS, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, MONTEREY, SAN BENITO, SAN JOAQUIN, STANISLAUS, AND TUOLUMNE COUNTIES

	Rates	Fringes
LABORER (ASBESTOS/MOLD/LEAD LABORER)		
Area 1.....	\$ 39.15	30.03
Area 2.....	\$ 38.15	30.03

ASBESTOS REMOVAL-SCOPE OF WORK: Site mobilization; initial site clean-up; site preparation; removal of asbestos-containing materials from walls and ceilings; or from pipes, boilers and mechanical systems only if they are being scrapped; encapsulation, enclosure and disposal of asbestos-containing materials by hand or with equipment or machinery; scaffolding; fabrication of temporary wooden barriers; and assembly of decontamination stations.

LAB00073-002 07/01/2023

CALAVERAS AND SAN JOAQUIN COUNTIES

	Rates	Fringes
LABORER (TRAFFIC CONTROL/LANE CLOSURE)		
Escort Driver, Flag Person..\$	36.26	27.30
Traffic Control Person I....\$	36.56	27.30
Traffic Control Person II...\$	34.06	27.30

TRAFFIC CONTROL PERSON I: Layout of traffic control, crash cushions, construction area and roadside signage.

TRAFFIC CONTROL PERSON II: Installation and removal of temporary/permanent signs, markers, delineators and crash cushions.

LAB00073-003 07/01/2023

SAN JOAQUIN COUNTY

	Rates	Fringes
LABORER		
Mason Tender-Brick.....\$	36.29	25.55

LAB00073-005 06/26/2023

	Rates	Fringes
Tunnel and Shaft Laborers:		
GROUP 1.....\$	45.89	27.72
GROUP 2.....\$	45.66	27.72
GROUP 3.....\$	45.41	27.72
GROUP 4.....\$	44.96	27.72
GROUP 5.....\$	44.42	27.72
Shotcrete Specialist.....\$	46.41	27.72

TUNNEL AND SHAFT CLASSIFICATIONS

GROUP 1: Diamond driller; Groundmen; Guniting and shotcrete nozzlemen

GROUP 2: Rodmen; Shaft work & raise (below actual or excavated ground level)

GROUP 3: Bit grinder; Blaster, driller, powdermen, heading; Cherry pickermen - where car is lifted; Concrete finisher in tunnel; Concrete screedman; Grout pumpman and potman; Guniting & shotcrete gunman & potman; Headermen; High pressure nozzleman; Miner - tunnel, including top and bottom man on shaft and raise work; Nipper; Nozzleman on slick line; Sandblaster - potman, Robotic Shotcrete Placer, Segment Erector, Tunnel Muck Hauler, Steel Form raiser and setter; Timberman, retimberman (wood or steel or substitute materials therefore); Tugger (for tunnel laborer work); Cable tender; Chuck tender; Powderman - primer house

GROUP 4: Vibrator operator, pavement breaker; Bull gang - muckers, trackmen; Concrete crew - includes rodding and spreading, Dumpmen (any method)

GROUP 5: Grout crew; Reboundman; Swamper/ Brakeman

LAB00073-007 06/30/2025

CALAVERAS AND SAN JOAQUIN COUNTIES

	Rates	Fringes
LABORER (CONSTRUCTION CRAFT LABORERS)		
Construction Specialist		
Group.....	\$ 38.85	29.89
GROUP 1.....	\$ 38.15	29.89
GROUP 1-a.....	\$ 38.37	29.89
GROUP 1-c.....	\$ 38.20	29.89
GROUP 1-e.....	\$ 38.70	29.89
GROUP 1-f.....	\$ 30.37	29.89
GROUP 2.....	\$ 38.00	29.89
GROUP 3.....	\$ 37.90	29.89
GROUP 4.....	\$ 31.59	29.89
See groups 1-b and 1-d under laborer classifications.		
LABORER (GARDENERS, HORTICULTURAL & LANDSCAPE LABORERS)		
(1) New Construction.....	\$ 37.90	29.89
(2) Establishment Warranty Period.....	\$ 31.59	29.89
LABORER (GUNITE)		
GROUP 1.....	\$ 39.11	29.89
GROUP 2.....	\$ 38.61	29.89
GROUP 3.....	\$ 38.02	29.89
GROUP 4.....	\$ 37.90	29.89
LABORER (WRECKING)		
GROUP 1.....	\$ 38.15	29.89
GROUP 2.....	\$ 38.00	29.89

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond driller; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander, pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Leade Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and buckner; Form raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or

over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work; Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling of same); Tree toppler; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. "Sewer cleaner" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

GROUP 1-d: Maintenance and repair track and road beds. All employees performing work covered herein shall receive \$.25 per hour above their regular rate for all work performed on underground structures not specifically covered herein. This paragraph shall not be construed to apply to work below ground level in open cut. It shall apply to cut and cover work of subway construction after the temporary cover has been placed.

GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting

or shot crete

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100 lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher; Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification "material cleaner" is to be utilized under the following conditions:

A: at demolition site for the salvage of the material.

B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.

C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of "form stripping, cleaning and oiling and moving to the next point of erection".

GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Gunite laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

CALAVERAS AND SAN JOAQUIN COUNTIES

	Rates	Fringes
LABORER (Plaster Tender).....	\$ 39.77	28.54

Work on a swing stage scaffold: \$1.00 per hour additional.

LAB00261-003 07/01/2023

SAN FRANCISCO AND SAN MATEO COUNTIES

	Rates	Fringes
LABORER (TRAFFIC CONTROL/LANE CLOSURE)		
Escort Driver, Flag Person..	\$ 37.26	27.30
Traffic Control Person I....	\$ 37.56	27.30
Traffic Control Person II...	\$ 35.06	27.30

TRAFFIC CONTROL PERSON I: Layout of traffic control, crash cushions, construction area and roadside signage.

TRAFFIC CONTROL PERSON II: Installation and removal of temporary/permanent signs, markers, delineators and crash cushions.

LAB00261-005 06/26/2023

SAN FRANCISCO AND SAN MATEO COUNTIES

	Rates	Fringes
Tunnel and Shaft Laborers:		
GROUP 1.....	\$ 45.89	27.72
GROUP 2.....	\$ 45.66	27.72
GROUP 3.....	\$ 45.41	27.72
GROUP 4.....	\$ 44.96	27.72
GROUP 5.....	\$ 44.42	27.72
Shotcrete Specialist.....	\$ 46.41	27.72

TUNNEL AND SHAFT CLASSIFICATIONS

GROUP 1: Diamond driller; Groundmen; Guniting and shotcrete nozzlemen

GROUP 2: Rodmen; Shaft work & raise (below actual or excavated ground level)

GROUP 3: Bit grinder; Blaster, driller, powdermen, heading; Cherry pickermen - where car is lifted; Concrete finisher in tunnel; Concrete screedman; Grout pumpman and potman; Guniting & shotcrete gunman & potman; Headermen; High pressure nozzleman; Miner - tunnel, including top and bottom man on shaft and raise work; Nipper; Nozzleman on slick line; Sandblaster - potman, Robotic Shotcrete Placer, Segment Erector, Tunnel Muck Hauler, Steel Form raiser and setter; Timberman, retimberman (wood or steel or substitute materials therefore); Tugger (for tunnel laborer work); Cable tender; Chuck tender; Powderman - primer house

GROUP 4: Vibrator operator, pavement breaker; Bull gang - muckers, trackmen; Concrete crew - includes rodding and spreading, Dumpmen (any method)

GROUP 5: Grout crew; Reboundman; Swamper/ Brakeman

LAB00261-009 06/26/2023

SAN FRANCISCO, AND SAN MATEO COUNTIES

	Rates	Fringes
LABORER (CONSTRUCTION CRAFT		
LABORERS - AREA A:)		
Construction Specialist		
Group.....	\$ 37.20	27.30
GROUP 1.....	\$ 36.50	27.30
GROUP 1-a.....	\$ 36.72	27.30
GROUP 1-c.....	\$ 36.55	27.30
GROUP 1-e.....	\$ 37.05	27.30
GROUP 1-f.....	\$ 31.37	23.20
GROUP 2.....	\$ 36.35	27.30
GROUP 3.....	\$ 36.25	27.30
GROUP 4.....	\$ 29.94	27.30
See groups 1-b and 1-d under laborer classifications.		
LABORER (GARDENERS,		
HORTICULTURAL & LANDSCAPE		
LABORERS - AREA A:)		
(1) New Construction.....	\$ 36.25	27.30
(2) Establishment Warranty		
Period.....	\$ 29.94	27.30
LABORER (WRECKING - AREA A:)		
GROUP 1.....	\$ 36.50	27.30
GROUP 2.....	\$ 36.35	27.30
Laborers: (GUNITE - AREA A:)		
GROUP 1.....	\$ 37.46	27.30
GROUP 2.....	\$ 36.96	27.30
GROUP 3.....	\$ 36.37	27.30
GROUP 4.....	\$ 36.25	27.30

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond driller; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander, pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Leade Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and buckner; Form

raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work; Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling of same); Tree topper; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. "Sewer cleaner" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

GROUP 1-d: Maintenance and repair track and road beds. All employees performing work covered herein shall receive \$.25 per hour above their regular rate for all work performed on underground structures not specifically covered herein. This paragraph shall not be construed to apply to work below ground level in open cut. It shall apply to cut and cover work of subway construction after the temporary cover has been placed.

GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting or shot crete

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100 lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher; Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification "material cleaner" is to be utilized under the following conditions:

A: at demolition site for the salvage of the material.

B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.

C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of "form stripping, cleaning and oiling and moving to the next point of erection".

GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Guniting laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

LAB00261-011 07/01/2023

SAN FRANCISCO AND SAN MATEO COUNTIES:

	Rates	Fringes
MASON TENDER, BRICK.....	\$ 37.05	27.45

FOOTNOTES: Underground work such as sewers, manholes, catch basins, sewer pipes, telephone conduits, tunnels and cut trenches: \$5.00 per day additional. Work in live sewage: \$2.50 per day additional.

LAB00261-014 07/01/2023

SAN FRANCISCO AND SAN MATEO COUNTIES:

	Rates	Fringes
PLASTER TENDER.....	\$ 41.93	30.32

Work on a swing stage scaffold: \$1.00 per hour additional.

LAB00270-003 07/01/2023

AREA A: SANTA CLARA

AREA B: MONTEREY, SAN BENITO AND SANTA CRUZ COUNTIES

	Rates	Fringes
LABORER (TRAFFIC CONTROL/LANE CLOSURE)		
Escort Driver, Flag Person		
Area A.....	\$ 37.26	27.30
Area B.....	\$ 36.26	27.30
Traffic Control Person I		
Area A.....	\$ 37.56	27.30
Area B.....	\$ 36.56	27.30
Traffic Control Person II		
Area A.....	\$ 35.06	27.30
Area B.....	\$ 34.06	27.30

TRAFFIC CONTROL PERSON I: Layout of traffic control, crash cushions, construction area and roadside signage.

TRAFFIC CONTROL PERSON II: Installation and removal of temporary/permanent signs, markers, delineators and crash cushions.

LAB00270-004 06/26/2023

MONTEREY, SAN BENITO, SANTA CLARA, AND SANTA CRUZ COUNTIES

	Rates	Fringes
Tunnel and Shaft Laborers:		
GROUP 1.....	\$ 45.89	27.72
GROUP 2.....	\$ 45.66	27.72
GROUP 3.....	\$ 45.41	27.72
GROUP 4.....	\$ 44.96	27.72
GROUP 5.....	\$ 44.42	27.72

Shotcrete Specialist.....\$ 46.41	27.72
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TUNNEL AND SHAFT CLASSIFICATIONS

GROUP 1: Diamond driller; Groundmen; Gunite and shotcrete nozzlelemen

GROUP 2: Rodmen; Shaft work & raise (below actual or excavated ground level)

GROUP 3: Bit grinder; Blaster, driller, powdermen, heading; Cherry pickermen - where car is lifted; Concrete finisher in tunnel; Concrete screedman; Grout pumpman and potman; Gunite & shotcrete gunman & potman; Headermen; High pressure nozzleman; Miner - tunnel, including top and bottom man on shaft and raise work; Nipper; Nozzleman on slick line; Sandblaster - potman, Robotic Shotcrete Placer, Segment Erector, Tunnel Muck Hauler, Steel Form raiser and setter; Timberman, retimberman (wood or steel or substitute materials therefore); Tugger (for tunnel laborer work); Cable tender; Chuck tender; Powderman - primer house

GROUP 4: Vibrator operator, pavement breaker; Bull gang - muckers, trackmen; Concrete crew - includes rodding and spreading, Dumpmen (any method)

GROUP 5: Grout crew; Reboundman; Swamper/ Brakeman

LAB00270-005 07/01/2023

MONTEREY AND SAN BENITO COUNTIES

	Rates	Fringes
LABORER		
Mason Tender-Brick.....\$ 36.29		25.55

LAB00270-007 06/26/2023

MONTEREY, SAN BENITO AND SANTA CRUZ COUNTIES

	Rates	Fringes
LABORER (CONSTRUCTION CRAFT		
LABORERS - AREA B)		
Construction Specialist		
Group.....\$ 36.20		27.30
GROUP 1.....\$ 35.50		27.30
GROUP 1-a.....\$ 35.72		27.30
GROUP 1-c.....\$ 35.55		27.30
GROUP 1-e.....\$ 36.05		27.30
GROUP 1-f.....\$ 36.08		27.30
GROUP 2.....\$ 35.35		27.30
GROUP 3.....\$ 35.25		27.30
GROUP 4.....\$ 28.94		27.30

See groups 1-b and 1-d under laborer classifications.

LABORER (GARDENERS,
HORTICULTURAL & LANDSCAPE

LABORERS - AREA B)		
(1) New Construction.....\$ 35.25		27.30
(2) Establishment Warranty		
Period.....\$ 28.94		27.30
LABORER (GUNITE - AREA B)		
GROUP 1.....\$ 36.46		27.30

GROUP 2.....	\$ 35.96	27.30
GROUP 3.....	\$ 35.37	27.30
GROUP 4.....	\$ 35.25	27.30
LABORER (WRECKING - AREA B)		
GROUP 1.....	\$ 35.50	27.30
GROUP 2.....	\$ 35.35	27.30

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond driller; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander, pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Leade Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and buckler; Form raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work; Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types

regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling of same); Tree topper; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. ""Sewer cleaner"" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

GROUP 1-d: Maintenance and repair track and road beds. All employees performing work covered herein shall receive \$.25 per hour above their regular rate for all work performed on underground structures not specifically covered herein. This paragraph shall not be construed to apply to work below ground level in open cut. It shall apply to cut and cover work of subway construction after the temporary cover has been placed.

GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting or shot crete

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100 lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher; Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification ""material

cleaner"" is to be utilized under the following conditions:

- A: at demolition site for the salvage of the material.
- B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.
- C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of ""form stripping, cleaning and oiling and moving to the next point of erection"".

GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Guniting laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

LAB00270-010 06/26/2023

SANTA CLARA COUNTY

	Rates	Fringes
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LABORER (CONSTRUCTION CRAFT

LABORERS - AREA A:)

Construction Specialist

Group.....	\$ 37.20	27.30
GROUP 1.....	\$ 36.50	27.30
GROUP 1-a.....	\$ 36.72	27.30
GROUP 1-c.....	\$ 36.55	27.30
GROUP 1-e.....	\$ 37.05	27.30
GROUP 1-f.....	\$ 37.08	27.30
GROUP 2.....	\$ 36.35	27.30
GROUP 3.....	\$ 36.25	27.30
GROUP 4.....	\$ 29.94	27.30

See groups 1-b and 1-d under laborer classifications.

LABORER (GARDENERS,

HORTICULTURAL & LANDSCAPE

LABORERS - AREA A:)

(1) New Construction.....	\$ 36.25	27.30
(2) Establishment Warranty		
Period.....	\$ 29.94	27.30

LABORER (GUNITE - AREA A:)

GROUP 1.....	\$ 37.46	27.30
GROUP 2.....	\$ 36.96	27.30
GROUP 3.....	\$ 36.37	27.30
GROUP 4.....	\$ 36.25	27.30

LABORER (WRECKING - AREA A:)

GROUP 1.....	\$ 36.50	27.30
GROUP 2.....	\$ 36.35	27.30

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond driller; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander, pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Leade Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and buckler; Form raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work; Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling

of same); Tree topper; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. ""Sewer cleaner"" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

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GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting or shot crete

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100 lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher; Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification ""material cleaner"" is to be utilized under the following conditions:

A: at demolition site for the salvage of the material.

B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.

C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of ""form stripping, cleaning and oiling and moving to the next point of erection"".

GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Guniting laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

LAB00270-011 07/01/2023

MONTEREY, SAN BENITO, SANTA CRUZ, SANTA CLARA COUNTIES

	Rates	Fringes
LABORER (Plaster Tender).....	\$ 40.68	29.68

Work on a swing stage scaffold: \$1.00 per hour additional.

LAB00294-001 07/01/2023

FRESNO, KINGS AND MADERA COUNTIES

	Rates	Fringes
LABORER (Brick)		
Mason Tender-Brick.....	\$ 36.29	25.55

LAB00294-002 07/01/2023

FRESNO, KINGS, AND MADERA COUNTIES

	Rates	Fringes
LABORER (TRAFFIC CONTROL/LANE CLOSURE)		
Escort Driver, Flag Person..	\$ 36.26	27.30
Traffic Control Person I....	\$ 36.56	27.30
Traffic Control Person II...	\$ 34.06	27.30

TRAFFIC CONTROL PERSON I: Layout of traffic control, crash cushions, construction area and roadside signage.

TRAFFIC CONTROL PERSON II: Installation and removal of

temporary/permanent signs, markers, delineators and crash cushions.

LAB00294-005 06/26/2023

FRESNO, KINGS, AND MADERA COUNTIES

	Rates	Fringes
Tunnel and Shaft Laborers:		
GROUP 1.....	\$ 45.89	27.72
GROUP 2.....	\$ 45.66	27.72
GROUP 3.....	\$ 45.41	27.72
GROUP 4.....	\$ 44.96	27.72
GROUP 5.....	\$ 44.42	27.72
Shotcrete Specialist.....	\$ 46.41	27.72

TUNNEL AND SHAFT CLASSIFICATIONS

GROUP 1: Diamond driller; Groundmen; Guniting and shotcrete nozzlemen

GROUP 2: Rodmen; Shaft work & raise (below actual or excavated ground level)

GROUP 3: Bit grinder; Blaster, driller, powdermen, heading; Cherry pickers - where car is lifted; Concrete finisher in tunnel; Concrete screedman; Grout pumpman and potman; Guniting & shotcrete gunman & potman; Headermen; High pressure nozzleman; Miner - tunnel, including top and bottom man on shaft and raise work; Nipper; Nozzleman on slick line; Sandblaster - potman, Robotic Shotcrete Placer, Segment Erector, Tunnel Muck Hauler, Steel Form raiser and setter; Timberman, retimberman (wood or steel or substitute materials therefore); Tugger (for tunnel laborer work); Cable tender; Chuck tender; Powderman - primer house

GROUP 4: Vibrator operator, pavement breaker; Bull gang - muckers, trackmen; Concrete crew - includes rodding and spreading, Dumpmen (any method)

GROUP 5: Grout crew; Reboundman; Swamper/ Brakeman

LAB00294-008 06/26/2023

FRESNO, KINGS, AND MADERA COUNTIES

	Rates	Fringes
LABORER (CONSTRUCTION CRAFT LABORERS - AREA B:)		
Construction Specialist		
Group.....	\$ 36.20	27.30
GROUP 1.....	\$ 35.50	27.30
GROUP 1-a.....	\$ 35.72	27.30
GROUP 1-c.....	\$ 35.55	27.30
GROUP 1-e.....	\$ 36.05	27.30
GROUP 1-f.....	\$ 36.08	27.30
GROUP 2.....	\$ 35.35	27.30
GROUP 3.....	\$ 35.25	27.30
GROUP 4.....	\$ 28.94	27.30

See groups 1-b and 1-d under laborer classifications.

LABORER (GARDENERS,

HORTICULTURAL & LANDSCAPE

LABORERS - AREA B:)

(1) New Construction.....	\$ 35.25	27.30
(2) Establishment Warranty Period.....	\$ 28.94	27.30

LABORER (GUNITE - AREA B:)

GROUP 1.....	\$ 36.46	27.30
GROUP 2.....	\$ 35.96	27.30
GROUP 3.....	\$ 35.37	27.30
GROUP 4.....	\$ 35.25	27.30

LABORER (WRECKING - AREA B:)

GROUP 1.....	\$ 35.50	27.30
GROUP 2.....	\$ 35.35	27.30

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond driller; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander, pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Leade Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and buckler; Form raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work;

Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling of same); Tree topper; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. ""Sewer cleaner"" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

GROUP 1-d: Maintenance and repair track and road beds. All employees performing work covered herein shall receive \$.25 per hour above their regular rate for all work performed on underground structures not specifically covered herein. This paragraph shall not be construed to apply to work below ground level in open cut. It shall apply to cut and cover work of subway construction after the temporary cover has been placed.

GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting or shot crete

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100 lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher; Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction

track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification "material cleaner" is to be utilized under the following conditions:

- A: at demolition site for the salvage of the material.
 B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.
 C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of "form stripping, cleaning and oiling and moving to the next point of erection".

GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Guniting laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

LAB00294-010 07/01/2023

CALAVERAS, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, SAN JOAQUIN, STANISLAUS & TUOLUMNE

	Rates	Fringes
Plasterer tender.....	\$ 39.77	28.54
Work on a swing stage scaffold: \$1.00 per hour additional.		

LAB00294-011 07/01/2023

FRESNO, KINGS, AND MADERA COUNTIES

	Rates	Fringes
LABORER (Plaster Tender).....	\$ 39.77	28.54
Work on a swing stage scaffold: \$1.00 per hour additional.		

LAB00304-002 07/01/2023

ALAMEDA COUNTY

	Rates	Fringes
LABORER (TRAFFIC CONTROL/LANE CLOSURE)		
Escort Driver, Flag Person..	\$ 37.26	27.30
Traffic Control Person I....	\$ 37.56	27.30
Traffic Control Person II...	\$ 35.06	27.30

TRAFFIC CONTROL PERSON I: Layout of traffic control, crash cushions, construction area and roadside signage.

TRAFFIC CONTROL PERSON II: Installation and removal of temporary/permanent signs, markers, delineators and crash cushions.

LAB00304-003 06/26/2023

ALAMEDA COUNTY

	Rates	Fringes
Tunnel and Shaft Laborers:		
GROUP 1.....	\$ 45.89	27.72
GROUP 2.....	\$ 45.66	27.72
GROUP 3.....	\$ 45.41	27.72
GROUP 4.....	\$ 44.96	27.72
GROUP 5.....	\$ 44.42	27.72
Shotcrete Specialist.....	\$ 46.41	27.72

TUNNEL AND SHAFT CLASSIFICATIONS

GROUP 1: Diamond driller; Groundmen; Guniting and shotcrete nozzlemen

GROUP 2: Rodmen; Shaft work & raise (below actual or excavated ground level)

GROUP 3: Bit grinder; Blaster, driller, powdermen, heading; Cherry pickers - where car is lifted; Concrete finisher in tunnel; Concrete screedman; Grout pumpman and potman; Guniting & shotcrete gunman & potman; Headermen; High pressure nozzleman; Miner - tunnel, including top and bottom man on shaft and raise work; Nipper; Nozzleman on slick line; Sandblaster - potman, Robotic Shotcrete Placer, Segment Erector, Tunnel Muck Hauler, Steel Form raiser and setter; Timberman, retimberman (wood or steel or substitute materials therefore); Tugger (for tunnel laborer work); Cable tender; Chuck tender; Powderman - primer house

GROUP 4: Vibrator operator, pavement breaker; Bull gang - muckers, trackmen; Concrete crew - includes rodding and spreading, Dumpmen (any method)

GROUP 5: Grout crew; Reboundman; Swamper/ Brakeman

LAB00304-004 06/26/2023

ALAMEDA COUNTY

Rates	Fringes
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LABORER (CONSTRUCTION CRAFT

LABORERS - AREA A:)

Construction Specialist

Group.....	\$ 37.20	27.30
GROUP 1.....	\$ 36.50	27.30
GROUP 1-a.....	\$ 36.72	27.30
GROUP 1-c.....	\$ 36.55	27.30
GROUP 1-e.....	\$ 37.05	27.30
GROUP 1-f.....	\$ 37.08	27.30
GROUP 2.....	\$ 36.35	27.30
GROUP 3.....	\$ 36.25	27.30
GROUP 4.....	\$ 29.94	27.30

See groups 1-b and 1-d under laborer classifications.

LABORER (GARDENERS,

HORTICULTURAL & LANDSCAPE

LABORERS - AREA A:)

(1) New Construction.....	\$ 36.25	27.30
(2) Establishment Warranty		
Period.....	\$ 29.94	27.30

LABORER (GUNITE - AREA A:)

GROUP 1.....	\$ 37.46	27.30
GROUP 2.....	\$ 36.96	27.30
GROUP 3.....	\$ 36.37	27.30
GROUP 4.....	\$ 36.25	27.30

LABORER (WRECKING - AREA A:)

GROUP 1.....	\$ 36.50	27.30
GROUP 2.....	\$ 36.35	27.30

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond driller; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander, pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Leade Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and buckler; Form raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No

joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work; Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling of same); Tree topper; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. "Sewer cleaner" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

GROUP 1-d: Maintenance and repair track and road beds. All employees performing work covered herein shall receive \$.25 per hour above their regular rate for all work performed on underground structures not specifically covered herein. This paragraph shall not be construed to apply to work below ground level in open cut. It shall apply to cut and cover work of subway construction after the temporary cover has been placed.

GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting or shotcrete

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100

lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher; Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification "material cleaner" is to be utilized under the following conditions:

- A: at demolition site for the salvage of the material.
- B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.
- C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of "form stripping, cleaning and oiling and moving to the next point of erection".

GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Guniting laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

LAB00304-005 07/01/2023

ALAMEDA COUNTY

	Rates	Fringes
Brick Tender.....	\$ 37.05	27.45

FOOTNOTES: Work on jobs where heat-protective clothing is required: \$2.00 per hour additional. Work at grinders: \$.25

per hour additional. Manhole work: \$2.00 per day additional.

LAB00304-008 07/01/2023

ALAMEDA AND CONTRA COSTA COUNTIES:

	Rates	Fringes
Plasterer tender.....	\$ 41.93	30.32

Work on a swing stage scaffold: \$1.00 per hour additional.

LAB00324-002 07/01/2023

CONTRA COSTA COUNTY

	Rates	Fringes
LABORER (TRAFFIC CONTROL/LANE CLOSURE)		
Escort Driver, Flag Person..	\$ 37.26	27.30
Traffic Control Person I....	\$ 37.56	27.30
Traffic Control Person II...	\$ 35.06	27.30

TRAFFIC CONTROL PERSON I: Layout of traffic control, crash cushions, construction area and roadside signage.

TRAFFIC CONTROL PERSON II: Installation and removal of temporary/permanent signs, markers, delineators and crash cushions.

LAB00324-006 06/26/2023

CONTRA COSTA COUNTY

	Rates	Fringes
Tunnel and Shaft Laborers:		
GROUP 1.....	\$ 45.89	27.72
GROUP 2.....	\$ 45.66	27.72
GROUP 3.....	\$ 45.41	27.72
GROUP 4.....	\$ 44.96	27.72
GROUP 5.....	\$ 44.42	27.72
Shotcrete Specialist.....	\$ 46.41	27.72

TUNNEL AND SHAFT CLASSIFICATIONS

GROUP 1: Diamond driller; Groundmen; Guniting and shotcrete nozzlemen

GROUP 2: Rodmen; Shaft work & raise (below actual or excavated ground level)

GROUP 3: Bit grinder; Blaster, driller, powdermen, heading; Cherry pickermen - where car is lifted; Concrete finisher in tunnel; Concrete screedman; Grout pumpman and potman; Guniting & shotcrete gunman & potman; Headermen; High pressure nozzleman; Miner - tunnel, including top and bottom man on shaft and raise work; Nipper; Nozzleman on slick line; Sandblaster - potman, Robotic Shotcrete Placer, Segment Erector, Tunnel Muck Hauler, Steel Form raiser and setter; Timberman, retimberman (wood or steel or substitute materials therefore); Tugger (for tunnel laborer work);

Cable tender; Chuck tender; Powderman - primer house

GROUP 4: Vibrator operator, pavement breaker; Bull gang - muckers, trackmen; Concrete crew - includes rodding and spreading, Dumpmen (any method)

GROUP 5: Grout crew; Reboundman; Swamper/ Brakeman

LAB00324-012 06/26/2023

CONTRA COSTA COUNTY

	Rates	Fringes
LABORER (CONSTRUCTION CRAFT LABORERS - AREA A:)		
Construction Specialist		
Group.....	\$ 37.20	27.30
GROUP 1.....	\$ 36.50	27.30
GROUP 1-a.....	\$ 36.72	27.30
GROUP 1-c.....	\$ 36.55	27.30
GROUP 1-e.....	\$ 37.05	27.30
GROUP 1-f.....	\$ 37.08	27.30
GROUP 1-g.....	\$ 36.70	27.30
GROUP 2.....	\$ 36.35	27.30
GROUP 3.....	\$ 36.25	27.30
GROUP 4.....	\$ 29.94	27.30
See groups 1-b and 1-d under laborer classifications.		
LABORER (GARDENERS, HORTICULURAL & LANDSCAPE LABORERS - AREA A:)		
(1) New Construction.....	\$ 36.25	27.30
(2) Establishment Warranty Period.....	\$ 29.94	27.30
LABORER (GUNITE - AREA A:)		
GROUP 1.....	\$ 37.46	27.30
GROUP 2.....	\$ 36.96	27.30
GROUP 3.....	\$ 36.37	27.30
GROUP 4.....	\$ 36.25	27.30
LABORER (WRECKING - AREA A:)		
GROUP 1.....	\$ 36.50	27.30
GROUP 2.....	\$ 36.35	27.30

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond driller; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander,

pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Lead Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and buckler; Form raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work; Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling of same); Tree topper; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. "Sewer cleaner" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

GROUP 1-d: Maintenance and repair track and road beds. All employees performing work covered herein shall receive \$.25 per hour above their regular rate for all work performed on underground structures not specifically covered herein. This paragraph shall not be construed to apply to work below ground level in open cut. It shall apply to cut and cover work of subway construction after the temporary cover has been placed.

GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing

is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting or shot crete

GROUP 1-g, CONTRA COSTA COUNTY: Pipelayer (including grade checking in connection with pipelaying); Caulker; Bander; Pipewrapper; Conduit layer; Plastic pipe layer; Pressure pipe tester; No joint pipe and stripping of same, including repair of voids; Precast manhole setters, cast in place manhole form setters

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100 lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher; Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification "material cleaner" is to be utilized under the following conditions:

A: at demolition site for the salvage of the material.

B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.

C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of "form stripping, cleaning and oiling and moving to the next point of erection".

----- GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Gunite laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

GROUP 1-g, CONTRA COSTA COUNTY: Pipelayer (including grade checking in connection with pipelaying); Caulker; Bander; Pipewrapper; Conduit layer; Plastic pipe layer; Pressure pipe tester; No joint pipe and stripping of same, including repair of voids; Precast manhole setters, cast in place manhole form setters

LAB00324-014 07/01/2023

CONTRA COSTA COUNTY:

	Rates	Fringes
Brick Tender.....	\$ 37.05	27.45

FOOTNOTES: Work on jobs where heat-protective clothing is required: \$2.00 per hour additional. Work at grinders: \$.25 per hour additional. Manhole work: \$2.00 per day additional.

LAB00324-018 07/01/2023

ALAMEDA AND CONTRA COSTA COUNTIES:

	Rates	Fringes
Plasterer tender.....	\$ 41.93	30.32

Work on a swing stage scaffold: \$1.00 per hour additional.

LAB01130-002 07/01/2023

MARIPOSA, MERCED, STANISLAUS, AND TUOLUMNE COUNTIES

	Rates	Fringes
LABORER (TRAFFIC CONTROL/LANE CLOSURE)		
Escort Driver, Flag Person..	\$ 36.26	27.30
Traffic Control Person I....	\$ 36.56	27.30
Traffic Control Person II...	\$ 34.06	27.30

TRAFFIC CONTROL PERSON I: Layout of traffic control, crash cushions, construction area and roadside signage.

TRAFFIC CONTROL PERSON II: Installation and removal of temporary/permanent signs, markers, delineators and crash cushions.

LAB01130-003 06/26/2023

MARIPOSA, MERCED, STANISLAUS, AND TUOLUMNE COUNTIES

	Rates	Fringes
Tunnel and Shaft Laborers:		
GROUP 1.....	\$ 45.89	27.72
GROUP 2.....	\$ 45.66	27.72
GROUP 3.....	\$ 45.41	27.72
GROUP 4.....	\$ 44.96	27.72
GROUP 5.....	\$ 44.42	27.72
Shotcrete Specialist.....	\$ 46.41	27.72

TUNNEL AND SHAFT CLASSIFICATIONS

GROUP 1: Diamond driller; Groundmen; Guniting and shotcrete nozzlemen

GROUP 2: Rodmen; Shaft work & raise (below actual or excavated ground level)

GROUP 3: Bit grinder; Blaster, driller, powdermen, heading; Cherry pickers - where car is lifted; Concrete finisher in tunnel; Concrete screedman; Grout pumpman and potman; Guniting & shotcrete gunman & potman; Headermen; High pressure nozzleman; Miner - tunnel, including top and bottom man on shaft and raise work; Nipper; Nozzleman on slick line; Sandblaster - potman, Robotic Shotcrete Placer, Segment Erector, Tunnel Muck Hauler, Steel Form raiser and setter; Timberman, retimberman (wood or steel or substitute materials therefore); Tugger (for tunnel laborer work); Cable tender; Chuck tender; Powderman - primer house

GROUP 4: Vibrator operator, pavement breaker; Bull gang - muckers, trackmen; Concrete crew - includes rodding and spreading, Dumpmen (any method)

GROUP 5: Grout crew; Reboundman; Swamper/ Brakeman

LAB01130-005 07/01/2023

MARIPOSA, MERCED, STANISLAUS AND TUOLUMNE COUNTIES

	Rates	Fringes
LABORER		
Mason Tender-Brick.....	\$ 36.29	25.55

LAB01130-007 06/26/2023

MARIPOSA, MERCED, STANISLAUS, AND TUOLUMNE , COUNTIES

	Rates	Fringes
LABORER (CONSTRUCTION CRAFT LABORERS - AREA B:)		
Construction Specialist		
Group.....	\$ 36.20	27.30
GROUP 1.....	\$ 35.50	27.30
GROUP 1-a.....	\$ 35.72	27.30
GROUP 1-c.....	\$ 35.55	27.30
GROUP 1-e.....	\$ 36.05	27.30
GROUP 1-f.....	\$ 36.08	27.30
GROUP 2.....	\$ 35.35	27.30

GROUP 3.....	\$ 35.25	27.30
GROUP 4.....	\$ 28.94	27.30

See groups 1-b and 1-d under laborer classifications.

LABORER (GARDENERS,
HORTICULTURAL & LANDSCAPE

LABORERS - AREA B:)

(1) New Construction.....	\$ 35.25	27.30
(2) Establishment Warranty Period.....	\$ 28.94	27.30

LABORER (GUNITE - AREA B:)

GROUP 1.....	\$ 36.46	27.30
GROUP 2.....	\$ 35.96	27.30
GROUP 3.....	\$ 35.37	27.30
GROUP 4.....	\$ 35.25	27.30

LABORER (WRECKING - AREA B:)

GROUP 1.....	\$ 35.50	27.30
GROUP 2.....	\$ 35.35	27.30

FOOTNOTES:

Laborers working off or with or from bos'n chairs, swinging scaffolds, belts shall receive \$0.25 per hour above the applicable wage rate. This shall not apply to workers entitled to receive the wage rate set forth in Group 1-a below.

LABORER CLASSIFICATIONS

CONSTRUCTION SPECIALIST GROUP: Asphalt ironer and raker; Chainsaw; Laser beam in connection with laborers' work; Cast-in- place manhole form setter; Pressure pipelayer; Davis trencher - 300 or similar type (and all small trenchers); Blaster; Diamond drillers; Multiple unit drill; Hydraulic drill

GROUP 1: Asphalt spreader boxes (all types); Barko, Wacker and similar type tampers; Buggymobile; Caulker, bander, pipewrapper, conduit layer, plastic pipelayer; Certified hazardous waste worker including Leade Abatement; Compactors of all types; Concrete and magnesite mixer, 1/2 yd. and under; Concrete pan work; Concrete sander; Concrete saw; Cribber and/or shoring; Cut granite curb setter; Dri-pak-it machine; Faller, logloader and bucket; Form raiser, slip forms; Green cutter; Headerboard, Hubsetter, aligner, by any method; High pressure blow pipe (1-1/2" or over, 100 lbs. pressure/over); Hydro seeder and similar type; Jackhammer operator; Jacking of pipe over 12 inches; Jackson and similar type compactor; Kettle tender, pot and worker applying asphalt, lay-kold, creosote, lime, caustic and similar type materials (applying means applying, dipping or handling of such materials); Lagging, sheeting, whaling, bracing, trenchjacking, lagging hammer; Magnesite, epoxyresin, fiberglass, mastic worker (wet or dry); No joint pipe and stripping of same, including repair of voids; Pavement breaker and spader, including tool grinder; Perma curb; Pipelayer (including grade checking in connection with pipelaying); Precast-manhole setter; Pressure pipe tester; Post hole digger, air, gas and electric; Power broom sweeper; Power tampers of all types (except as shown in Group 2); Ram set gun and stud gun; Riprap stonepaver and rock-slinger, including placing of sacked concrete and/or sand (wet or dry) and gabions and similar type; Rotary scarifier or multiple head concrete

chipping scarifier; Roto and Ditch Witch; Rototiller; Sandblaster, pot, gun, nozzle operators; Signalling and rigging; Tank cleaner; Tree climber; Turbo blaster; Vibrascreed, bull float in connection with laborers' work; Vibrator; Hazardous waste worker (lead removal); Asbestos and mold removal worker

GROUP 1-a: Joy drill model TWM-2A; Gardner-Denver model DH143 and similar type drills; Track driller; Jack leg driller; Wagon driller; Mechanical drillers, all types regardless of type or method of power; Mechanical pipe layers, all types regardless of type or method of power; Blaster and powder; All work of loading, placing and blasting of all powder and explosives of whatever type regardless of method used for such loading and placing; High scalers (including drilling of same); Tree topper; Bit grinder

GROUP 1-b: Sewer cleaners shall receive \$4.00 per day above Group 1 wage rates. "Sewer cleaner" means any worker who handles or comes in contact with raw sewage in small diameter sewers. Those who work inside recently active, large diameter sewers, and all recently active sewer manholes shall receive \$5.00 per day above Group 1 wage rates.

GROUP 1-c: Burning and welding in connection with laborers' work; Synthetic thermoplastics and similar type welding

GROUP 1-d: Maintenance and repair track and road beds. All employees performing work covered herein shall receive \$.25 per hour above their regular rate for all work performed on underground structures not specifically covered herein. This paragraph shall not be construed to apply to work below ground level in open cut. It shall apply to cut and cover work of subway construction after the temporary cover has been placed.

GROUP 1-e: Work on and/or in bell hole footings and shafts thereof, and work on and in deep footings. (A deep footing is a hole 15 feet or more in depth.) In the event the depth of the footing is unknown at the commencement of excavation, and the final depth exceeds 15 feet, the deep footing wage rate would apply to all employees for each and every day worked on or in the excavation of the footing from the date of inception.

GROUP 1-f: Wire winding machine in connection with guniting or shot crete

GROUP 2: Asphalt shoveler; Cement dumper and handling dry cement or gypsum; Choke-setter and rigger (clearing work); Concrete bucket dumper and chute; Concrete chipping and grinding; Concrete laborer (wet or dry); Driller tender, chuck tender, nipper; Guinea chaser (stake), grout crew; High pressure nozzle, adductor; Hydraulic monitor (over 100 lbs. pressure); Loading and unloading, carrying and hauling of all rods and materials for use in reinforcing concrete construction; Pittsburgh chipper and similar type brush shredders; Sloper; Single foot, hand-held, pneumatic tamper; All pneumatic, air, gas and electric tools not listed in Groups 1 through 1-f; Jacking of pipe - under 12 inches

GROUP 3: Construction laborers, including bridge and general laborer; Dump, load spotter; Flag person; Fire watcher;

Fence erector; Guardrail erector; Gardener, horticultural and landscape laborer; Jetting; Limber, brush loader and piler; Pavement marker (button setter); Maintenance, repair track and road beds; Streetcar and railroad construction track laborer; Temporary air and water lines, Victaulic or similar; Tool room attendant (jobsite only)

GROUP 4: Final clean-up work of debris, grounds and building including but not limited to: street cleaner; cleaning and washing windows; brick cleaner (jobsite only); material cleaner (jobsite only). The classification "material cleaner" is to be utilized under the following conditions:

A: at demolition site for the salvage of the material.

B: at the conclusion of a job where the material is to be salvaged and stocked to be reused on another job.

C: for the cleaning of salvage material at the jobsite or temporary jobsite yard.

The material cleaner classification should not be used in the performance of "form stripping, cleaning and oiling and moving to the next point of erection".

GUNITE LABORER CLASSIFICATIONS

GROUP 1: Structural Nozzleman

GROUP 2: Nozzleman, Gunman, Potman, Groundman

GROUP 3: Reboundman

GROUP 4: Guniting laborer

WRECKING WORK LABORER CLASSIFICATIONS

GROUP 1: Skilled wrecker (removing and salvaging of sash, windows and materials)

GROUP 2: Semi-skilled wrecker (salvaging of other building materials)

LAB01130-008 07/01/2023

CALAVERAS, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, SAN JOAQUIN, STANISLAUS & TUOLUMNE

	Rates	Fringes
Plasterer tender.....	\$ 39.77	28.54
Work on a swing stage scaffold: \$1.00 per hour additional.		

LAB01130-009 07/01/2023

MARIPOSA, MERCED, STANISLAUS, AND TUOLUMNE COUNTIES

	Rates	Fringes
LABORER (Plaster Tender).....	\$ 39.77	28.54

Work on a swing stage scaffold: \$1.00 per hour additional.

PAIN0016-001 01/01/2025

ALAMEDA, CONTRA COSTA, MONTEREY, SAN BENITO, SAN MATEO, SANTA CLARA, AND SANTA CRUZ COUNTIES

	Rates	Fringes
Painters:.....	\$ 53.38	28.04

PREMIUMS:

EXOTIC MATERIALS - \$1.25 additional per hour.

SPRAY WORK: - \$0.50 additional per hour.

INDUSTRIAL PAINTING - \$0.25 additional per hour

[Work on industrial buildings used for the manufacture and processing of goods for sale or service; steel construction (bridges), stacks, towers, tanks, and similar structures]

HIGH WORK:

over 50 feet - \$2.00 per hour additional

100 to 180 feet - \$4.00 per hour additional

Over 180 feet - \$6.00 per hour additional

PAIN0016-003 01/01/2025

AREA 1: ALAMEDA, CONTRA COSTA, SAN FRANCISCO, SAN MATEO & SANTA CLARA COUNTIES

AREA 2: CALAVERAS, MARIPOSA, MERCED, MONTEREY, SAN BENITO, SAN JOAQUIN, SANTA CRUZ, STANISLAUS & TUOLUMNE COUNTIES

	Rates	Fringes
Drywall Finisher/Taper		
AREA 1.....	\$ 63.76	32.69
AREA 2.....	\$ 59.63	31.29

PAIN0016-012 01/01/2024

ALAMEDA, CONTRA COSTA, MARIPOSA, MERCED, MONTEREY, SAN BENITO, SAN FRANCISCO, SAN MATEO, SANTA CLARA AND SANTA CRUZ COUNTIES

	Rates	Fringes
SOFT FLOOR LAYER.....	\$ 59.00	33.03

PAIN0016-015 01/01/2025

CALAVERAS, MARIPOSA, MERCED, SAN JOAQUIN, STANISLAUS & TUOLUMNE COUNTIES

	Rates	Fringes
PAINTER		
Brush.....	\$ 43.45	22.80

FOOTNOTES:

SPRAY/SANDBLAST: \$0.50 additional per hour.

EXOTIC MATERIALS: \$1.25 additional per hour.

HIGH TIME: Over 50 ft above ground or water level \$2.00 additional per hour. 100 to 180 ft above ground or water level \$4.00 additional per hour. Over 180 ft above ground or water level \$6.00 additional per hour.

PAIN0016-022 01/01/2025

SAN FRANCISCO COUNTY

	Rates	Fringes
PAINTER.....	\$ 57.00	28.04

PAIN0169-001 01/01/2023

FRESNO, KINGS, MADERA, MARIPOSA AND MERCED COUNTIES:

	Rates	Fringes
GLAZIER.....	\$ 44.33	28.88

PAIN0169-005 01/01/2024

ALAMEDA CONTRA COSTA, MONTEREY, SAN BENITO, SAN FRANCISCO, SAN MATEO, SANTA CLARA & SANTA CRUZ COUNTIES

	Rates	Fringes
GLAZIER.....	\$ 56.22	34.00

PAIN0294-004 07/01/2023

FRESNO, KINGS AND MADERA COUNTIES

	Rates	Fringes
PAINTER		
Brush, Roller.....	\$ 34.49	21.80
Drywall Finisher/Taper.....	\$ 35.74	21.80

FOOTNOTE:

Spray Painters & Paperhangers receive \$1.00 additional per hour. Painters doing Drywall Patching receive \$1.25 additional per hour. Lead Abaters & Sandblasters receive \$1.50 additional per hour. High Time - over 30 feet (does not include work from a lift) \$0.75 per hour additional.

PAIN0294-005 01/01/2023

FRESNO, KINGS & MADERA

	Rates	Fringes
SOFT FLOOR LAYER.....	\$ 38.53	23.19

PAIN0767-001 01/01/2024

CALAVERAS, SAN JOAQUIN, STANISLAUS AND TUOLUMNE COUNTIES:

	Rates	Fringes
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GLAZIER.....\$ 43.25 35.62

PAID HOLIDAYS: New Year's Day, Martin Luther King, Jr. Day, President's Day, Memorial Day, Independence Day, Labor Day, Veteran's Day, Thanksgiving Day, and Christmas Day.

Employee required to wear a body harness shall receive \$1.50 per hour above the basic hourly rate at any elevation.

PAIN1176-001 07/01/2022

HIGHWAY IMPROVEMENT

	Rates	Fringes
Parking Lot Striping/Highway Marking:		
GROUP 1.....	\$ 40.83	17.62
GROUP 2.....	\$ 34.71	17.62
GROUP 3.....	\$ 35.11	17.62

CLASSIFICATIONS

GROUP 1: Striper: Layout and application of painted traffic stripes and marking; hot thermo plastic; tape, traffic stripes and markings

GROUP 2: Gamecourt & Playground Installer

GROUP 3: Protective Coating, Pavement Sealing

PAIN1237-003 01/01/2024

CALAVERAS; SAN JOAQUIN COUNTIES; STANISLAUS AND TUOLUMNE COUNTIES:

	Rates	Fringes
SOFT FLOOR LAYER.....	\$ 48.54	26.59

PLAS0066-002 07/01/2019

ALAMEDA, CONTRA COSTA, SAN MATEO AND SAN FRANCISCO COUNTIES:

	Rates	Fringes
PLASTERER.....	\$ 42.41	30.73

PLAS0300-001 07/01/2018

	Rates	Fringes
PLASTERER		
AREA 188: Fresno.....	\$ 32.70	31.68
AREA 224: San Benito, Santa Clara, Santa Cruz.....	\$ 32.88	31.68
AREA 295: Calaveras & San Joaquin Counties.....	\$ 32.70	31.68
AREA 337: Monterey County..	\$ 32.88	31.68
AREA 429: Mariposa, Merced, Stanislaus, Tuolumne Counties.....	\$ 32.70	31.68

 PLAS0300-005 07/01/2016

	Rates	Fringes
CEMENT MASON/CONCRETE FINISHER...	\$ 32.15	23.27

PLUM0038-001 07/01/2023

SAN FRANCISCO COUNTY

	Rates	Fringes
PLUMBER (Plumber, Steamfitter, Refrigeration Fitter).....	\$ 85.50	48.98

PLUM0038-005 07/01/2025

SAN FRANCISCO COUNTY

	Rates	Fringes
Landscape/Irrigation Fitter (Underground/Utility Fitter).....	\$ 77.35	36.53

PLUM0062-001 01/01/2026

MONTEREY AND SANTA CRUZ COUNTIES

	Rates	Fringes
PLUMBER & STEAMFITTER.....	\$ 57.75	43.60

PLUM0159-001 07/01/2025

CONTRA COSTA COUNTY

	Rates	Fringes
Plumber and steamfitter		
(1) Refrigeration.....	\$ 67.68	49.04
(2) All other work.....	\$ 68.57	49.04

PLUM0246-001 01/01/2026

FRESNO, KINGS & MADERA COUNTIES

	Rates	Fringes
PLUMBER & STEAMFITTER.....	\$ 54.50	42.54

PLUM0246-004 01/01/2017

FRESNO, MERCED & SAN JOAQUIN COUNIES

	Rates	Fringes
PLUMBER (PIPE TRADESMAN).....	\$ 13.00	10.74

PIPE TRADESMAN SCOPE OF WORK:

Installation of corrugated metal piping for drainage, as well as installation of corrugated metal piping for culverts in connection with storm sewers and drains; Grouting, dry packing and diaphering of joints, holes or chases including

paving over joints, in piping; Temporary piping for dirt work for building site preparation; Operating jack hammers, pavement breakers, chipping guns, concrete saws and spades to cut holes, chases and channels for piping systems; Digging, grading, backfilling and ground preparation for all types of pipe to all points of the jobsite; Ground preparation including ground leveling, layout and planting of shrubbery, trees and ground cover, including watering, mowing, edging, pruning and fertilizing, the breaking of concrete, digging, backfilling and tamping for the preparation and completion of all work in connection with lawn sprinkler and landscaping; Loading, unloading and distributing materials at jobsite; Putting away materials in storage bins in jobsite secure storage area; Demolition of piping and fixtures for remodeling and additions; Setting up and tearing down work benches, ladders and job shacks; Clean-up and sweeping of jobsite; Pipe wrapping and waterproofing where tar or similar material is applied for protection of buried piping; Flagman

PLUM0342-001 07/01/2025

ALAMEDA & CONTRA COSTA COUNTIES

	Rates	Fringes
PIPEFITTER		
CONTRA COSTA COUNTY.....	\$ 80.50	50.45
PLUMBER, PIPEFITTER, STEAMFITTER		
ALAMEDA COUNTY.....	\$ 80.50	50.45

PLUM0355-004 07/01/2025

ALAMEDA, CALAVERAS, CONTRA COSTA, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, MONTEREY, SAN BENITO, SAN JOAQUIN, SAN MATEO, SANTA CLARA, SANTA CRUZ, STANISLAUS, AND TUOLUMNE COUNTIES:

	Rates	Fringes
Underground Utility Worker		
/Landscape Fitter.....	\$ 36.01	18.50

PLUM0393-001 07/01/2021

SAN BENITO AND SANTA CLARA COUNTIES

	Rates	Fringes
PLUMBER/PIPEFITTER.....	\$ 68.76	46.63

PLUM0442-001 01/01/2026

CALAVERAS, MARIPOSA, MERCED, SAN JOAQUIN, STANISLAUS & TUOLUMNE COUNTIES

	Rates	Fringes
PLUMBER & STEAMFITTER.....	\$ 58.45	38.74

PLUM0467-001 07/01/2025

SAN MATEO COUNTY

	Rates	Fringes
Plumber/Pipefitter/Steamfitter...	\$ 87.75	41.44

ROOF0027-002 09/01/2024		

FRESNO, KINGS, AND MADERA COUNTIES

	Rates	Fringes
ROOFER.....	\$ 45.76	16.86

FOOTNOTE: Work with pitch, pitch base of pitch impregnated products or any material containing coal tar pitch, on any building old or new, where both asphalt and pitchers are used in the application of a built-up roof or tear off: \$2.00 per hour additional.

ROOF0040-002 08/01/2024		

SAN FRANCISCO & SAN MATEO COUNTIES:

	Rates	Fringes
ROOFER.....	\$ 55.30	22.97

ROOF0081-001 08/01/2024		

ALAMEDA AND CONTRA COSTA COUNTIES:

	Rates	Fringes
Roofer.....	\$ 54.94	23.34

ROOF0081-004 08/01/2024		

CALAVERAS, MARIPOSA, MERCED, SAN JOAQUIN, STANISLAUS AND TUOLUMNE COUNTIES:

	Rates	Fringes
ROOFER.....	\$ 49.65	22.19

ROOF0095-002 08/01/2023		

MONTEREY, SAN BENITO, SANTA CLARA, AND SANTA CRUZ COUNTIES:

	Rates	Fringes
ROOFER		
Bitumastic, Enameler, Coal		
Tar, Pitch and Mastic		
worker.....	\$ 57.17	21.51
Journeyman.....	\$ 53.17	21.51
Kettle person (2 kettles)...	\$ 55.17	21.51

SFCA0483-001 01/01/2026		

ALAMEDA, CONTRA COSTA, SAN FRANCISCO, SAN MATEO AND SANTA CLARA COUNTIES:

	Rates	Fringes
SPRINKLER FITTER (FIRE).....	\$ 81.54	41.35

SFCA0669-011 01/01/2026		

CALAVERAS, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, MONTEREY,
SAN BENITO, SAN JOAQUIN, SANTA CRUZ, STANISLAUS AND TUOLUMNE
COUNTIES:

	Rates	Fringes
SPRINKLER FITTER.....	\$ 49.69	29.72

* SHEE0104-001 07/01/2025		

AREA 1: ALAMEDA, CONTRA COSTA, SAN FRANCISCO, SAN MATEO, SANTA
CLARA

AREA 2: MONTEREY & SAN BENITO

AREA 3: SANTA CRUZ

	Rates	Fringes
SHEET METAL WORKER		
AREA 1:		
Mechanical Contracts		
under \$200,000.....	\$ 55.92	45.29
All Other Work.....	\$ 64.06	46.83
AREA 2.....	\$ 64.23	39.65
AREA 3.....	\$ 55.16	34.18

SHEE0104-003 07/01/2021		

CALAVERAS AND SAN JOAQUIN COUNTIES:

	Rates	Fringes
SHEET METAL WORKER.....	\$ 44.34	39.22

SHEE0104-005 07/01/2021		

MARIPOSA, MERCED, STANISLAUS AND TUOLUMNE COUNTIES:

	Rates	Fringes
SHEET METAL WORKER (Excluding metal deck and siding).....	\$ 41.28	45.41

SHEE0104-007 07/01/2021		

FRESNO, KINGS, AND MADERA COUNTIES:

	Rates	Fringes
SHEET METAL WORKER.....	\$ 44.07	40.79

SHEE0104-015 07/01/2024		

ALAMEDA, CONTRA COSTA, MONTEREY, SAN BENITO, SAN FRANCISCO, SAN
MATEO, SANTA CLARA AND SANTA CRUZ COUNTIES:

	Rates	Fringes
SHEET METAL WORKER (Metal Decking and Siding only).....	\$ 56.23	37.52

SHEE0104-018 07/01/2024		

CALAVERAS, FRESNO, KINGS, MADERA, MARIPOSA, MERCED, SAN JOAQUIN, STANISLAUS AND TUOLUMNE COUNTIES:

	Rates	Fringes
Sheet metal worker (Metal decking and siding only).....	\$ 56.23	37.52

TEAM0094-001 07/01/2025		

	Rates	Fringes
Truck drivers:		
GROUP 1.....	\$ 43.26	34.28
GROUP 2.....	\$ 43.56	34.28
GROUP 3.....	\$ 43.86	34.28
GROUP 4.....	\$ 44.21	34.28
GROUP 5.....	\$ 44.56	34.28

FOOTNOTES:

Articulated dump truck; Bulk cement spreader (with or without auger); Dumpcrete truck; Skid truck (debris box); Dry pre-batch concrete mix trucks; Dumpster or similar type; Slurry truck: Use dump truck yardage rate.
Heater planer; Asphalt burner; Scarifier burner; Industrial lift truck (mechanical tailgate); Utility and clean-up truck: Use appropriate rate for the power unit or the equipment utilized.

TRUCK DRIVER CLASSIFICATIONS

GROUP 1: Dump trucks, under 6 yds.; Single unit flat rack (2-axle unit); Nipper truck (when flat rack truck is used appropriate flat rack shall apply); Concrete pump truck (when flat rack truck is used appropriate flat rack shall apply); Concrete pump machine; Fork lift and lift jitneys; Fuel and/or grease truck driver or fuel person; Snow buggy; Steam cleaning; Bus or personhaul driver; Escort or pilot car driver; Pickup truck; Teamster oiler/greaser and/or serviceperson; Hook tender (including loading and unloading); Team driver; Tool room attendant (refineries)

GROUP 2: Dump trucks, 6 yds. and under 8 yds.; Transit mixers, through 10 yds.; Water trucks, under 7,000 gals.; Jetting trucks, under 7,000 gals.; Single-unit flat rack (3-axle unit); Highbed heavy duty transport; Scissor truck; Rubber-tired muck car (not self-loaded); Rubber-tired truck jumbo; Winch truck and "A" frame drivers; Combination winch truck with hoist; Road oil truck or bootperson; Buggymobile; Ross, Hyster and similar straddle carriers; Small rubber-tired tractor

GROUP 3: Dump trucks, 8 yds. and including 24 yds.; Transit mixers, over 10 yds.; Water trucks, 7,000 gals. and over;

Jetting trucks, 7,000 gals. and over; Vacuum trucks under 7500 gals. Trucks towing tilt bed or flat bed pull trailers; Lowbed heavy duty transport; Heavy duty transport tiller person; Self- propelled street sweeper with self-contained refuse bin; Boom truck - hydro-lift or Swedish type extension or retracting crane; P.B. or similar type self-loading truck; Tire repairperson; Combination bootperson and road oiler; Dry distribution truck (A bootperson when employed on such equipment, shall receive the rate specified for the classification of road oil trucks or bootperson); Ammonia nitrate distributor, driver and mixer; Snow Go and/or plow

GROUP 4: Dump trucks, over 25 yds. and under 65 yds.; Water pulls - DW 10's, 20's, 21's and other similar equipment when pulling Aqua/pak or water tank trailers; Helicopter pilots (when transporting men and materials); Lowbedk Heavy Duty Transport up to including 7 axles; DW10's, 20's, 21's and other similar Cat type, Terra Cobra, LeTourneau Pulls, Tournorocker, Euclid and similar type equipment when pulling fuel and/or grease tank trailers or other miscellaneous trailers; Vacuum Trucks 7500 gals and over and truck repairman

GROUP 5: Dump trucks, 65 yds. and over; Holland hauler; Low bed Heavy Duty Transport over 7 axles

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional

information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may

include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

----- WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5649 Revision No.: 25 Date Of Last Revision: 12/03/2025

State: California

Area: California County of Santa Cruz

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		23.06
01012 - Accounting Clerk II		25.88
01013 - Accounting Clerk III		28.95
01020 - Administrative Assistant		37.34
01035 - Court Reporter		26.67
01041 - Customer Service Representative I		18.54
01042 - Customer Service Representative II		20.23
01043 - Customer Service Representative III		22.71
01051 - Data Entry Operator I		19.83
01052 - Data Entry Operator II		21.64
01060 - Dispatcher, Motor Vehicle		29.13
01070 - Document Preparation Clerk		21.24
01090 - Duplicating Machine Operator		21.24
01111 - General Clerk I		19.01
01112 - General Clerk II		20.74
01113 - General Clerk III		23.28
01120 - Housing Referral Assistant		29.72
01141 - Messenger Courier		17.95
01191 - Order Clerk I		20.13
01192 - Order Clerk II		21.96
01261 - Personnel Assistant (Employment) I		23.70
01262 - Personnel Assistant (Employment) II		26.51
01263 - Personnel Assistant (Employment) III		29.54
01270 - Production Control Clerk		30.04
01290 - Rental Clerk		19.88
01300 - Scheduler, Maintenance		23.84
01311 - Secretary I		23.84
01312 - Secretary II		26.67
01313 - Secretary III		29.72
01320 - Service Order Dispatcher		23.54
01410 - Supply Technician		37.34
01420 - Survey Worker		24.99
01460 - Switchboard Operator/Receptionist		19.54
01531 - Travel Clerk I		21.24
01532 - Travel Clerk II		22.87
01533 - Travel Clerk III		24.41
01611 - Word Processor I		21.24
01612 - Word Processor II		23.84
01613 - Word Processor III		26.67
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		29.96
05010 - Automotive Electrician		30.17

05040 - Automotive Glass Installer	28.54
05070 - Automotive Worker	28.54
05110 - Mobile Equipment Servicer	25.16
05130 - Motor Equipment Metal Mechanic	31.81
05160 - Motor Equipment Metal Worker	28.54
05190 - Motor Vehicle Mechanic	31.81
05220 - Motor Vehicle Mechanic Helper	23.26
05250 - Motor Vehicle Upholstery Worker	26.92
05280 - Motor Vehicle Wrecker	28.54
05310 - Painter, Automotive	30.17
05340 - Radiator Repair Specialist	28.54
05370 - Tire Repairer	20.63
05400 - Transmission Repair Specialist	31.81
07000 - Food Preparation And Service Occupations	
07010 - Baker	18.43
07041 - Cook I	22.12
07042 - Cook II	25.09
07070 - Dishwasher	17.56
07130 - Food Service Worker	17.79
07210 - Meat Cutter	19.74
07260 - Waiter/Waitress	16.96
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	28.02
09040 - Furniture Handler	17.98
09080 - Furniture Refinisher	28.02
09090 - Furniture Refinisher Helper	21.60
09110 - Furniture Repairer, Minor	25.00
09130 - Upholsterer	28.02
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.76
11060 - Elevator Operator	18.57
11090 - Gardener	28.74
11122 - Housekeeping Aide	18.57
11150 - Janitor	18.57
11210 - Laborer, Grounds Maintenance	22.11
11240 - Maid or Houseman	18.00
11260 - Pruner	19.89
11270 - Tractor Operator	26.55
11330 - Trail Maintenance Worker	22.11
11360 - Window Cleaner	20.63
12000 - Health Occupations	
12010 - Ambulance Driver	28.41
12011 - Breath Alcohol Technician	34.32
12012 - Certified Occupational Therapist Assistant	47.09
12015 - Certified Physical Therapist Assistant	40.30
12020 - Dental Assistant	24.56
12025 - Dental Hygienist	61.11
12030 - EKG Technician	52.00
12035 - Electroneurodiagnostic Technologist	52.00
12040 - Emergency Medical Technician	28.41
12071 - Licensed Practical Nurse I	30.69
12072 - Licensed Practical Nurse II	34.32
12073 - Licensed Practical Nurse III	38.26
12100 - Medical Assistant	23.59
12130 - Medical Laboratory Technician	35.23
12160 - Medical Record Clerk	23.10
12190 - Medical Record Technician	25.85
12195 - Medical Transcriptionist	25.36
12210 - Nuclear Medicine Technologist	75.43
12221 - Nursing Assistant I	16.30
12222 - Nursing Assistant II	18.34
12223 - Nursing Assistant III	20.02
12224 - Nursing Assistant IV	22.47
12235 - Optical Dispenser	25.85
12236 - Optical Technician	30.69

12250 - Pharmacy Technician	23.76
12280 - Phlebotomist	27.63
12305 - Radiologic Technologist	55.18
12311 - Registered Nurse I	48.48
12312 - Registered Nurse II	59.29
12313 - Registered Nurse II, Specialist	59.29
12314 - Registered Nurse III	71.74
12315 - Registered Nurse III, Anesthetist	71.74
12316 - Registered Nurse IV	86.01
12317 - Scheduler (Drug and Alcohol Testing)	42.52
12320 - Substance Abuse Treatment Counselor	28.03
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	30.84
13012 - Exhibits Specialist II	38.23
13013 - Exhibits Specialist III	46.76
13041 - Illustrator I	30.84
13042 - Illustrator II	38.23
13043 - Illustrator III	46.76
13047 - Librarian	42.33
13050 - Library Aide/Clerk	22.60
13054 - Library Information Technology Systems Administrator	38.23
13058 - Library Technician	30.84
13061 - Media Specialist I	27.58
13062 - Media Specialist II	30.84
13063 - Media Specialist III	34.40
13071 - Photographer I	27.58
13072 - Photographer II	30.84
13073 - Photographer III	38.23
13074 - Photographer IV	46.76
13075 - Photographer V	56.56
13090 - Technical Order Library Clerk	28.37
13110 - Video Teleconference Technician	27.50
14000 - Information Technology Occupations	
14041 - Computer Operator I	25.22
14042 - Computer Operator II	28.21
14043 - Computer Operator III	31.44
14044 - Computer Operator IV	34.94
14045 - Computer Operator V	38.70
14071 - Computer Programmer I	(see 1)
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	25.22
14160 - Personal Computer Support Technician	34.94
14170 - System Support Specialist	38.70
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	41.14
15020 - Aircrew Training Devices Instructor (Rated)	49.79
15030 - Air Crew Training Devices Instructor (Pilot)	59.66
15050 - Computer Based Training Specialist / Instructor	41.14
15060 - Educational Technologist	43.27
15070 - Flight Instructor (Pilot)	59.66
15080 - Graphic Artist	33.01
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	59.50
15086 - Maintenance Test Pilot, Rotary Wing	59.50
15088 - Non-Maintenance Test/Co-Pilot	59.50
15090 - Technical Instructor	33.32
15095 - Technical Instructor/Course Developer	40.76
15110 - Test Proctor	26.90
15120 - Tutor	26.90
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	22.08
16030 - Counter Attendant	22.08
16040 - Dry Cleaner	25.23
16070 - Finisher, Flatwork, Machine	22.08
16090 - Presser, Hand	22.08
16110 - Presser, Machine, Drycleaning	22.08
16130 - Presser, Machine, Shirts	22.08
16160 - Presser, Machine, Wearing Apparel, Laundry	22.08
16190 - Sewing Machine Operator	26.28
16220 - Tailor	27.33
16250 - Washer, Machine	23.14
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	33.48
19040 - Tool And Die Maker	40.20
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	22.17
21030 - Material Coordinator	29.48
21040 - Material Expediter	29.48
21050 - Material Handling Laborer	19.79
21071 - Order Filler	18.20
21080 - Production Line Worker (Food Processing)	22.17
21110 - Shipping Packer	22.00
21130 - Shipping/Receiving Clerk	22.00
21140 - Store Worker I	21.04
21150 - Stock Clerk	27.31
21210 - Tools And Parts Attendant	22.17
21410 - Warehouse Specialist	22.17
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	37.11
23019 - Aircraft Logs and Records Technician	29.88
23021 - Aircraft Mechanic I	35.30
23022 - Aircraft Mechanic II	37.11
23023 - Aircraft Mechanic III	38.67
23040 - Aircraft Mechanic Helper	25.81
23050 - Aircraft, Painter	33.48
23060 - Aircraft Servicer	29.88
23070 - Aircraft Survival Flight Equipment Technician	33.48
23080 - Aircraft Worker	31.67
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	31.67
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	35.30
23110 - Appliance Mechanic	33.48
23120 - Bicycle Repairer	21.99
23125 - Cable Splicer	35.30
23130 - Carpenter, Maintenance	34.97
23140 - Carpet Layer	31.67
23160 - Electrician, Maintenance	36.99
23181 - Electronics Technician Maintenance I	31.67
23182 - Electronics Technician Maintenance II	33.48
23183 - Electronics Technician Maintenance III	35.30
23260 - Fabric Worker	29.88
23290 - Fire Alarm System Mechanic	34.14
23310 - Fire Extinguisher Repairer	27.93
23311 - Fuel Distribution System Mechanic	35.30
23312 - Fuel Distribution System Operator	27.93
23370 - General Maintenance Worker	24.03
23380 - Ground Support Equipment Mechanic	35.30
23381 - Ground Support Equipment Servicer	29.88
23382 - Ground Support Equipment Worker	31.67
23391 - Gunsmith I	27.93
23392 - Gunsmith II	31.67
23393 - Gunsmith III	35.30
23410 - Heating, Ventilation And Air-Conditioning Mechanic	38.45

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	40.40
23430 - Heavy Equipment Mechanic	37.50
23440 - Heavy Equipment Operator	37.69
23460 - Instrument Mechanic	35.30
23465 - Laboratory/Shelter Mechanic	33.48
23470 - Laborer	19.79
23510 - Locksmith	33.48
23530 - Machinery Maintenance Mechanic	33.72
23550 - Machinist, Maintenance	29.01
23580 - Maintenance Trades Helper	22.25
23591 - Metrology Technician I	35.30
23592 - Metrology Technician II	37.11
23593 - Metrology Technician III	38.67
23640 - Millwright	35.30
23710 - Office Appliance Repairer	33.48
23760 - Painter, Maintenance	28.63
23790 - Pipefitter, Maintenance	35.15
23810 - Plumber, Maintenance	33.34
23820 - Pneudraulic Systems Mechanic	35.30
23850 - Rigger	35.30
23870 - Scale Mechanic	31.67
23890 - Sheet-Metal Worker, Maintenance	35.92
23910 - Small Engine Mechanic	31.67
23931 - Telecommunications Mechanic I	38.32
23932 - Telecommunications Mechanic II	40.28
23950 - Telephone Lineman	45.17
23960 - Welder, Combination, Maintenance	28.28
23965 - Well Driller	35.30
23970 - Woodcraft Worker	35.30
23980 - Woodworker	27.93
24000 - Personal Needs Occupations	
24550 - Case Manager	24.81
24570 - Child Care Attendant	17.39
24580 - Child Care Center Clerk	21.68
24610 - Chore Aide	16.09
24620 - Family Readiness And Support Services Coordinator	24.81
24630 - Homemaker	24.81
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	43.48
25040 - Sewage Plant Operator	41.24
25070 - Stationary Engineer	43.48
25190 - Ventilation Equipment Tender	31.79
25210 - Water Treatment Plant Operator	41.24
27000 - Protective Service Occupations	
27004 - Alarm Monitor	38.33
27007 - Baggage Inspector	19.13
27008 - Corrections Officer	39.38
27010 - Court Security Officer	39.43
27030 - Detection Dog Handler	22.72
27040 - Detention Officer	39.38
27070 - Firefighter	36.20
27101 - Guard I	19.13
27102 - Guard II	22.72
27131 - Police Officer I	52.38
27132 - Police Officer II	58.22
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	22.26
28042 - Carnival Equipment Repairer	24.09
28043 - Carnival Worker	16.68
28210 - Gate Attendant/Gate Tender	21.80
28310 - Lifeguard	18.04
28350 - Park Attendant (Aide)	24.39
28510 - Recreation Aide/Health Facility Attendant	17.80

28515 - Recreation Specialist	30.21
28630 - Sports Official	19.42
28690 - Swimming Pool Operator	27.32
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	31.67
29020 - Hatch Tender	31.67
29030 - Line Handler	31.67
29041 - Stevedore I	29.88
29042 - Stevedore II	33.48
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	57.59
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	39.72
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	43.73
30021 - Archeological Technician I	25.69
30022 - Archeological Technician II	28.74
30023 - Archeological Technician III	34.99
30030 - Cartographic Technician	34.99
30040 - Civil Engineering Technician	36.97
30051 - Cryogenic Technician I	38.74
30052 - Cryogenic Technician II	42.80
30061 - Drafter/CAD Operator I	25.69
30062 - Drafter/CAD Operator II	28.74
30063 - Drafter/CAD Operator III	32.03
30064 - Drafter/CAD Operator IV	38.74
30081 - Engineering Technician I	22.10
30082 - Engineering Technician II	24.80
30083 - Engineering Technician III	27.74
30084 - Engineering Technician IV	34.36
30085 - Engineering Technician V	42.03
30086 - Engineering Technician VI	50.85
30090 - Environmental Technician	34.36
30095 - Evidence Control Specialist	34.99
30210 - Laboratory Technician	28.51
30221 - Latent Fingerprint Technician I	38.74
30222 - Latent Fingerprint Technician II	42.80
30240 - Mathematical Technician	35.89
30361 - Paralegal/Legal Assistant I	24.44
30362 - Paralegal/Legal Assistant II	30.29
30363 - Paralegal/Legal Assistant III	37.05
30364 - Paralegal/Legal Assistant IV	44.82
30375 - Petroleum Supply Specialist	42.80
30390 - Photo-Optics Technician	35.89
30395 - Radiation Control Technician	42.80
30461 - Technical Writer I	34.99
30462 - Technical Writer II	42.80
30463 - Technical Writer III	51.78
30491 - Unexploded Ordnance (UXO) Technician I	36.61
30492 - Unexploded Ordnance (UXO) Technician II	44.29
30493 - Unexploded Ordnance (UXO) Technician III	53.08
30494 - Unexploded (UXO) Safety Escort	36.61
30495 - Unexploded (UXO) Sweep Personnel	36.61
30501 - Weather Forecaster I	38.74
30502 - Weather Forecaster II	47.13
30620 - Weather Observer, Combined Upper Air Or Surface Programs (see 2)	32.03
30621 - Weather Observer, Senior (see 2)	34.99
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	44.29
31020 - Bus Aide	24.64
31030 - Bus Driver	34.23
31043 - Driver Courier	20.11
31260 - Parking and Lot Attendant	17.59
31290 - Shuttle Bus Driver	21.33
31310 - Taxi Driver	21.12
31361 - Truckdriver, Light	21.76

31362 - Truckdriver, Medium	23.28
31363 - Truckdriver, Heavy	28.42
31364 - Truckdriver, Tractor-Trailer	28.42
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	21.59
99030 - Cashier	17.63
99050 - Desk Clerk	17.98
99095 - Embalmer	36.61
99130 - Flight Follower	36.61
99251 - Laboratory Animal Caretaker I	20.34
99252 - Laboratory Animal Caretaker II	22.01
99260 - Marketing Analyst	35.78
99310 - Mortician	36.61
99410 - Pest Controller	30.31
99510 - Photofinishing Worker	18.79
99710 - Recycling Laborer	29.90
99711 - Recycling Specialist	35.93
99730 - Refuse Collector	26.91
99810 - Sales Clerk	17.74
99820 - School Crossing Guard	22.31
99830 - Survey Party Chief	38.07
99831 - Surveying Aide	19.16
99832 - Surveying Technician	24.16
99840 - Vending Machine Attendant	29.78
99841 - Vending Machine Repairer	36.54
99842 - Vending Machine Repairer Helper	29.78

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of twelve paid holidays per year: New Year's Day, Martin Luther King Jr's Birthday, Washington's Birthday, Good Friday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable

relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

PART II

SECTION – F

FEDERAL ACQUISITION REGULATION (FAR), REVOLUTIONARY FAR OVERHAUL (RFO) AND DEPARTMENT OF TRANSPORTATION ACQUISITION REGULATION (TAR) CONTRACT PROVISIONS AND EVALUATION FACTORS FOR AWARD

CONTRACT PROVISIONS

FAR, RFO & TAR PROVISIONS

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at <https://www.acquisition.gov/far> and <https://acquisition.gov/far-overhaul>.

52.203-2 Certificate of Independent Price Determination (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action

contrary to paragraphs (a)(1) through (a)(3) of this provision _____
[insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

- 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (SEP 2024)**
- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statement-Representation (JAN 2017)**
- 52.204-7 System for Award Management (NOV 2024)(DEVIATION Sept 2025)**
- 52.204-90 Offeror Identification (DEVIATION NOV 2025)**
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations – Representation (NOV 2015)(DEVIATION SEP 2025)**
- 52.209-5 Certification Regarding Responsibility Matters. (AUG 2020)(DEVIATION SEP 2025)(DEVIATION JAN 2026)**
- 52.209-7 Information Regarding Responsibility Matters (Oct 2018)(DEVIATION SEP 2025)**

(a) Definitions. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes **administrative proceedings at the Federal and State level but only in connection with** performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- In a criminal proceeding, a conviction.
- In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (FEB 2016)(DEVIATION SEP 2025)(DEVIATION JAN 2026)

52.209-13 Violation of Arms Control Treaties or Agreements – Certification (NOV 2021)(DEVIATION SEP 2025)(DEVIATION JAN 2026)

52.212-1 Instructions to Offerors -- Commercial Products and Commercial Services (SEP 2023)(DEVIATION SEP 2025)

a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
- (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
- (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

- (1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

- (2) Any offer, modification, or revision received after the time specified for receipt of offers is “late” and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.
- (3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.
- (4) Offerors may withdraw their offers by written notice to the Government received at any time before award.
- (d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror’s initial offer should contain the Offeror’s best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.
- (e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:
 - (1) The agency’s evaluation of the significant weak or deficient factors in the debriefed Offeror’s offer.
 - (2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.
 - (3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.
 - (4) A summary of the rationale for award.
 - (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.
 - (6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

1. Introduction

(a) **Evaluation factors.** The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors and subfactors will be used to evaluate offers in relative order of importance:

Technical and past performance, when combined, are approximately equal to cost or price.

(b) *Options (if applicable).* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award.* A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

2. Evaluation Process

A. Upon receipt, proposals will be reviewed for completeness and compliance with RFP instructions. Determination of complete and accurate proposals that are eligible for award will be achieved through a process of evaluating each proposal against the Evaluation Factors described below. Incomplete submissions or submissions exceeding the maximum page limit may NOT receive further consideration.

B. Technical ratings shall focus on strengths, uncertainties, and deficiencies in the proposal and shall be rated at the Factor level with an overall technical factor rating assigned. Technical Factors shall be rated as noted below. Past Performance provided will be assigned a Past Performance Confidence Assessment Rating as indicated.

Rating	Definition
High Confidence	The Government has high confidence that the Offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with little or no Government intervention.
Some Confidence	The Government has some confidence that the Offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with some Government intervention
Low Confidence	The Government has low confidence that the Offeror understands the requirement

PROPOSAL SUBMITTAL

Proposals must be in accordance with and in the order detailed in this section. Proposals are due by the date and time specified on the cover page of this document. It is the responsibility of offerors to ensure their proposal is received by the recipient and by the due date and time. The offeror is to submit a fully compliant proposal to the following email addresses:

CFLAcquisitions@dot.gov

VOLUME FORMAT INSTRUCTIONS

(a) Each volume must be contained in a separate file.

(b) Each volume must contain a cover page with the following information:

(1) Prime Contractor's Name

- Unique Entity Identification (UEI)
- DUNS
- Contact Information:
 - o Name
 - o Phone
 - o Email
 - o Address

(2) Volume Number & Title

(c) The proposal must be 11 pitch/point font or larger which would fit on 8 1/2" x 11" page. Color charts, photos, tables, or diagrams shall not exceed 11" x 17". The font size for captions, charts, tables, and diagrams must be no smaller than 10 point.

(d) The proposal shall be within the required page limitation and each page in each section must be consecutively numbered. Pages in excess of the noted page limitation will not be read or considered.

(f) The proposal and its page limitations are as follows:

VOLUME	TITLE	NUMBER OF COPIES	TOTAL PAGE LIMITATION
Volume I	Required Documentation	1 electronic copy	Unlimited

Volume II	Technical Proposal	1 electronic copy	10*
Volume III	Pricing	1 electronic copy	Unlimited

*The following are excluded from the page count: (1) Bid Schedule, (2) Standard Forms 1449 and 30, (3) Table of Contents, (4) Section Dividers (Tabs), (5) Cover Pages, (6) Title Pages and (7) Pricing.

VOLUME I – REQUIRED DOCUMENTATION

(a) Complete Block 17a, of Standard Form (SF) 1449. An official with authority to contractually bind the offeror's company must complete and sign Blocks 30a, 30b and 30c of the SF1449. Failure to complete and sign all required blocks will result in an unresponsive offer.

(b) Acknowledgement of Amendments: Acknowledge all solicitation amendments using one of the methods set forth in Block 11 of Standard Form 30, the form on which any amendment will be issued. This includes completing blocks 8, 15A, 15B, and 15C and SF 1449, and block 19, *Acknowledgement of Amendments*.

VOLUME II – TECHNICAL PROPOSAL

Factor 1: Technical Approach and Methodology

This factor evaluates the contractor's understanding of the specific restoration and construction requirements.

Subfactor 1.1: Specialized Material Harvesting, Propagation, and Planting

- Method to seed collection and willow pole harvesting from designated local sources.
- Method for plant propagation following seed collection.
- Method for installation of native plant species, including willow poles.

Subfactor 1.2: Site Grading

- Methodology for determining clay soil depths prior to wetland excavation and accuracy in performing wetland site grading to maintain the identified elevation.

Subfactor 1.3: Maintenance

- Evaluation of the method for invasive plant removal and subsequent control over a 5-year period.
- Ability to meet project success criteria, including a 70% native plant cover over the 5-year establishment period.

Factor 2: Personnel Qualifications, Experience, and Specialized Services

This factor assesses the expertise and experience of the key staff required to perform highly technical environmental work.

Subfactor 2.1: Habitat Restoration Expertise

- Qualifications of the specialist responsible for supervising seed collection and plant propagation.
- Personnel experience with plant and willow pole installation in native restoration sites.
- Personnel experience with invasive species control in native restoration sites.
- Experience working in coastal and sensitive habitat areas.
- Company experience working on similar scope of projects.

Factor 3: Project Scheduling and Progress Management

This factor evaluates the contractor's ability to meet biological windows and project milestones.

Subfactor 3.1: Schedule Development and Maintenance

- Proficiency in the Bar Chart Method (BCM), development of complex project schedules, and ability to provide monthly schedule updates/adjustments.

Subfactor 3.2: Interim Completion Milestones

- Evaluation of plan to meet the **February 26, 2027**, deadline for BLM property fencing and initial plantings.
- Evaluation of plan to meet the **February 25, 2028**, deadline for California State Park wetland grading and initial planting/seeding.

Factor 4: Past Performance

a. Demonstrated professional past performance in seed collection, propagation of plants, site preparation and maintenance of site. Past performance factors considered will be schedule, management of employees and deliverables, quality of previous work of this type, and references from previous or current contracts.

Past Performance

a. Past Performance Confidence Assessment:

- i. Performance Confidence will be evaluated in accordance with RFO Subpart 15.202(c)(3). In assessing past performance risk, the evaluators will employ several approaches including: A) reviewing the experience listed in the proposal,

B) seeking additional present and past performance information through the use of simplified questionnaires and C) using data independently obtained from other government and commercial sources.

ii. The offeror's and proposed team member's subcontractor past performance will be evaluated through the accomplishment of a confidence assessment rating based on aspects of the offeror's relevant past performance and quality of performance, focusing on and targeting performance that is relevant to the same magnitude and complexity as defined in the Statement of Work. Current performance will have greater impact in the performance confidence assessment than less recent performance. The primary means of evaluation will be the Contractors Past Performance Questionnaire (Appendix I) and Contractor Performance Assessment Reports (CPARS). However, the Government reserves the right to consider any other information obtained through other means. The PPT process will result in an overall performance confidence assessment. This assessment represents the Government evaluation team's review of the probability of an offeror successfully accomplishing the proposed effort based on the offeror's demonstrated present and past performance.

Past Performance Confidence Assessments	
SUBSTANTIAL CONFIDENCE	Based on the offeror's performance record, the government has high expectations that the offeror will successfully perform the required effort.
SATISFACTORY CONFIDENCE	Based on the offeror's performance record, the government has an expectation that the offeror will successfully perform the required effort.
LIMITED CONFIDENCE	Based on the offeror's performance record, the government has a low expectation that the offeror will successfully perform the required effort.
NO CONFIDENCE	Based on the offeror's performance record, the government has no expectation that the offeror will be able to successfully perform the required effort.
UNKNOWN CONFIDENCE	No performance record is identifiable, or the offeror's performance record is so sparse that no confidence assessment rating can be reasonably assigned.

b. PAST PERFORMANCE:

- i. Past performance shall provide adequate information describing the offeror's previous experience in seed collection, site preparation and maintenance within the past three years from the issuance date of this RFP. The offeror shall also list contracts performed in the past two

years from issue date of this RFP that are of the same magnitude and complexity of this project. In addition, the Government may solicit past performance on contracts not listed by the offeror. If an offeror does not have any past performance information to submit as the entity under which the proposal is being submitted, the offeror should submit past performance data identified above under which the offeror's key personnel have worked. If the offeror claims there is no past performance, that status must be identified to the Contracting Officer no later than the date and time due for past performance proposals from all offerors. Lack of any past performance will not automatically disqualify an offeror but is a factor that is considered in the Performance Price Trade-Off (PPT) technique described.

- (1) Provide a summary of the previous contracts described above. **Include information on subcontractors whose effort on this acquisition is projected to be more than 15% of the effort.** The summary must include:
 - (a) Name of project (contract number, if applicable)
 - (b) Name and address of customer or government agency
 - (c) Name and telephone number of customer contact or contracting officer
 - (d) Dollar value and period of performance
 - (e) Description of work performed
- (2) Provide statements, letters, reports, or evaluations from prior customers indicating the level and quality of past performance on the above contracts.
- (3) Email attached Past Performance Questionnaire to all past performance references listed above and instruct them to return completed questionnaire directly to: Kelly Palmer at kelly.palmer@dot.gov prior to the proposal response due date.

1. The attached questionnaire shall be utilized in the evaluation process of each past performance evaluation. After each factor has been rated in a particular section the evaluator will assign an overall risk rating to the section. The following criteria shall be considered when rating each part of the questionnaire:

Exceptional (E) Performance meets all or exceeds many of the contractual requirements. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor were highly effective.

Very Good (VG) Performance meets all or exceeds some of the contractual requirements. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the contractor were effective.

Satisfactory (S) Performance meets contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.

Marginal (M) Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the contractor has not yet identified corrective actions or the contractor's proposed actions appear only marginally effective.

Unsatisfactory (U) Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the contractor's corrective actions appear or were ineffective.

Unknown (N/A) Did not observe performance in this area.

2. Please respond to the following questions regarding the contractor's past performance. For all ratings, please provide a narrative explaining how the contractor either exceeded your requirement or how the contractor failed to meet your requirement. If the contractor had problems in a specific area, but you determined them not to have had an impact to the mission, please state such in your narrative remarks.

c. How would you rate the offeror's emphasis on customer satisfaction?

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐Unknown

Narrative: _____

d. How would you rate the contractor's equipment used for service provided?

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐Unknown

Narrative: _____

e. Please rate the contractor's effectiveness in managing and resolving problems.

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐Unknown

Narrative: _____

f. Please rate the contractor's overall compliance with the contract terms and conditions.

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐Unknown

Narrative: _____

g. Delivery Schedule: How well did the contractor meet required schedule?

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐

Unknown Narrative: _____

h. How well did the contractor plan for and execute quality control?

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐Unknown

Narrative: _____

i. How effective was the contractor in identifying and resolving problem areas?

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐Unknown

Narrative: _____

j. How effective is the contractor's local management team and were they effective in hiring qualified and experienced employees?

☐ Exceptional ☐ Very Good ☐ Satisfactory ☐ Marginal ☐ Unsatisfactory ☐ Unknown

Narrative: _____

k. If applicable, did the contractor effectively manage the Small Business subcontracting plan?

☐ Yes (please explain) ☐ No (please explain)

Narrative: _____

l. If applicable, did the contractor successfully meet established Small Business subcontracting plan goals?

☐ Yes (please explain) ☐ No (please explain)

Narrative: _____

m. If Small Business subcontracting goals were not met, did the contractor demonstrate a good faith effort to meet the projected goals as identified in the approved plan?

☐ Yes (please explain) ☐ No (please explain)

Narrative: _____

n. Based on your judgment of the contractor's performance; would you award the contractor another service contract?

☐ Yes (please explain) ☐ No (please explain)

Narrative: _____

w. What were the contractor's strong points, if any, and what did you like best about their performance? Narrative: _____

x. What were the contractor's weak points, if any, and what did you like least about their performance?

Narrative: _____

y. Please rate overall customer satisfaction with the contractor's performance.

☐Exceptional ☐Very Good ☐Satisfactory ☐Marginal ☐Unsatisfactory ☐Unknown

Narrative: _____

z. The following information will help us track the responses received, as well as resolve whatever differences may arise between your perception of the contractor's performance and the contractor's perception of their performance.

- a. Evaluator's Name: _____
- b. Title: _____
- c. Telephone Number: _____
- d. Organization, Office Symbol, and Address: _____
- e. Length of involvement in the contract: _____
- f. Date of questionnaire completion: _____

aa. Again, thank you for your time and effort in assisting us with our requirement.

bb. Please provide narrative explanations for each answer. If more space is needed, please use the back of this questionnaire or attach additional sheets of paper. Please identify the performance area if additional information is provided.

cc. You are urged to supplement your knowledge of the contractor's performance with the judgment of others in your organization. In addition to completing the attached questionnaire for the CA FLAP SCR T5(1a) Monterey Bay Sanctuary Scenic Trail Mitigation we solicit your comments on other similar programs for which your organization has contracts with this contractor.

dd. Please return the completed questionnaire to Bureau of Land Management, via email to Kelly Palmer at kpalmers@blm.gov, to **arrive not later than by 2:00 pm MDT, May 13, 2026.**

Kelly Palmer
Contracting Officer

VOLUME II – PRICE PROPOSAL

Factor 5: Price

Price Evaluation

- a. If negotiations are conducted, they will be with all offerors in the competitive range, price and other factors considered. The importance of price will be in accordance with the above evaluation factors. However, an excessively high-priced proposal which is considered competitive technically may not be included in the competitive range for negotiations. Award of contract may or may not be made to the offeror with the lowest price proposal. The right is reserved to award a contract on other than the lowest price basis, if a higher price proposal is rated significantly higher in quality than any other, and the higher quality performance is considered vital to the successful completion of this requirement.

DEBRIEFING OF UNSUCCESSFUL OFFERORS

- a. Offerors may request a pre-award or post-award debriefing by submitting a written request for debriefing to the contracting officer within 3 days after receipt of the notice of exclusion from the competition or award notice in accordance with RFO 15.206-2 or RFO 15.301-1.
- b. Debriefings are conducted with the goal of identifying unsuccessful offerors where changes can be made to improve future participation. To that end, debriefings requested will be conducted with only one (1) offeror at a time. **Offerors requesting a debriefing shall provide their questions in writing in advance of the debriefing.** The debriefing shall be confined to a discussion of the offeror's proposal, its strong and weak points in relation to the requirements of the solicitation.

DISPOSITION OF UNSUCCESSFUL PROPOSALS

In compliance with RFO Subpart 4.7, the Government will retain an electronic of all unsuccessful proposals. Extra copies of such unsuccessful proposals will be destroyed by the Government.

(End of provision)

52.215-1 Instructions to Offerors-Competitive Acquisition(NOV 2021)(DEVIATION OCT 2024)

52.215-20 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (NOV 2021)(DEVIATION OCT 2025)

52.216-1 Type of Contract. (APR 1984)(DEVIATION OCT 2025)

The Government contemplates award of a **FIRM FIXED PRICE** contract resulting from this solicitation.

(End of provision)

52.219-1 Small Business Program Representations (FEB 2024)(DEVIATION NOV 2025)

52.222-5 Construction Wage Rate Requirements Secondary Site of the Work. (MAY 2014)(DEVIATION OCT 2025)

52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (OCT 2025)(DEVIATION OCT 2025)

52.223-1 Bio based Product Certification (MAY 2024)(DEVIATION FEB 2025) (DEVIATION DEC 2025)

As required by the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8101(4)) and the Energy Policy Act of 2005 (7 U.S.C. 8102(a)(2)(F)), the Offeror certifies, by signing this offer, that biobased products (within categories of products listed by the United States Department of Agriculture at <https://www.biopreferred.gov/resources/categories.html>) to be used or delivered in the performance of the contract, other than biobased products that are not purchased by the Offeror as a direct result of this contract, will comply with the applicable specifications or other contractual requirements.

(End of provision)

52.225-10 Notice of Buy American Requirement—Construction Materials (MAY 2014)

52.228-1 Bid Guarantee. (SEP 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds -

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be twenty (20%) percent of the bid price or \$3,000,000.00, whichever is less.

(d) If the successful offeror, upon acceptance of its proposal by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed

bond(s) within 10 days after receipt of the forms by the offeror, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the offeror is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

52.233-2 Service of Protest. (SEP 2006)(DEVIATION SEP 2025)

(a) Protests, (as defined in section 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

***Mrs. Leslie Karsten
Acquisitions Branch Chief
Federal Highway Administration
12300 West Dakota Avenue, Suite 360
Lakewood, Colorado 80228***

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

**52.240-90 Security Prohibitions and Exclusions Representations and Certifications
(DEVIATION SEP 2025)**

(a) Definitions. As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), by submission of its offer —

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resourcecenter/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service; (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of

discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <http://www.acquisition.gov/far> and <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

(End of provision)

52.252-3 Alterations in Solicitation. (APR 1984)

Portions of this solicitation are altered as follows: **NONE**

(End of provision)

52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation or contract of any Revolutionary FAR Overhaul (RFO) (48 CFR All Changed Chapters, <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>) and the Department of Transportation Regulation (TAR) (48 CFR, Chapter 12) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

1252.239–92 Information and Communication Technology Accessibility Notice (NOV 2022)

APPENDIX – A

FIRE PLAN

CA FLAP SCR T5(1A)
MBSST Mitigation Fire Plan

The Contractor will take the following precautions:

- (a) Smoking and Lunch Fires.** Smoking is prohibited except inside a building, developed recreation site, vehicle, or while seated in an area at least three feet in diameter that is barren or cleared of all flammable materials. 36 CFR 261.52(d).

The building of camp, lunch, warming, and other fires within the project area and vicinity is prohibited, except at established campgrounds where fire grates are supplied.

- (b) Spark Arrester and Mufflers.** Operating or using any internal combustion engine, on any timber, brush, or grass covered land, including trails and roads traversing such land, without a spark arrester, maintained in effective working order, meeting either (I) Department of Agriculture, Forest Service standard 5100, "SPARK ARRESTERS FOR INTERNAL COMBUSTION ENGINES," (current edition); or (II) the Society of Automotive Engineers (SAE) recommended practices J335, "MULTIPOSITION SMALL ENGINE EXHAUST SYSTEM FIRE IGNITION SUPPRESSION," (current revision) and J350, 36 CFR 261.52(j), is prohibited.

Passenger carrying vehicles, pickups, medium and large highway trucks (80,000 GVW) will be equipped with a factory designed muffler system which is specified for the make and model of the respective vehicle/truck or with a muffler system that is equivalent or that exceeds factory specifications.

Exhaust systems shall be properly installed and continually maintained in serviceable condition.

- (c) Fire Extinguishers and Tools on Equipment.** While in use, each internal combustion engine including tractors, trucks, yarders, loaders, welders, generators, stationary engines, or comparable powered equipment shall be provided with at least the following:

One fire extinguisher, at least 5# ABC with an Underwriters Laboratory (UL) rating of 3A-40BC, or greater.

One shovel, sharp, size O or larger, round-pointed with an overall length of at least 48 inches.

One axe, sharp, double bit 3-1/2#, or one sharp pulaski.

Extinguishers, shovels, axes, and pulaskis shall be mounted so as to be readily available from the ground. All tools shall be maintained in a serviceable condition.

- (d) Power Saws.** Each gasoline engine power saw shall be provided with one chemical-pressurized fire extinguisher of not less than 8-ounce capacity by weight, and one size O or larger round-pointed shovel with an overall length of at least 48 inches. The extinguisher and shovel shall be maintained in good working order. The extinguisher shall be with the power saw operator immediately available for use at all times. The extinguisher shall not

CA FLAP SCR T5(1A)
MBSST Mitigation Fire Plan

be affixed to the saw. The shovel shall be readily available to the operator of the saw at all times. Having the shovel with the gas can used to refuel the saw may be considered “readily available” if not more than 200 feet from the saw. During periods of critical fire danger, the County may prescribe other precautionary measures.

Any fueling or refueling of a power saw shall be done in an area which has first been cleared of material which will carry fire. The power saw shall be moved at least 10 feet from the place of fueling or refueling before starting.

- (e) Blasting and Welding.** Blasting is prohibited except by written agreement. Such written agreement shall set forth necessary fire prevention requirements.

Unless otherwise directed in writing by the County, all flammable material shall be cleared for 10 feet around any piece of equipment being welded. In addition, provide a fire extinguisher of a size and type designed to extinguish a fire in the flammable materials surrounding the spot being welded.

During Fire Precautionary periods, blasting shall be permitted as follows:

When the predicted condition class reaches 3 (High), a watchman shall patrol the blasting area for at least one (1) hour following blasting. The watchman shall have available for immediate use a standard fire shovel and a five (5) gallon water filled backpack pump.

When the predicted condition class reaches 4 (Very High), blasting shall be restricted to clear areas and terminated by 11 a.m. local time. The watchman requirements shall be as in item A above.

Terminate blasting operations when the predicted fire danger reaches EXTREME.

- (f) Gasoline and Oil Storage.** Gasoline, oil, grease, or other highly flammable material shall be stored in a separate building (or on site where all flammable debris has been cleared away within a minimum radius of 25 feet). Mobile servicing units shall be equipped with a fire extinguisher of not less than a 2 quart capacity of a type approved by the UL for gasoline and oil fires.

Conform to the following requirements:

- (1)** Do not camp within the project limits.
- (2)** Locate office, lab or other trailers only within the designated staging areas.
- (3)** Do not feed or disturb wildlife.

APPENDIX – B

MBSST Mitigation Project

Worker Environmental Awareness Training



Cultural & Paleontological Resources

If buried prehistoric or historic materials, paleontological resources, and/or human remains are discovered during ground disturbing work, **STOP WORK** in the immediate vicinity and contact the CO and archaeology or paleontology monitor immediately.

Cultural Resources

- Cultural resources are typically representative of definite locations of human activity, occupation, or use. The term includes archaeological, historic and architectural sites, structures or places.
- These resources have traditional, cultural, or religious importance and are protected by the National Historic Preservation Act (NRPA).
- Buried cultural resources, such as historic or prehistoric artifacts or objects, have the potential to be exposed during construction.
- If any artifacts or unusual objects are observed during construction activities stop work in the area and contact the CO and archaeology monitor to investigate before proceeding.

Paleontological Resources

- Paleontological resources (fossils) are the remains of life preserved in a geologic context.
- Fossils may consist of the physical remains of an organism such as a tooth, bone, shell, leaf, cone, seed, or wood.
- These resources have significant scientific, educational, and other values and are protected by the Paleontological Resources Preservation Act (PRPA).
- If any fossils or unusual geology such as animal tracks or other imprints in rocks are observed

during construction activities stop work in the area and contact the CO and paleontology monitor to investigate before proceeding.

General Environmental Commitments

- Attend Worker Environmental Awareness Training.
- Check for wildlife under equipment before operating it.
- All vehicles and equipment entering the project area must be clean of noxious weeds and free from oil leaks.
- Position stationary equipment such as motors, pumps, generators, and compressors over drip pans.
- Position equipment parked for considerable time over drip pans or absorbent materials.
- Fuel and service equipment at approved staging areas. Report spills.
- Dispose of all trash in covered bins on site, including food scraps.

Project Contacts

Construction Operations Engineer:

Matt Fletcher: (202) 897-8947

Project Manager:

Ryan Mathis: (720) 963-3728

Environmental Protection Specialist:

Casey Balthrop: 720-963-3334

MBSST Mitigation Project

Worker Environmental Awareness Training



The following protected species may occur in the Project area.

If any of the protected species are spotted on the project site, **STOP WORK** in the area and contact the biological monitor immediately. Only qualified biologists are approved to handle these species.



Protected Species

California Red-Legged Frog (Federally listed)



- Males reach 4.5 inches and females reach 5.4 inches.
- The abdomen and hind legs of adults are often red or salmon pink. The back of this species is characterized by small

black flecks and larger irregular dark blotches.

- Adult CRLF are largely nocturnal while juveniles are active during both day and night.
- Spend the bulk of time in or near water sources like streams however move into upland areas to feed and shelter when flow levels are high.
- Hide under rocks, leaf litter, and animal burrows.

San Francisco Garter Snake (Federally listed)

- Average length is 39 inches long for females and 32 inches for males.
- Has a greenish-blue or blue belly, red on top of its head, and red and black stripes on the sides.
- Found in or near aquatic habitat (ponds, creeks, marches) and grassy areas near aquatic habitat.



San Francisco Dusky-Footed Woodrat



- 6-8 inches tall and 9 inches in length. Brown/grey with white underside and white coloring in feet.
- Habitat includes chaparral, mixed evergreen forests, and riparian areas.
- Construct large stick nests on the ground or in trees.

Southwestern Pond Turtle



- Shells are 3-8 inches in length.
- Dark brown, olive brown or blackish in color.
- Found in ponds, streams, and other aquatic habitat with abundant vegetation.

- Prefers pools when in streams. Uses logs, rocks and banks for basking.

Townsend's Big-Eared Bat



- Medium sized bat with very long ears. Fur is pale gray or brown.
- Wingspan is 12-13 inches.
- Use a variety of habitats that are near caves or other roosting areas.
- Other bat species could occur in the project area and roost in cavities of trees. When removing trees – Day 1 remove only the limbs and branches. If no bats are present – Day 2 remove remaining tree.

California Giant & Santa Cruz Black Salamanders



- California Giant Salamanders are 3-7 inches long, light reddish brown, and found near streams.
- Santa Cruz Black Salamanders are 2-4 inches long, solid black, and found near streams.



Nesting Birds

- Nesting birds are protected by the Migratory Bird Treaty Act and CDFW code.



- If an active nest is found within the project limits a buffer area will be established where work would be restricted.

The **Endangered Species Act (ESA)** is a federal law that establishes protections for fish, wildlife, and plants that are listed as threatened or endangered. These imperiled species are provided strict protections under federal law to ensure their continuing survival. It is unlawful to kill, harm or harass any species listed under the Endangered Species Act.

The **California Endangered Species Act (CESA)** is a California law that conserves and protects plant and animal species at risk of extinction. A CESA listed species may not be taken without proper authorization.

Please be responsible and protect fish, wildlife, and plant species by staying within project limits and following all contract specifications.

APPENDIX – C
PERMIT NPDES NO:
CAS000002

CALIFORNIA STATE WATER RESOURCES CONTROL BOARD
1001 I Street Sacramento, CA 95814
<https://www.waterboards.ca.gov>

**NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES)
GENERAL PERMIT FOR STORMWATER DISCHARGES ASSOCIATED WITH
CONSTRUCTION AND LAND DISTURBANCE ACTIVITIES
(GENERAL PERMIT)**

ORDER WQ 2022-0057-DWQ
NPDES NO. **CAS000002**

This Order was adopted by the State Water Resources Control Board on:	September 8, 2022
This Order shall become effective on:	September 1, 2023
The statewide programmatic permitting option per Section III.B.4 of this Order shall become effective on:	December 17, 2022
This Order shall expire on:	August 31, 2028

IT IS HEREBY ORDERED that this Order supersedes Order 2009-0009-DWQ as amended by Order 2010-0014-DWQ and 2012-0006-DWQ except for: (1) the requirement to submit annual reports by September 1, 2023, (2) enforcement purposes, and (3) as set forth in Section III.C of this Order. The discharger shall comply with the requirements in this Order to meet the provisions contained in Division 7 of the California Water Code (commencing with § 13000) and regulations adopted thereunder, and the provisions of the federal Clean Water Act and regulations and guidelines adopted thereunder.

IT IS ALSO HEREBY ORDERED that on or after December 17, 2022, a discharger deploying Executive Order N-73-20 may obtain regulatory coverage through the statewide programmatic permitting option in Section III.B.4 under Order 2009-0009-DWQ as amended by Orders 2010-0014-DWQ and 2012-0006-DWQ until September 1, 2023.

I, Jeanine Townsend, Clerk to the Board, do hereby certify that this Order with all attachments is a full, true, and correct copy of an Order adopted by the State Water Resources Control Board, on September 8, 2022.

AYE: Chair E. Joaquin Esquivel
Board Member Sean Maguire
Board Member Laurel Firestone
Board Member Nichole Morgan

NAY: None

ABSENT: Vice Chair Dorene D'Adamo

ABSTAIN: None

Courtney Tyler for
Jeanine Townsend
Clerk to the Board

Table of Contents

I.	FINDINGS	1
II.	SCOPE OF GENERAL PERMIT COVERAGE	8
III.	OBTAINING, REVISING, AND TERMINATING PERMIT COVERAGE.	12
IV.	PERMIT REQUIREMENTS.....	23
V.	SITE ROLES AND PERSONNEL	36
VI.	STANDARD PROVISIONS.....	42
VII.	REGIONAL WATER BOARD AUTHORITIES.....	49

LIST OF ATTACHMENTS

Attachment A	Acronyms and Terms
Attachment B	Glossary
Attachment C	Contacts
Attachment D	Traditional Construction Risk Level Requirements
Attachment D.1	Risk Determination Worksheet
Attachment D.2	Permit Registration Document Requirements
Attachment E	Linear Underground and Overhead Project Requirements
Attachment E.1	Linear Underground and Overhead Project Area or Segment Area Type Determination
Attachment E.2	Permit Registration Document Requirements for Linear Underground and Overhead Projects
Attachment F	Active Treatment System Requirements
Attachment G	Requirements for the Use of Passive Treatment Technologies
Attachment H	Total Maximum Daily Load Implementation Requirements Applicable to Construction Stormwater Discharges
Attachment I	Requirements for Dischargers Granted a California Ocean Plan Exception for Discharges to Areas of Special Biological Significance
Attachment J	Dewatering Requirements

I. FINDINGS

The State Water Resources Control Board (State Water Board) finds that:

1. The Federal Water Pollution Control Act, also referred to as the Clean Water Act, prohibits certain discharges of stormwater containing pollutants to waters of the United States except in compliance with a National Pollutant Discharge Elimination System (NPDES) permit (Title 33 United States Code (U.S.C.) §§ 1311 and 1342(p); also referred to as Clean Water Act §§ 301 and 402(p)). The United States Environmental Protection Agency (U.S. EPA) promulgates federal regulations to implement the Clean Water Act's mandate to control pollutants in stormwater runoff discharges. (Title 40 Code of Federal Regulations (CFR) Parts 122, 123, and 124). The federal statutes and regulations require discharges to waters of the United States comprised of stormwater associated with construction activity to obtain NPDES permit coverage (except operations that result in disturbance of less than one acre of total land area and that are not part of a larger common plan of development or sale). Construction activity includes, but is not limited to, clearing, demolition, grading, excavation, and other land disturbance activities. The NPDES permit shall require implementation of Best Available Technology Economically Achievable (BAT) and Best Conventional Pollutant Control Technology (BCT) to reduce or eliminate pollutants in stormwater runoff. The NPDES permit shall also include any additional requirements necessary to achieve applicable water quality standards.
2. Consistent with Water Code, § 13374, this NPDES permit also serves as waste discharge requirements for discharges of pollutants in stormwater runoff (stormwater discharges) associated with construction and land disturbance activities and is hereinafter referred to as General Permit.
3. A "discharger" is a person, as defined in Water Code § 13050(c), which includes companies and governmental bodies, subject to this General Permit who is responsible for compliance with this General Permit. The discharger designates the Legally Responsible Person(s) to serve as a primary signatory when required to sign, certify, and submit documents or information for this General Permit. The Legally Responsible Person(s) may also designate a Duly Authorized Representative(s) to sign, certify, and submit documents or information for this General Permit. "Discharger" and the designated "Duly Authorized Representative" are further defined in Attachment B of this General Permit.
4. This General Permit regulates discharges to waters of the United States from stormwater and authorized non-stormwater associated with construction activity from sites that disturb one or more acres of land surface, or that are part of a common plan of development or sale that disturbs more than one acre of land surface.
5. This General Permit regulates discharges to waters of the United States from stormwater and authorized non-stormwater associated with construction activities

from all linear underground and overhead projects resulting in the disturbance of greater than or equal to one acre (Attachment E).

6. This General Permit does not preempt or supersede the authority of local stormwater management agencies to prohibit, restrict, or control stormwater discharges to municipal separate storm sewer systems or other watercourses within their jurisdictions.
7. This action to adopt a general NPDES permit is exempt from the provisions of Chapter 3 of the California Environmental Quality Act (Public Resources Code § 21100, et seq.), pursuant to § 13389 of the California Water Code.
8. Regional Water Quality Control Boards (Regional Water Boards) establish water quality standards in water quality control plans. The State Water Board establishes water quality standards in various statewide water quality control plans, including the California Ocean Plan and the forthcoming Inland Surface Waters, Enclosed Bays, and Estuaries of California Plan. U.S. EPA establishes water quality standards in the National Toxic Rule and the California Toxic Rule.
9. Pursuant to 40 Code of Federal Regulations § 131.12 and State Water Board Resolution No. 68-16 (antidegradation policy), which incorporates applicable requirements of § 131.12, in high quality waters, discharges may not unreasonably affect beneficial uses, result in water quality less than the quality specified by water quality objectives, or cause a pollution or nuisance, except as allowed under the antidegradation policy. The federal antidegradation policy requires that “existing instream uses and the level of water quality necessary to protect the existing uses” are maintained and protected. If the baseline quality of a waterbody for a given constituent “exceeds levels necessary to support propagation of fish, shellfish, and wildlife and recreation in and on the water, that quality shall be maintained and protected” through the requirements of this Order unless the State Water Board makes findings that: (1) any lowering of the water quality is “necessary to accommodate important economic or social development in the area in which the waters are located”; (2) “water quality adequate to protect existing uses fully” is assured; and (3) “the highest statutory and regulatory requirements for all new and existing point sources and all cost-effective and reasonable best management practices for nonpoint source control” are achieved. For high quality waters, Resolution No. 68-16 requires findings that any lowering of water quality is “consistent with the maximum benefit to the people of the State” and “will not unreasonably affect present and anticipated beneficial use of such water and will not result in water quality less than that prescribed in the policies” and further that the discharge is subject to “waste discharge requirements which will result in the best practicable treatment or control of the discharge.”
10. The State Water Board finds that the permitted discharges authorized by this Order are consistent with the antidegradation provision of 40 CFR §131.12 and State Water Board Resolution No. 68-16, as set forth in Section I.H.2 in the Fact Sheet.

11. This General Permit serves as an NPDES permit in compliance with Clean Water Act § 402 and will be effective on September 1, 2023, except for the statewide programmatic permitting option per Section III.B.4 of this Order which will go into effect on December 17, 2022, provided the Regional Administrator of the U.S. EPA has no objection. If the U.S. EPA Regional Administrator objects to its issuance, this General Permit will not become effective until such objection is withdrawn.
12. The Regional Water Boards and the State Water Board, collectively referred to as the Water Boards, shall enforce the provisions herein following adoption and upon the effective date of this General Permit.
13. Stormwater discharges from dredge spoil placement that occur outside of waters of the state (upland sites) and that disturb one or more acres of land surface from construction activity are covered by this General Permit. This General Permit does not cover the discharge of dredged or fill material to waters of the state. Construction projects that include the discharge of dredged or fill material to waters of the state should contact the applicable Regional Water Board to obtain authorization for the discharge of dredged or fill material to waters of the state.
14. The discharge of dredged or fill material to a water of the United States is regulated by the United States Army Corps of Engineers under Clean Water Act § 404, and by the Water Boards under Clean Water Act § 401. The discharge of dredged or fill material to a water outside of federal jurisdiction may be regulated by the Water Boards under the Porter-Cologne Water Quality Control Act. This General Permit does not authorize discharges of fill or dredged material regulated by the U.S. Army Corps of Engineers under CWA § 404 and does not constitute a waiver of water quality certification under CWA § 401.
15. Compliance with requirements contained in this General Permit does not supersede or constitute compliance with other regulatory requirements also applicable to discharges regulated by this General Permit, including waste discharge prohibitions in regional and statewide water quality control plans.
16. The State Water Board heard and considered all comments and testimony in a public hearing on August 4, 2021, as publicly noticed in accordance with state and federal laws and regulations. The State Water Board has prepared written responses to all significant comments.
17. The Homeland Security Act of 2002 (U.S. 116 STAT. 2135 and Title 6 U.S. Code Chapter 1 § 101) requires any information provided to the Water Boards per a regulatory action taken by the Water Boards shall comply with the Homeland Security Act and other federal law that address security in the United States; the discharger should not submit any information that does not comply.
18. The discharger is required to comply with this General Permit's conditions for all discharges associated with stormwater from construction activity and authorized non-stormwater discharges by this General Permit or another NPDES permit

issued by the State Water Board or a Regional Water Board. All other discharges are prohibited by this General Permit.

19. Unauthorized non-stormwater discharges are prohibited, including improper dumping, spills, or leakage from storage tanks or transfer areas. Non-stormwater discharges may contribute significant pollutant loads to receiving waters.
20. All discharges which contain a hazardous substance in excess of reportable quantities established in 40 Code of Federal Regulations §§ 117.3 and 302.4, are prohibited unless a separate NPDES permit has been issued to regulate those discharges.
21. Stormwater that is exposed to by-products and waste products resulting from demolition activities may transport and discharge pollutants off-site and into receiving waters.
22. In 2008, the State Water Board and the California Stormwater Quality Association (CASQA) led a group of stakeholders in developing and establishing the Construction General Permit Training Team (CGPTT). Subsequently, the CGPTT developed the training program and certification process for Qualified Stormwater Pollution Prevention Plan (SWPPP) Developer (QSD) and the Qualified SWPPP Practitioner (QSP) conducting work required by this General Permit. In 2010, CASQA and the State Water Board entered into a Memorandum of Agreement to document their respective understandings, roles, and responsibilities for the implementation of the QSD/QSP training program. The Memorandum of Agreement notes that the CASQA QSD/QSP Training Program constitutes a State Water Board-approved training course pursuant to the Construction Stormwater General Permit. The Memorandum of Agreement also documents that CASQA will continue to lead the QSD/QSP training program, with guidance from the CGPTT.
23. Per the Memorandum of Agreement, CASQA is responsible for qualifying and overseeing Trainers of Record who deliver the official QSD/QSP training program curricula in a manner consistent with the standards established by the CGPTT.
24. All California professional engineering, land surveying, and geology work is licensed by the Board for Professional Engineers, Land Surveyors, and Geologists.¹ Pursuant to the Professional Engineers Act (Bus. and Prof. Code § 6700, et seq.), all engineering work is required to be performed by a California licensed professional engineer. Pursuant to the Profession Land Surveyor's Act (Bus. and Prof. Code §§ 8700 – 8805), all land surveying work is required to be performed by a California licensed profession land surveyor. Pursuant to the Professional Geologist and Geophysicist's Act (Bus. and Prof. Code §§ 7800 –

¹ [Department of Consumer Affairs, California Board for Professional Engineers, Land Surveyors, and Geologists website](https://www.bpelsg.ca.gov/) <<https://www.bpelsg.ca.gov/>> [as of July 2022]

7887), all geological work is required to be performed by a California licensed professional geologist.

25. Precipitation events can occur at any time of the year in California. On-site stormwater management is necessary throughout the entire year to ensure sites implement adequate erosion and sediment controls prior to the onset of a precipitation event, even if construction is planned only during the typically dry season.
26. Soil particles smaller than 0.02 millimeters (mm) (i.e., finer than medium silt) do not settle easily using conventional measures for sediment control (i.e., sediment basins). Fine particles discharged into surface waters cause downstream impacts to beneficial uses in the receiving water. Actively treating construction stormwater discharges with properly operated and maintained active treatment systems can reduce the turbidity level and sediment concentration in the discharge to levels that comply with receiving water limitations.
27. The State Water Board convened a Blue-Ribbon Panel (Panel) of stormwater experts that submitted a report entitled "The Feasibility of Numeric Effluent Limits Applicable to Discharges of Stormwater Associated with Municipal, Industrial and Construction Activities," dated June 19, 2006. The Panel concluded that numeric effluent limitations or numeric action levels are technically feasible to regulate construction stormwater discharges. The Panel concluded that numeric effluent limitations are feasible for discharges from sites that utilize an active treatment system. The Panel also concluded that numeric action levels are likely to be more commonly feasible. The previous permit (Order 2009-0009-DWQ, as amended by Orders 2010-0014-DWQ and 2012-0006-DWQ) includes numeric action levels for pH and turbidity, and specific numeric effluent limitations for active treatment system discharges. The Panel was not asked to address requirements specific to the implementation of Total Maximum Daily Loads (TMDL) with assigned waste load allocations for construction stormwater sources.
28. The purpose of numeric action levels and associated monitoring requirements is to provide operational information regarding the performance of the site control measures used to minimize the discharge of pollutants and to protect receiving water beneficial uses from the adverse effects of construction-related stormwater and authorized non-stormwater discharges. Upon exceedance of a numeric action level, the discharger must take necessary corrective actions, including but not limited to maintenance, replacement, and/or installation of new best management practices. This General Permit relies on dischargers to implement an iterative process for best management practice to protect water quality. Failure to implement corrective actions in response to a numeric action level exceedance is a violation of this General Permit.
29. This General Permit requires compliance with receiving water limitations based on water quality standards established in regional or statewide water quality control plans. One of the receiving water limitations requires that construction

stormwater discharges and authorized non-stormwater discharges not cause or contribute to an exceedance of applicable water quality standards. Water quality standards apply to the quality of the receiving water, not the quality of the construction stormwater discharge. Therefore, compliance with the receiving water limitations generally cannot be determined solely by the effluent water quality characteristics. If any discharger's stormwater discharge causes or contributes to an exceedance of water quality standards, that discharger must implement additional BMPs or other control measures in order to attain compliance with the receiving water limitation. Compliance with water quality standards may, in some cases, require dischargers to implement controls that are more protective than controls implemented solely to comply with the technology-based requirements in this General Permit.

30. A Total Maximum Daily Load is the sum of the allowable loads of a single pollutant from all contributing point sources (waste load allocations) and non-point sources (load allocations), plus the contribution from background sources (40 Code of Federal Regulations § 130.2(i)). Discharges of stormwater from construction activities are considered point source discharges, and therefore must comply with NPDES permit requirements translated to be "consistent with the assumptions and requirements of any available waste load allocation for the discharge prepared by the state and approved by U.S. EPA pursuant to 40 Code of Federal Regulations § 130.7" (40 Code of Federal Regulations § 122.44 (d)(1)(vii)). In addition, Water Code § 13263, subdivision (a), requires that waste discharge requirements implement any relevant water quality control plans. Many TMDLs in water quality control plans include implementation requirements that may be translated into General Permit requirements and TMDL-specific numeric action levels and numeric effluent limitations.
31. Areas of Special Biological Significance are defined in the California Ocean Plan as "those areas designated by the State Water Board as ocean areas requiring protection of species or biological communities to the extent that alteration of natural water quality is undesirable." The California Ocean Plan prohibits the discharge of waste to Areas of Special Biological Significance unless identified in a State Water Board-approved exception.
32. The California Ocean Plan authorizes the State Water Board to grant an exception to California Ocean Plan provisions where the State Water Board determines that the exception will not compromise protection of ocean waters for beneficial uses and the public interest will be served.
33. On March 20, 2012, the State Water Board adopted Resolutions 2012-0012 and Resolution 2012-0031, which contain exceptions to the California Ocean Plan for specific discharges of stormwater and non-point sources. This resolution also contains the special protections that are to be implemented for those discharges to Areas of Special Biological Significance.
34. Dischargers are only allowed to discharge to an Area of Special Biological Significance when in compliance with Areas of Special Biological Significance-

specific requirements in a State Water Board-provided exception to the California Ocean Plan granted to the specific discharger.

35. On August 19, 2014, the U.S. EPA adopted regulations requiring all NPDES permits to include requirements to implement sufficiently sensitive test methods. This General Permit requires all laboratory analyses to be sufficiently sensitive and conducted according to test procedures under 40 Code of Federal Regulations Part 136. All analytical results less than the minimum level (reporting limit), as reported by the laboratory, will be assigned a value of zero (0) for any calculations required by this permit (e.g., numeric action level and numeric effluent limitation exceedance determinations), so long as a sufficiently sensitive test method was used as evidenced by the reported method detection limit and minimum level.
36. Specific types of passive treatment used in combination with other best management practices (BMPs) can prevent or reduce the discharge of fine particles from certain construction activities when implemented correctly.
37. Passive treatment is the application of natural or synthetic chemicals and products to reduce turbidity in discharges through coagulation and flocculation. Passive treatment does not rely on computerized, enclosed systems with pumps, filters, and real-time controls. Passive treatment may include pumps where they are necessary to move water around the site. The discharge of chemicals used in passive treatment can potentially cause or contribute to acute and chronic toxicity to aquatic life in receiving waters, potentially resulting in an exceedance of narrative or numeric water quality objectives in regional or statewide water quality control plans.
38. State Water Board Resolution 2005-0006, "Resolution Adopting the Concept of Sustainability as a Core Value for State Water Board Programs and Directing its Incorporation," and Resolution No. 2008-0030, "Requiring Sustainable Water Resources Management," include performance standards for post-construction BMPs. The standards include the use of permanent post-construction BMPs that manage stormwater runoff rates to match pre-construction project site hydrology, and to sustain and ensure the physical structure and biological integrity of aquatic ecosystems in the receiving waters. This "runoff reduction" approach is analogous in principle to low impact development and is proven to protect watersheds and waterbodies from hydrologic-based adverse changes and pollution impacts associated with the post-construction landscape.
39. Linear underground and overhead projects are not subject to post-construction requirements due to the nature of their construction to return project sites to pre-construction conditions.

IT IS HEREBY ORDERED that all dischargers subject to this General Permit shall comply with the following conditions and requirements (including all conditions and requirements as set forth in the Attachments of this Order)²: State Water Board Order 2009-009-DWQ as amended by Orders 2010-0014-DWQ and 2012-0006-DWQ (previous permit) is superseded as of the effective date of this General Permit except for enforcement purposes, the Annual Report required to be submitted by September 1, 2023, and as set forth in Section III.C.

II. SCOPE OF GENERAL PERMIT COVERAGE

II.A. Traditional Construction Activities Subject to this General Permit

This General Permit covers construction projects that include construction or land disturbance activities that result in a disturbance of one or more acres, or less than one acre but are part of a larger common plan of development or sale that totals one or more acres of land disturbance, such as the following:

1. Construction activity that includes, but is not limited to, clearing, grading, excavation, stockpiling, and demolition activities that expose or disturb soil.
2. Construction activity related to residential, commercial, or industrial development on lands currently used for agriculture including, but not limited to, the construction of buildings related to agriculture that are considered industrial pursuant to U.S. EPA regulations, such as dairy barns or food processing facilities.
3. Construction activity associated with oil and gas exploration, production, processing, or treatment operations or transmission facilities pursuant to 40 Code of Federal Regulations § 122.26(c)(1)(iii), which:
 - a. Had a discharge of stormwater resulting in the discharge of a reportable quantity for which notification is or was required pursuant to 40 Code of Federal Regulations §§ 117.21 or 302.6 at any time since November 16, 1987;
 - b. Had a discharge of stormwater resulting in the discharge of a reportable quantity for which notification is or was required pursuant to Code of Federal Regulations § 110.6 at any time since November 16, 1987; or
 - c. Contributes to a violation of a water quality standard.

II.B. Traditional Construction Activities Not Subject to this General Permit

This General Permit does not apply to the following construction activity:

1. Routine maintenance. Routine maintenance is defined as activities intended to maintain the original line and grade, hydraulic capacity and/or purpose of

² The attachments are part of this General Permit; the attachments are not separate orders or documents that will be updated independently by the State Water Board.

the facility. This General Permit further defines routine maintenance for road and highway projects as the replacement of the structural section, but not when the activity exposes the underlying soil or erodible subgrade. The road surface and base are not part of the subgrade. As such, those portions of a project that remove the paved road surface and base down to the erodible subgrade and/or underlying soil would not be considered routine maintenance.

2. Disturbances to land surfaces solely related to growing crops or agricultural operations such as disking, harrowing, terracing, and leveling, and soil preparation.
3. Discharges of stormwater from areas on tribal lands; construction on tribal lands is regulated by a federal permit.
4. Discharges of stormwater within the Lake Tahoe Hydrologic Unit. The Lahontan Regional Water Board has adopted its own permit to regulate stormwater discharges from construction activity in the Lake Tahoe Hydrologic Unit. Owners of construction sites in this watershed must apply for the Lahontan Regional Water Board permit rather than the statewide Construction Stormwater General Permit. Construction sites within the Lahontan region must also comply with the Lahontan Region Project Guideline for Erosion Control (R6T-2016-0010).³
5. Construction activity that disturbs less than one acre of land surface, unless part of a larger common plan of development or the sale of one or more acres of disturbed land surface.
6. Construction activity covered by an individual NPDES Permit for stormwater discharges.
7. Construction activity that is subject to the Industrial Stormwater General Permit:
 - a. Landfill operations as described by Standard Industrial Classification (SIC) code 4953. Landfill operators typically enroll under the Construction Stormwater General Permit for initial construction and final closure of the landfill.
 - b. Concrete manufacturers of prefabricated products, ready-mix concrete, or slurries that are delivered to construction sites require enrollment in the Industrial Stormwater General Permit. Examples of this industrial activity are those facilities primarily engaged in manufacturing concrete building blocks and bricks, other concrete products not building blocks and bricks,

3 Lahontan Regional Water Quality Control Board, [Order R6T-2016-0010](https://www.waterboards.ca.gov/lahtontan/water_issues/programs/storm_water/docs/r6t_2016_0010_cgp_combined.pdf) (March 10, 2016), https://www.waterboards.ca.gov/lahtontan/water_issues/programs/storm_water/docs/r6t_2016_0010_cgp_combined.pdf [as of May 20, 2021]

or ready-mix concrete as categorized by Standard Industrial Classification (SIC) codes 3531, 3271, 3272, or 3273. Concrete manufacturing of prefabricated products, ready-mixed concrete, or slurries that are transported from construction sites where mixing occurs and delivered to a separate site require enrollment in the Industrial Stormwater General Permit.

8. Construction activity that discharges to combined sewer systems.
9. Discharges of stormwater identified in Clean Water Act § 402(l)(2), 33 USC § 1342(l)(2) (stormwater runoff from oil, gas, and mining operations) unless the discharge meets the conditions of 40 Code of Federal Regulations § 122.26(c)(1)(iii) as described in this General Permit.
10. Discharges of dredged or fill material to waters of the state. Those portions of the construction project that are located outside of waters of the state or waters of the United States are subject to this General Permit if the non-water portions disturb one or more acres of land.

II.C. Linear Underground and Overhead Projects Subject to this General Permit

1. Linear underground and overhead projects include, but are not limited to conveyance facilities, culverts, pipelines, or other linear corridors for:
 - a. The transportation of any gaseous, liquid, liquescent, and slurry material;
 - b. Cable line or wire for the transmission of:
 - i. Electrical energy; or
 - ii. Communications, including internet, telephone, telegraph, radio, or television messages.
 - c. Ancillary facilities and substructures such as new access roads, helicopter landing zones, laydown yards, staging areas, substations, valve stations, etc. that primarily function as support for linear underground and overhead project construction activities.⁴
2. Construction support activities associated with linear underground and overhead projects include, but are not limited to:
 - a. Activities necessary for the installation of underground and overhead linear facilities (e.g., conduits, substructures, pipelines, towers, poles, cables, wires, connectors, switching, regulating and transforming equipment, vegetative management, and associated ancillary facilities); and

⁴ Regional Water Board staff may require, in writing, that the discharger obtain coverage through a traditional construction notice of intent when the construction of ancillary facilities more closely resembles traditional construction activities.

- b. Activities including underground utility mark-out, potholing, concrete and asphalt cutting and removal, trenching, excavating, boring and drilling, access road and pole/tower pad and cable/wire pull station, substructure installation, construction of tower footings and/or foundations, pole and tower installations, pipeline installations, welding, concrete and pavement repair or replacement, and stockpile/borrow locations.

II.D. Linear Underground and Overhead Projects Not Subject to this General Permit

This General Permit does not apply to the following linear underground and overhead project construction activity:

1. Routine maintenance projects. Routine maintenance projects are projects associated with operations and maintenance activities that are conducted on existing lines and facilities and within existing right-of-way, easements, franchise agreements, or other legally binding agreements of the discharger granting access to land. Routine maintenance projects include, but are not limited to projects that are conducted to:
 - a. Maintain the original purpose of the facility or hydraulic capacity;
 - b. Update existing lines⁵ and facilities to comply with applicable codes, standards, and regulations regardless of if such projects result in increased capacity; and/or
 - c. Repair leaks.
2. Routine maintenance does not include construction of new lines or facilities resulting from compliance with applicable codes, standards, and regulations.
3. Routine maintenance projects do not include those areas of maintenance projects that are outside of an existing right-of-way, franchise, easements, or agreements. When a project must secure new areas, those areas may be subject to this General Permit based on the area of disturbed land outside the original right-of-way, easement, or agreement.
4. Linear underground and overhead project construction activity does not include field activities associated with the planning and design of a project (e.g., activities associated with route selection).
5. Tie-ins conducted immediately adjacent to “energized” or “pressurized” facilities by the discharger are not considered construction activities where all other linear underground and overhead project construction activities associated with the tie-in are covered by a Notice of Intent and SWPPP of a third party or municipal agency.

⁵ Update existing lines includes replacing existing lines with new materials or pipes.

III. OBTAINING, REVISING, AND TERMINATING PERMIT COVERAGE

III.A. Obtaining Permit Coverage for Traditional Construction Projects

- III.A.1. The Discharger shall obtain a Waste Discharge Identification (WDID) number prior to the commencement of construction activity by electronically certifying and submitting the following Permit Registration Documents through the State Water Board Stormwater Multiple Application and Report Tracking System (SMARTS)⁶:
- a. Notice of Intent, including Risk Level determination as described in Attachment D.1;
 - b. Site Drawings and Maps;
 - c. Stormwater Pollution Prevention Plan (SWPPP) (see Section IV.O, below);
 - d. Applicable plans, calculations, and other supporting documentation for compliance with existing permitted Phase I or Phase II municipal separate storm sewer system post-construction requirements or the post-construction standards of this General Permit;
 - e. Annual fee per the current 23 California Code of Regulations Chapter 9 fee schedule for NPDES stormwater permits; and
 - f. All applicable additional Permit Registration Document information as required in Attachment D.2 of this General Permit.
- III.A.2. An applicant is considered to have General Permit regulatory coverage and can commence construction activity upon receipt of a WDID number generated by SMARTS. Dischargers shall post their site-specific WDID number in a site location that is viewable to the public or readily available upon request if unable to post publicly.
- III.A.3. In the case of a public emergency that requires immediate construction activities involving one acre or more of land disturbance, a discharger shall submit a brief description of the emergency construction activity to the applicable Regional Water Board within five calendar days of the onset of site construction. The discharger shall then submit the required Permit Registration Documents through SMARTS within 30 calendar days of commencing site activity.
- III.A.4. Failure to obtain General Permit coverage for stormwater and non-stormwater discharges covered by this General Permit to waters of the United States is a violation of the Clean Water Act and the California Water Code.

⁶ Dischargers are required to have a signed original Electronic Authorization Form on file with the State Water Board for each organization in SMARTS.

III.B. Obtaining Permit Coverage for Linear Underground and Overhead Projects

The discharger for a linear underground and overhead project shall designate a Legally Responsible Person for each of its WDIDs numbers. The discharger is responsible for enrollment under and compliance with this General Permit. The Legally Responsible Person, as defined in Attachment B of this General Permit, shall fulfill the electronic signature and certification requirements to obtain General Permit coverage (see Section VI.H, Electronic Signature and Certification Requirements.)

- III.B.1. A discharger for a linear underground and overhead project shall obtain General Permit coverage under one or more applications submitted through SMARTS, per the requirements in Attachment E of this General Permit.
- III.B.2. The Legally Responsible Person shall electronically certify and submit the following applicable Permit Registration Documents through SMARTS⁷ and obtain a WDID number prior to the commencement of any construction activities.
 - a. Notice of Intent, including linear underground and overhead project type determination as described in Attachment E.1;
 - b. Site-specific Stormwater Pollution Prevention Plan (SWPPP), Drawings, and Maps (see Section IV.O, below);
 - c. Annual fee per the current 23 California Code of Regulations Chapter 9 fee schedule for NPDES stormwater permits; and
 - d. All applicable additional Permit Registration Document information as required in Attachment E.2 of this General Permit.
- III.B.3. Regulatory Coverage for linear underground and overhead project segments
 - III.B.3.a. The discharger may separate a contiguous linear underground and overhead project into separately regulated segments. Linear underground and overhead project segments may consist of different risk types.
 - III.B.3.b. The discharger shall include a clear description in the Permit Registration Documents regarding how each segment relates to the overall linear underground and overhead project by identifying one or more of the following descriptions:
 - i. The segments are managed by separate contractors;
 - ii. The segments are constructed during distinct project phases; or
 - iii. The segments are located in different topography, watersheds, or jurisdictional boundaries.

⁷ Dischargers are required to have a signed original Electronic Authorization Form on file with the State Water Board for each organization in SMARTS.

- III.B.3.c. Dischargers with corresponding linear underground and overhead project segments that cross Regional Water Board(s) boundaries (e.g., different segments of same project located within different Regional Water Board jurisdictions) must file separate Permit Registration Documents.
- III.B.4. Programmatic Permitting Regulatory Coverage for linear underground and overhead projects
 - III.B.4.a. A discharger may submit one Notice of Intent requesting regional programmatic General Permit coverage for multiple non-contiguous linear underground and overhead projects, if the projects:
 - i. Are located within one Regional Water Board jurisdiction;
 - ii. Are a group of projects of similar scopes with common construction activities; and
 - iii. Have the same Legally Responsible Person.
 - III.B.4.b. Effective December 17, 2022, a discharger deploying Executive Order N-73-20, per the requirements and due dates of the executive order, or amendments therein, may submit one Notice of Intent requesting statewide programmatic General Permit coverage for multiple non-contiguous linear underground and overhead broadband projects, where the installation of the utilities is outside of a construction project that is otherwise regulated under this General Permit.
 - III.B.4.b.i. A discharger deploying Executive Order N-73-20 may apply for a statewide programmatic permit for regulatory coverage under Order 2009-0009-DWQ (as amended by Orders 2010-0014-DWQ and 2012-0006-DWQ), from December 17, 2022 until September 1, 2023, by submitting the information required by Attachment E.2.
 - III.B.4.c. Linear underground and overhead project dischargers with programmatic permitting coverage shall submit, prior to the commencement of any construction activities for each non-contiguous site, a:
 - i. Common SWPPP with the Notice of Intent covering all the activities common to the projects; and
 - ii. Linear Construction Activity Notification for each site describing site-specific information in accordance with Attachment E.2, Section II.A.2.
- III.B.5. An applicant is considered to have General Permit regulatory coverage and may commence construction activity upon receipt of a WDID number generated by SMARTS Dischargers shall post the project-specific WDID number in a site location that is visible to the public or readily available upon request if unable to post publicly.

III.C. Regulatory Coverage under the Previous Permit

- III.C.1. Dischargers that obtain coverage under State Water Board Order 2009-0009-DWQ, as amended by Orders 2010-0014-DWQ and 2012-0006-DWQ, (previous permit) prior to the effective date of this permit, may continue coverage under the previous permit until its regulated project(s) receive an approved Notice of Termination from the Regional Water Board, up to two years after the effective date of this General Permit. Two years after September 1, 2023, all existing Notices of Intent subject to the previous permit will be administratively terminated.
- III.C.1.a. A discharger continuing regulatory coverage under the previous permit cannot increase a project's disturbed acreage through the Change of Information process, on or after the effective date of this General Permit; the discharger must submit a Notice of Intent for coverage under this General Permit for the increase in disturbed acreage.
- III.C.2. Dischargers with the previous permit's Small Construction Rainfall Erosivity waiver may continue to operate under a project's active waiver until it expires. Waivers granted under the previous permit cannot be modified or extended.
- III.C.3. Dischargers that submit a Notice of Termination for previous permit termination up to two years after the effective date of this General Permit and receive Notice of Termination approval from the Regional Water Board are not subject to this General Permit (unless the discharger subsequently submits new Permit Registration Documents).
- III.C.4. Dischargers with coverage under the previous permit that need regulatory coverage after September 1, 2025 under this General Permit, shall submit, in SMARTS, the following items by August 31, 2025:
 - a. A certification of the discharger's intent to obtain regulatory coverage under this General Permit;
 - b. A revised Notice of Intent and other Permit Registration Documents, revised to address new or changed requirements per this General Permit, as applicable; and
 - c. The applicable fee.

III.D. Small Construction Rainfall Erosivity Waiver

- III.D.1. Dischargers are eligible for the Small Construction Rainfall Erosivity waiver (waiver) if:
 - a. The site is between one and five acres; and
 - b. The construction activity will take place during a period when the calculated rainfall erosivity factor is less than five.

- III.D.2. Dischargers with small sites that are part of a larger common plan of development, or dischargers that have programmatic permit coverage, do not qualify for a waiver unless the entire project qualifies for a waiver.
- III.D.3. To request a waiver, the Legally Responsible Person shall submit a waiver application through SMARTS, and pay the appropriate fee to the State Water Board. If approved by the State Water Board, SMARTS will electronically provide the discharger with the waiver and a unique waiver identification number. The waiver is effective on the date the waiver identification number is issued and valid between the construction start and end dates, as entered in the waiver application.
- III.D.4. A discharger qualifying for a waiver shall obtain a waiver identification number prior to starting any construction activities regulated by this General Permit.
- III.D.5. A waiver is valid only if the correct start and end dates of construction activities are entered (and updated if necessary) through the Change of Information process in SMARTS.
- III.D.6. The discharger may revise an original construction start date through the Change of Information process in SMARTS and shall provide documentation demonstrating the project had not started on the date originally submitted through SMARTS.
- III.D.7. The discharger shall update the project end date through the Change of Information process in SMARTS prior to expiration of the waiver if the project completion date is anticipated to extend past the waiver expiration date. If the updated project end date results in a rainfall erosivity factor of five or greater, the discharger shall obtain coverage under this General Permit. If the discharger fails to update the project end date prior to expiration of waiver, they shall immediately obtain coverage under this General Permit.
- III.D.8. The discharger shall post the unique waiver identification number in a site location that is visible to the public or readily available upon request if unable to post publicly.
- III.D.9. A waiver does not provide General Permit coverage. Dischargers with a waiver are not required to comply with post-construction, sampling, monitoring, or other SWPPP requirements in this General Permit.
- III.D.10. Regional Water Board staff may terminate a waiver if the Regional Water Board staff determines the discharge of stormwater runoff causes or contributes to an exceedance of a water quality standard or violates a prohibition in an applicable regional or statewide water quality control plan. The Regional Water Board Executive Officer or their delegate may require the discharger to obtain regulatory coverage under this General Permit or an NPDES permit issued by the Regional Water Board.

III.E. Notice of Non-Applicability

- III.E.1. A discharger claiming “No Discharge” through a Notice of Non-applicability (NONA) as set forth in Water Code § 13399.30 shall meet the following eligibility requirement:
- a. The site’s physical location is not hydrologically connected to waters of the United States.
- III.E.2. When claiming the “No Discharge” option, the discharger shall submit and certify via SMARTS both the NONA and a No Discharge Technical Report. The No Discharge Technical Report shall identify the site by address or parcel number and demonstrate that the site meets the eligibility requirement described above in Section III.E.1.a.
- III.E.3. The No Discharge Technical Report shall be signed (wet signature and license number) by a California licensed professional engineer or geologist with hydrological expertise.
- III.E.4. The Regional Water Board may require the No Discharge Technical Report to be reassessed if it determines that there are errors in the No Discharge Technical Report or if the site is hydrologically connected to waters of the United States.

III.F. Revising Permit Coverage Information

The discharger shall revise permit coverage information, as appropriate, to:

- III.F.1. Update Construction Start and End Dates
- III.F.1.a. The discharger shall electronically certify and submit a revised Notice of Intent through a Change of Information in SMARTS, when the construction start or end date changes, recalculating sediment risk and revising the SWPPP as appropriate. The Change of Information shall be submitted at least 14 days prior to the date that was modified, unless infeasible due to unforeseen circumstances.
 - III.F.1.b. If the discharger is revising the construction start date to a later date than previously submitted, the Change of Information shall contain time-stamped photo documentation depicting that construction activities have not commenced for the entirety of the site.
- III.F.2. Reduce Acreage
- III.F.2.a. When a portion of the site meets conditions for termination of coverage (Section III.H) or is sold/transferred to a new owner, the discharger may reduce the disturbed acreage covered under the General Permit. The discharger reducing disturbed acreage shall electronically certify and submit the following Permit Registration Document revisions in SMARTS, through a Change of Information, within 30 days of the reduction in acreage:
 - i. A revised Notice of Intent indicating the new site size;

- ii. Photos demonstrating final stabilization, if applicable;
 - iii. Revised site map(s) showing (as applicable) acreage currently under construction; acreage sold/transferred, and/or added; and acreage currently stabilized in accordance with the Conditions for Termination of Coverage in Section III.H below; and
 - iv. A revised SWPPP to match the change in acreage.
- III.F.2.b. For a larger common plan of development for residential use, the discharger may, through the Change of Information process, remove residential lots from permit coverage once the lot meets the following criteria:
 - i. The residential lot has been sold to the individual homeowner(s) for residential use;
 - ii. A certificate of occupancy or equivalent document, is maintained on-site and can be made available during inspections;
 - iii. The lot is less than one acre of disturbance;
 - iv. All construction activity conducted on the lot by the discharger is complete; and
 - v. The discharger has temporarily stabilized any unfinished yard and landscaping areas with BMPs.
- III.F.2.c. The discharger shall upload, as an attachment in SMARTS, documentation of a contract (e.g., Covenants, Conditions, and Restrictions) requiring the individual homeowner to stabilize the yard and landscaping within one year and to maintain the temporary BMPs until the yard and landscaping are stabilized.
- III.F.2.d. The discharger shall maintain General Permit coverage for any site, parcel, or individual lot that has not received Change of Information or Notice of Termination approval from the Regional Water Board or obtained coverage under the new owner's Notice of Intent.
- III.F.3. Termination of Programmatic Permit Coverage for Linear Underground and Overhead Projects
 - III.F.3.a. Upon completion of construction activities for a specific site with linear underground and overhead project programmatic permit coverage, the discharger shall submit a Linear Construction Termination Notification for each completed linear segment.
 - III.F.3.b. The site must meet the termination conditions in Section III.H.3 below.
 - III.F.3.c. The Linear Construction Termination Notification must include photos demonstrating final stabilization.
 - III.F.3.d. Regional Water Board approval of the Linear Construction Termination Notification terminates coverage for the specific site.

III.F.4. Increase Acreage

III.F.4.a. If the disturbed acreage of the site will increase, the discharger shall certify and submit the following Permit Registration Documents revisions in SMARTS, through a Change of Information, prior to the increase in disturbed acreage:

- i. A revised Notice of Intent indicating the new site size;
- ii. A revised site map(s) showing (as applicable) acreage currently under construction; acreage sold, transferred, and/or added; and acreage currently stabilized in accordance with the conditions for terminating coverage in Section III.H below; and
- iii. A revised SWPPP to match current site size.

III.F.4.b. The discharger shall submit the applicable fees, in accordance with the revised fee notification, within 14 calendar days of the notification date. The Change of Information will be returned if these fees are not received by the State Water Board within 14 calendar days of the notification date.

III.F.4.c. Regulatory coverage under this General Permit for the added acreage is not approved until the Regional Water Board approves the Change of Information.

III.F.4.d. If the increased acreage is greater than one-fourth mile from the existing site boundary and is an acre or larger, the discharger is required to submit a separate Notice of Intent.

III.F.5. Change in Ownership

III.F.5.a. Prior to a sale/transfer of a site, parcel, or individual lot (change of ownership), the existing discharger shall submit a Notice of Termination for change of ownership and a certification that the new owner has been notified of applicable requirements to obtain new General Permit for the qualifying activities. The existing discharger certification shall include the name, address, telephone number, and email address of the proposed new owner in the Notice of Termination submitted through SMARTS.⁸

III.F.5.b. General Permit coverage is not transferable to a new owner. The new discharger will need to submit their own Permit Registration Documents to obtain a new WDID number prior to continuing construction activities and/or installing final landscaping (including meeting conditions for termination of coverage). The new discharger shall enter the original project start date (initial date of disturbance) from the previous discharger(s).

⁸ Dischargers that are submitting a Notice of Termination for a change of ownership, where the new owner will obtain permit coverage to complete construction, are not required to comply with the requirements in Order Section III.H.

III.G. Inactive Projects

- III.G.1. Dischargers with projects where all construction activities (including passive treatment, active treatment systems, and/or active equipment) will be suspended for 30 days or more may submit a Change of Information through SMARTS to revise the SWPPP. The Change of Information shall include:
 - a. Revised site map depicting the current status of construction; and
 - b. Photographs showing the temporary stabilization BMPs that were implemented.
- III.G.2. Upon Regional Water Board approval of the Change of Information, sampling may be suspended, and monitoring and inspections may be reduced as follows:
 - III.G.2.a. A QSD shall visit the inactive project within 14 days of Regional Water Board approval of the Change of Information to verify that the SWPPP is being implemented accordingly. If necessary, the QSD shall amend the SWPPP to address all new conditions not previously considered through a Change of Information in SMARTS.
 - III.G.2.b. A QSP or trained delegate shall visually inspect the inactive project at least once every calendar month and prior to any weather pattern that is forecasted to have a 50 percent or greater chance of 0.5 inches or more in a 24-hour period. Please refer to Attachments D and E Section III.C for information pertaining to visual inspection requirements.
 - i. The QSP or trained delegate shall verify BMPs are functioning in accordance with the SWPPP and implement corrective actions where necessary.
 - III.G.2.c. The above inspections are not required during dangerous weather conditions or when access to the site is infeasible (e.g., due to snow accumulation) or unsafe.
- III.G.3. Dischargers wishing to resume construction activities or the use of passive treatment, active treatment systems, and/or active equipment shall submit a Change of Information through SMARTS requesting to resume the project along with a revised site map based on current site conditions. Upon Regional Water Board approval of the Change of Information, the discharger is required to comply with all applicable requirements of this General Permit to resume construction activities at the site.

III.H. Terminating Permit Coverage

- III.H.1. To terminate General Permit coverage, the discharger shall electronically certify and submit the required documentation (Section III.H.2 below) to demonstrate compliance with all General Permit coverage termination requirements, including applicable post-construction BMPs and/or low impact development features.

- III.H.2. The discharger shall electronically certify and submit the following through SMARTS to be considered for General Permit coverage termination:
- A complete Notice of Termination;
 - QSP-prepared final Notice of Termination inspection with the QSP name and valid QSP certificate number;
 - A final site map; and
 - Photos demonstrating final stabilization and the implementation of applicable post-construction BMPs and/or low impact development.
- III.H.3. The discharger shall certify and submit a final site map, as part of the Notice of Termination documents through SMARTS. The Notice of Termination final site map shall, at minimum, include the following:
- Project boundaries and adjacent lands with labeled key features, such as roadways and waterbodies;
 - Developed drainage basin boundaries and discharge location points;
 - Site entrances and exits, lot boundaries, roads, structures, and features related to the project that may be used as a reference;
 - Specific permanent erosion control BMPs, post-construction BMPs, and low impact development features;
 - Individual erosion control BMPs (including final landscaping) identified using hatch patterns, symbols, or shading unique to each BMP;
 - Location and orientation of all photos used to document final site conditions and demonstrate compliance with post-construction requirements of this General Permit; and
 - If applicable, areas of the site being transferred to new ownership, and the name and contact information of the owner.
- III.H.4. The Regional Water Board will consider a site, parcel, or individual lot complete only when all portions of the site comply with all the following conditions:
- The discharger has completed all construction activity;
 - There is no greater potential for construction-related stormwater pollutants to be discharged into site runoff than prior to the construction activity;
 - Construction-related equipment and temporary BMPs have been removed from the site, except as set forth in Section III.F.2.b above;
 - Construction materials and wastes have been disposed of properly;
 - Soils disturbed by construction activities have been permanently stabilized (final stabilization), except as set forth in Section III.F.2.b above, using materials that:

- i. Have a product life that support the full and continued stabilization of the site;
 - ii. Achieve stabilization without becoming trash or debris; and
 - iii. Minimize the risk of wildlife entrapment;
- f. The discharger has ensured the QSP completed on-site visual inspections and verified the site complies with all Notice of Termination requirements, including installation of post-construction stormwater runoff BMPs and/or low impact development features;
- g. The Legally Responsible Person has submitted the information in the Notice of Termination and has certified and submitted through SMARTS; and
- h. The discharger has demonstrated that the site complies with all Notice of Termination conditions above (Section III.H) and all final stabilization conditions by one of the following methods:
- i. **70 percent final cover method.** No computational proof required. Requires permanent vegetative cover to be evenly established over 70 percent of all disturbed and exposed areas of soil (non-paved or non-built). In areas that naturally have low vegetative coverage (e.g., deserts), 70 percent of natural conditions of local undisturbed areas is acceptable. Photos of all site areas are required to verify compliance with the 70 percent final cover requirement;
OR
 - ii. **Revised Universal Soil Loss Equation (RUSLE or RUSLE2) method.** Computational proof required. Site conditions shall match values used in method computation. Photos of all site areas are required to verify pre-construction and post-construction conditions used in the computations;
OR
 - iii. **Custom method.** The discharger may request approval from the Regional Water Board to use a method or analytical model other than Section III.H.4.h.i and 4.h.ii above to demonstrate that the site complies with the “final stabilization” requirements. Photos of all site areas are required to verify the custom method used.

III.H.5. The Notice of Termination photo documentation for General Permit compliance verification shall include photos of the site’s final site conditions; post-construction BMPs and/or low impact development features; a description of the corresponding location, and orientation of photos as indicated on the final site map.

- III.H.6. The Notice of Termination shall include a long-term maintenance plan⁹ for the post-construction stormwater runoff BMPs and/or low impact development features being implemented.
- III.H.7. The Notice of Termination will be automatically approved 30 calendar days after the date of Notice of Termination is submitted, unless, within the 30 calendar days the Regional Water Board notifies the discharger through SMARTS that the Notice of Termination has been denied, returned, or accepted for review.
- III.H.8. All General Permit requirements remain in effect until the Notice of Termination is approved. The Legally Responsible Person will be notified through SMARTS communication when the discharger's General Permit coverage and corresponding WDID number are terminated.

IV. PERMIT REQUIREMENTS

IV.A. Authorized Non-Stormwater Discharges

- IV.A.1. Non-stormwater discharges from the following de-chlorinated potable and non-potable water sources are authorized if they comply with the requirements in Section IV.A.2 of this General Permit:
 - a. Fire-fighting activity;
 - b. Fire hydrant system flushing;
 - c. Irrigation of vegetative erosion control measures;
 - d. De-chlorinated potable water, including uncontaminated water line flushing;
 - e. Hydrostatic pipe flushing and testing water;
 - f. Air conditioning or compressor condensate;
 - g. Uncontaminated groundwater or spring water from construction dewatering activities in compliance with Attachment J; and
 - h. Water to control dust.
- IV.A.2. The above non-stormwater discharges are authorized under the following conditions:
 - a. The discharge is not routed through site areas with exposed soil, except for water used for dust control or to vegetation irrigation to stabilize areas;
 - b. The discharge does not cause or contribute to an exceedance of water quality standards in the receiving water;

⁹ For the purposes of this requirement, a long-term maintenance plan shall be designed for a minimum of five years, and describe the responsible party(ies), schedule, and procedures needed to ensure that post-construction features are adequately maintained and functional.

- c. The discharge complies with other applicable requirements of this General Permit including applicable action levels, effluent limitations, and monitoring and reporting requirements;
- d. The discharge is not prohibited by an applicable regional or statewide water quality control plan;
- e. The discharge is in accordance with other applicable State and Regional Water Board permits; and
- f. The discharge does not contain toxic constituents in toxic amounts and does not cause toxicity in the receiving water body.

IV.B. Discharge Prohibitions

- IV.B.1. Dischargers shall not violate any discharge prohibitions contained in applicable water quality control plans.
- IV.B.2. Discharges to Areas of Special Biological Significance (ASBS) are prohibited by the California Ocean Plan, unless granted an exception issued by the State Water Board.
- IV.B.3. All discharges are prohibited except for the stormwater and non-stormwater discharges specifically authorized by this General Permit or another NPDES permit. The discharger shall notify the Regional Water Board of existing or anticipated non-stormwater discharges not authorized by this General Permit, within 24 hours of the discharge, to determine if regulatory coverage is necessary through a separate NPDES permit.
- IV.B.4. All of the following discharges are prohibited:
 - a. Debris and trash, in accordance with State Water Board Resolution 2015-0019, the Trash Provisions of the Water Quality Control Plan for Ocean Waters of California and the Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California, as applicable to construction stormwater discharges.
 - i. To comply with the Trash Provisions, dischargers shall implement, operate, and maintain trash management, treatment, and institutional controls to eliminate debris and trash from all stormwater discharges and authorized non-stormwater dischargers consistent with the prohibition of the discharge of debris and trash regulated by this General Permit. If the discharger is unable to comply with the prohibition of the discharge of debris and trash, the discharger must submit, for Regional Water Board Executive Office or designee approval, an amended Stormwater Pollution Prevention Plan addressing:
 - 1. A demonstration that the discharger is unable to comply with this outright prohibition of the discharge of debris and trash; and

2. A demonstration that the discharger's chosen combination of trash management, treatment, and institutional controls achieves full capture system equivalency.
- b. Treatment chemicals except as authorized in Attachment F and G;
- c. Wastewater from washout or cleanout of areas, structures or equipment with concrete, grout, stucco, paint or other construction materials;
- d. Form-release oils and curing compounds;
- e. Fuels, oils, fluids, or other materials used in vehicle and equipment operation and maintenance;
- f. Soaps, solvents, or detergents (e.g., used in vehicle equipment washing or external building wash down); and
- g. Toxic or hazardous substances (e.g., asbestos, lead, mercury, or PCBs).

IV.C. Effluent Limitations and Action Levels

IV.C.1. Narrative Effluent Limitations

- IV.C.1.a. Stormwater discharges and authorized non-stormwater discharges regulated by this General Permit shall not contain a hazardous substance equal to or in excess of reportable quantities established in 40 Code of Federal Regulations §§ 117.3 and 302.4, unless a separate NPDES Permit has been issued to regulate those discharges.
- IV.C.1.b. Dischargers shall minimize or prevent pollutants in stormwater discharges and authorized non-stormwater discharges through the use of controls, structures, and management practices set forth in the order and attachments of this General Permit that achieve best available technology (BAT) for toxic and non-conventional pollutants and best conventional technology (BCT) for conventional pollutants.

IV.C.2. Numeric Effluent Limitations¹⁰

- IV.C.2.a. All dischargers implementing active treatment systems are subject to the numeric effluent limitations required in Attachment F.
- IV.C.2.b. All dischargers that are Responsible Dischargers for a TMDL with a waste load allocation that was translated into a TMDL-related numeric effluent limitation, are subject to the numeric effluent limitations as indicated by Table H-2 in Attachment H.

¹⁰ Refer to Attachment B of this General Permit for the definitions of numeric effluent limitations and numeric effluent limitation exceedances.

IV.C.3. Numeric Action Levels¹¹

- IV.C.3.a. All dischargers that are Responsible Dischargers for a TMDL with a waste load allocation that was translated into a TMDL-related numeric action level, are subject to the numeric action level as indicated by Table H-2 in Attachment H.
- IV.C.3.b. Dischargers with dewatering activities not subject to a separate NPDES permit are subject to the numeric action levels required in Attachment J.
- IV.C.3.c. For Risk Level 2 and 3 sites, refer to Attachment D, Section III.G. For Type 2 and 3 linear underground and overhead projects, refer to Attachment E, Section III.G. For stormwater and authorized non-stormwater discharges, the numeric action level for pH is provided as a range where the lower value is 6.5 pH standard units and the upper value is 8.5 pH standard units. The discharger shall report the field reading to two decimal places. A numeric action level exceedance for pH occurs when the reading, obtained per each discharge location per day of each qualifying precipitation event, is below the lower value or above the upper value, as shown in Table 1 of this Section.
- IV.C.3.d. Risk Level 2 and 3 sites, refer to Attachment D, Section III.G. For Type 2 and 3 linear underground and overhead projects, refer to Attachment E, Section III.G. For stormwater and authorized non-stormwater discharges the numeric action level for turbidity is 250 Nephelometric Turbidity Units (NTU). An exceedance of the turbidity numeric action level occurs when the field reading, obtained per each discharge location per day of each qualifying event, is over 250 NTU, as shown in Table 1 of this Section.

¹¹ Refer to Attachment B of this General permit for the definitions of numeric action levels and numeric action level exceedances.

Table 1. Numeric Action Levels, Test Methods, Detection Limits, and Reporting Units

Parameter	Test Method	Discharger Type	Method Detection Limit	Units	Numeric Action Level
TMDL-Related Pollutant	U.S. EPA-approved test method for specific pollutant parameter	Responsible Dischargers	Depends on the test method	mg/L	Refer to Table H-2 in Attachment H
pH	Field test with calibrated portable instrument using EPA approved procedures	Risk Level 2 and 3 Risk Type 2 and 3	0.2	pH Units	Lower Value= 6.5 Upper Value= 8.5
Turbidity	EPA 0180.1 and/or field test with calibrated portable instrument	Risk Level 2 and 3 Risk Type 2 and 3	1	NTU	250

IV.D. Receiving Water Limitations

- IV.D.1. The discharger shall ensure that stormwater discharges and authorized non-stormwater discharges to any surface or ground water will not adversely affect human health or the environment.
- IV.D.2. The discharger shall ensure that stormwater discharges and authorized non-stormwater discharges will not contain pollutants in quantities that threaten to cause pollution or a public nuisance.
- IV.D.3. The discharger shall ensure that stormwater discharges and authorized non-stormwater discharges will not contain pollutants that cause or contribute to an exceedance of any applicable water quality objectives or water quality standards contained in an applicable water quality control plan.
- IV.D.4. Responsible Dischargers shall comply with the applicable TMDL implementation requirements in Attachment H of this General Permit, including TMDL-specific additional BMPs and site pollutant modeling, numeric action levels, and/or numeric effluent limitations.

IV.E. Linear Underground and Overhead Project Requirements

Dischargers with linear underground and/or overhead projects shall comply with the requirements included in Attachments E, E.1, and E.2 of this General Permit.

IV.F. Risk Level 1 Requirements

Risk Level 1 dischargers shall comply with the requirements included in Attachment D, D.1, and D.2 of this General Permit.

IV.G. Risk Level 2 Requirements

Risk Level 2 dischargers shall comply with the requirements included in Attachment D, D.1, and D.2 of this General Permit.

IV.H. Risk Level 3 Requirements

Risk Level 3 dischargers shall comply with the requirements included in Attachment D, D.1, and D.2 of this General Permit.

IV.I. Active Treatment System Requirements

Dischargers implementing an active treatment system shall comply with all of the requirements in Attachment F of this General Permit.

IV.J. Passive Treatment Requirements

Dischargers implementing passive treatment on-site shall comply with all the requirements in Attachment G of this General Permit.

IV.K. Total Maximum Daily Load Implementation Requirements

IV.K.1. Responsible Dischargers are dischargers who:

- a. Discharge stormwater and authorized non-stormwater directly, or through a municipal separate sewer system or other conveyance, to impaired water bodies or watersheds identified in a U.S. EPA approved total maximum daily load (TMDL) with a waste load allocation assigned to construction stormwater sources; and
- b. Have one or more TMDL-specific pollutant sources present on-site with the potential to enter construction stormwater discharge, which are required to be identified in the pollutant source assessment (refer to Section IV.O.2.i below).

IV.K.2. Responsible Dischargers shall comply with the applicable requirements in Attachment H of this General Permit.

IV.L. Discharges Subject to the California Ocean Plan

IV.L.1. Discharges to Ocean Waters

- IV.L.1.a. Dischargers that discharge directly into ocean waters that are subject to the model monitoring provisions of the California Ocean Plan shall be deemed in compliance with applicable California Ocean Plan model monitoring provisions when in compliance with monitoring requirements of this General Permit.
- IV.L.1.b. The Regional Water Boards may require a discharger that discharges directly into ocean waters who has demonstrated non-compliance with this General Permit's monitoring requirements to develop and implement a monitoring plan in compliance with additional effluent and ocean monitoring provisions established pursuant to Water Code § 13383.

IV.L.2. Discharges Granted an Exception for Areas of Special Biological Significance (ASBS)

- IV.L.2.a. Dischargers who were granted an exception to the California Ocean Plan prohibition of discharges of waste directly to an ASBS pursuant to Resolution 2012-0012 amended by Resolution 2012-0031 shall comply with the conditions and requirements set forth in Attachment I of this General Permit. Any discharger that applies for and is granted an exception to the California Ocean Plan prohibition after September 1, 2013, shall comply with the conditions and requirements set forth in the granted exception.

IV.M. Dewatering Requirements

- IV.M.1. Dischargers with dewatering activities subject to a separate NPDES permit (e.g., de minimis and low threat discharges) are not subject to comply with the dewatering requirements of this General Permit as found in Attachment J and shall obtain coverage as required by the State or Regional Water Boards.
- IV.M.2. Dischargers with dewatering activities not subject to a separate NPDES permit (e.g., de minimis and low threat discharges) shall comply with the dewatering requirements in Attachment J.

IV.N. Post-Construction Requirements

- IV.N.1. All dischargers, other than linear underground and overhead project dischargers, shall implement BMPs to reduce runoff and pollutants in stormwater discharges that are reasonably foreseeable after all construction phases have been completed at the site (post-construction BMPs).

- IV.N.2. Dischargers subject to the post-construction requirements of an existing NPDES Phase I or Phase II municipal separate storm sewer system permit are not subject to the post-construction requirements in Section IV.N.3 below, and shall submit the following items with their Permit Registration Documents through SMARTS:
- a. An attachment or web-source containing the applicable NPDES Phase I or Phase II municipal separate storm sewer system permittee's post-construction requirements; and
 - b. The post-construction plans and calculations submitted to, or approved by, the applicable NPDES Phase I or Phase II municipal separate storm sewer system permittee. If the discharger submitted preliminary post-construction plans and calculations as a Permit Registration Document, the discharger shall submit the approved plans and calculations within 14 days of approval by the municipal stormwater permittee, through a Change of Information in SMARTS. The discharger shall submit a Change of Information in SMARTS for any revisions to post-construction plans and calculations prior to submitting the Notice of Termination.
- IV.N.3. All dischargers, other than linear underground and overhead project dischargers or dischargers subject to the post-construction requirements of an existing NPDES Phase I or Phase II municipal separate storm sewer system permit, shall comply with the following post-construction runoff reduction requirements. The discharger shall comply with this General Permit's post-construction requirements if the Permit Registration Documents were submitted prior to the effective date of applicable post-construction requirements of the corresponding NPDES Phase I or Phase II municipal stormwater permit.
- IV.N.4. The discharger shall use non-structural and/or structural measures to replicate the pre-construction water balance (for this General Permit, defined as the volume of rainfall that ends up as runoff) for the smallest storms up to and including the 85th percentile, 24-hour precipitation event (or the smallest precipitation event that generates runoff, whichever is larger).
- IV.N.5. For sites with disturbed area exceeding two acres, the discharger shall preserve the pre-construction drainage density (miles of stream length per square mile of drainage area) for all drainage areas within the area serving a first order stream¹² or larger stream and ensure that post-project runoff time of concentration is equal to or greater than pre-project time of concentration.
- IV.N.6. The discharger shall certify and submit post-construction plans, calculations, and other supporting documentation as a Permit Registration Document in SMARTS. The discharger shall submit a Change of Information in SMARTS for

¹² A first order stream is defined as a stream with no tributaries.

any revisions to post-construction plans and calculations prior to submitting the Notice of Termination.

- IV.N.7. Regional Water Board staff may review post-construction plans, calculations, and other supporting documentation to verify that the post-construction water balance is accurate; and may request that the discharger make revisions if necessary.
- IV.N.8. The discharger may use the contact information found online or in Attachment C to request Regional Water Board staff review post-construction plans, calculations, and other supporting documentation prior to and during construction.

IV.O. Stormwater Pollution Prevention Plan Requirements

- IV.O.1. The discharger shall ensure the site's SWPPP complies with the below conditions:
 - a. A site-specific SWPPP is developed, and amended as necessary, by a QSD. The discharger is responsible for keeping the SWPPP and associated documents updated in SMARTS to reflect current site conditions and construction activities.
 - b. Trained personnel and BMP materials are available at the site as required by this General Permit.
 - c. The SWPPP includes the implementation of BMPs that comply with BAT, BCT, and ensure compliance with water quality standards; additional BMPs based on input from the QSP to address numeric action level and numeric effluent limitation exceedances; and additional training needed for the QSP, Legally Responsible Person, or designated persons on-site.
 - d. The SWPPP is available at the site and made available upon request by a federal, State, or municipal inspector. A current copy of the site-specific SWPPP and any site inspection reports required by this General Permit may be kept in electronic format at the site so long as the information requested by a federal, State, or municipal inspector can be made available during an inspection. All maps are legible and available in hard copy at the site.
- IV.O.2. The SWPPP shall include:
 - a. Identification of all pollutants, their sources, and control mechanisms, including sources of sediment associated with all construction activities (e.g., sediment, paint, cement, stucco, cleaners, site erosion);

- b. Pollutant source assessments, including a list of potential pollutant sources and identification of site areas where additional BMPs are necessary to reduce or prevent pollutants in stormwater and authorized non-stormwater discharges, per the following minimum requirements when developing the pollutant source assessment:
 - i. Consider all potential sources of pollutants, including non-visible pollutants which are known, or should be known to occur on-site including those that:
 - 1. Are used in construction activities;
 - 2. Are stored on-site;
 - 3. Were spilled or released during construction activities or past land use activities and not cleaned up; and
 - 4. Were applied to land as part of past land use activities.
 - ii. Consider all potential sources of pollutants associated with applicable TMDLs listed in Attachment H, and state whether or not sources of those pollutants are present on-site;
 - iii. Consider the quantity, physical characteristics (e.g., liquid, powder, solid), and locations of each potential pollutant exposed, source handled, produced, stored, recycled, or disposed of on-site;
 - iv. Consider the degree to which pollutants associated with those materials may be exposed to and mobilized by contact with stormwater; and
 - v. Consider the direct and indirect pathways that pollutants may be exposed to stormwater or authorized non-stormwater discharges. This shall include an assessment of past spills or leaks, non-stormwater discharges, and discharges from adjoining areas.
- c. Description of site-specific BMPs implemented to reduce or eliminate stormwater pollution, including the following, if applicable:
 - i. Minimum sediment and erosion control BMPs as outlined in Attachments D and E of this General Permit;
 - ii. Active treatment systems as included in an Active Treatment System Plan (as required in Section E.1 of Attachment F);
 - iii. Passive treatment technologies as included in a Passive Treatment Plan (as required in Section D.2 of Attachment G);
 - iv. BMPs implemented to address applicable TMDL implementation requirements (as required by Attachment H); and
 - v. Dewatering systems (as required by Attachment J).

- d. Site-specific BMPs initialized immediately to temporarily stabilize an area disturbed by construction where construction activities will not be resumed within 14 days;
- e. Identification, elimination, control, or treatment information for all non-stormwater discharges from the site not regulated by this or another NPDES permit;
- f. Description of efforts and BMPs used to minimize and control pollutants discharged from equipment and vehicle washing, wheel wash water, and other wash waters. Wash waters must be captured and properly disposed of and/or treated to mitigate impacts to water quality;
- g. Description of efforts and BMPs used to minimize exposure of building materials, building products, construction wastes, trash, landscape materials, fertilizers, pesticides, herbicides, detergents, sanitary waste, and other materials present on the site to precipitation and to stormwater;
- h. Description of spill and leak prevention and response plan including:
 - i. Procedures that effectively address hazardous and non-hazardous spills in accordance with law;
 - ii. Spill and leak response equipment and materials to be available on-site, cleaned up immediately, and disposed of properly; and
 - iii. Personnel are assigned and trained for spill and leak prevention and response.
- i. Construction Site Monitoring Program that describes methods and procedures for monitoring discharges in accordance with the applicable Attachment D or E that includes the following:
 - i. Visual inspection locations, inspection procedures, and follow-up tracking procedures.
 - ii. Applicable sampling locations, collection, and handling procedures shall include detailed procedures for field analysis, sample collection, storage, preservation, and shipping to the laboratory to ensure consistent quality assurance and control is maintained.
 - iii. A copy of the Chain of Custody form used when handling and shipping samples.
 - iv. Identification of the analytical methods and related method detection limits (if applicable) for each parameter.
 - v. Watershed Monitoring Option:
 - 1. If the discharger is part of a qualified regional watershed-based monitoring program approved by the Regional Water Board Executive Officer or their delegate, the discharger may be eligible for relief from the monitoring requirements in the applicable

Attachment D or E. The Regional Water Board may approve proposals to substitute a qualified watershed-based monitoring program if it determines the program will provide information to determine each discharger's compliance with the requirements of this General Permit.

- j. Title Sheet(s) with:
 - i. Project name;
 - ii. Project location (vicinity map);
 - iii. Preliminary schedule of activities;
 - iv. Site operating hours (hours when construction activities are occurring);
 - v. Index of attachments;
 - vi. Contact information for QSD(s), QSP(s), and trained delegates (name, phone numbers, license or certification number); and
 - vii. Signature of the QSD(s) who prepared the SWPPP.
- k. Pre-Earthwork Drawing with:
 - i. Site and project boundaries;
 - ii. Areas disturbed during geotechnical or other preconstruction investigation work;
 - iii. Existing roads and trails;
 - iv. Drainage areas;
 - v. Discharge locations;
 - vi. Existing storm drain system if applicable; and
 - vii. Proposed locations of storage areas for waste, construction materials, project staging areas, stockpiles, vehicles, equipment and vehicle maintenance, loading/unloading of materials, site access (entrance/exits), fueling, water storage, water transfer for dust control, demolition, and areas of other construction support activities.
- l. Construction and Earthwork Drawing(s) with:
 - i. Site layout (grading plans) including roads;
 - ii. Site and project boundaries;
 - iii. Drainage areas;
 - iv. Discharge locations;
 - v. Sampling locations;
 - vi. Areas of soil disturbance (temporary or permanent);
 - vii. Proposed active areas of soil disturbance (cut or fill);

- vii. Proposed locations of erosion control BMPs;
- ix. Proposed locations of sediment control BMPs;
- x. Proposed locations of run-off BMPs;
- xi. Temporary and/or permanent run-on conveyance (if applicable);
- xii. Proposed locations of active treatment systems(s) (if applicable);
- xiii. Locations of storage areas for waste, construction materials, project staging areas, stockpiles, vehicles, equipment and vehicle maintenance, loading/unloading of materials, site access (entrance/exits), fueling, water storage, water transfer for dust control, demolition, and areas of other construction support activities; and
- xiv. Site-specific procedures to implement final stabilization BMPs as soon as reasonably practicable.

IV.P. Annual Reporting Requirements

- IV.P.1. The discharger shall electronically certify and submit an Annual Report through SMARTS by September 1st for the previous reporting period from July 1st through June 30th if a WDID number is active for at least 90 days within the reporting period.
- IV.P.2. The discharger shall retain an electronic copy or hard copy of each Annual Report for a minimum of three years after the date the Annual Report is certified.
- IV.P.3. The Annual Report shall consist of the following:
 - a. The summary of all stormwater sampling and monitoring reports and supporting documents (e.g., laboratory reports);
 - b. The summary of all corrective actions taken during the compliance year;
 - c. The identification and explanation of any compliance activities (e.g., missed sampling or visual inspections) or corrective actions that were not implemented;
 - d. The summary of all the General Permit violations;
 - e. The names of individual(s) who performed the site inspections, sampling, visual inspections, and/or measurements;
 - f. The date, place, time of site inspections, sampling, visual inspections, and/or measurements, including the amount of precipitation measured in inches; and
 - g. All visual inspection and sample collection exception records and reports.

V. SITE ROLES AND PERSONNEL

V.A. Discharger Responsibilities

- V.A.1. The discharger, as defined in Attachment B, is responsible for all site activity affiliated with General Permit compliance and non-compliance including work done by QSDs, QSPs, and QSP delegates.
- V.A.2. The discharger shall ensure that the SWPPP and any required amendments are developed by a QSD. SWPPP changes or amendments shall be uploaded through SMARTS within 30 calendar days.
- V.A.3. The discharger shall ensure that all persons responsible for implementing this General Permit's requirements for a project shall be appropriately licensed or certified in accordance with this General Permit. For example, the discharger shall verify personnel serving as QSD(s) or QSP(s) have an active and current certificate, and engineering and/or geology work performed for the site is conducted by a California licensed professional.
- V.A.4. The discharger shall ensure that the correct construction start and end date are:
 - a. Used for each regulated construction project's risk determination;
 - b. Listed in SMARTS; and
 - c. Included on the unique WDID number notification form in a site location viewable by the public or readily available upon request if unable to post publicly.
- V.A.5. The discharger shall ensure project data and contact information is current in SMARTS.
- V.A.6. If a Legally Responsible Person changes, the discharger shall update the contact information for the Legally Responsible Person in SMARTS.

V.B. Legally Responsible Person

- V.B.1. When the discharger is required to sign, certify, and electronically submit any documents required by the General Permit, the State or Regional Water Board, or U.S. EPA, the signatory for the discharger is the Legally Responsible Person and must meet the definition of "Legally Responsible Person" set forth in Attachment B.
- V.B.2. The Legally Responsible Person may designate a Duly Authorized Representative, as defined in Attachment B, who may sign, certify, and electronically submit any documents, reports, or information required by this General Permit, the State or Regional Water Boards, or U.S. EPA. The Legally Responsible Person shall update the designation in SMARTS if there are any changes to the Duly Authorized Representative.
- V.B.3. The Legally Responsible Person and, if applicable, Duly Authorized Representative shall comply with the electronic signature and certification

requirements set forth in Section VI.H when submitting information required by the General Permit.

V.C. Discharger's Responsibilities for Qualified SWPPP Developer Performance

- V.C.1. The discharger shall retain a QSD from the beginning of the project through the Notice of Termination approval.
- V.C.2. A QSD is required to assess how construction activities will affect sediment transport, erosion, and other discharges of pollutants in stormwater runoff in the SWPPP design and implementation. The QSD is required to revise the SWPPP to address potential problems identified by visual inspections, sampling data, comments from a QSP, or their own site observations.
- V.C.3. A QSD is required to include in the SWPPP the name, email, and phone number of all the QSP-trained delegate(s).
- V.C.4. The discharger shall ensure that a QSD performs the following on-site visual inspections¹³:
 - a. Within 30 days of construction activities commencing on a site;
 - b. Within 30 days of a discharger replacing the QSD;
 - c. Twice annually, once August through October and once January through March;
 - d. Within 14 calendar days after a numeric action level exceedance; and
 - e. Within the time period requested in writing from Water Board staff.
- V.C.5. A QSD may perform the work of a QSP.

V.D. Discharger's Responsibilities for Qualified SWPPP Practitioner Performance

- V.D.1. The discharger shall ensure that a QSP reviews work performed by trained delegates including visual inspections, sampling, BMP implementation activities, and other required tasks listed in the SWPPP.
- V.D.2. The discharger shall ensure that a QSP performs the following on-site visual inspections¹⁴:
 - a. Once every calendar month;

13 These on-site visual inspection requirements are the minimum required and may be increased by the discharger or a QSD during times of high-risk construction activities, excessive site problems, or other conditions that warrant increased oversight by a QSD.

14 These on-site visual inspection requirements are the minimum requirements and may be increased by the discharger or a QSD during times of high-risk construction

- b. Within 72 hours prior to a forecasted Qualifying Precipitation Event to inspect areas of concern to verify the status of any deficiencies, BMPs, or other identified issues at the site. If extended forecast precipitation data (greater than 72 hours) is available from the National Weather Service, the pre-precipitation event inspection may be done up to 120 hours in advance;
- c. Within 14 days after a numeric action level exceedance the QSP shall visually inspect the drainage area of exceedance and document any areas of concern; and
- d. Prior to the submittal of General Permit Notice of Termination or Change of Information (for acreage changes) of all or part of a site.

V.D.3. The discharger shall ensure that a QSP verifies the following:

- a. All BMPs required in the SWPPP are implemented, correctly installed, inspected, and maintained;
- b. Track out of construction related material at site entrances and exits is controlled;
- c. The SMARTS generated WDID number notification form is in a site location viewable by the public or readily available upon request, kept up to date, and the start and end dates are correct and match the dates listed in SMARTS for the project;
- d. Sampling protocols for stormwater and non-stormwater discharges are correctly performed as described in the SWPPP by on-site trained personnel delegated by a QSP (including, but not limited to, taking representative samples of the runoff);
- e. Contact information including, name, phone number, and email address for the discharger, Legally Responsible Person, QSD(s), and QSP(s) is correct and updated in SMARTS within 90 days of a change); and
- f. Photo documentation of problem areas of erosion, new sediment deposition, unauthorized non-stormwater discharges, and/or failed BMPs is included in the SWPPP and are made available upon a regulatory inspector's request.

V.E. Discharger Responsibilities for Delegates' Performance

V.E.1. The discharger may authorize a QSP to delegate visual inspections, sampling, and/or SWPPP and BMP implementation activities to others (delegates) (e.g., superintendent, project manager, foreman, contractor, coworker) that have received training for their respective tasks. A QSP opting to delegate tasks to

activities, excessive site problems, or other conditions that warrant increased oversight of the site.

others shall provide the following training based on the guidelines set by the Construction General Permit Training Team:

- a. Foundational training for all delegates regarding stormwater compliance roles and responsibilities, forecast information, and documentation and reporting procedures; and
- b. Site-specific training regarding visual inspections, sampling procedures, and/or SWPPP and BMP implementation activities relevant to the delegate's assigned responsibilities.

V.E.2. The discharger shall ensure the following for QSP-delegate(s):

- a. A QSP has determined the delegate(s) can perform and have a competent understanding of the visual inspection, sampling, and/or SWPPP and BMP implementation tasks prior to fully delegating the responsibility to the individual;
- b. The current delegate(s), including name, email, and phone number, are maintained in a training log, uploaded as an attachment to the SWPPP in SMARTS, prior to the delegate performing the delegated function; and
- c. The delegate(s) have a system used to record and report issues back to the QSP within 24 hours of when a corrective action is needed.

V.E.3. The delegate cannot perform the QSD and QSP inspections required in Section V.C.4 or Section V.D.2, respectively.

V.F. Becoming a Qualified SWPPP Developer (QSD) or Qualified SWPPP Practitioner (QSP)

V.F.1. All QSDs and QSPs shall have fundamental knowledge of erosion and sedimentation processes, best management practices, and their implementation to control pollutants in stormwater discharges.

V.F.2. California licensed professional engineers or geologists may self-certify their eligibility to serve as a QSD/QSP via the State Water Board Construction Stormwater Program website.

V.F.2.a. Consistent with Title 16, California Code of Regulations, § 475 Code of Professional Conduct, a California Board for Professional Engineers, Land Surveyors, and Geologists (CBPELSG) licensee shall provide service for a project in a manner that is consistent with the laws, codes, ordinances, and regulations applicable to that project. A CBPELSG licensee shall not misrepresent their scope of authority affiliated with their professional license.

V.F.2.b. The State Water Board expects that a CBPELSG licensee serving a discharger enrolled in this General Permit has thorough knowledge of the conditions and requirements of this General Permit and the required supporting documents and information.

- V.F.3. A person can obtain a QSD or QSP certification through the CASQA by completing the following steps:
- Step 1: Complete a required prerequisite to take the QSD or QSP training course;
 - Step 2: Complete the QSD or QSP training course;
 - Step 3: Pass the QSD or QSP exam; and
 - Step 4: Register as a QSD or QSP through the CASQA website.
- V.F.4. A QSD applicant shall currently possess at least one of the following prerequisites:
- a. A California landscape architect registration;
 - b. A professional hydrologist registration through the American Institute of Hydrology;
 - c. A Certified Professional in Erosion and Sediment Control (CPESC)TM registration through EnviroCert International, Inc.;
 - d. A Certified Professional in Stormwater Quality (CPSWQ)TM registration through EnviroCert International, Inc.; or
 - e. Any prerequisite course approved by the State Water Board's Division of Water Quality Deputy Director in accordance with Section V.G.
- V.F.5. A QSP applicant shall currently possess at least one of the following prerequisites:
- a. A Certified Erosion, Sediment, and Stormwater Inspector (CESSWI) registered through Enviro Cert International, Inc.;
 - b. A certified inspector of sediment and erosion control registered through Certified Inspector of Sediment and Erosion Control (CISEC) Inc.;
 - c. A Construction Management degree from an accredited 4-year institution that includes coursework that covers the underlying principles of erosion and sediment control and practices of reducing pollution in stormwater; or
 - d. Any prerequisite course approved by the State Water Board's Division of Water Quality Deputy Director in accordance with Section V.H.
- V.F.6. To remain in good standing with their certification, QSDs and QSPs registered through CASQA shall:
- a. Complete 6 hours, annually, of continuing education on site assessment techniques, best management practice design and implementation, inspection techniques, or monitoring approaches. This requirement can be fulfilled in whole or in part by continuing education taken to maintain any of the approved underlying prerequisites; and

- b. Complete the online QSD or QSP renewal process every two years, including a review of materials addressing permit implementation updates, clarifications, and experiences as provided by the Construction General Permit Training Team.

V.G. Pre-existing QSP and QSD qualification

- V.G.1. A QSD or QSP who maintained a valid certification as of the effective date of this General Permit shall remain in good standing.
 - V.G.1.a. Existing QSDs and QSPs certified through CASQA shall, prior to the expiration date of their current certificate, certify that they have maintained a valid underlying certification and complete the recertification review or refresher training through CASQA's renewal process.
 - V.G.1.b. Existing QSD/QSPs who have self-certified with the State Water Board that they are a California licensed professional engineer or California licensed professional geologist shall complete the recertification process through the State Water Board Construction Stormwater Program website and complete self-directed training required by the State Water Board before September 1, 2024.

V.H. QSP and QSD Prerequisite Course Qualification

- V.H.1. The State Water Board's Division of Water Quality Deputy Director may approve the qualification of additional prerequisite courses for QSD and QSP certification.
- V.H.2. Individuals may recommend additional prerequisite courses by emailing the [Stormwater Help Desk](mailto:stormwater@waterboards.ca.gov) (stormwater@waterboards.ca.gov). The course curriculum shall meet an acceptable level of training and require continuing education to maintain their certification.
- V.H.3. The Construction General Permit Training Team will review any recommended prerequisite courses and provide feedback for the State Water Board Division of Water Quality Deputy Director's consideration. If approved, the course will be listed on the [State Water Board's Construction Stormwater Program website](https://www.waterboards.ca.gov/water_issues/programs/stormwater/construction.html) (https://www.waterboards.ca.gov/water_issues/programs/stormwater/construction.html) as an approved prerequisite course.

V.I. Water Board Rescission of a QSP or QSD Certification

- V.I.1. The State Water Board Executive Director or a Regional Water Board Executive Officer may:
 - a. Suspend any QSD or QSP certification and require that additional training be completed as a condition of re-instatement if the Executive Director or Executive Officer finds, in writing, that the QSD or QSP in the course of acting as a QSD or QSP at one or more site(s) lacked adequate knowledge or training to perform duties required by the General Permit; and/or

- b. Rescind any QSD or QSP certification if, after providing notice and an opportunity to be heard, the Executive Director or Executive Officer finds, in writing, that the QSD or QSP has in the course of acting as a QSD or QSP at one or more site(s), (1) willfully or negligently caused or allowed a violation of this General Permit; (2) submitted false or misleading information to the State Water Board or any Regional Water Board, (3) used fraud or deception; or (4) failed to use reasonable care and good judgment.

- V.I.2. An individual whose QSD or QSP certification has been rescinded may request the State Water Board to review the rescission. Any request for review must be received by the State Water Board no later than 30 days after the date that the individual received written notice of the rescission.

VI. STANDARD PROVISIONS

VI.A. Duty to Comply

- VI.A.1. The discharger shall comply with all General Permit conditions and requirements. Any General Permit non-compliance constitutes a violation of the Clean Water Act and the Porter-Cologne Water Quality Control Act and is grounds for enforcement action and/or removal of General Permit coverage.
- VI.A.2. The discharger shall comply with effluent standards or prohibitions established under Clean Water Act § 307(a) for toxic pollutants within the time provided in the regulations that establish these standards or prohibitions.

VI.B. Need to Halt or Reduce Activity Not a Defense

A discharger's claim that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with this General Permit shall not be a defense in an enforcement action.

VI.C. Duty to Mitigate

The discharger shall take all responsible steps to minimize or prevent any discharge that has a reasonable likelihood of adversely affecting human health or the environment in violation of this General Permit, which includes ceasing discharge as necessary.

VI.D. Proper Operation and Maintenance

- VI.D.1. The discharger shall at all times properly install, operate, and maintain any treatment and control facilities, systems, related appurtenances, and backup or auxiliary systems (treatment control systems) which are installed or used by the discharger to achieve compliance with this General Permit's conditions.
- VI.D.2. The discharger shall include adequate laboratory controls and appropriate quality assurance procedures for all treatment control systems.

VI.E. Property Rights

This General Permit does not: (1) convey any property rights of any sort or any exclusive privileges, (2) authorize any injury to private property or any invasion of personal rights, (3) or authorize any infringement of federal, state, or local laws or regulations.

VI.F. Duty to Maintain Records and Provide Information

- VI.F.1. The discharger shall maintain a paper or electronic copy of all required records and reports, including but not limited to, a copy of this General Permit and all its attachments and Fact Sheet, for three years from the date generated or date submitted whichever is later.
- VI.F.2. The discharger shall furnish the Water Boards or U.S. EPA, within a reasonable time, any requested information to determine compliance with this General Permit. The discharger shall also furnish, upon request, copies of records that are required to be kept by this General Permit.

VI.G. Inspection and Entry

- VI.G.1. The discharger shall allow staff of the Water Boards, U.S. EPA, and/or an authorized representative of the municipal separate storm sewer system receiving the discharge to:
 - a. Enter the site premises during a regulated construction activity and/or at the location where compliance records are maintained in accordance with this General Permit;
 - b. Access and copy any compliance records maintained in accordance with this General Permit;
 - c. Inspect the complete project and site, including any off-site staging areas or material storage areas, and the erosion/sediment controls;
 - d. Sample, monitor, or install automated sampling equipment to ensure General Permit monitoring compliance; and
 - e. Conduct bioassessment monitoring (if required by a Regional Board water quality control plan), receiving water monitoring, and/or evaluate the performance of BMPs.

VI.H. Electronic Signature and Certification Requirements

- VI.H.1. All documents submitted to the Water Boards (including, but not limited to, Permit Registration Documents, Annual Reports, monitoring records, and

Notices of Termination) are required to be certified by the Legally Responsible Person¹⁵ or a Duly Authorized Representative¹⁶ through SMARTS.

VI.H.2. All documents (e.g., designs, plans, reports) that require engineering or geologic evaluations and judgments must be prepared by, or under the direction of, appropriately licensed professionals in the State of California. The licensee must sign and provide their registration number or stamp on the documents to be submitted and certified by the Legally Responsible Person or Duly Authorized Representative.

VI.H.3. Any person signing documents under Section VI.H shall make the following certification:

“I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations. I am also aware that my user ID and password constitute my electronic signature and any information I indicate I am electronically certifying contains my signature. I understand that my electronic signature is the legal equivalent of my handwritten signature. My signature on this form certifies that my electronic signature is for my own use, that I will keep it confidential, and that I will not delegate or share it with any other person. Should I wish to delegate such authority, I will do so formally in writing and electronically notify the State Water Board using SMARTS of such delegation within 10 days of the delegation. I further certify that I will protect my electronic signature from unauthorized use, and that I will contact the State Water Board, within two business days of discovery, if I suspect that my electronic signature has been lost, stolen, or otherwise compromised.”

VI.H.4. Clean Water Act § 309(c)(4) provides that any person who knowingly makes any false material statement, representation, or certification in any record or other document submitted or required to be maintained under this General Permit, including reports of compliance or non-compliance shall upon conviction, be penalized with a monetary fine of up to \$10,000 or by imprisonment for not more than two years, or both.

15 Defined in this General Permit, Attachment B (Glossary)

16 Defined in this General Permit, Attachment B (Glossary)

VI.I. Anticipated Noncompliance

The discharger shall provide advance notice, in writing, to the applicable Regional Water Board and local stormwater management agency of any planned changes in site construction activities that may result in non-compliance with this General Permit.

VI.J. Reporting of Contaminated Soils

The discharger shall have soils sampled and tested to ensure proper handling and public safety measures are implemented when soil contamination is found or suspected, and a responsible party is not identified, or the responsible party fails to promptly take the appropriate action. The discharger shall notify the appropriate local, state (including the Regional Water Board), and federal agency(ies) when contaminated soil is found at a site.

VI.K. Bypass

- VI.K.1. Bypass¹⁷ is prohibited unless the discharger demonstrates one or more of the following conditions:
- a. In accordance with the bypass requirements for active treatment systems in Attachment F; or
 - b. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage¹⁸; or
 - c. There were no feasible alternatives to bypass, such as the use of auxiliary treatment facilities, retention of untreated waste, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that could occur during normal periods of equipment downtime or preventative maintenance; or
 - d. The discharger allowed a bypass to occur that does not cause the exceedance of an effluent limitation(s), due to essential maintenance to assure efficient operation. In such a case, the above bypass conditions are not applicable; and

17 The intentional diversion of waste streams from any portion of a treatment facility or system.

18 Severe property damage means substantial physical damage to property, damage to the treatment facilities that causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

- e. The discharger submitted a notice to the Regional Water Board, at least 14 calendar days in advance of the need for a bypass except where advance notice was not possible due to an emergency situation where the bypass was unavoidable to prevent loss of life, personal injury or severe property damage. If the discharger was unable to notify the Regional Water Board in advance of a bypass the discharger shall submit written notification to the Regional Water Board within 14 days after the bypass occurs.

VI.L. Upset

- VI.L.1. To establish an affirmative defense of an upset,¹⁹ a discharger must demonstrate the following through properly signed, contemporaneous operating logs or other relevant evidence:
 - a. The non-compliance discharge location;
 - b. The cause(s) of the upset;
 - c. The treatment facility was properly operated and maintained at the time of the upset;
 - d. The discharger submitted notice of the upset as required; and
 - e. Any required remedial measures were implemented as soon as feasibly possible.
- VI.L.2. An administrative determination made before an action of noncompliance occurs is not a final administrative action subject to review.
- VI.L.3. In an enforcement proceeding, the discharger seeking to establish the occurrence of an upset has the burden of proof.

VI.M. Oil and Hazardous Substance Liability

This General Permit, or parts of this General Permit (including, but not limited to, the findings, requirements, conditions, and provisions) shall not be construed to preclude the institution of any legal action or relieve the discharger from any responsibilities, liabilities, or penalties to which the discharger is or may be subject to under Clean Water Act § 311.

19 An exceptional incident in which there is unintentional and temporary non-compliance with technology-based numeric effluent limitations because of factors beyond the reasonable control of the discharger. An upset event does not include a large precipitation event, wind event, or other natural weather-related force of nature. An upset does not include non-compliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventative maintenance, or careless or improper operation.

VI.N. Severability

The provisions of this General Permit are severable; if any provision of this General Permit or the application of any provision of this General Permit to any circumstance is held invalid, the application of such provision to other circumstances, and the remainder of this General Permit, shall not be affected thereby.

VI.O. Reopener Clause

- VI.O.1. This General Permit may be modified, revoked and reissued, or terminated for cause due to promulgation of amended regulations, receipt of U.S. EPA guidance concerning regulated activities, judicial decision, or in accordance with 40 Code of Federal Regulations §§ 122.62, 122.63, 122.64, and 124.5.
- VI.O.2. The submittal of a request by the discharger for a General Permit modification, revocation and reissuance, or termination, notification of planned changes, or anticipated non-compliance does not annul any General Permit condition.
- VI.O.3. This General Permit shall be modified or revoked and reissued to conform if any applicable toxic effluent standard or prohibition (including any schedule of compliance specified in such effluent standard or prohibition) promulgated under Clean Water Act §307(a) for a toxic pollutant which is present in the discharge and the standard or prohibition is more stringent than any pollutant limitation in this General Permit. The Water Boards shall provide the public and dischargers notice of the action.
- VI.O.4. This General Permit may be reopened before March 23, 2032 to revise the requirements implementing the Los Angeles and Long Beach Harbor Waters TMDL for copper, lead, and zinc, for dischargers that discharge to the Dominguez Channel or the Torrance Lateral Channel. State Water Board staff will work with interested stakeholders to develop a plan to collect additional data related to the forthcoming implementation of the 100 mg/L TSS numeric effluent limitation, including the soil screening investigation, and report to the State Water Board via the Executive Director report no later than September 1, 2024. The State Water Board will evaluate whether the additional data and other available information warrants revising the requirements implementing the Los Angeles and Long Beach Harbor Waters TMDL for copper, lead, and zinc at a publicly noticed Board meeting no later than August 31, 2028.
- VI.O.5. This General Permit may be reopened to revise the requirements implementing the Los Angeles Lakes TMDL for chlordane, DDT, dieldrin, and PCBs that discharge to Peck Road Park Lake, Echo Park Lake or Puddingstone Reservoir. State Water Board staff will work with interested stakeholders to develop a plan to collect additional data related to the implementation of the 100 mg/L TSS numeric effluent limitation, including the soil screening investigation, and report to the State Water Board via the Executive Director report no later than September 1, 2023. Upon completion of the work required by the plan, the State Water Board will evaluate whether the additional data and other available

information warrants revising the requirements implementing the Los Angeles Lakes TMDL for chlordane, DDT, dieldrin, and PCBs at a publicly noticed Board meeting.

VI.P. Penalties for Violations of General Permit Conditions

- VI.P.1. Clean Water Act § 309 provides significant penalties for any person who violates a permit condition implementing Clean Water Action §§ 301, 302, 306, 307, 308, 318, or 405 or any permit condition or limitation implementing any such section in a permit issued under § 402. Any person who violates any permit condition of this General Permit is subject to a civil penalty not to exceed \$37,500²⁰ per calendar day of such violation, as well as any other appropriate sanction provided by §309 of the Clean Water Act.
- VI.P.2. Clean Water Act § 309(c)(4) provides that any person who knowingly makes any false material statement, representation, or certification in any record or other document submitted or required to be maintained by this General Permit, including reports of compliance or non-compliance shall upon conviction, be punished by a fine of not more than \$10,000 or by imprisonment for not more than two years or both.
- VI.P.3. The Porter-Cologne Water Quality Control Act provides specific administrative, civil, and criminal penalties, which in some cases are greater than those under the Clean Water Act.

VI.Q. Water Quality Based Corrective Actions²¹

- VI.Q.1. By the end of each reporting year, if the discharger's construction stormwater and/or non-stormwater discharges contain pollutants that are in violation of Receiving Water Limitations (Section IV.D) or in the event that a Responsible Discharger's discharge exceeds an applicable numeric effluent limitation in Attachment H, the discharger shall:
 - a. Conduct a site assessment to identify pollutant source(s) within the site that are associated with construction activity and whether the BMPs described in the SWPPP have been properly implemented;
 - b. Evaluate the site's SWPPP and its implementation to determine whether additional BMPs or SWPPP implementation measures are necessary to reduce or prevent pollutants in all regulated discharges to comply with the Receiving Water Limitations (Section IV.D) or applicable numeric effluent limitations in Attachment H; and

²⁰ May be further adjusted in accordance with the Federal Civil Penalties Inflation Adjustment Act.

²¹ Terms including, but not limited to, Responsible Dischargers, numeric effluent limitations and exceedances are defined in Attachment B of this General Permit.

c. Certify and submit, through SMARTS, documentation based upon the above site assessment and SWPPP evaluation that:

- i. Additional BMPs and/or SWPPP implementation measures have been identified and included in the SWPPP to comply with the Receiving Water Limitations (Section IV.D) or applicable numeric effluent limitations in Attachment H; or
- ii. No additional BMPs or SWPPP implementation measures are required to reduce or prevent pollutants in all regulated discharges to comply with the Receiving Water Limitations (Section IV.D) or applicable numeric effluent limitations in Attachment H.

VI.Q.2. The Regional Water Board or its delegate may require revisions of the discharger's water quality-based corrective actions and/or request additional supporting documentation.

VI.R. Continuation of Expired General Permit

This General Permit continues in force and effect until the effective date of a new General Permit adopted by the State Water Board or the State Water Board rescinds this General Permit.

VII. REGIONAL WATER BOARD AUTHORITIES

- VII.A.** Regional Water Boards (as defined in Attachment B) may terminate General Permit coverage upon determination that a discharger has failed to comply with General Permit requirements. The Regional Water Boards may also terminate General Permit coverage upon determination that the subject discharges must be regulated through a separate Regional Water Board-issued NPDES permit.
- VII.B.** Regional Water Boards may require a discharger to comply with additional monitoring and reporting requirements, including but not limited to, increasing sampling frequency, requiring analysis of additional parameters, increasing the frequency of inspections by the Qualified SWPPP Developer and Qualified SWPPP Practitioner, or implementation of recommendations by the Qualified SWPPP Developer and Qualified SWPPP Practitioner, pursuant to California Water Code § 13383.
- VII.C.** All Regional Water Board actions that modify requirements for compliance, pursuant to California Water Code §13383, with this General Permit shall be provided to the discharger in writing and submitted through SMARTS.
- VII.D.** Regional Water Boards may require dischargers to retain records required by this General Permit for more than the three years.
- VII.E.** Regional Water Boards may obtain site-specific data, records, or documentation demonstrating one or more numeric action level exceedances occurred at a site and may direct the discharger to revise their SWPPP and/or BMPs to address the exceedance.

- VII.F.** Consistent with California Water Code §§13350(a) and/or 13376, Regional Water Boards finding a discharger in violation of a prohibition or requirement in this General Permit with the potential to discharge pollutants into the waters of the United States, may require a discharger to revise and re-submit the SWPPP, other required documents and/or implement additional BMPs to address site-specific conditions.
- VII.G.** Consistent with 40 Code of Federal Regulations §§ 122.26(a)(9)(i)(D) and 122.26(a)(9)(i)(C), a Regional Water Board may require any discharge of stormwater and non-stormwater from construction activity that is not regulated by this General Permit, and that may cause or contribute to an exceedance of a water quality standard, to obtain General Permit coverage.
- VII.H.** A Regional Water Board has the authority to require a Risk Level determination to be reassessed for a site currently regulated under this General Permit, or with an active waiver, as deemed necessary, including but not limited to the following circumstances:
1. The discharger has a demonstrated history of General Permit non-compliance with this General Permit or its predecessors;
 2. The subject construction site poses a significant risk of causing or contributing to an exceedance of a water quality standard without the implementation of the additional Risk Level 2 or 3 requirements; or
 3. The Regional Water Board staff have documented that the discharger Risk Level for the subject site is calculated incorrectly.

APPENDIX - D
RIGHT OF ENTRY PERMIT -
WILDER RANCH STATE
PARK

RIGHT OF ENTRY PERMIT

Agency: Department of Parks and Recreation

Project: Wilder Ranch State Park
CA FLAP SCR T5(1) Mitigation and Habitat
Restoration
Federal Highway Administration Central
Federal Lands

This Right of Entry Permit (Permit) is made and entered into this **15th** of **April**, between the State of California, acting by and through its Department of Parks and Recreation, hereinafter called State, and **Federal Highway Administration Central Federal Lands**, hereinafter called Permittee; State and Permittee may hereinafter be referred to as a Party, or collectively the Parties.

RECITALS

- **Whereas**, the State owns, operates and maintains the State Park known as **Wilder Ranch State Park**, in the County of San Mateo and Santa Cruz, State of California; and
- **Whereas**, Permittee has applied to State for permission to access **Wilder Ranch State Park** for purposes of carrying out Permittee's **CA FLAP SCR T5(1) Mitigation and Habitat Restoration** (the Project); and
- **Whereas**, the State desires to accommodate Permittee's application for permission to enter **Wilder Ranch State Park** for purposes of the Project, as provided herein and as, and to the extent, such Project may be ultimately described, permitted, approved and conditioned by any other regulatory agency having jurisdiction, if applicable.

TERMS AND CONDITIONS

Now therefore, the State by this Permit hereby grants to the Permittee permission to enter upon State's property, conditioned upon the agreement of the Parties that this Permit does not create or vest in Permittee any interest in the real property herein described or depicted, that the Permit is revocable and non-transferable, and that the Permit is further subject to the following terms and conditions:

1. **Project Description:** By this Permit, the State hereby grants to the Permittee permission to enter onto those lands depicted as **Wilder Ranch State Park** and/or described as construction areas on **Exhibit "A"** (the Property), and as described in the Scope of Work, described here, solely for the purpose of habitat restoration, invasive species removal, weed control, and wetland establishment.
 - a. **Scope of Work:**
 - i. Project consists of seed collection, plantings, irrigation, plant caging/fencing (if necessary), various methods of weed control as approved by CA State Parks, discing for soil preparation, and approx. 2 feet of excavation and disturbance area of 1 acre will occur at a wetland site using general earth moving equipment. Following the installation/construction of this work, monitoring is required for 5 years to ensure success.
 - ii. Planting schedule on **Exhibit "B"**.
2. **Permit Subject to Laws and Regulatory Agency Permits:** This Permit is expressly conditioned upon Permittee's obtaining any and all regulatory permits or approvals required by the relevant regulatory agencies for the Project and Permittee's use of the Property, and upon Permittee's compliance with all applicable municipal, state and federal laws, rules and regulations, including all State Park regulations. Permittee shall, at Permittee's sole cost and expense, comply with the Project Description, and requirements and mitigations contained in the Environmental Document.

Prior to commencement of any work, Permittee shall obtain all such legally required permits or approvals and submit to the State full and complete copies of all permits and approvals, including documentation related to or referenced in such permits and approvals, along with the corresponding agency contact and telephone numbers, and related California Environmental Quality Act (CEQA) and/or National Environmental Policy Act (NEPA) documentation as applicable.
3. **Term of Permit:** This Permit shall only be for the period beginning on **July 1st, 2025**, and ending on **December 31st, 2032**, or as may be reasonably extended by written mutual agreement of the Parties.

4. **Consideration:** Permittee agrees to pay State the sum of **Zero Dollars and No/100 (\$0.00)** as consideration for the rights granted by this Permit.
5. **Permit Subject to Existing Claims:** This Permit is subject to existing contracts, permits, licenses, encumbrances and claims which may affect the Property.
6. **Waiver of Claims and Indemnity:** Permittee waives all claims against State, its officers, agents and/or employees, for loss, injury, death or damage caused by, arising out of, or in any way connected with the condition or use of the Property, the issuance, exercise, use or implementation of this Permit, and/or the rights herein granted. Permittee further agrees to protect, save, hold harmless, indemnify and defend State, its officers, agents and/or employees from any and all loss, damage, claims, demands, costs and liability which may be suffered or incurred by State, its officers, agents and/or employees from any cause whatsoever, arising out of, or in any way connected with this Permit, exercise by Permittee of the rights herein granted, Permittee's use of the Property and/or the Project for which this Permit is granted, except those arising out of the sole active negligence or willful misconduct of State. Permittee will further cause such indemnification and waiver of claims in favor of State to be inserted in each contract that Permittee executes for the provision of services in connection with the Project for which this Permit is granted.
7. **Contractors:** Permittee shall incorporate the terms, conditions and requirements contained herein when contracting out all or any portion of the work permitted hereunder. Permittee shall be responsible for ensuring contractor/subcontractor compliance with the terms and conditions contained herein. Failure of Permittee's contractors to abide by State's terms and conditions shall constitute default by Permittee (see DEFAULT paragraph below) allowing State to terminate this Permit and seek all legal remedies.
8. **Insurance Requirements:** As a condition of this Permit and in connection with Permittee's indemnification and waiver of claims contained herein, Permittee shall maintain, and cause its contractors to maintain, a policy or policies of insurance as follows:

General Provisions Applying to All Policies

- A. **Coverage Term** – Coverage needs to be in force for the complete term of the contract. If insurance expires during the term of the contract, a new certificate must be received by the State at least ten (10) days prior to the expiration of this insurance. Any new insurance must still comply with the original terms of the contract.
- B. **Policy Cancellation or Termination & Notice of Non-Renewal** – Contractor is responsible to notify the State within five business days before the effective date of any cancellation, non-renewal, or material change that affects required insurance coverage. In the event Contractor fails to keep in effect at all times the specified insurance coverage, the State may, in addition to any other remedies it may have, terminate this Contract upon the occurrence of such event, subject to the provisions of this Contract.
- C. **Deductible** – Contractor is responsible for any deductible or self-insured retention contained within their insurance program.
- D. **Primary Clause** – Any required insurance contained in this contract shall be primary, and not excess or contributory, to any other insurance carried by the State.
- E. **Insurance Carrier Required Rating** – All insurance companies must carry a rating acceptable to the Office of Risk and Insurance Management. If the Contractor is self-insured for a portion or all of its insurance, review of financial information including a letter of credit may be required.
- F. **Endorsements** – Any required endorsements requested by the State must be physically attached to all requested certificates of insurance and not substituted by referring to such coverage on the certificate of insurance.
- G. **Inadequate Insurance** – Inadequate or lack of insurance does not negate the contractor obligations under the contract.
- H. **Satisfying an SIR** - All insurance required by this contract must allow the State to pay and/or act as the contractor's agent in satisfying any self-insured retention (SIR). The choice to pay and/or act as the contractor's agent in satisfying any SIR is at the State's discretion.
- I. **Available Coverages/Limits** - All coverage and limits available to the contractor shall also be available and applicable to the State.

- J. Subcontractors** - In the case of Contractor utilization of subcontractors to complete the contracted scope of work, contractor shall include all subcontractors as insured's under Contractor and insurance or supply evidence of insurance to The State equal to policies, coverages and limits required of Contractor.

COMMERCIAL GENERAL LIABILITY:

Commercial General Liability Insurance covering bodily injury and property damage in a form and with coverage that are satisfactory to the State. This insurance shall include personal and advertising injury liability, products and completed operations, and liability assumed under an insured contract. Coverage shall be written on an occurrence basis in an amount of not less than \$1,000,000 per occurrence. Annual aggregate limit shall not be less than \$2,000,000. **The State of California, its officers, agents, and employees are to be covered as additional insureds with respect to liability arising out of work or operations.**

AUTOMOBILE LIABILITY INSURANCE:

Automobile Liability Insurance covering all owned, non-owned, and hired vehicles with a combined single limit of not less than \$1,000,000 for bodily injury and property damage. **The State of California, its officers, agents, and employees are to be covered as additional insureds with respect to liability arising out of work or operations.**

WORKERS COMPENSATION AND EMPLOYERS LIABILITY:

Workers' Compensation insurance as required by the State of California, with Statutory Limits, and Employer's Liability Insurance with limit of no less than \$1,000,000 per accident for bodily injury or disease. **The Workers' Compensation policy shall be endorsed with a waiver of subrogation in favor of the State of California.**

- 9. Reservation of Rights:** State reserves the right to use the Property in any manner, provided such use does not unreasonably interfere with Permittee's rights herein.
- 10. Access Limits and Conditions:** Access to the Property shall be limited to the access designated by State. Prior to entry, permittee shall develop a communications and logistical plan with park operations staff prior to park entry. Access will need to be coordinated with staff below. Permitted activities should keep impacts to the public and park staff to the minimum possible.
- 11. Notice of Work:** Any required notices to State shall be sent to the State authorities in charge of **Wilder Ranch State Park** named below at least forty-eight (48) hours prior to any entry upon the Property for any of the purposes hereinabove set forth, Permittee shall provide the State contact[s] named below with written notice of Permittee's intent to enter the Property. Permittee shall also notify the State contact[s] listed below in writing at least forty-eight (48) hours prior to any change in the Project schedule or cessation or completion of work. Should State personnel need to contact Permittee, State shall notify Permittee's contact person listed below:

STATE: Contact: Portia Halbert Email: Portia.Halbert@parks.ca.gov Permit Questions: Linda Hitchcock Telephone: (831) 335-6385 Email: Linda.hitchcock@parks.ca.gov Address: 303 Big Trees Park Rd Felton, CA 95018	PERMITTEE: Contact: Ryan Mathis Address: 12300 W. Dakota Ave. Lakewood, CO 80228 Telephone: 720-963-3728 Email: Ryan.Mathis@dot.gov
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- 12. Limits of Work:** In no event shall this Permit authorize work in excess or contrary to the terms and conditions of any regulatory agency permit or approval. Under no circumstances, whether or not authorized by any regulatory agency, other permit or any person or entity other than State, shall work exceed that which is authorized by this Permit.
- 13. Public Safety:** Permittee shall erect orange plastic temporary construction fencing and appropriate signage prior to commencement of work to prevent public access to the construction zone. Permittee shall remove such fencing within two (2) days after the completion of work. Permittee shall take, and shall cause its contractors or subcontractors to take, any and all necessary and reasonable steps to protect the public from harm in connection with the Project or implementation of this Permit.

- 14. Compliance with Project Requirements, Monitoring and Mitigation Measures (if applicable):** Resource monitoring and mitigation measures identified by environmental document, if applicable, shall be completed in accordance with and to the satisfaction of the District Superintendent or designee.

Permittee's activities conducted under this Permit shall comply with all State and Federal environmental laws, including, but not limited to, the Endangered Species Act, CEQA, and Section 5024 of the Public Resources Code.

Any of Permittee's archaeological consultants working within the boundaries of the Property shall obtain a permit from the California State Parks Archaeology, History & Museums Division prior to commencing any archaeological or cultural investigations of the Property.

Permittee shall immediately advise State's contact person if any new site conditions are found during the course of permitted work. State will advise Permittee if any new historical resources (including archaeological sites), special status species, threatened/endangered species protocols, or other resource issues are identified within the Project site. Permittee shall abide by District Superintendent or designee's instructions to protect the resource(s) during the permitted work or risk revocation of the Permit.

Permittee shall make all excavation activities on the Property available to the State Archaeologist for observation and monitoring. During excavation, the State archaeological monitor may observe and report to the State on all excavation activities. State archaeological monitor shall be empowered to stop any construction activities as necessary to protect significant cultural resources from being disturbed.

In the event that previously unknown cultural resources, including, but not limited to, dark soil containing shell, bone, flaked stone, groundstone, or deposits of historic trash are encountered during Project construction by anyone, work will be suspended at that specific location, and the Permittee's work will be redirected to other tasks, until after a State-qualified archaeologist has evaluated the find and implemented appropriate treatment measures and disposition of artifacts, as appropriate, in compliance with all applicable laws and department resource directives.

If human remains are discovered during the Project, work will be immediately suspended at that specific location and the District Superintendent or designee shall be notified by Permittee. The specific protocol, guidelines and channels of communication outlined by the California Native American Heritage Commission (NAHC), and/or contained in Health and Safety Code Section 7050.5 and Public Resources Code Sections 5097.9 et seq., will be followed. Those statutes will guide the potential Native American involvement in the event of discovery of human remains.

Permittee shall provide a written work schedule to State so that the State archaeological monitor can arrange to be on site on the necessary days. Permittee shall provide reasonable advance notice of and invite the District Superintendent or designee to any preconstruction meetings with the prime contractor or subcontractors.

- 15. Restoration of Property:** Permittee shall complete the restoration, repair, and revegetation of the Property in consultation with, and to the satisfaction of, the State Environmental Scientist within one (1) year after completion of the Project or the expiration or termination of this Permit, whichever comes first. This obligation shall survive the expiration or termination of this Permit.
- 16. Performance Bond:** If required by State in order to ensure that Permittee performs and completes its obligations in accordance with the terms of the Permit, Permittee shall obtain a Performance Bond in the amount of from a surety duly licensed in the State of California. Permittee shall provide State with a copy of such insurance bond.
- 17. Right to Halt Work:** The State reserves the right to halt work and demand mitigation measures at any time, with or without prior notice to Permittee, in the event the State determines that any provision contained herein has been violated, or in the event that cessation of work is necessary to prevent, avoid, mitigate or remediate any threat to the health and safety of the public or state park personnel, or to the natural or cultural resources of the state park.
- 18. Use Restrictions:** The use of the Property by Permittee, including its guests, invitees, employees, contractors and agents, shall be restricted to the daytime hours between sunrise and sunset on a day-by-day basis, unless otherwise approved in advance in writing by State. No person shall use or occupy the Property overnight.

Activities on the Property shall be conducted only in a manner which will not interfere with the orderly operation of the state park. Permittee shall not engage in any disorderly conduct and shall

not maintain, possess, store or allow any contraband on the Property. Contraband includes, but is not limited to: any illegal alcoholic beverages, drugs, firearms, explosives and weapons.

Roads and trails where motorized vehicles are normally prohibited may be used for vehicle access by Permittee, its employees, agents or contractors for patrol, maintenance or repair purposes only, and only to the extent specified by State, and shall be otherwise subject to all other conditions and/or restrictions of this Permit and any applicable laws, state park regulations and state park policies.

Permittee shall not use or allow the Property to be used, either in whole or in part, for any purpose other than as set forth in this Permit, without the prior written consent of the State.

- 19. State's Right to Enter:** At all times during the term of this Permit and any extension thereof, there shall be and is hereby expressly reserved to State and to any of its agencies, contractors, agents, employees, representatives, invitees or licensees, the right at any and all times, and any and all places, to temporarily enter upon said Property to survey, inspect, or perform any other lawful State purposes.

Permittee shall not interfere with State's right to enter.

- 20. Protection of Property:** Permittee shall protect the Property, including all improvements and all natural and cultural features thereon, at all times at Permittee's sole cost and expense, and Permittee shall strictly adhere to the following restrictions:
- (a) Permittee shall not place or dump garbage, trash or refuse anywhere upon or within the Property, except in self-contained trash receptacles that are maintained to State's satisfaction by Permittee.
 - (b) Permittee shall not commit or create, or suffer to be committed or created, any waste, hazardous condition or nuisance in, on, under, above or adjacent to the Property.
 - (c) Permittee shall not cut, prune or remove any vegetation upon the Property, except as identified in the Project description and herein permitted or subsequently approved in writing by the District Superintendent.
 - (d) Permittee shall not disturb, move or remove any rocks or boulders upon the Property, except as identified in the Project description and herein permitted or subsequently approved in writing by the District Superintendent.
 - (e) Permittee shall not grade or regrade, or alter in any way, the ground surface of the Property, except as herein permitted, or subsequently approved in writing by the District Superintendent.
 - (f) Permittee shall not bait, poison, trap, hunt, pursue, catch, kill or engage in any other activity which results in the taking, maiming or injury of wildlife upon the Property, except as identified in the Project description and herein permitted or subsequently approved in writing by the District Superintendent.
 - (g) Permittee shall not use, create, store, possess or dispose of hazardous substances (as defined in the California Hazardous Substances Act) on the Property except as herein permitted, or subsequently approved in writing by the District Superintendent.
 - (h) Permittee shall exercise due diligence to protect the Property against damage or destruction by fire, vandalism and any other causes.
- 21. Default:** In the event of a default or breach by Permittee of any of the terms or conditions set forth in this Permit, State may at any time thereafter, without limiting State in the exercise of any right of remedy at law or in equity which State may have by reason of such default or breach:
- (a) Maintain this Permit in full force and effect and recover the consideration, if any, and other monetary charges as they become due, without terminating Permittee's right to use of the Property, regardless of whether Permittee has abandoned the Property; or
 - (b) Immediately terminate this Permit upon giving written notice to Permittee, whereupon Permittee shall immediately surrender possession of the Property to State and remove all of Permittee's equipment and other personal property from the Property. In such event, State shall be entitled to recover from Permittee all damages incurred or suffered by State by reason of Permittee's default, including, but not limited to, the following:

- (i) any amount necessary to compensate State for all the detriment proximately caused by Permittee's failure to perform its obligations under this Permit, including, but not limited to, compensation for the cost of restoration, repair and revegetation of the Property, which shall be done at State's sole discretion and compensation for the detriment which in the ordinary course of events would be likely to result from the default; plus
- (ii) at State's election, such other amounts in addition to or in lieu of the foregoing as may be permitted from time to time by applicable law.

22. **State's Right to Cure Permittee's Default:** At any time after Permittee is in default or in material breach of this Permit, State may, but shall not be required to, cure such default or breach at Permittee's cost. If State at any time, by reason of such default or breach, pays any sum or does any act that requires the payment of any sum, the sum paid by State shall be due immediately from Permittee to State at the time the sum is paid. The sum due from Permittee to State shall bear the maximum interest allowed by California law from the date the sum was paid by State until the date on which Permittee reimburses State.
23. **Revocation of Permit:** The State shall have the absolute right to revoke this Permit for any reason upon ten (10) days written notice to Permittee. Written notice to Permittee may be accomplished by electronic or facsimile transmission, and the notice period set forth in this paragraph shall begin on the date of the electronic or facsimile transmission, or, if sent by mail, on the date of delivery. If Permittee is in breach of the Permit or owes money to the State pursuant to this Permit, any prepaid monies paid by Permittee to State shall be held and applied by the State as an offset toward damages and/or amounts owed. Nothing stated herein shall limit the State's exercise of its legal and equitable remedies.
24. **Recovery of Legal Fees:** In any action brought to enforce or interpret any provisions of this Permit or to restrain the breach of any agreement contained herein, or for the recovery of possession of the Property, or to protect any rights given to the State against Permittee, and in any actions or proceedings under Title 11 of the United States Code, if the State shall prevail in such action on trial or appeal, the Permittee shall pay to the State such amount in attorney's fees in said action as the court shall determine to be reasonable, which shall be fixed by the court as part of the costs of said action.
25. **Voluntary Execution and Independence of Counsel:** By their respective signatures below, each Party hereto affirms that they have read and understood this Permit and have received independent counsel and advice from their attorneys with respect to the advisability of executing this Permit.
26. **Reliance on Investigations:** Permittee declares that it has made such investigation of the facts pertaining to this Permit, the Property and all the matters pertaining thereto as it deems necessary, and on that basis accepts the terms and conditions contained in this Permit. Permittee acknowledges that State has made, and makes, no representations or warranties as to the condition of the Property, and Permittee expressly agrees to accept the Property in its as-is condition for use as herein permitted.
27. **Entire Agreement:** The Parties further declare and represent that no inducement, promise or agreement not herein expressed has been made to them and this Permit contains the entire agreement of the Parties, and that the terms of this agreement are contractual and not a mere recital.
28. **Warranty of Authority:** The undersigned represents that they have the authority to, and do, bind the person or entity on whose behalf and for whom they are signing this Permit and the attendant documents provided for herein, and this Permit and said additional documents are, accordingly, binding on said person or entity.
29. **Assignment:** This Permit shall not be assigned, mortgaged, hypothecated, or transferred by Permittee, whether voluntarily or involuntarily or by operation of law, nor shall Permittee let, sublet or grant any license or permit with respect to the use and occupancy of the Property or any portion thereof, without the prior written consent of State.
30. **Choice of Law:** This Permit will be governed and construed by the laws of the State of California.

STATE OF CALIFORNIA

Department of Parks and Recreation

DocuSigned by:
Chris Spohrer 4/28/2025
By: 022880F8407E495...
Name: Chris Spohrer
Title: District Superintendent
Santa Cruz District

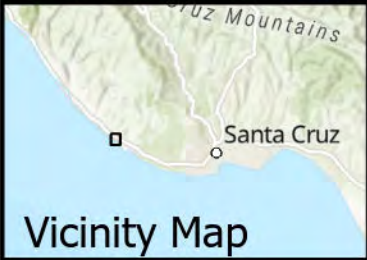
PERMITTEE

Federal Highway Administration

Signed by:
Wendy Longley 4/28/2025
By: 04AD89B21BD9427...
Name: Wendy Longley
Title: Project Management Branch Chief

Emergent Wetland Restoration

Exhibit A



Right of Entry Permit for FHWA to allow for habitat restoration at Wilder Ranch State Park.

Permit Term: 7/1/25 through 12/31/32

Legend

Wilder Ranch State Park

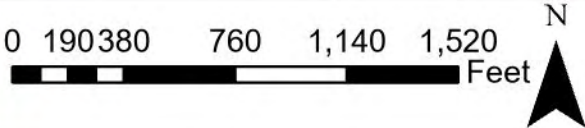


Exhibit B

Planting Schedule for Palustrine Emergent Wetland Restoration				
Scientific Name	Common Name	OC Spacing (Feet)	Container	Number
<i>Baccharis glutinosa</i>	Salt Marsh Baccharis	5	Tree Band	563
<i>Carex densa</i>	Dense Sedge	3	Tree Band	564
<i>Carex harfordii</i>	Monterey Sedge	3	Tree Band	564
<i>Juncus balticus</i>	Baltic Rush	3	Tree Band	564
<i>Juncus effusus</i>	Bog Rush	3	Tree Band	564
TOTAL CONTAINER PLANTS				2820
<i>Salix lasiolepis</i>	Arroyo Willow	8	Pole Cutting	475

Mitigation Site Area		
Location	Area	Unit(s)
EW	1.08	Acres
Arroyo Willow Scrub Restoration	0.13	Acres

Seeding Schedule for Palustrine Emergent Wetland Restoration		
Scientific Name	Common Name	Pounds PLS / acre
<i>Baccharis glutinosa</i>	Salt Marsh Baccharis	10
<i>Carex densa</i>	Dense Sedge	10
<i>Carex harfordii</i>	Monterey Sedge	10
<i>Juncus balticus</i>	Baltic Rush	5
<i>Juncus effusus</i>	Bog Rush	10
TOTAL		45

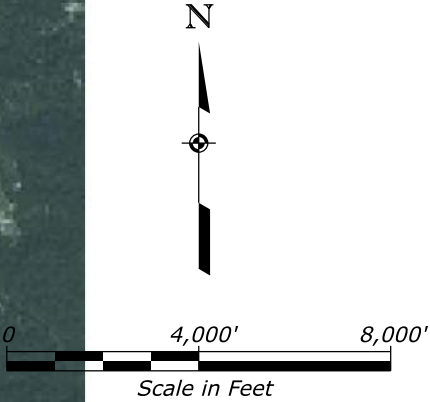
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4/10/2025



STATE	PROJECT	SHEET NUMBER
CA	CA FLAP SCR T5(1A)	A4



U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
CENTRAL FEDERAL LANDS HIGHWAY DIVISION

SITE MAP

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4/10/2025



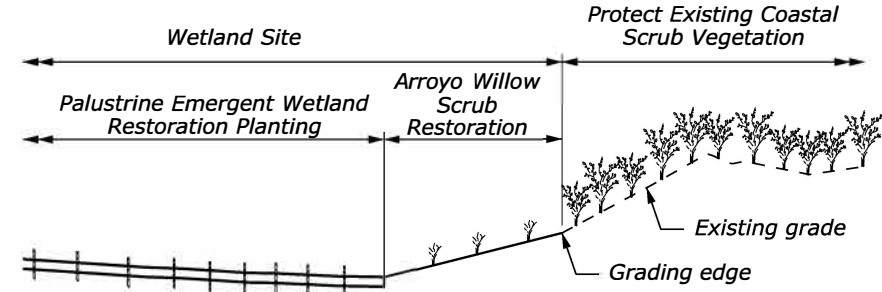
- NOTES:
- 1. See grading plan sheet D1 for site work prior to planting.
 - 2. Control invasive exotic plants from reestablishment within the wetland site in accordance with Specification Section 202.
 - 3. Arrange plants in a randomized pattern throughout mitigation site. For planting layout, see Planting Detail sheets.
 - 4. See Section 713.04 for seeding mix in Palustrine Emergent Wetland Restoration.

STATE	PROJECT	SHEET NUMBER
CA	CA FLAP SCR T5(1A)	C5

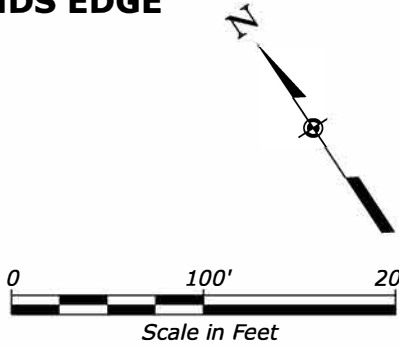
Planting Schedule for Palustrine Emergent Wetland Restoration				
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Arroyo Willow Scrub Restoration	0.13	Acres

Seeding Schedule for Palustrine Emergent Wetland Restoration		
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<i>Juncus effusus</i>	Bog Rush	10
TOTAL		45



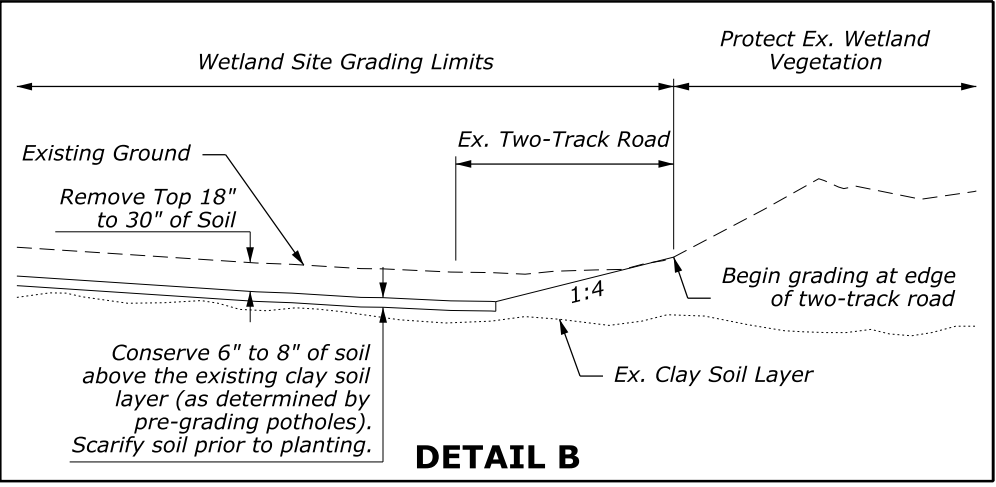
TYPICAL WETLANDS EDGE



U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
CENTRAL FEDERAL LANDS HIGHWAY DIVISION

LANDSCAPE PLAN
PALUSTRINE EMERGENT
WETLAND
(EW)

95% DESIGN SUBMITTAL - NOT FOR CONSTRUCTION



WETLAND MITIGATION SITE

Certificate Of Completion

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Sacramento, CA 95814

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Wendy.Longley@dot.gov

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Signature

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Chris Spohrer

chris.spohrer@parks.ca.gov

District Superintendent II

California State Department of Parks and Recreation

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Chris Spohrer

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Editor Delivery Events

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Agent Delivery Events

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Status

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Certified Delivery Events

Status

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Carbon Copy Events

Status

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Witness Events

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Notary Events

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Timestamp

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Completed	Security Checked	4/28/2025 11:26:52 AM
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- Until or unless you notify California State Department of Parks and Recreation as described above, you consent to receive exclusively through electronic means all notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you by California State Department of Parks and Recreation during the course of your relationship with California State Department of Parks and Recreation.